

INTRODUCTORY

THE CONSTITUTION OF INDIA

THE PREAMBLE

WE, the people of India, having solemnly resolved to constitute India into a sovereign socialist secular democratic republic and to secure to all its citizens :

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief faith and worship;

EQUALITY of status and of opportunity;
and to promote among them all,

FRATERNITY, assuring the dignity of the individual, and the unity and integrity of the Nation;

In our Constituent Assembly, this twenty-sixth day of November, 1949, to hereby **ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.**

OBJECTS OF THE PREAMBLE – The Preamble serves **as an introduction** to the Constitution. It is a *statement of the purposes* for which the Indian Constitution was enacted.

The Preamble serves *two purposes*. *Firstly*, it indicates the *source* from which the Constitution came into existence,—namely, the *people* of India. The political power in the Indian Republic, therefore, vests ultimately with the people of India. Our Constitution is broad-based on the **consent and** acquiescence of the people. It is *not* imposed by any external authority, as was the case with the Government of India Act, 1935. It is true that the Constituent Assembly (which framed the Constitution) was *not* directly elected by the people; *nor* was the draft of the Constitution subjected to the vote of the people. Yet, the Constituent Assembly was fairly representative of *all sections* of the people.

Secondly, the Preamble throws light on the *aims* and the *objects* of the Constitution. The declared object is to secure *justice, liberty, equality and fraternity* to all citizens of India. Thus, the Preamble expresses the *political, moral and religious values* which the Constitution is intended to promote.

As observed by the Supreme Court, a Constitution is a living and organic thing, which, of all instruments, has the greatest claim to be construed *broadly and liberally*. As the Supreme Court observed the Constitution is *not* merely "law", but the machinery by which all laws are made. (*Goodyear India Ltd. v. State of Haryana*, AIR 1990 S C 781)

The various words and expressions used in the Preamble, together with their political background and significance are examined below

'SOVEREIGN'.—A State is sovereign when there resides within itself a supreme and absolute power acknowledging no superior' (Cooley. *Constitutional Law*, p. 18)

India is *sovereign* because the Constitution does *not* recognise the supremacy of any other country over India The *effect* of this sovereignty is that the State has the power to legislate on any subject in conformity with the provisions of the Constitution (*Synthetic and Chemicals Ltd. v. State of UP.*, A.I.R. 1990 S.C. 1927)

Sovereignty is of two kinds *External and Internal.*

(i) *External Sovereignty*,— A State is **externally** sovereign when it is *independent* of the will of other States. One may well ask—What about India? Is it externally sovereign? The answer is that India ceased to be a dependency of the British Empire by the passing of the Indian Independence Act. **1947**. India, now, is therefore as much a *sovereign* State as the United States of America. In the U.S., as in India, sovereignty resides in the people

It should be noted that *neither* India's membership of the United Nations *nor* its membership of the Commonwealth of Nations is, in any way, a limitation on its sovereignty

(h) *Internal Sovereignty*.—*Internal* sovereignty refers to the relation between the State and its people, i.e., its citizens. In the Indian Constitution, although there is a division of powers between the Union and the States, this is so only in a nominal manner. As the Preamble indicates, the sovereignty, under the Constitution, vests in the Republic of India (which includes both the Union and the States), and *not* in any of its component parts. India is, therefore, internally sovereign also.

As observed by the Supreme Court, being a sovereign State, India is free from any type of external control. It can acquire new territories and equally cede a part of its territory to a foreign State, if the constitutional requirements are satisfied. (*Maganbhai Patel v. Union of India*, (1970) 3 SCC 400)

'DEMOCRATIC'.—**Democracy** denotes a Government in which the mass of the adult population has a direct or indirect share. Now, democracy can be of two kinds—*direct* and *indirect*. *Direct* democracy is one in which the whole body of people directly exercises political power. as was the case in ancient Rome. In an *indirect* or *representative* democracy, the great mass of the people, namely, the electorate, choose their representatives, who form the Government. The legal sovereignty in such a State rests, *not* in the electorate, but in their *representatives*. The electorate must exercise its will through the representatives chosen by it. The fundamental principle of democracy is that Government is carried on for the benefit of the governed.

The form of democracy adopted in India is *indirect democracy*. It aims at *representative democracy*. Article 378 of the Constitution (which is discussed in a later Chapter) amply indicates that the powers of amendment of the Constitution are placed, *not* in the hands of the electorate, but in the Legislature.

'SOCIALIST'.—This word did *not* appear in the Constitution, as originally framed, and was *added by the Forty-Second Amendment* of the Constitution, to bring out the concept of *socialism*, which was always considered to be implicit in the Indian Constitution.

As observed by the Supreme Court. although the Constitution envisages private ownership of property and business, the insertion of the word "Socialist" would enable the Courts "to lean more and more in favour of nationalisation and State ownership of industry". (*Excel Wear v. Union of India*, AIR. 1979 S.C. 25)

Democratic socialism aims to end poverty, ignorance disease and inequality of opportunity. This socialistic concept ought to be implemented in the true spirit of the Constitution. (*G. B. Pant University of Agriculture & Technology v. State of U. P.*, AIR 2000 S.C. 2695)

'SECULAR'.— This word was *also added by the Forty-second Amendment* to emphasise the *secular* nature of the nation. The provisions contained in Articles 25 to 30 further aim at making India a *truly secular State*

A secular State is one where the State has no official religion. The State provides full opportunity to every person to profess and practise a religion of his choice. On the one hand, the Constitution guarantees a person's freedom of religion, and on the other, also ensures equal freedom even for him who has no religion.

Dr. Radhakrishnan, a former President of India has, in his book, *Recovery of Faith*, stated as under :

-When India is said to be a secular state, it does *not* mean that we reject the reality of an unseen spirit or the relevance of religion to life or that we exalt irreligion. It does *not* mean that secularism itself becomes a positive religion or that the State assumes divine prerogatives.... We hold that *not* one religion should be given preferential status. This view of religious impartiality, or comprehension and forbearance, has a prophetic role to play with the national and international life."

'REPUBLIC'.—In political science, the term "Republic" has two connotations. In a *narrow* sense, it is used in opposition to 'monarchy'.

In a *wider* sense, the word 'Republic' denotes a "Government where no one holds the public power as a proprietary right, but all power is exercised for the common good— where the inhabitants are subjects and free citizens at the same time": Bluntschli, *Theory of the State*.

It appears that the Indian Constitution uses the term 'Republic' in *both* these senses — with the result that Indian citizens are *subjects* and *free citizens* at the same time.

'SOCIAL JUSTICE'.—Social *justice* requires the abolition of all sods of inequities which result from inequalities of wealth, opportunity, race, caste and religion. Thus, the provisions for humane conditions of work, maternity relief, banning of forced labour, *etc.* (Part IV of the Constitution) are *all* programmes of social justice which are embodied in our Constitution.

Social justice and equality are complementary to each other, so that both can maintain their own vitality. The rule of law is thus a patent instrument of social justice to bring about equality. (*CERS v. Union of India*, AI R 1955 S C. 922)

The concept of social justice thus enables the courts to uphold legislation—

(a) to protect the interests of the weaker sections:

(b) to remove economic inequalities: *and*

(c) to provide a decent standard of livings to the inhabitants of the country.

'LIBERTY'.—The Constitution regards liberty of thought, expression, belief, faith and worship to be essential to the development of the individual and the nation, and therefore the Preamble promises to secure the same to its citizens.

'EQUALITY'.—Equality of status and opportunity is also one of the objects of our Constitution. This object is secured in the body of the Constitution by making illegal all discriminations by the State between citizen and citizen. merely on the ground of religion, race, caste, sex and place of birth [Art 15], by throwing open public places to all citizens [Art 15(2)]. by abolishing untouchability [Art 17], by abolishing titles of honour [Art. 18], by guaranteeing equality before the law and equal protection of the laws [Art. 14] as justiciable rights.

FRATERNITY.—Although all the ideals mentioned in the Preamble have reference to basic human needs, the ideal of fraternity is of special significance. Fraternity that requires sharing of a feeling of commonness, care and concern for one another is predicated upon a condition that ensures bare minimum for all. The point of fulfilment of basic human needs as a pre-condition for the ideal of fraternity has been tellingly brought out in an empirical study of pavement-dwellers in Kolkata The study arrives at a conclusion that the lowest strata of the destitute pavement-dwellers remain, by and large, outside the influence of social customs and relations. (*Jaganathanan, Vijay and Haldhar, Animesh* : "A Case Study of Pavement Dwellers in Calcutta")

Conclusion

As observed by the Supreme Court (in *P. A. Inamdar v. State of Maharashtra*, (2006) 6 SCC 537), it is now well-established by all philosophers, thinkers and academicians that if justice, liberty, equality and fraternity, the "golden goals" set out in the Constitution of India are to be achieved, the Indian polity needs to be educated, and educated with excellence.

Legal Position And Utility Of A Preamble'

It is a well-established rule of interpretation, that it is only, when an Act is *ambiguous* (that is. *not* clear), that a Preamble can be used to throw further light on the express provisions of the enactment. Thus, the Preamble *cannot* be used to control an enactment, when the enactment itself is expressed in clear and unambiguous terms. In other words, an ambiguity *cannot* be created or imagined, just to draw a clarification from the Preamble,— as that would mean frustration of the main enactment. (*Gopalan v. State of Madras*, 1950 S.C.R. 88)

In *Gopalan's case* (above), it was contended that since the Preamble seeks to give India a *democratic* Constitution, Art 21 should be read in such a way as would invalidate any law opposed to the principles of *natural justice*. The Supreme Court, however, rejected this argument, observing that the word "*law*" in Art. 21 refers to "positive or

State-made law”, and *not to natural law or justice*.

In *Keshavananda Bharti v. State of Kerala* (A.I R 1973 SC 1461), a majority of the Full Bench of the Supreme Court *held* that the objectives stated in the Preamble reflect the *basic structure* of the Constitution, which *cannot* be amended by exercising the power of amendment under Art 368 of the Constitution.

The Supreme Court has also observed that the Preamble to the Constitution is, in the words of the eminent jurist, Story, a 'key to open the mind of its makers'. (*In Re Berubari Union and Exchange of Enclaves*.—A I R. 1960 S.C. 845)

In the same case, the Supreme Court observed that "nevertheless, the Preamble is *not* a part of the Constitution". It is submitted, with great respect to their Lordships of the Supreme Court, that such a view is *not correct*, and that rightly speaking, the Preamble *does* form a part — and a very significant part — of the Constitution. In fact, in one case (*Dahlia v State of Tamil Nadu*, AIR. 1976 S.C. 1559), the Supreme Court itself relied upon the Preamble when striking down a pension scheme formulated by the Government of Tamil Nadu to grant pension to anti-Hindi agitators

Several years later, however, the Supreme Court appears to have straightened the matter, when, in 1973, it observed that the Preamble *is* a part of the Constitution. (*Keshawananda Bharati v. State of Kerala*. AIR 1974, S.C. 1461)

In one English case (*Powell v. Kempton Park Race Course Co.*, (1899) A.G. 143), Lord Halsbury observed as follows :

"Two propositions are quite clear : one, that a Preamble may afford useful light as to what the statute intends to reach; and another, that if an enactment is itself clear and unambiguous, no Preamble can qualify or out down the enactment."

SALIENT FEATURES OF THE CONSTITUTION

The Constitution of India, which came into effect on 26th January, 1950, has certain distinguishing features. Though the Constitution of India has gained from the constitutional experiments of other countries, it has its own salient features. The following may be said to be the salient features of the Indian Constitution :

1) The Constitution has the **distinction of being the most lengthy and detailed constitutional document** the world has ever produced. When originally enacted, the Constitution had 395 Articles and 8 Schedules. (Today, it has many more.)

The extraordinary volume of the Constitution is mainly due to the following factors :

(a)The framers of the Constitution attempted to incorporate the accumulated experience of *all* the known Constitutions of the world, and to avoid all their defects.

(b)The Constitution includes *not only* the Constitution of the Union, *but also* of the States.

(c)The Constitution reproduces certain parts of the Government of India Act, 1935, providing for administrative details.

(d)The Constitution contains an elaborate Bill of Rights (*i.e.* the Chapter on Fundamental Right.), which has been worded in a highly technical and legal fashion.

(f)The Constitution contains extensive provisions regarding the federal relations (*i.e.*, relations between the Union and the States)

The vastness of the country and the varied nature of the people and their problems has necessitated the inclusion of certain other elaborate provisions in the Constitution For example, the problems of Anglo-Indians, Scheduled Castes and Tribes, other backward classes, problem of the official language. *etc.* have all crept into the Constitution.

(2) The Constitution is *federal* in *character*, and provides for a division of powers between the Union and the States. The peculiarity of our federalism is that it has created a *substantially strong centre*.

(3) Though the Indian Constitution is federal in form, it is perhaps the *most flexible* of all federal written

constitutions. Most of the provisions of the Constitution can be amended by the Parliament, only in a few cases, ratification by the States is necessary. In fact, one -unique- feature of the Indian Constitution is that it has been amended *more than ninety times* so far. (The provisions for the amendment of the Constitution are considered in a later Chapter.)

(4) An attempt is made in the Constitution to *reconcile the theory of parliamentary sovereignty and the principle of the supremacy of the written constitution*.

(5) The Constitution makes provisions for *directive principles* which are fundamental in the governance of the country.

(6) It also contains a Chapter dealing with the *fundamental duties* of citizens.

(7) The Constitution also provides for an *independent judiciary*, having the power of judicial review. But, at the same time, it attempts at a reconciliation of the principle of *judicial review* and *parliamentary supremacy*.

(8) Though the Constitution is federal in nature, yet it provides for a *single citizenship* of the Union. There is nothing like State citizenship (as for example, in the United States of America). Thus, all citizens are citizens of India, and *not* of Karnataka or Madhya Pradesh.

(9) Another important feature is the concept of a *secular State*. There is complete freedom of religion. There is no State religion, and each person is free to pursue the religious beliefs of his choice. This aspect of the State was highlighted by the *Forty-second Amendment* (1976), which emphasised the secular nature of the country, by introducing the word 'SECULAR' in the Preamble. Moreover, freedom of religion is also one of the fundamental rights under the Constitution.

(10) Another special feature of the Constitution is the *abolition of communal electorates*. The framers of the Constitution seem to have learnt from their past experience. In the interest of national solidarity, it has been found essential that there should be no voting on communal lines. Only a few seats have been reserved, and that too, only for some time, for the Anglo-Indians and the Scheduled Castes.

(11) Another important feature is the provision for *adult franchise*. Every citizen who is 18 years of age (under the Constitution, as enacted, it was 21) has been given the right to vote. (Unfortunately in India, there is no *duty to vote*, as in some European countries.)

(12) Another interesting feature of the Constitution is that it superimposes an *elected President* upon the Cabinet system of Government, which is responsible to the Parliament.

Basic structure of the Constitution

In a landmark decision, *Swami Kesavananda Bharati v. State of Kerala* (AIR. 1973 S.C. 1461), the Supreme Court held that *Parliament cannot alter the basic structure or framework of the Constitution*. In the same case, *Justice Shelat and Justice Grover* observed that the following can be regarded as the *six basic elements* of our Constitution :

- (i) The supremacy of the Constitution.
- (ii) Republican and democratic forms of government and the sovereignty of the country. (- See above -)
- (iii) Secular and federal structure of the Constitution. (This is discussed above, as also later in this Chapter.)
- (iv) Demarcation of powers between the executive, legislature and judiciary. (- To be discussed later -)
- (v) The dignity of the individual. (- See above -)
- (vi) The unity and integrity of the nation. (- See above -)

(Note : A reference may also be made to "Federal Characteristics of the Indian Constitution", below.)

SOURCES OF THE INDIAN CONSTITUTION

The Indian Constitution appears to have picked up the best from what was available to its founding fathers. Although the structural part of the Constitution was mainly borrowed from the Government of India Act, 1935, the philosophical parts were *not*. The Chapter on Fundamental Rights was inspired by the Bill of Rights of the American Constitution. The Chapter on Directive Principles of State Policy was inspired by the Irish Constitution. The principle of Cabinet Government and the relations between the Cabinet and the Executive was largely drawn from the British experience.

The provisions dealing with the Union-State relations find a reflection, *not only* in the Government of India Act, 1935, *but also* in the Canadian and Australian Constitutions. The Chapter on inter-state trade, commerce and intercourse likewise bear a striking resemblance to the Australian Constitution. There are, of course, original concepts like those dealing with "*panchayats*", which have deftly been integrated into the fabric of the Constitution.

Nature of the Federal System In the Constitution of India

Article 1 of the Constitution provides that 'India, that is Bharat, shall be a union of States.' Nowhere has the Constitution been described to be federal; yet there are certain basic characteristics of federalism in the Indian Constitution. Therefore, to examine whether the Constitution of India is federal or *not*, it is necessary to first examine certain fundamental principles of federalism.

Federalism and its characteristics

Federation is a form of Government where two *sets of Government* operate and function simultaneously, as in the United States of America. Thus, each State has its own government, which functions independently in local matters like education, health, police, *etc.* But matters of national importance (*e.g.*, defence, coins and currency, foreign affairs) are *not* left in the hands of the State Governments. These are managed by the Central (or Federal) Government in common for all the States.

The federal State is a political contrivance intended to reconcile *national unity* with the *maintenance of State autonomy*. This *object* is achieved by establishing a dual policy, and dividing power between co-ordinate Governments on the national and the regional levels. In other words, federalism is a principle under which there is co-ordinate division of powers between the Central Government and the State Governments, and whereby such Governments exercise direct and simultaneous authority in their limited spheres over the same territory.

The following are thus the main characteristics of a federal Constitution:

(1) *Dual Government.*-in a federal State, there are two Governments,- the national or federal Government and the Government of each State.

(2) *Distribution of Powers.*-There is distribution of legislative and executive powers between the federal Government and the State Governments.

(3) *Supremacy of the Constitution.*-As there is division of power, such division must be evidenced in a written document. The Constitution, which provides for such division of power, is a document of fundamental importance, and it is from such a Constitution that a federal polity derives its existence.

(4) *Authority of Courts.*-As seen above, in a federal state, the supremacy of the Constitution is essential to the existence of the federal system. Therefore, the interpretation of the Constitution assumes great importance in the successful working of a federal Constitution. This power of interpretation is vested in the Courts. The Courts are empowered to declare any action on the part of the Government to be *ultra vires*, if such action violates the provisions of the Constitution. Therefore, the judiciary, acting as the custodian and guardian of the Constitution, assumes immense importance in a federal State.

The Constitution of India-Whether Federal

In the light of the characteristics of a federal Constitution discussed above, it is necessary to examine the extent to which the Constitution of India can be said to be *federal*. To a superficial observer, it may appear that the Indian

Constitution has all characteristics of a federal polity. However, *this is not so*, and there is a departure from the federal principle in various respects.

Prof Wheare maintains that "the Indian Constitution provides a unitary State with subsidiary federal features, rather than federal State with subsidiary unitary features", and maintains that, therefore, it is *quasi-federal*

Basu, an eminent writer on the Indian Constitution, observes, The Constitution of India is *neither purely federal, nor purely unitary, but is a combination of both*. It is a union or composite state of a new type. It enshrines the principle that in spite of federalism, the national interest ought to be paramount".

There are others who consider that the Constitution of India is normally federal, but it can be converted into a unitary one during times of *emergency* or *national peril*. To examine the truth in each of these statements, the salient features of the Union, as contained in the Constitution, may be examined in the background of well-established federal principles.

Federal Characteristics of the Indian Constitution

(1) Formation of the Constitution

Federations elsewhere have been the result of a voluntary agreement between a number of sovereign and independent States coming under a common administration for certain specific purposes. But, in India, federation was *not* a process of integration, but a process of decentralisation. The former imperialistic unitary State was converted into a democratic union by the Constitution. Therefore, it is *not* surprising that the Indian Constitution differs from other federations in many vital respects.

(2) Distribution of Powers

The scheme of distribution of legislative power contained in the Constitution can be summarised as follows

(a) *Union List*.—With respect to any of the matters enumerated in List I in the Seventh Schedule (*viz.*, the Union List), the Parliament (*viz.*, the Union Legislature) has exclusive power to make laws.

(b) *State List*.—With respect to any of the matters enumerated in List II in the Seventh Schedule (*viz.*, the State List), the Legislature of a State has exclusive power to make laws.

(c) *Concurrent List*.—With respect to any of the matters enumerated in List III in the Seventh Schedule (*viz.*, the Concurrent List), *both* the Parliament and the Legislature of any State have power to make laws. However, if there is any conflict between any State law and a Central law, the latter will prevail.

(d) *Residuary power*.—The Parliament has exclusive power to make any law with respect to any matter *not* enumerated in the Concurrent List or in the State List.

(e) *Legislation for giving effect to international agreements*.—Notwithstanding the abovementioned scheme of distribution of powers, the Parliament also has the power to make any law for implementing any *international agreement*.

It may also be noted that this scheme of legislative powers can be altered when there is a *proclamation of emergency*, on the ground that there has been a threat to the security of India by internal disturbance or external aggression. Further, even during peace-time, by a resolution of the Council of States (Rajya Sabha) passed with a two-thirds majority, a subject in the State List can be deemed to be in the Concurrent List for a period of one year. Thus, there is a federal scheme of distribution of powers, which can be *altered either in national interest or during a proclamation of emergency*.

From what is stated above, the irresistible conclusion is that the Constitution has created a *fairly strong Centre*

(3) Citizenship

There is a *single citizenship* for the whole Union and there is no citizenship for the State. (In the United States, for example, citizenship is of both the particular State of the citizen, as for instance, of Texas or of California, *and* of the United States as a whole)

(4) Judiciary

There is no bifurcation of the judiciary between the Federal and State Governments. The same system of Courts, headed by the Supreme Court, administer *both* the Union laws and the State laws as are applicable to the cases coming up for adjudication. This is again in contrast to the American system, where there are Federal Courts and State Courts.

(5) Election, Accounts & Audit

The machinery for election, accounts and audit is similarly integrated **and** unified. The Union Government may give directions to a State Government to ensure due compliance with the legislative and administrative action of the Union.

(6) Failure of Constitutional Machinery

Where there is a failure of the constitutional machinery in a State, the President can suspend the Constitution of the State and assume responsibility for administration of the State. In such circumstances, the Parliament may legislate for such a State.

(7) The Council of States

The Council of States is *not* constituted on the principle of *equal representation of the States*.

(8) Formation of New States

The Union Legislature, namely the Parliament, has the power to form new States, to increase or diminish the area of existing States and to alter their boundaries or names.

Conclusion

Thus, it can be seen that the Indian Constitution has *some federal characteristics* and *some unitary features*, and the latter are more pronounced during times of national emergency. Even in normal times, the Union and the States are *not equal partners*, the former possessing more authority and control than the latter.

The observation of the Supreme Court on the federal nature of the Constitution in *Slate of Rajasthan v. Union of India*, (AIR. 1977 S.C. 1361), **are** interesting:

In a sense, the Indian Union is federal. But the extent of federalism in it is largely watered down by the needs of progress and development of a country which has to be nationally integrated, politically and economically co-ordinated, and socially, intellectually and spiritually uplifted. In such **a** system, the States *cannot* stand in the way of legitimate and comprehensively planned development of the country in the manner directed by the Central Government. If the special needs of our country are to prevail and rapid strides are to be taken towards fulfilling the other noble aspirations set out in the Preamble, strong Central directions seem inevitable.”

Commencement and Repeals

The Constitution of India came into force on *26th January, 1950*. It *repealed* the Indian Independence Act, 1947 and the Government of India Act, 1935. (These two Acts are, today, of academic and historic interest only, and are discussed in short in Appendix I and Appendix II at the end of the book.)

THE UNION AND ITS TERRITORY

(Arts. 1-4)

Ordinarily, the provisions of an Act or Code are contained in *sections*. Thus, the law governing a minor's agreement is to be found in *section 11* of the Indian Contract Act, and the law as to sedition is laid down in *Section 124A* of the I.P.C., and so on. But the Constitution has, following the Constitutions of other countries, like the U.S.A., uses the word '*Article*' (abbreviated here as 'Art. ') instead of "*section*".

Art. 1(1) provides that India, that is Bharat shall be a Union of States. The territory of India comprises (i) the territories of the State and the Union Territories as specified in the First Schedule, and (ii) such other territories as may be acquired: [Art. 1(3)]

There are 27 States in India, viz.: (1) Andhra Pradesh, (2) Arunachal Pradesh, (3) Assam, (4) Bihar, (5) Gujarat, (6) Haryana, (7) Himachal Pradesh, (8) Jammu & Kashmir, (9) Karnataka, (10) Kerala, (11) Madhya Pradesh, (12) Maharashtra, (13) Manipur, (14) Meghalaya, (15) Mizoram, (16) Nagaland, (17) Orissa, (18) Punjab, (19) Rajasthan, (20) Sikkim, (21) Tamil Nadu, (22) Tripura, (23) Uttar Pradesh, (24) West Bengal.

Recently, three *new* States have been carved out of the erstwhile States of M.P., U.P. and Bihar, namely, (25) Chhattisgarh, (26) Uttarakhand, and (27) Jharkhand.

The Union Territories in India comprise the following : (1) Andaman and Nicobar Islands, (2) Chandigarh, (3) Dadra & Nagar Haveli, (4) Goa, Daman and Diu, (5) Lakshadweep, (6) Pondicherry, (7) Delhi.

Parliament may by law *admit* into the Union, or *establish new States* on such terms and conditions as it thinks fit (Art 2)

It may also form a new State— (i) by separation of territory from any State: or (ii) by uniting two or more States (or parts thereof), or (iii) by uniting any territory to a part of any State It may similarly *increase* or *diminish* the area of any State. Likewise, it has also the power to alter the *name* or *boundary* of any State (Art. 3)

Procedure for formation of a new State

A new State can be formed only by legislation by the Union Parliament. But legislation in this respect is *subject* to the condition that no Bill for this purpose can be introduced *except* on the recommendation of the President (Art. 3)

Procedure for altering the area, boundaries or name of any State

If any Bill to be Introduced in Parliament affects the area, boundaries or name of any of the States, the President must ascertain the views of the Legislature of that State. The Bill is then referred to the Legislature of that State for expressing its views thereon, within such period as may be specified in the reference, or within such further period as the President may allow. (Art 3)

It is to be noted that it is Parliament (*i.e.* the Union legislature, and *not* the State legislature) that has power to change the boundaries of a State, *or* merge two or more States into one, *or* to change the name of any State. Of course, the view of the States concerned have to be ascertained. However, such views are *not binding* on the Parliament. (*Babulal v. State of Bombay*, AIR 1960 SC 51) This is an *important departure from the strict federal principle*. It is a *glaring example of the inequality between the Union on the one side and the States on the other*.

The amendment of the First and the Fourth Schedules and supplemental, incidental and consequential matters

Any law referred to in Art. 2 or Art. 3 must contain such provisions for the amendment of the First and the Fourth Schedules as may be necessary to give effect to the provisions of the law, and may also contain such supplemental, incidental and consequential provisions as Parliament may deem necessary. Moreover, no such law amounts to an "amendment" of the Constitution for the purpose of Art. 368. [Art. 4]

CITIZENSHIP (Articles 5 to 11)

Who can be a citizen of India (Arts. 5-8)

The following are the *four classes of persons* mentioned in Arts. 5 to 8, who can be citizens of India :

1. Citizenship is conferred by the Constitution on every person who **had** his *domicile in India* at the commencement of the Constitution (*i.e.*, 26th January, 1950), *and*

a) who was born in India; *or*

(b) either of whose parents was born in India; *or*

(c) who has been ordinarily resident in India for not less than *five years* immediately preceding 26th January, 1950. (Art. 5)

It will be seen that items (a), (b) and (c) are each to be read with the common requisite, *viz.*, an Indian domicile. In other words, *first of all*, **a** person *must* have an Indian domicile. *Then*, either he should have been born in India, *or* one of his parents should have been born in India, *or he* must have been a resident of India for 5 years. In *all* the above *three* cases, the *nationality* of the person or of his parents is entirely *immaterial*. Thus, a subject of a French Settlement *or* of Persia residing in India for 5 years preceding the commencement of the Constitution with the intention of *permanently* residing in India would become a *citizen of India*.

The concept of *domicile* is easy to illustrate, but difficult to define. Domicile refers to that place where a person *actually resides* with an intention of so residing *permanently*, or at least *indefinitely*. Thus, *two factors* are involved : (1) actual residence, *and* (2) an intention to reside there permanently or indefinitely. According to Halsbury 'a person's domicile is that country in which he either has, or is deemed by law to have, his permanent home.'

It follows, therefore, that domicile may be acquired by residence. However, residence at particular place does *not necessarily* make it a place of domicile, in as much as *mere residence*, without any *intention* of making it one's permanent home, is *not enough*. Thus, a man may reside at *several places*, but he can have *only one domicile* at any given time.

In *Central Bank of India v. Ramanarain*. (1955 S C.J 4), the Supreme Court's comments on the concept of domicile are interesting. In this case, the Court observed: "It is also a well-established proposition that a person may have no home, but he *cannot* be without a domicile, and the law may attribute to him a domicile in a country where in reality he has *not*. A person may be a vagrant, as when he lives in a yacht, or a wanderer from one European Hotel to another, but nevertheless, the law will arbitrarily ascribe to him a domicile in one particular territory." Thus, it is a **wellsettled** proposition that *all persons must, at all times, have a domicile*.

Again, the concept of *domicile* is to be distinguished from that of *residence*, as domicile comprises residence *plus* a certain state of mind.

Domicile is also *not* the same as *nationality*. A person may be a national of one country, and at the same time, be domiciled in another country. Thus, for instance, an American national may be domiciled in England or in France.

On the question of whether a person can be said to be domiciled in a particular State of India, (*e.g.* Maharashtra or Gujarat), there appears to be some conflict of judicial opinion. The Supreme Court has, (in *Dr. Pradeep Jain v. Union of India and Others* A.I.R. 1984 S.C. 1420) observed that the Constitution recognises only one domicile, namely, domicile in India. It would, therefore *not* be right to say that a citizen of India is domiciled in one of the States of India.

2. A person who has *migrated to India from Pakistan* can be a citizen of India, if *both* the following *two conditions* are fulfilled, *viz* :

(a) He (or either of his parents or any of his grand-parents) **was born in India**.

(b) In case where such person has migrated *before* 19th July, 1948, he should have resided in India since the date of his migration. If, however, he has migrated *on or after* 19th July, 1948, he should have been **registered (on an application made by him)** as a *citizen* of India by an officer duly appointed by the Government. But such a person *cannot* be so registered *unless* he has *resided* in India for *six months* prior to his application. (Art. 6)

Thus, as regards a person who migrated to India *on or after* 19th July, 1948, the following *four* conditions must be fulfilled to enable him to acquire Indian citizenship

- (i) He (or either of his parents or any of his grand-parents) must have been born in India.
- (ii)** He must have resided in India (after migration) for at least *six months*.
- (iii) He must have submitted an application for registration to **the** officer appointed for the purpose.
- (iv) He must have been registered as a citizen by such officer.

It will be seen that the *effect* of the above condition is that only those persons who migrated to India after 19th July, 1948, but *before* 25th July, 1949 became citizens of India under Article 6. Those who migrated after 25th July, 1949 could *not* obviously fulfil the condition of *six months' prior residence* before applying for registration.

3. Anyone who has, after 1st March, 1947, *migrated from India to Pakistan cannot* be a citizen of India. **But** such person can be an Indian citizen if he has returned to India under a *permit for resettlement or permanent return*, and such a person would be deemed to have migrated **to India after 18th July, 1948 for the purposes of Article 6.** (Art. 7)

It will thus be seen that Art. 7 refers to the following *two* classes of persons

(a) Persons who migrated from India to Pakistan after March 1947. **Such persons would not** be citizens of India,—even if they fall **within Art. 5 or Art. 6.**

(b) Persons who migrated to Pakistan as above, but who re-emigrated to India. Such persons would become Indian citizens, *if the following five conditions* were fulfilled, viz. :

- (i) He (or either of his parents or any of his grand-parents) was born in India.
- (ii) He had returned to India under a permit for resettlement or permanent return.
- (iii) He had resided in India (after re-migration) for at least *six months*. (iv) He had submitted an application for registration to the Officer appointed for the purpose.
- (v) He had been registered as a citizen by such Officer.

4. Art. 8 then confers citizenship on any person who (or either of whose parents, or of whose grand-parents) was born in India and who is residing outside India.— *provided* he has been registered as a citizen of India by the diplomatic or consular representative of India in the country where he resides—whether before or after the commencement of the Constitution. In this Article, the term 'India' is to be understood as 'undivided India'. i.e., 'India as defined in the Government of India Act, 1935. Thus, persons residing in Pakistan *cannot* take advantage of Article 8.

This is the only Article in the Constitution which provides for citizenship even *after the* commencement of the Constitution. It is to be noted that *domicile in India is not necessary* under Art 8. Thus, if a person was born in Bombay and was residing in the United States of America at the commencement of the Constitution, he could acquire Indian citizenship, provided the following conditions are fulfilled. viz.—

- (i) He must apply in the U.S. to the diplomatic or Consular representative of the Government of India in the prescribed form.
- (ii) The diplomatic or Consular representative must register him **as a** citizen of India on such application

Who cannot be a citizen of India (Arts. 7 & 9)

The following *two classes of persons cannot* be citizens of India viz.—

1. Persons who, *after* 1st March, 1947, have *migrated* from India **to** Pakistan. [Art. 7]
2. Persons who have voluntarily *acquired the citizenship of a foreign State*. [Art. 9]

Miscellaneous (Arts. 10-11)

Every person who is, or is deemed to be a citizen of India under **any** of the above provisions continues to be a citizen of India, subject to **any** law that may be made by Parliament [Art 11]

The Parliament may also make any provision with respect to **the acquisition and termination** of citizenship and all other matters *relating* to citizenship. [Art. 11]

The wording of Art. 11 clearly suggests that Parliament has *been* invested with plenary powers to deal with the question of citizenship of India in future. Parliament may, therefore, restrict or revoke the citizenship acquired by a person under any of the provisions seen above.

The Articles for acquiring citizenship make no provision for persons born *after the* commencement of the Constitution, or for their children, or persons who may wish to acquire Indian citizenship by domicile. Art. 11 expressly leaves these matters in the hands of Parliament, which has passed the *Citizenship Act, 1955*, to regulate the modes of acquisition of Indian citizenship.

The Citizenship Act, 1955

[NOTE.— The Citizenship Act, 1955 is a separate enactment, and *does not form part of the Constitution of India*. However, since it contains several important provisions for acquisition (and loss) of citizenship, especially as regards persons born *after* 26th January, 1950, the provisions of the Act are briefly discussed below.]

Under the Indian Citizenship Act, 1955, there are *five* distinct modes of acquiring Indian citizenship, viz., *citizenship (1) by birth, (2) by descent, (3) by registration; (4) by naturalisation; and (5) by incorporation of territory.*

1. *Citizenship by birth.*—Every person born in India *on or after* 26th January, 1950 becomes a citizen of India by birth. *But, if* at the time of his birth, his father possessed such immunities from suits and legal process. as are given to an envoy or foreign sovereign or any person who is accredited to the President of India *and* he is not a citizen of India. *Or* his father is an enemy abroad and the birth occurs in a place under occupation by the enemy. He is *not* deemed to be a citizen by virtue only of his birth in India at that time.

2. *Citizenship by decent.*—A person who is born outside India on or after 26th January, 1950, becomes a citizen of India, if his father is a citizen of India at the time of his birth. But if the father of such a person was a citizen of India by descent only, that person *cannot* be a citizen of India by birth as above, *unless* his birth has been registered at the Indian Consulate within one year of his birth or the commencement of the Citizenship Act, whichever is later, or with the permission of the Central Government after that period, *or unless* his father is, at the time of his birth, in the service of the Government of India. Any person born outside undivided India who was, or was deemed to be, a citizen of India at the commencement of the Constitution, is also to be deemed to be citizen of India by descent only

3. *Citizenship by registration.*—*Subject* to restrictions and conditions that may be prescribed, the appropriate authority may register a person who is *not* already a citizen of India by virtue of any other provisions of the Citizenship Act, as a citizen of India, on an application made by such a person, who must belong to one of the following categories

- (a) persons of Indian origin who are ordinarily resident in India. **and** have been so resident for *six* months immediately before **making** an application for registration.
- (b) persons of Indian origin who are ordinarily resident in any country or place outside undivided India;

- (c) women who are, or have been, married to citizens of India;
- (d) minor children of persons who are Indian citizens; and
- (e) persons of full age and capacity who are citizens of U.S., **Canada**, Australia, New Zealand, South Africa, Pakistan, Ceylon, Rhodesia and Ireland. (Such persons are required to take an oath of allegiance before registration.)

However, persons who have renounced, *or* who have been deprived of Indian citizenship, *or* whose citizenship has been terminated *cannot* be registered without the order of the Central Government.

4. *Citizenship by naturalisation.*—A person can apply for grant of naturalisation if he is of full age and capacity. He should *not* belong to certain specified countries. He must also satisfy the following *seven* conditions :

- (a) He should *not* be a subject or citizen of a country where citizens of India are prevented by law: or the practice of that country, from becoming subjects or citizens of that country by naturalisation.
- (b) He should have renounced his citizenship of his previous country and notified such renunciation to the Central Government.
- (c) He should be residing in India, or should be in the service of the Government of India. or partly in one or the other, for a full period of *twelve months* immediately preceding the date of the application.
- (d) During the period of *seven years* immediately preceding the above period of twelve months, he should have resided in India or should have been in the service of the Government of India, or partly in one or the other, for a period of *four years* in the aggregate.
- (e) He should be of good character.
- (f) He should have adequate knowledge of a language specified in the Seventh Schedule to the Constitution.
- (g) He should intend to reside in India or enter or continue in Government service or serve an International Organisation of which India is a member or under a society, company or body of persons established in India

Even if a person does *not* comply with all or any of the above conditions, he can still acquire citizenship by naturalisation if, in the opinion of the Central Government, he has rendered distinguished service to the cause of science, philosophy, art, literature, world peace, or human progress in general.

5. *Citizenship by incorporation of territory*—If a territory becomes a part of India, the Central Government may (by notification) specify as to who will be citizens of India by reason of such incorporation

Termination and deprivation of citizenship

By virtue of Sec. 9 of the Citizenship Act, if a person voluntarily acquires the citizenship of another country, he ceases to be a citizen of India. The section is analogous to Art. 9 of the Constitution, which lays down that no person can be a citizen of India by virtue of Art. 5 or be deemed to be a citizen of India by virtue of Art. 8, if he has voluntarily acquired the citizenship of any foreign State.

The Central Government may also deprive a person of citizenship on grounds mentioned in Sec. 10 of the Act, after making due inquiry in the matter.

[Note : Students are advised to ascertain *if* the Citizenship Act, 1955, is included for study by the concerned University.]

FUNDAMENTAL RIGHTS (Articles 12-33, 352 and 358-359)

Part III of the Constitution, which deals with the declaration of Fundamental Rights, is framed after the elaborate model of the Irish, U.S. and the recent continental constitutions, particularly those wherein the conditions are more or less analogous to those existing in India. It enshrines *not only* the classic guarantees of individual liberty of the American and French declarations, *but also* a general statement of the political fundamentals of the State.

Special mention must be made of *guarantees of civil liberty* in the Constitution, which serve to protect the individual from oppressive public authority. Freedom of speech and the right to freely profess, practise and propagate religion as one pleases; the right to know the charges if one is accused of a crime; to secure the assistance of Counsel; to be protected in one's own home and against unreasonable searches and seizures, and from twice being put in danger of

life and limb for the *same* offence; the right *not* to be deprived of life or personal liberty, except according to procedure established by law; — these are among the various fundamental rights guaranteed in the Constitution.

In every democratic system of Government, there are some rights which are regarded as *fundamental*. They are so regarded because they are *vitally necessary* for the attainment by the individual of his full moral and spiritual stature. Without those rights, the individual's moral and spiritual life would remain stunted, and he would *not* be able to develop his potential. Such are the rights which are embodied in Part III of the Constitution of India.

General Provisions regarding Fundamental Rights (Arts. 12 & 13)

Before dealing with Arts. 14 to 35 (which deal with the fundamental rights in substance), Arts. 12 and 13 may first be considered.

It is to be noted that most fundamental rights are available only against the State and its instrumentalities and *not* against private bodies. (*Shamdasani v. Central Bank of India*, AIR (1952) SC 59)

Art. 12 of the Constitution gives an extended meaning to the term "State", so as to include —

- (a) the Government of India;
- (b) the Parliament of India;
- (c) all local authorities; *and*
- (d) other authorities within the territories of India or under the control of the Central Government.

The most significant clause is clause (d) above, as the term "other authorities" **has not** been defined in the Constitution and it is therefore left to the courts to put meaning into this term.

The question whether a particular authority can be looked upon as a "State" assumes great importance, because if it does *not* amount to a State, most fundamental rights would *not* be available against such an authority.

In *Vibhu Kapoor v. Council of Indian School Certificate Examination* (AIR (1985) Del 142), the Petitioner was *not* issued a pass certificate for the ISC examination on the ground of having used unfair means without being given a chance to defend himself. The said action was challenged for being arbitrary and contrary to natural justice. The Respondent contended that the writ petition was *not* maintainable as the Respondent was *not a* "State" under Art. 12. Negating this contention, the court *held* that the respondent had entered into an arrangement with the Government to enable it to discharge its public function of imparting education and thereby had *not only* received the authority or concession or privilege to conduct public examinations *but* had been statutorily recognised as a body of persons or a Society recognised and authorised by the Government. The rules and regulations of the respondent show governmental supervision, if *not* control.

An interesting question has often arisen as to whether statutory authorities like [IC, ONGC, or International Airport Authority] can be considered to fall within the ambit of the expression "the State", as defined above. Some of the important judicial pronouncements on this point may be summarised as under

(a) The International Airport Authority is an instrumentality or agency

of the Government, and therefore, falls within the definition of "the State". (*RD. Shetty v. International Airport Authority of India*, 1979 S.C.C. 489)

(b) The Bharat Petroleum Corporation Ltd, is also a "State" within the meaning of Art. 12, and is, therefore, subject to the same constitutional limitations as the Government (*S.P. Rekhi v. Union of India*, A.I.R. 1981 SC 212)

(c) All authorities created by statute, like the Life Insurance Corporation or the Oil and Natural Gas Commission or the Rajasthan Electricity Board come within the definition of "the State". (*Sukhdeo Singh v. Bharat Ram*, (1975) 1 S.O C. 421. *Electricity Board, Rajasthan v. Mohan Lai*, A.I.R. 1967 S.O 1857)

(d) The Patna University has been *held* to be a "State" for the purpose of Art. 12. (*Umesh v. V. N. Singh*, A.I.R 1968, Pat. 3)

(e) The Food Corporation of India is an instrumentality of the State, and is, therefore, covered by the expression "other authority" in Art. 12. (*The Workmen v. Food Corporation of India*, AIR. 1985 S.C. 670)

(f) A Housing Board is a "State" for the purpose of Art. 12, **and** a writ petition *can* be filed against it. (*Bhagat Singh Negi v H. P. Housing Board*, AIR 1994 H. P 60)

(g) The Bank of India and the State Bank of India, as also other nationalized banks, are "States." within the meaning of Art. 12 of constitution. (*Bank of India v. U. P. Swamankar*, AIR 2003 SC 858)

The Supreme Court has observed that the expression, "the State", must be construed in its distributive sense, and would include the Government and Parliament of India, the Government and Legislatures of each State, and all local or other authorities within India or under the control of the Government of India. (*S.C. Advocates-on-Record Asso. V. Union of India*. A.I.R. 1994 S.C. 268)

In one case, the question arose as to whether BCCI (Board of Control for Cricket in India) can be said to be a "State" for the purpose of Art. 12 of the Constitution. Answering the question in the negative, the Supreme Court observed that BCCI is *not* financially, functionally or administratively dominated by the Government; nor is it under the control of the Government. It is, therefore, *not a "State"* under Art. 12 of the Indian Constitution. (*Zee Telefilms Ltd. v. Union of India*, AIR 2005 SC 2677)

In *Ajay Hasia v. Khalid Mujib Sehravardi* (AIR 1981 SC 487), the Petitioner had challenged admissions to a Regional Engineering College established and maintained by a society registered under the Societies Registration Act. A question arose as to whether the said society could be regarded as a state under Article 12. Answering the question in the affirmative, the court *held* that even non-statutory bodies could be brought within the meaning of "other authorities" under Article 12. In the above case the court also laid down the following propositions to determine *whether a* body was a "State" or *not* as under :

- (1) If the entire share capital of the corporation is *held* by Government it would go a long way towards indicating that the corporation is an instrumentality or agency of the Government.
- (2) Where the financial assistance of the State is so much as to meet almost entire expenditure of the corporation, it would afford some indication of the corporation being impregnated with government character.
- (3) It may also be a relevant factor whether the corporation enjoys monopoly status which is the State conferred or State protected.
- (4) Existence of deep and pervasive State control may afford an indication that the Corporation is a State agency or instrumentality.
- (5) If the functions of the corporation of public importance and closely related to governmental functions, it would be a relevant factor in classifying the corporation as an instrumentality or agency of Government.
- (6) Specifically, if a department of Government is transferred to *a* corporation, it would be a strong factor supportive of this inference of the corporation being an instrumentality or agency of the Government.

Validity of Pre-Constitutional and Post-Constitutional laws (Art. 13)

Art. 13, which embodies an important provision of law, lays down as follows :

- (1) All laws in force in the territory of India immediately before the commencement of the Constitution, in so far as they are inconsistent with the provisions of this Part shall, to the extent of such inconsistency, be *void*.
- (2) The State shall *not* make any law which takes *away* or abridges the rights conferred by this Part, and any law made in contravention of this clause shall, to the extent of the contravention, be *void*.

The inclusion of fundamental rights in the Constitution is for the purpose of preserving certain fundamental human rights, which are *not only* protected by the State, *but* in which the State has no right to interfere. The *purpose* of such rights is "to withdraw certain subjects from the vicissitudes of political controversy, to place them beyond the reach of majorities and officials, and to establish them as legal principles to be applied by the Court. One's right to life, liberty and property, to free speech and free press, freedom of worship and assembly and other fundamental rights *may not* be submitted to vote. They depend on the outcome of no election."—Justice Jackson.

The judges of the Supreme Court, in several judgments, have explained the nature of the fundamental rights with almost equal force and clarity as some of the American Judges. Kania C.J. in *Gopalan v. The State of Madras*, (AIR. 1950 S.C. 27) has pointed out that "Fundamental rights are express constitutional provisions limiting legislative

power and controlling the temporary will of a majority by a permanent and paramount law settled by the deliberate wisdom of the nation.”

Likewise, Mahajan J. in *Bohman Behram v. State of Bombay*, (1955 1 S. C. R. 613), has observed :

”The fundamental rights have *not* been put in the Constitution *merely for* individual benefit, though ultimately they come into question in considering individual rights. They have been put there as a matter of *public policy*, and the doctrine of waiver has no application to provisions of law which have been embodied as a matter of constitutional policy.”

The Effect of Art. 13

The *effect* of Art. 13 on laws existing *prior* to the Constitution and laws made *after* the commencement of the Constitution should be carefully noted. The matter has been discussed by the Supreme Court and various High Courts in India. The outcome of the decisions may be summed up as follows:

(1) Existing laws inconsistent with the Constitution

(a) All laws in force at the commencement of the Constitution, which were inconsistent with the fundamental rights conferred by Part III of the Constitution, became, to that extent, *void*. (*Keshavan v State of Bombay*, - AIR. 1951 S.C. 228)

(b) But this did *not* make the existing laws, which were inconsistent with the fundamental rights, void *ab initio* (i.e., void from the time such laws were made). The entire Part III of the Constitution including Art 13(1), is *prospective*, and *not retrospective*. Therefore, the inconsistency referred to in Art. 13(1) does *not* affect the transactions taken place before the commencement of the Constitution *or* the enforcement of the rights and liabilities that had accrued under inconsistent laws *before* the commencement of the Constitution. (*Lachmandas v. State of Bombay*—AIR. 1952 S.C. 235)

(c) This also does *not* mean that an inconsistent constitutional procedure laid down by a pre-Constitution Act is to be followed in respect of pending proceedings *or* in respect of new proceedings instituted in respect of pre-Constitution rights and liabilities. (*Abdul Kader v. State of Mysore*, - A.I.R. 1951 Mys., 72)

(d) If the proceedings had been completed, or have become final, *before* the commencement of the Constitution, nothing in Part III can operate retrospectively, so as to affect those proceedings. (*Quasim Razvi v. State of Hyderabad*, (1953) S.C.R. 589)

(e) However, if the deprivation of a right under a pre-Constitution order is continued from day-to-day, such an order became *void* as soon as the Constitution came into force. (*Santisarup v. Union of India*—AIR. 1955 S.C. 98)

(2) Post-Constitution laws which are inconsistent with the Constitution

(a) Any law made by the legislature or other authority *after* the commencement of the Constitution which contravenes any of the fundamental rights is, to the extent of the contravention, *void*.

In *Gopalan v. State of Madras* (AIR. 1950 S.C. 27), the Supreme Court observed that Article 13 appears to be included in the Constitution out of *abundant caution*. The Court laid down that even in its absence the Courts would have the power to declare as invalid, any legislative enactment transgressing the fundamental rights.

In the U.S. Constitution, there is no specific provision analogous to Article 13. However, judicial decisions commencing from the famous judgment in *Marbury v. Madison*, (1803 1 Cranch 137) have established that the position is *exactly the same* in the U.S.

(b) Anything done under an unconstitutional law, whether completed or incomplete, will be wholly illegal, and appropriate relief can be given to the person affected by such an unconstitutional law. (*Keshavan v State of Bombay*, A.I.R. 1951 S.C. 228)

(c) A distinction must, however, be made between a law which is unconstitutional for lack of legislative power and a law which is unconstitutional because it is violative of fundamental rights. (*M. P. v. Sundararamieer v. State of Andhra Pradesh*, (1958) S.C. R. 1422)

A law which is unconstitutional for lack of legislative competence is *void ab initio*, i.e., void from the very beginning. A law which is unconstitutional for violation of fundamental rights is unenforceable as long as it continues to violate constitutional limitations. It is merely *eclipsed* by the fundamental rights, and remains in a moribund condition, as long as the shadow of fundamental rights falls upon it. When that shadow is removed (if at all), the law begins to operate from the date of such removal, unless it is retrospective. (*Bhikaji v. State of Madhya Pradesh*, A.I.R. 1955 S.O 781)

Thus, the *doctrine of eclipse* lays down that in such a case, the law in question is only *eclipsed* by the shadow of unconstitutionality. When this shadow is removed, the eclipse ceases, and the law once again becomes valid and operative.

The Supreme Court has also explained the *doctrine of eclipse* by observing that when part of a statute is unconstitutional, it is *not* wiped off the statute book. Rather, it stays on the statute book (along with the valid portion of the statute), and springs back into existence when the constitutional bar is removed. Thus, in such cases, there is no need for fresh legislation.

However, in the majority judgment of the Supreme Court in *Deepchand v. State of Uttar Pradesh* (AIR. 1959, S.C. 680), it has been observed that Article 13(2) goes to the root of the legislative powers, and takes away the power of the State to make a law which is inconsistent with a fundamental right. But the eminent jurist, Mr. H.M. Seervai, is of the opinion that the observation of the majority in *Deepchand's case* is by way of *obiter dicta*, and therefore, it does *not* overrule the decision in *Sundararamieer's case* (seen above) which it did *not* consider. The law on this question is, thus, *not* well-settled.

(d) But Art. 13(2) does *not* authorise the Courts to interfere with the passing of a Bill on the ground that it would, *when enacted*, be void. (*Chotey La! v. State of Uttar Pradesh*,—A I.R 1951. All 228)

(e) It should also be noted that the expressions 'to the extent of such inconsistency' and 'to the extent of the contravention' make it clear that when *some* of the provisions of a statute are unconstitutional on account of inconsistency with a fundamental right, *only the repugnant provisions* of the law in question are to be treated by the Court as void, and *not* the *whole* statute. (*Habeeb v. State of Hyderabad*.—A I R. 1953 S.O 287) But, this rule is applicable only when the repugnant provisions are *severable* from the rest of the statute (i.e., of such a nature as can be separated from the rest of the Act in question).

The Supreme Court has *held* that Courts should adopt *a constructive approach* when a part of a particular section (of an Act) is unconstitutional. In such cases, in the words of Justice Krishna Iyer, 'Is plastic surgery permissible or demolition of the section inevitable', 'The answer is that, in such a case, when the unconstitutional provision is severable from the rest, *only* the void part, *and not* the whole provision, should be struck down. (*State of Kerala v. T.M. Peter & others* (1980) 3 S.C C 554)

(f) In *Golaknath v. The State of Punjab* (A I R 1967 S.O 1643), the Seventeenth Amendment to the Constitution, which restricted certain fundamental rights, was challenged on the ground that Parliament had no power to amend the Constitution in a way which would curtail or restrict any of the fundamental rights. The Supreme Court *held* in this case that Constitution Amendment Acts were '*law*' within the meaning of Article 13(2), and therefore, if they restricted fundamental rights, they would be invalid. With a view to reversing this decision, Parliament passed the Twenty-fourth Amendment to the Constitution, to clarify that *Article 13 is inapplicable to any amendment of the Constitution under Article 368*. The Amendment was itself challenged in *Swami Kesavananda Bharati v State of Kerala* (A.I R 1953 S.C. 1461), where the Twenty-fourth Amendment was *held* to be *valid* by a full Bench of the Supreme Court. (The above two cases are discussed at greater length in the appropriate Chapters, as also in Appendix IV.)

Conflict between two fundamental rights

Apart from the question of validity of restrictions being imposed upon the fundamental rights, a question may arise as to the interpretation that the Court should adopt when the application of one fundamental right would conflict with another. In *Yasin v. Town Area Committee* (1952 S.C.R. 572), the learned Judge rightly took the view that *all* parts of Constitution must be read together : "When two fundamental rights come into conflict, and one is sought to be extended to its extreme logical conclusion at the expense of the other, a Court would be slow to recognise and uphold such an extension of a fundamental right which infringes and violates another fundamental right."

The Bombay High Court, in *State v. Damodar*, has similarly observed: "A restriction which *fractionally* interferes with the right of freedom of *movement* of one section of the public in the interest of the other, the **only** way in which another section of the public can exercise its rights of pursuing its *occupation cannot* be said to be unreasonable."

Who can challenge the constitutionality of a statute?

It has been *held* by the Supreme Court that no one but the one whose rights are directly affected by a law can raise the question of the constitutionality of that law. [*Chiranjit Lal v. Union of India* (1950) S.C.R. 869]

Therefore, a person on whom a fundamental right is *not* conferred *cannot* challenge the validity of any law on the ground that it is inconsistent with a fundamental right. (*Nabhirajiah v. State of Mysore*—A.I.R. 1952 S.C. 339)

If a statute operates on a contract, *either* party to the contract **can** challenge the validity of such a statute. (*Bombay Dyeing & Mfg. Co. Ltd. v. State of Bombay*—AIR. 1958 S.C. 328)

A *company* is a juristic entity, distinct and separate from its shareholders. A *company cannot be a citizen of India*, and cannot, therefore, attack the infringement of fundamental right conferred *only* on citizens. (*State Trading Corpn. v. C.T.O.*,—A.I.R. 1963 S.C. 1811) But if the same statute which infringes the rights of the company also affects the fundamental rights of its shareholders, such shareholders (who are citizens) *can* challenge the validity of the statute. (*HG. Cooper v. Union of India*, A.I.R. 1970 S.C. 564; *Benoit Coleman & Co. Ltd. v. Union of India*—AIR. 1973 S.C. 106)

Can a fundamental right be waived?

There is a considerable difference of judicial opinion as to whether a fundamental right can be waived by an individual. It appears that the question has *not* been finally decided by the Supreme Court. In *Bohman Behram v. State of Bombay* (1955 I S.C.R. 613), the majority view was that the fundamental rights, though primarily for the benefit of the individual, have been put into our Constitution on grounds of public policy and in pursuance of the objective declared in the Preamble. Therefore, such rights *cannot* be waived. But, VANKATARAMA J. was of the view that such **of the rights as were created for the benefit of the individual could be waived**.

In *Basheshar Nath v. Commissioner of Income-tax* (AIR. 1959 S.C. 149), the opinion of the judges was *not unanimous*. BHAGWATI and SUBBARAO JJ. *held* that a fundamental right, being in the nature of a prohibition addressed to the State, none of the fundamental rights in our Constitution can be waived by an individual. This view was based on the distinction between the Indian and American Constitutions, which led to the conclusion that no limitations should be placed on fundamental rights, other than those contained in the Constitution itself. But DAS C.J. and KAPUR J. agreed with the above view, only in respect of the right conferred by Art. 14. S.K. Das J. opined that where a fundamental right is intended primarily for the benefit of an individual, it can be waived by him. He observed that there were no such differences between the United States and the Indian Constitution, as would make the *doctrine of waiver* applicable to the former, and *not* to the later. This line of thought is in accord with the American view to the effect that fundamental rights *can* be waived by the individual.

PARTICULAR RIGHTS [Arts. 14 to 35]

The fundamental rights embodied in Arts. 14 to 35 can be grouped under *ten* heads as under :

- I. Right to *Equality* (Arts. 14-18)
- II. Right to *Freedom* (Arts. 19 & 358)

- III. Protection against *Conviction* (Art. 20)
- IV. Protection of *Life and Personal Liberty* (Art. 21)
- V. Right to *Education* (Art. 21A)
- VI. Protection against *Arrest and Detention* (Art. 22)
- VII. Right against *Exploitation* (Arts 23-24)
- VIII. Right to *freedom of Religion* (Arts 25-28)
- IX. *Cultural and Educational Rights* (Arts. 29-30)
- X. Right to *Property* (Art 31) (Now *deleted*)
- XI. Right to *Constitutional Remedies* (Arts 32-33 & 359)

(NOTE : *The Constitution (Forty-fourth Amendment) Act, 1978* has omitted Art. 31 dealing with *the right to property*, and has introduced only a part of it in the shape of Art. 300-A in Part XII of the Constitution. In other words, the right to property is *no longer a fundamental right under the Indian Constitution*. For further details, see the discussion under Art. 31)

I. Right To Equality (Art. 14-18) "Four score and seven years ago, our fathers brought forth on this Continent, a new nation *conceived in liberty-and* dedicated to the proposition that *all men are created equal*,"
- LINCOLN

The right to equality may be discussed under the following *five* heads:

1. Equality before the law (Art. 14)
2. Prohibition of discrimination on grounds *only* of religion, race, caste, sex or place of birth (Art. 15)
3. Equality of opportunity in matters of public employment (Art. 16)
4. Abolition of untouchability (Art. 17)

1. Equality before the law (Art. 14)

Art. 14 provides that the State shall *not deny* to any person *equality before the law* or the *equal protection of the laws* within the territory of India.

The right to equality guaranteed under Art. 14 consists of *two parts*

- (a) Equality before the law.
- (b) Equal protection of the laws.

The *first phrase* ("equality before the law") owes its origin to the *English common law*. *Equality before the law* means the absence of any special privilege in favour of any individual and the equal subjection of *all* classes to the ordinary law. It means that the law should be equal and should be equally administered, that like should be treated alike.' (JENNINGS). The meaning of this phrase is that there shall *not* be any discrimination before the law on extraneous grounds like rank, office, *etc.*

The *other phrase*, "equal protection of the law", owes its origin to *the American Constitution*. While both the expressions, "equality before the law" and "equal protection of the laws" aim at establishing *equality of legal status for all*, there is some difference between these expressions. The *former* expression is somewhat *a negative concept*, implying absence of any special privilege in favour of individuals, while the *latter* is a more *positive concept*, implying equality of treatment in equal circumstances. (*Shivshankar v. M.P. State Government*, I.L.R. (1851) Nag. 656)

This right of equality, as guaranteed in Art. 14, is available *both to citizens and non-citizens*. It aims at establishing *the rule of law in India*.

Several cases have raised the question as to what is the *test* for determining whether an impugned law violates Art. 14. For instance, is it necessary that such law should be enacted with "an evil eye and unequal hand?" The Courts have answered this question in the negative. The *true test* is that the *effect* of the impugned Act on the right conferred by Art. 14 must be ascertained, and if it is found that the Act *does* infringe such a right, the object of the Act, howsoever laudable, would *not* be able to counteract the prohibition of Art. 14. This test was approved by the Supreme Court in *State of Bombay v. Bombay Education Society* (1955 1 S.C.R. 568).

Equal protection of the laws means the right to equal treatment in similar circumstances, *both* in the *privileges* conferred as well as in the *liabilities* imposed by the law. In other words, there should be no discrimination between one person and another if, as regards the subject matter of the legislation, their position is the same. (*Chiranjit Lal v. Union of India*, A.I.R. 1951 S.C. 41)

The doctrine of "equal pay for equal work" was reiterated by the Supreme Court in *P. Santa v. Union of India* (AIR. 1985 S.O 1124), where the Court *held that* where all relevant considerations are the same, persons holding identical posts and discharging similar duties should *not* be treated differently.

But the principle of equality does *not* mean that every law must have universal application for *all* persons who are *not* by nature, attainment or circumstances in the *same* position. The varying needs of different classes of persons often require separate treatment. Thus, the *political theory of equality* is confronted with the *practical fact of inequality*. Realising this, the American Courts applied the *doctrine of classification*, and laid down that the principle of equality does *not* take away from the State the power of classifying persons for a legitimate purpose. As observed by the Supreme Court of India :

”A Legislature which has to deal with diverse problems arising out of an infinite variety of human relations must, of necessity, have the power of making special laws to attain particular objects: and for that purpose, it must have large powers of selection or classification of persons and things upon which such laws are to operate.”
(*Ameeroonissa v. Mehboob*,—A.I.R. 1953 S.C. 91) Commenting on the provisions of Art. 14, Chagla C.J. remarked in a case before the Bombay High Court : ”In effect, Article 14 means that all laws must operate equally upon all persons. This ideal is *not* always possible to attain in practice. Considerations of administrative convenience, the hard facts of life, the fact that all persons are *not* equal in their physical or mental capacity, compel the legislature to make a classification, and pass laws which operate unequally upon different individuals and classes of citizens. Although it is for the legislature to determine what classification to make, *the classification must have reasonable and just relation to the subject of the particular legislation.*”’ (*F.N. Bulsere v State of Bombay*, 52 B.L.R. 820)

Examining the scope of Art. 14, the Supreme Court has, in several cases, observed that this Article guarantees equal treatment to persons who are equally situated. Unequals are *not only* permitted to be treated unequally, *but also must be so treated* Equal treatment, when given to unequals, amount to inequality.

In this connection, the observations of the Supreme Court in *Ganga Sugar Corporation Ltd. v. The State of U.R.* [(1980) 1 SC C 223] are interesting. Justice Krishna Iyer, with his customary affluence of language, observed in that case as follows :

”Fine tuning to attain perfect equality may be a fiscal ideal, but in the rough and tumble of work-a-day economics, the practical is preferred to the ideal, provided glaring caprice or gross disparity does *not* make the levy (of tax) arbitrary or frolicsome Article 14 is intellectual chess unrelated to actual impact or the wear and tear of life, but even-handed justice with some play in the joints ”

An interesting question arose as to whether a Rule which allows 10 marks to be added for securing a distinction in each subject was valid. Answering the question in the negative, it was held that *such a Rule has no rational basis*. A student who secures a distinction already has an edge, and giving him further marks would amount to ”double advantage for a single performance”. (*P. S. Doshi v. State of Madhya Pradesh*, AIR 1990 M.P. 171)

Differential treatment *in itself* does *not* violate Art. 14. It guarantees equal protection only when there is *no reasonable basis* for the differentiation. If a law deals equally with members of a well-defined class, it is *not* open to the charge of denial of equal protection. If the legislature takes care to classify persons reasonably for legislative purposes, and if it deals equally with all persons belonging to a well-defined class, it does *not* amount to denial of equal protection.

The Karnataka High Court has *held* that a provision exempting Sikhs from compulsorily wearing a helmet, when riding a motor cycle, is *not* violative of Art. 14 of the Constitution. (*K. Veeresh Babu v. Union of India*, A.I.R. 1994 Kar. 56)

Thus, what Art. 14 *forbids* is *class legislation*, and *not reasonable classification* for the purposes of legislation. However, in order to pass the *test of reasonable classification*, *two conditions* must be fulfilled, namely (1) the classification must be founded on an *intelligible differentia*, which distinguishes persons or things that are grouped together from others left out of the group: *and* (2) the *differentia* must have a rational relation to the objects sought to be achieved by the statute in question. (*Budhan v. State of Bihar*, (1955) I S.C.R. 1045)

In addition to the *two* tests propounded above, a *third* criterion was formulated in *State v. V. C. Shukla*, (AIR. 1980 S.C. 1382), where the constitutional validity of the special Courts Act was in question before the Supreme Court. The Court, in this case, reiterated the *three classical tests* for the application of Article 14, namely :

- (a) The classification must be founded on an *intelligent differentia*, which distinguishes persons who are placed in a group from others who are left out of the group.
- (b) Such differentiation must have a *rational relation* to the object sought to be achieved by the Act.
- (c) There must be a *nexus* between the differentiation which is the basis of the classification and the object of the Act.

Applying the above three tests, the Supreme Court *observed* in *V.C. Shukla's case* (above) that Parliament is *not* debarred from passing a permanent Act to deal with a specified class of persons who occupy high public or political offices and often misuse or abuse them, and *held* that the Special Courts Act is *not violative* of Art. 14 of the Constitution.

(*V.C. Shukla's case* is discussed in greater detail in Appendix IV.)

A classification may be reasonable, even though a *single individual* is treated as a class by himself, *if* there are some special circumstances or reasons applicable to him, which are *not* applicable to others. (*Chiranjit Lal v. Union of India*, referred to above) The classification may be founded on different bases, such as, geographical, historical, occupational *etc.* Art. 14 does *not* insist that such legislative classification should be *scientifically perfect or logically complete*.

In *Ganga Sugar Corporation Ltd. v. The State of U.P.* [(1980) 1 S.C.C. 223], the Supreme Court has confirmed that it is the *legislature* which has the freedom to choose the basis for a classification, and it is *not* for the **Court** to substitute a different criterion which, in its opinion, would be proper

Thus, the following classifications have been *upheld* by the Courts, on the ground that they were based on a *differentia* reasonably related to the object of the statute, *namely*, classifications between—

- (i) rulers of Indian States *and* other persons;
- (ii) ordinary suits *and* suits on negotiable instruments;
- (iii) vexatious litigants *and* other litigants;
- (iv) public servants who are defamed *and* private persons who are defamed;
- (v) juvenile offenders *and* other offenders;
- (vi) employers *and* employees;
- (vii) landlords *and* tenants;
- (viii) citizens *and* non-citizens.

On the other hand, the following classifications have been *held* by the Courts to be *no classification* at all, or classification *not* reasonably related to the object of the impugned law, *namely*, classifications between—

- (a) "persons of rank" *and* other persons;
- (b) habitual criminals who have acquired a "bad reputation" *and* habitual criminals who have *not* acquired such a reputation;
- (c) the "rich" *and* the "poor";
- (d) licence-holders who are co-operative societies *and* licence-holders who are *not* co-operative societies;
- (e) undivided families *and* other families.

It has been *held* that reservation of seats for the LLB course for the employees of the University and their wards has no reasonable nexus with the object of the reservation, and thus violates Art. 14 (*Parveen Hans v. Registrar*, AIR 1990 NOC 107)

Under a scheme of admission to postgraduate courses in medicine in Kerala, only 2% of the seats were reserved for candidates from other Universities, the balance being for candidates of the two Universities in the State of Kerala. Striking down this reservation as unconstitutional, the Supreme Court *held* that the scheme of reserving a paltry 2% of the total seats for candidates from the rest of the country is *not* sufficient fulfilment of Articles 14 and 15. The Courts observed that the fundamental rights of candidates do *not* depend on the grace of the government, and Indians are certainly *not* aliens in their own motherland, when asking for seats on the score of equal opportunities.

(*Charles S. Karia v. Dr. C. Mathew*, A I. R. 1980 S.C. 1230)

A specially constituted Bench of the Supreme Court has declared that there is nothing wrong in "bettering the lot of millions of our citizens", but that this *cannot* be done in a manner which would flout the guarantee of equality given by Article 14 of the Constitution. In this case (which related to acquisition of land), the Court *held* that a classification which is based on the nature of public purpose is *not* a permissible classification under Article 14. The State *cannot*, therefore, circumvent the equality clause of the Constitution, by having one law for acquiring land of school buildings, another for Government buildings, yet another for slums, and so on (*Nagpur Improvement Trust & Another v. Vithal Rao & Others.*-1973(2) S.C.J 656)

An interesting question arose before the Supreme Court in *Kerala Hotels and Restaurants Association v. State of Kerala* (AIR 1990 SC 1913). The question was: Can the State impose higher tax on the sale of cooked food in the more expensive restaurants whilst exempting cooked food sold in modest eating places where it was offered at lesser prices? Holding such a law to be *valid*, the Court observed:

"A blinkered perception of stark reality alone can equate *caviar served with champagne* in a luxury hotel with the *gruel and buttermilk* in a village hamlet, on the realistic abstract hypothesis that both the meals have equal efficacy to appease the hunger and quench the thirst of the customer."

The *law of taxation* is also no exception to the doctrine of equal protection. Therefore, a taxing statute will be struck down if there is no reasonable basis behind the classification made by it. as for instance, when differentiation is made between tax evaders belonging to the same class, merely because the evasion was detected by different methods. (*15.0. v. Lawrence*—AIR. 1968 S.C. 658)

Special Courts

The guarantee of equal protection applies against *substantive* as well as *procedural* laws. Equal protection of procedural laws means that *all* litigants who are similarly situated are able to avail themselves of the same procedural rights for relief and for defence without discrimination.

Several cases have also come up before the Supreme Court where Acts have prescribed *two different procedures* for the trial of criminal offences. Under several State laws, *special Courts* were set up to try such offences or such cases as the State Government may direct. As the procedure prescribed for the trial of such cases was materially different from that laid down by the Criminal Procedure Code, this special procedure was challenged, in several cases, as being violative of Art. 14. These cases thus deal with alleged *procedural inequality*.

In *State of West Bengal v. Anwar Ali Sarkar* (1952 S.C.R. 284), the majority of the Supreme Court Bench *held* a West Bengal Act *void*, as it conferred unfettered and arbitrary power on government to classify offences or cases *at* its pleasure. The Court also observed that the reference in the Preamble to the Act to the need for speedier trials of offences did *not* save the situation, and that, in any event, the expression "speedier trial" was too vague and uncertain to afford any basis for a rational classification.

The same question was once again before the same Bench of the Supreme Court in *Kathi Rani Rawat v. State of Saurashtra* (1952 S C.R. 435), where the provisions of a similar Ordinance were challenged. However, the majority judgment in this case, distinguishing the earlier decision of the same Bench in *Anwar Ali Sarkar's case* (above), *held* the Ordinance to be *valid*, on the ground that the Preamble of the Ordinance give guidance to the Government in classifying offences and cases to be tried by the special procedure. A strong dissenting judgment found the Ordinance to be violative of Art. 14, and it is submitted with respect that the dissenting judgment is more sound.

Similarly, in *Kedar Nath Bajoria v. State of West Bengal* (AIR. 1953 S.C. 404), the Supreme Court, *held by a* majority, that conferring a discretion on the State Government to refer cases to Special Tribunals did *not* violate Art. 14, as the discretion had to be exercised in the light of the policy of the Act. Bose J. delivered a dissenting judgment.

(See also, "Sexual harassment of women" under Art. 15, below.)

2. Prohibition of discrimination on grounds *only* of religion, race, caste, sex or place of birth (Art. 15)

Art. 15 deals with *four* related topics, namely,—

- (1) Discrimination on the grounds of religion, race, *etc.*
- (2) Religious or racial disabilities in connection with access to shops, hotels, wells, tanks. *etc.*
- (3) Special provisions for women and children.
- (4) Special provisions for socially and economically backward classes.

Each of the above is discussed below.

(1) *Discrimination on the grounds of religion, race, etc.*

The State shall *not* discriminate against any *citizen* on grounds **only** of religion, race, caste, sex, place of birth, or any of them [Art. 15(1)]

The scope of this clause is very wide. Art. 15(1) is levelled against any State action relating to the citizens' rights, whether political, civil or otherwise. The general guarantee contained in this clause is illustrated in numerous other provisions of the Constitution. Thus, this guarantee of equality is secured by providing—(i) adult suffrage (Art. 326); (ii) equality in employment [Art. 16(2)]; (iii) eligibility for the office of President, membership of Parliament *etc.*, which may be held by any citizen of India, and so on.

The Supreme Court has *held* that any law providing for an election to local bodies on the basis of separate electorates for members of different religious communities would be violative of Art 15 (1). *unless* such a law is protected by Art. 15(4). (*Nain Sukh Das v State of U.P.*—A.1R 1953 S.C. 384)

In one case, under a Notification passed under S 15 of the Police Act, 1861, an extra levy was imposed on the ground that the inhabitants of that locality harboured dacoits and caused riots. An exemption was, however, granted to the *Han/an* and the *Muslim* inhabitants of the area. The Supreme Court *held* that in the absence of a case that *all* members of the Harijan and Muslim communities were law-abiding, and that there were no law-abiding persons belonging to the other communities of the locality, as the Notification evidently discriminated against the members of the other communities on the ground of *religion* or *caste*, it was, therefore, violative of Art. 15(1). (*State of Rajasthan v. Pratap Singh*—A.1.R. 1960 S C. 1208)

(2) *Religious or racial disabilities in connection with access to **shops, hotels, wells, tanks, etc.***

No citizen shall, on grounds *only* of religion, race, caste, sex, place of birth or any of them, be subject to any disability, restriction or condition with regard to—

(a) access to shops, *public* restaurants, hotels and places of *public* entertainment or

(b) the use of wells, tanks, bathing ghats, roads and places of *public* resorts, maintained wholly or partly *out of State funds* or *dedicated* to the use of the *general public*. [Art. 15(2)]

One can at once detect the spirit of Mahatma Gandhi's teachings embodied in this clause. Thus, a manager of a cinema theatre refusing to admit *Harijans* would be violating this Article. The repeated use of the word *public* in Art. 15(2) clearly shows that this Article does *not* authorise any citizen to use somebody else's *private* property. Thus, the owner of a *private* swimming bath will *not* contravene this Article if he refuses to allow the public to use the same.

Moreover, Art. 15(2) prohibits discrimination based *only* on certain grounds, namely, *religion, race, caste, sex* and *place of birth*. It is, therefore, quite competent for any law prohibiting lepers from using the public places mentioned in sub-cl.(2). (A reference may be made to S. 9 of the Lepers Act, which prohibits lepers from using public carriages, bathing places, *etc.*)

(3) *Special provisions for women and children*

Nothing in this Article shall prevent the State from making any special provision for *women* and *children*. [Art. 15(3)] This clause is an exception to the rule against discrimination. Thus, provision of maternity relief for women workers (Art. 42), or of free education for children (Art. 45) or measures for prevention of their exploitation [Art.

39(01 will *not* be contravention of Art. 15.

The drafting of this clause leaves much to be desired. First of all since Art. 15(1) does not include *age* as a prohibited ground of discrimination, the reference to *children* in Art. 15(3) serves no purpose.

The *second point* that arises is whether this clause authorises discrimination *against* women. The only rational answer seems to be that it does *not*. It is to be noted that the clause does *not* use the expression "discriminate against", but "special provision for". Further, the word *for* is used to mean "in favour of". It is clear that the intention was to protect the interests of women and children, who according to the framers of Constitution, required protection. This view is reflected in the decision of the Bombay High Court in *Dattatraya Motiram v. State of Bombay* (55 B.L.R. 323), where Chagla C.J. *held* that the State could discriminate in *favour of women* against men, but it could *not* discriminate in *favour of men against women*.

Thus, reservation of 50% of posts in favour of female candidates has been held *not* to be violative of Art. 15 of the Constitution (*Raiesh Kumar Gupta v. State of UP.*, AIR 2005 SC 2540)

(4) *Special provisions for socially and economically backward classes*

Nothing in this Article or in cl. (2) of the Art. 29 shall prevent the State from making any special provision for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes and Scheduled Tribes. [Art. 15(4)]

Art. 15(4) was added in 1951 as a result of the judgment of the Madras High Court in *Champakam Dorairajan v. State of Madras* (AIR. 1951 Mad. 149), which decision was upheld by the Supreme Court.

The question of the validity of reservation for Scheduled Castes and Tribes came up before the Supreme Court in *M. R. Balaji v. State of Mysore* (AIR. 1963 S.C. 649), where an order of the Mysore Government reserving 68 per cent of the seats for Scheduled Castes and Tribes and for Backward Classes was challenged. In this case, it was *held* that the impugned order made a classification based *only* on caste, without regard to other relevant factors, and that such a classification was *not permissible* under Art. 15(4). The Supreme Court also observed that, generally speaking, such a reservation should be less than 50 per cent, and as the impugned order reserved 68 per cent of the seats, it was *void* on that ground also. Interestingly enough, the Supreme Court did *not* specify as to how much below 50 per cent such reservation should be.

Art. 15(5), *inserted by the Ninety-third Amendment*, 2005, allows the State to make special provisions for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes or the Scheduled Tribes, in so far as such special provisions relate to their admission to educational institutions, *including private educational institutions, whether or not aided by the State*, other than minority educational institutions referred to in Art. 30(1).

It is important to note that Article 15 provides certain rights and privileges which are open *only* to *citizens* of India Hence, no person who is *not* a citizen can claim the benefit of this constitutional guarantee.

However, in *Yusuf Abdul Aziz v State* (53 B.L.R 736), Chagla C.J. of the Bombay High Court *held* that even though a non-citizen could *not* invoke Art. 15, it was still open to him to contend that the law under which he was prosecuted was void as being violative of Art. 15 However, this view was *not followed* by the Supreme Court in a later case, where it was *held* that a person on whom a fundamental right is *not* conferred *cannot* challenge the validity of a law on the ground that it is inconsistent with such a fundamental right. (*Nabhirajiah v. State of Mysore*,—A.I.R. 1952 S.C. 339) **Sexual harassment of women**

The Supreme Court has *held* that sexual harassment of working women violates their rights under Arts 14, 15 and 23 Taking cognizance of the widespread harassment of women at their workplace, the Court formulated detailed guidelines in this regard in *Vishaka v. State of Rajasthan* (AIR 1997 SC 3011).

3. Equality of opportunity in matters of public employment (Art. 16)

Article 16 contains seven clauses, which are discussed below

(a) There shall be equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State. [Art. 16(1)] Our Civil Service is based on the English model. The 'spoils system', which prevails in the United States, has no place under our Constitution.

As a matter of fact, the principle of recruitment by open competition prevailed in India even before it was introduced in England.

The Indian Parliament and the Legislatures *cannot* transgress the basic feature of the Constitution, namely, the principle of equality enshrined in Art. 14 of which Art. 16(1) is a facet. (*Indira Sawhney v. Union of India*, AIR 2000 S.S. 498)

It is to be noted that Art. 16(1) does *not* confer any right to *obtain* public employment, although it does confer a right to any equality of opportunity for being considered for such employment. Art. 16 does *not* prohibit selective tests; nor does it preclude the laying down of qualifications for office, *not only* of mental ability, *but also* of physical fitness, moral integrity, sense of discipline, *etc.*

(b) No citizen shall, on grounds *only* of religion, race, caste, sex, descent, place of birth, residence or any of them, be ineligible for, or discriminated against in respect of, any employment or office under the State. [Art. 16(2)] Thus, an order removing a temporary government servant *only* on the ground that he was *not* born in Andhra Pradesh was *held* to be violative of Art. 16(2), which does *not* make any distinction between temporary and permanent posts. (*Janikiraman v. State of Andhra Pradesh*,—A I R 1959 A P 185)

The Supreme Court has explained that *residence and place of birth* are *two distinct concepts*. What Art. 16(2) prohibits is discrimination on the ground of place of birth, *and not* on the ground of residence. Therefore, if a residence requirement in a particular State is prescribed for admission to a Medical College, Art. 16(2) is *not* violated. (*Dr. Pradeep Jain v. Union of India and others*, A.I.R. 1984 S.C. 1420)

(c) But Parliament shall have the right to prescribe any requirement as to residence in a State in respect of any particular class or classes of employment in that State or Union territory. [Art 16(3)] In the exercise of the powers conferred by Art. 16(3), Parliament has passed the Public Employment (Requirement as to residence) Act. 1957, which enables the Central Government to make rules in respect of certain classes of public employment in certain areas, prescribing requirements as regards residence.

(d) The State, however, has power to make provisions for the reservation of appointment or posts in favour of any *backward classes* of citizens which, in the opinion of the State, is *not adequately represented* in the services under the State : [Art. 16(4)] It is apparent from Art 16(4) that the State has power to reserve certain posts in favour of *backward classes*. Under Art. 320, it is *obligatory* on the Government to consult the Union or State Public Service Commission on matters relating to public service, civil services and posts. But Art. 16(4) is an exception to this principle, and it enables the State to reserve posts in favour of backward classes. In fact, this is an exception to the rule laid down by Art. 16(1) above.

(e) Nothing in Art. 16 shall prevent the State from making any provision for reservation in matters of promotion, with consequential seniority, to any class or classes of posts, in the services under the State, in favour of the Scheduled Castes and the Scheduled **Tribes** which are *not* adequately represented in the Services under the State.

(f) It is also provided that nothing in Art. 16 shall prevent the State from considering any unfilled vacancies of a year which are reserved for being filled up in that year in accordance with clauses (d) and **(e)** above, as a separate class of vacancies be filled up in any succeeding year or years.

(g) Offices connected with religious or denominational institutions may, however, be reserved for members professing any particular religion or belonging to a particular denomination [Art. 16(5)] This is yet another exception made by Art. 16 to the general provision of equality, and is a logical consequence of the Right to Freedom guaranteed by Arts. 26 and 27.

The *object* of Art. 16(5) is clear. It prevents a person professing one religion from being appointed to a post belonging to a community professing a *different religion*. Freedom of religion *cannot* exist, if people belonging to *one* religion can lawfully claim to be appointed to any post connected with any *other religious or denominational institution*.

The Supreme Court has *held* that establishing qualifications for a particular post can be a *rational differentia*, and therefore, *not* violative of **Article 16**. (*Subhash Chand JaM v. Delhi Electric Supply Undertaking*, **AIR. 1981 S.C. 75**)

The protection given by this Article 16 is, like that under Art. 15, available only to citizens.

4. Abolition of Untouchability (Art. 17)

“*Untouchability*” is abolished, and its practice in any form is forbidden. The enforcement of any disability arising out of ‘untouchability, shall be an *offence* punishable in accordance with law [Art 17]

The complete abolition of untouchability was one of the foremost visions of *Mahatma Gandhi*. Art. 17 seeks to adopt the Gandhian idea without any qualification. The word “untouchability” has *not* been defined in the Constitution, but is meant to cover different acts in different parts of India. This Article abolishes untouchability which, like slavery, amounts to a *denial of human equality*. This Article also makes untouchability *in any form* an offence.

It will be seen that this Article enacts two *declarations*. It is *firstly* declared that untouchability is abolished and its practice in any form is forbidden. *Secondly*, it is laid down that if a person seeks to enforce any disability arising out of untouchability, he will be guilty of an offence.

It is interesting to note that the word “untouchability” (as appearing in Art. 17) is enclosed in inverted commas. This would suggest that **the** subject-matter of Article 17 is *not* untouchability in its *literal or grammatical sense*, but the practice *as has developed through the ages in India*.

In 1955, Parliament passed the Untouchability (Offences) Act, which was later renamed as the Protection of Civil Rights Act. Although this enactment has *not* been enforced strictly, it is a step towards a socialist India, where all men are equal in the eyes of society and the law.

As it is *not* possible to give a precise definition of “untouchability”, the Protection of Civil Rights Act makes provisions with respect to the *commonest forms of untouchability* practised in India. Fine and imprisonment are prescribed under the Act for several such acts, as for example :

- (i) preventing a person, on the ground of untouchability, from entering *any place of public worship*, which is open to other persons of the same religion;
- (ii) preventing any person, on the ground of untouchability, from worshipping or performing any religious services in any place of religious worship or bathing in any *sacred tank, well, spring, etc.*
- (iii) denying to any person, on the ground of untouchability, access to any *shop, public restaurant, hotel, or place of public entertainment*;
- (iv) enforcing against any person, on the ground of untouchability, any disability with regard to the practice of any *profession* or the carrying on of any *occupation, trade or business*;
- (v) denying any person, on the ground of untouchability, the use of *any public conveyance* or the use of any *dharmashala* or *musafirkhana* which is open to the general public,
- (vi) refusing admission to any person, on the ground of untouchability, in any *hospital, dispensary, educational institution etc.*, established or maintained for the benefit of the general public.

[**Note** : The Protection of Civil Rights Act, 1955, is discussed in greater detail in Appendix III.]

5. Abolition of titles (Art. 18)

Conferment of *titles* by the State has been abolished, *except* in the case of *military or academic distinctions*. Citizens

are prohibited from accepting titles from *foreign* States. Even *non-citizens*, who hold any foreign State without the consent of the President. Likewise, no person who is holding any office of profit or trust under the State can accept any present, emolument or office of any kind from or under any foreign State, without the consent of the President [Art. 18]

Titles are abolished as they tend to create unnecessary distinction among the people and such distinctions would *not* be in line with the ideal of social, economic and political justice.

It may also be noted that this Article does *not*, like Article 17 or Article 23, provide that any breach of any obligation will be an offence punishable in accordance with law.

What Art. 18 prohibits is the conferment of *titles*, and *not of awards*. Hence, awards such as the *Padma Shri* and the *Bharat Ratna* are *not* hit by this Article.

The observations of Sir Ivor Jennings, the noted Constitution lawyer, on the nature of the constitutional obligation created by Article 18, are very interesting. In his book entitled "Some characteristics of the Indian Constitution", he observes as follows :

"The rule in Article 18, (incorrectly summarised by the marginal note as abolition of titles) that no title, *not* being a military or academic distinction, shall be conferred by the State, is apparently part of a "right to equality" It seems to be no breach of the right to equality if Sir John Brown becomes Dr. John Brown, or General John Brown, or Pandit John Brown, or Mr. Justice Brown, or Rotarian John Brown, or even Sir John Brown, M.B.E.. or if he rolls around in a gold-plated car or loads his wife with jewellery and silk sarees; but if, like the present lecturer, he becomes an impecunious knight, the right to equality is broken. In whom is this right vested? It cannot be in Sir John Brown; it is neither *in rem* nor *in personam*, neither corporeal nor incorporeal. It is in fact *not* a right at all, but a restriction on executive and legislative power".

II. Right To Freedom (Arts. 19 & 358)

Art. 19 enshrines several important liberties of citizens. The list is quite comprehensive, and these rights, which are enjoyed by *all citizens*, are *not absolute*, as they are *qualified* and Limited For instance, the right of a person to move anywhere does *not* enable him to enter *any* place that he likes. The restrictions imposed by the legislature are for the public good. Although these rights are first declared in unqualified terms, the same rights are later qualified, prompting an unkind remark that these rights have been given by one hand and immediately taken away by the other. The Constitution-makers, after studying all the different Constitutions, have tried to include the essence of the other Constitutions in Art 19 of the Constitution, but unlike the American Constitution, they have been properly codified.

The right to freedom guaranteed under Art 19 can be classified under the following *seven important heads*

1. Freedom of speech and expression
2. Freedom of assembly.
3. Freedom to form associations or unions.
4. Freedom to move freely throughout India.
5. Freedom to reside and settle in any part of India.
6. Freedom to acquire, hold and dispose of property (This freedom was, however, removed *from the Chapter on Fundamental Rights* in 1978, and is, *therefore, no more a fundamental right.*)
7. Freedom to practise any profession.

1. Freedom of speech and expression [Art. 19(1)(a) & (2)]

All citizens have the right to *freedom of speech and expression* : [Art. 19(1)]

This right is subject to the power of the State to make any laws imposing *reasonable restrictions* on such right—

(a) *in the interests of—*

- (i) the sovereignty and integrity of India,
- (ii) the security of the State,
- (iii) friendly relations with foreign States,
- (iv) public order,
- (v) decency,
- (vi) morality;

or

(b) in relation to—

- (i) contempt of court,
- (ii) defamation, or
- (iii) incitement to an offence.

The Supreme Court of India has, in this connection, observed "As regards fundamental rights this Court has been assigned the role of a sentinel on the *qui viva*" (*State of Madras v. Row*,—A I.R. 1952 S.C. 196). It follows, therefore, that what restrictions amount to *reasonable restrictions* on the freedoms guaranteed by the various sub-clauses is a matter to be decided only by the Courts.

The Supreme Court has *held* that Ss. 123(5) and 124(5) of the Representation of the People Act does *not* interfere with a citizen's fundamental right to the freedom of speech; rather, it merely prescribes the conditions to be observed if he wished to become a member of Parliament. The right to contest an election is *not* a common law right, but a right created by a statute, to be exercised according to the conditions prescribed by such a statute. If a person wishes to exercise his right of freedom of speech, he can exercise that right, and *not* stand as a candidate for Parliament. (*Jamuna Prasad v. Lachhi Ram*,—A.I.R. 1954 S.C. 686)

In an interesting case before the Supreme Court, a question arose whether an advertisement designed to promote the sale of certain medicines was covered by the guarantee of freedom of speech and expression. Answering the question in the negative, the Court *held* that although an advertisement was a form of speech, the right to publish and distribute a commercial advertisement (advertising an individual's commercial business) was *not* part of the freedom of speech guaranteed by our Constitution. (*Hamdard Dawakhana v. Union of India*—AIR. 1960 S.O 554)

In *Rajni Kant v. State* (AIR. 1958 All. 360), the Allahabad High Court *held* that the use of mechanical instruments, like loudspeakers and amplifiers, was *not* covered by the guarantee of freedom of speech and expression, and therefore, a bye-law of a Municipality requiring a permit before using a loudspeaker is *not* violative of Art. 19(1)(a).

On this point, the view of the Gujarat High Court is that since there is a fundamental right to freedom of speech and expression, that right extends to mechanical devices also, but since such devices are likely to cause disturbance and nuisance, reasonable restrictions could be placed on the use of such devices, and therefore, the requirement of a permit would be a reasonable restriction. (*Indulal v. State*—AIR. 1963 Guj. 259)

Several other cases have *held* that a citizen also has the right *not* to hear and *not* to be bombarded by loud noises.

As seen above, the State may impose *reasonable restrictions* on the exercise of the right of freedom of speech and expression *in the interest of* (i) security of State, (ii) sovereignty and integrity of India, (iii) friendly relations with foreign States, (iv) public order, (v) decency, (vi) morality, or *in relation to* (vii) contempt of Court, (viii) defamation or (ix) incitement to offence.

Thus, two *conditions* have to be satisfied if a restriction is to be held constitutional. *First of all*, it must be *reasonable*—and this, as said above, is for the Courts to decide. However, the Courts have no power to decide whether the legislation itself is reasonable: what they have to see is whether the *restriction* is reasonable. To do this, several considerations like the history of the legislation, the duration and extent of the restriction, *etc.*, are to be taken into account. Again, what was 'reasonable' ten years ago may *not* be so today. Thus, there is *no fool-proof test* of the reasonableness or otherwise of a restriction, which may be applied to every case coming before the Courts. *Secondly*, such a restriction must relate to *one of the nine heads* enumerated above.

The Supreme Court has *observed* that the concept of reasonable restriction finds its manifestations in the ideal of social and economic justice by which the Directive Principles are inspired (*Union of India v. Hindustan Development Corp.*, A.I.R. 1994 S.C. 988)

For a considerable period of time, there was a conflict of decisions on the point whether the word "restriction" would also cover a *total prohibition*. This conflict was resolved by the Supreme Court in *Narendra Kumar v The Union of India* (AIR. 1960 S.C. 430) where it *held* that "restriction" would include a "prohibition" also. Needless to say, such a prohibition also should be *reasonable*.

As stated above, the reasonableness of restriction is a *justifiable issue*, i.e., the Courts have the authority to determine whether a particular restriction is reasonable or *not*, and this has introduced the *doctrine of judicial review* into our Constitution. As observed by the Supreme Court, "The determination by the legislature of what constitutes a reasonable restriction is *not* final or conclusive it is subject to the supervision of the Court. In the matter of fundamental rights, the Supreme Court watches and guards the rights guaranteed by the Constitution, and in exercising its functions, it has the power to set aside an Act of the Legislature if it is a violation of the freedoms guaranteed by the Constitution. (*Chintamanrao v. State of M.P.*,—A.I.R. 1951 S.C. 118)

It is sometimes said that the expression "*reasonable restrictions*" has indirectly introduced the *due process clause* of the American Constitution into the Indian Constitution. *This is, however, not a correct view*. The powers of the Supreme Court of the U.S. are very wide because of the due process clause, which is *not so in India*. Courts in India can merely consider the reasonableness of the *restrictions*, and *not* the reasonableness of the *legislation itself*, which is possible in the U.S. under the due process clause. The Supreme Court of India has also repeatedly *held* that "due process" does *not* apply to the Indian Constitution.

Freedom of the Press

Freedom of the press is *not* separately guaranteed by the Constitution. However, although Art. 19(1) (a) does *not* mention the freedom of the press, the Courts have, from the very beginning, *held* that freedom of speech and expression includes freedom of the press and circulation, and is, therefore, available to the same extent. As observed by the Supreme Court, there can be no doubt that freedom of speech and expression includes freedom of propagation of ideas, and that freedom is ensured by the freedom of circulation, and is, therefore, available to the same extent. (*Romesh Thappar v. State of Madras*—AIR. 1950 S.C. 241)

The Supreme Court has also *held* that fixing the maximum number of pages for a particular price would amount to a violation of the right of freedom of the press, as it would affect its volume of circulation (*Bennett Coleman & Co. Ltd. v. Union of India*—AIR. 1973 S.C. 106)

In *Prof Manubhai D. Shah v. Life Insurance Corporation of India & Others* [AIR. 1981 Guj. 15], the Consumer Education and Research Centre published a study entitled "A Fraud on Policy-holders". This was a scientific research made into the working of the Life Insurance Corporation, and tried to portray and establish the discriminatory practices allegedly adopted by D.C., adversely affecting a large number of policy-holders. The L.I.C. published a reply in a newspaper called "The Hindu", challenging the conclusions reached by the Consumer Education and Research Centre. This reply was then reprinted in "*Yogakshema*", published by L.I.C. The C.E.R. Centre sent a rejoinder and requested L.I.C. to publish this also in *Yogakshema*. L.I.C., however, refused to do so.

On the above facts, the Gujarat High Court *held* that every citizen has a right to call upon the State to make available to him a particular channel for publishing his studied criticism of a branch of public administration. To give such an opportunity to an admirer, and to deny it to a critic, is to deny him his freedom of speech and expression. The Court *also held* that to make available public funds to an admirer, and *not* to a sober critic, also violates the guarantee of equality enshrined in Art. 14 of the Constitution. The Court thus *held* that such refusal on the part of L.I.C. was violative of both Art. 19(1)(a) and Art. 14.

The Supreme Court has further *held* that requiring a newspaper to reduce its space for advertisements would constitute a restriction on the freedom of the press, as it would directly affect its circulation, since it would result in

an increase in its price. (*Sakai Papers v. Union of India-AIR. 1962 S.C. 305*)

Commercial exhibition of films

The Allahabad High Court has *held* that exhibition of films through video on a commercial basis is *not a* fundamental right under Art. 19. Such a right *cannot* be compared with circulation or distribution of newspapers. Freedom of speech and expression does *not* cover the right to exhibit films by a video parlour. (*Sitar Video v. State of U.P. A.I.R. 1994 All. 25*) *Bandhs* A "bandh" does *not* fall within the scope of the fundamental right of speech and expression. A "bandh" is essentially a warning to a citizen that if he goes to work or to his school or college or opens his shop, he would be forcibly prevented from doing so. It goes without saying that the fundamental rights of people as a whole *cannot* be sacrificed by a section of persons claiming to exercise their "fundamental rights". Even if there is no law prohibiting a "bandh", the courts can interfere to protect the right to work or the right to study. (*Communist Party of India v. Bharat Kumar, AIR 1998 SC. 184*) *Singing of the National Anthem*

Three children of a school did *not* join the singing of the National Anthem in a school, because of their religious faith, although they did stand up out of respect when the anthem was sung These three children were expelled from the school for this conduct When the matter was taken to court, the Supreme Court *held* such an expulsion is a violation of their fundamental rights under Art. 19(1) (a) and Art 25(1) (*Bijoe Emmamel v. State of Kerala, AIR 1987 SC 748*)

2. Freedom of Assembly [Art. 19(1)(b) & (3)]

The Constitution guarantees to its citizens *the right to assemble peaceably and without arms*. This right includes the right to hold meetings and to take out processions In *Gopal Charan v Daitary Nandy* (A.I.R. 1961 Or. 167), it has been *held* that the right to lead a procession is neither an easement, nor a customary right, but *a fundamental right*.

The very idea of a Government which is republic in form, implies a right on the part of citizen to meet peaceably for consultation in respect of public affairs. The Constitution, however, guarantees the above right subject to *three limitations* namely, (a) the assembly must be peaceable, (h) it must be unarmed; and (c) the State may impose any *reasonable restrictions* as may be deemed necessary in the interests of (i) public order, or (ii) sovereignty, or (iii) integrity of India.

In one case, S. 126 of the Representation of People Act, 1951, was challenged as being unconstitutional, as it prohibits the holding or attending of any meeting on the date on which polling takes place The Court, however, *held* that this was a law relating to public meetings passed in the interest of public order, and was therefore *valid*. (*Rameshwar v State—A.I.R 1957 Pat. 252*)

In another case, it was *held* that S. 14 of the U P. Opium Smoking Act, which prohibited an assembly for the purpose of smoking opium, did *not* violate Art. 19(3) of the Constitution. (*State v. Mangala A.I.R. 1957 All. 753*)

S. 141 of the I.P.C. lays down that an assembly of five or more persons becomes an unlawful assembly when the common object of the persons composing the assembly, is, by means of criminal force or show of criminal force, to overpower the Government or any public servant in the exercise of his lawful powers, or to take possession of any property or to deprive any person of the enjoyment of his incorporeal rights, *etc.* The law may impose *reasonable restrictions* on the enjoyment of such a right in the interest of public order.

Thus, when the Government of Bihar promulgated certain Rules under which no Government servant was permitted to participate in any strike or demonstration to agitate against service conditions, the Court *held* that such Rules were *void*.

3. Freedom to form associations [Art. 19(1)(c) & 19(4)]

The Constitution provides that *all citizens* shall have the freedom to form associations or unions. This right is, however, subject to the power of the State to make any law imposing *reasonable restrictions* on such right, in **the** interests of sovereignty and integrity of India, public order and morality.

In one case, the Government issued an Order requiring Municipal teachers *not* to join unions other than those officially approved by it. This Order was challenged on the ground that it violated the freedom to form associations and unions, and was struck down by the Madras High Court. (*Ramkrishnaiah v. The President, District Board, Nellore*,—A.I.R 1952 Mad. 253)

The leading case on Art. 19(1)(c) is *State of Madras v Row* (AIR. 1952 S.C. 196), which involved the validity of a Notification issued by **the** State Government declaring the "People's Education Society" to be an unlawful association. Although the objects of the Society were broadly described as "advancement of knowledge", the Government alleged that this was merely a camouflage, and that the funds of the Society were actually used for helping the Communist Party which had been declared unlawful. The Supreme Court observed that the matter was left entirely to the subjective satisfaction of the Government and was *not* justiciable. Moreover, there was no obligation on the Government to give a notice to the persons concerned before declaring an association to be unlawful. **The** Court, therefore, *held* that such a restriction was *unreasonable* and violative of the fundamental right to form associations and unions.

An interesting question is whether right to form an association also implies a right *not* to be compelled to form or join an association. The High Court of Andhra Pradesh has *held*, and rightly so, that this right necessarily implies a right *not* to be a member of an association. Accordingly, it was *held* that rules which made it compulsory for all teachers of elementary schools to become members of an association were *void* as being violative of Art. 19(1)(c). (*Sitharamachary v. Sr. Dy. Inspector of Schools*.—A.I R. 1958 A.P. 78)

The Supreme Court has also considered the question of whether **there** is any *fundamental right to strike*, and answered the question in **the** negative. (*See All India Bank Employees Asso. v. National Industrial Tribunal*— A.I.R 1962 S.C. 161; and also *Radhey Shyam v. P.M.G., Nagpur*,—A.I.R. 1965'S.C. 311)

It may be noted that *Constitution of the United States* does *not* expressly grant the freedom to form associations. Nevertheless, the weight of the judicial decisions has recognised the existence of such a right in the U. S. also.

4. Freedom to move freely throughout India [Art. 19(1)(d) & (5)]

The freedom to move freely throughout India is also necessary for the liberty of the individual. India is one, and any internal barriers in the country would deprive a citizen of his right to move as he pleases in any part of India.

But the State may impose *reasonable restrictions* upon this freedom in the interest of the general public and for the protection of the interests of any Scheduled Tribe. This is because, like other individual rights, this right *cannot* be absolute. Even in England, the individual's right of free movement and access is denied in the case of prohibited places and protected areas under the Official Secrets Acts. Similar restrictions on movement and travelling may also be imposed by law in all countries, in order to prevent or control epidemics, contagious diseases or the like. For example, a person suffering from an infectious disease may **be** prevented from moving freely.

The *free movement* guaranteed by Art. 19(1)(d) relates *not* to the general right of locomotion, *but* to the particular right of moving from one part of the Indian territory to another, without any kind of discriminatory barriers between one State and another *or* between different parts of the same *State*. (*Gopalan v. State of Madras*. 1950 S C R 88)

Orders of *externment* and *internment* fall under this Article The *duration* of an externment provided for by the law is a relevant consideration in determining the reasonableness of the restriction Thus, a law which provides for externment for an indefinite period would, *prima facie*, be an unreasonable restriction, but *not* so, if the statute itself is temporary enactment, and the order of detention made under such an Act *cannot* possibly extend beyond the expiry of the Act. (*Dr. Khare v State*,—1950 S.C.R. 519)

5. Freedom to reside and settle in any part of India (Art 19(1)(e) & (5)]

This right is a necessary corollary to the above freedom. If a citizen has the freedom to move freely throughout the territory of India. he must necessarily also have the right to *reside* and *settle* in any part of the country.

Here too, the State may impose *reasonable restrictions* on this freedom in the interests of the general public or for the protection of the interests of any Scheduled Tribe.

Questions of violation of Art. 19(1)(d) and Art. 19(1)(c) have often arisen in connection with *externment orders*. In one case, an Act which empowered the Government or a District Magistrate to extern persons on the satisfaction of the externing authority (which was final) was challenged as violating Art. 19(1)(d) and (e). By a majority of 3 to 2, the Supreme Court *upheld* its validity, as being a *reasonable restriction* on the fundamental right. (*Dr. Khare v. State*, A.I.R. 1950 S.C. 27)

Likewise the Supreme Court has also *upheld* S. 27(1) of the Bombay Police Act, authorising an order of externment, on the ground that the section imposes a *reasonable restriction* in public interest. (*Gurbachan Singh v. State of Bombay*—AIR. 1952 S.C. 221)

However, the above cases of externment were *held not* to apply to an order under the Central Provinces and Berar Goondas Act, 1946. Though it was a condition precedent to any action under the Act that the person sought to be proceeded against was a *goonda*, the Act failed to provide that the District Magistrate should first determine that the person in question was in fact a *goonda*. Nor did the Act provide any guidelines in this respect. Moreover, the Act did *not* provide for an opportunity to the person concerned to show that he was *not a goonda*. Therefore, the Supreme Court *held* that, however laudable the object of the Act, it was *void*, as it failed to provide the necessary safeguards. (*State of M.P. v. Baldev Prasad*,—AIR. 1961 S.C. 293)

In another case, the Supreme Court *upheld* the validity of S 20 of the Suppression of Immoral Traffic in Women and Girls Act, 1956, and observed that "Once it is held that the activities of a prostitute in a particular area are so subversive of the public morals and so destructive of public health, that it is necessary in the public interest to deport her from that place, the restriction should be held to be reasonable." (*State of UP. v. Kaushaliya*—A.I.R. 1964 S.C. 416)

6. Freedom to acquire, hold and dispose of property [Art. 19(1)(f) & (5)]

(Now deleted by the Forty-fourth Amendment, 1978)

A.—Position before the Forty-fourth Amendment, 1978

Before the Constitution (Forty-fourth) Amendment, 1978, under Art. 19(1)(f), a citizen had the *fundamental right* to *acquire, hold and dispose of* property. This right of property consisted *not merely* in ownership and possession, *but* in the unrestricted right of use and disposal. But like other individual rights, it was *not* an absolute right, and the state could impose *reasonable restrictions* on this freedom in the interests of the general public or for the protection of the interests of any Scheduled Tribe.

In *Chiranjit Lal Chowdhuri v. Union of India* (AIR. 1951 S.C. 41), it was *held* that the right under this Article means the right to possess as well as to enjoy all the benefits which are ordinarily attached to the ownership of property, which also includes the right to enjoy all the concrete rights which follow from such ownership.

In *Ganpatsinghji v. State of Ajmer* (AIR. Ajm. 17), the **Court held (by a majority)** that the right to hold a fair on one's own land is a fundamental right under Art. 19(1)(f), and therefore, such a right can be restricted **only** in the matter provided for by Art. 19(5).

The question whether a customary or statutory right of pre-emption on the ground of vicinage violates Art. 19(1)(f) had *formerly* given rise to a *conflict of judicial opinions*. The *Allahabad and Rajasthan High Courts* had *held* the view that a law of pre-emption violated Art. 19(1)(f) and was, therefore, *void*. On the other hand, the *High Courts of Nagpur and Punjab* *held* that such a law did *not* violate Art. 19(1)(f) and was, therefore, *valid*. This conflict was resolved by the Supreme Court in *Bhav Ram v. Brij Nath* (AIR. 1962 S.C. 1476), where the Court *held* by a majority (of 3 against 2) that pre-emption on the ground of vicinage was *void*.

The Supreme Court, in *Chiranjit Lal's case* (referred to above), gave a restricted meaning to the term 'property', denying the protection of Art. 19 to incorporeal property. However, the trend was reversed by the Supreme Court in

Lakshmindra's case (AIR. 1954 S.C. 282), where giving a wider interpretation to the word 'property', as used in Art. 19(1) of the Constitution, should *not* be given a liberal and wide connotation, and should *not* be extended to those well-recognised types of interest which have the insignia or characteristics of proprietary right,"

Arts. 19(1)(f) and 31 deal with the right to acquire, hold and dispose of property. Cl. (I) of Art. 31 guarantees the right *not* to be 'deprived of one's property save by the authority of the law' Cl. (2) of Art 31 guarantees that private property *cannot* be acquired or taken possession of by the State except for public purposes and after payment of compensation The opinion in *Gopalan's case* was that the capacity to exercise the right guaranteed under Art. 19(1)(f) does *not* exist when property is compulsorily acquired under Art. 31(2). This reasoning was followed by the High Courts in many cases to hold that Art. 19(1)(f) had no application when a person was deprived of his property by law enacted by a competent legislature under Art. 31(1) *or* when the legislature provided for its acquisition or requisition for public purposes under Art. 31(2) As a result of this, a citizen had no right to inquire into the reasonableness of a law coming under either Cl. (I) or (2) of Art. 31. Thus, no cut-and-dry test can be formulated as to whether in a given case the owner is deprived of his property within the meaning **of** Art. 31; and each case, therefore, must be decided on its merits.

It has been *held* that the wilful burning of a copy of the Constitution is *not* included in the fundamental right to acquire, hold and *dispose of* property.

[Note : The above cases are now of academic interest only, as the *Right to Property is no more a Fundamental Right* under the Indian Constitution.]

B.—Position *after the Forty-fourth Amendment, 1978*

A *drastic step of far-reaching significance* was taken by the *Forty-fourth Amendment, 1978*, whereby Art. 19(1)(f), which gave every citizen of India the freedom to acquire, hold and dispose of property, was *omitted* from Chapter III of the Constitution (which deals with Fundamental Rights). The *net effect* of this deletion is that *an Indian citizen no longer enjoys a fundamental right to acquire, hold and dispose of property*.

[**Note :** A reference may be made to Art. 300-A (discussed in Ch. XII), which provides that no person can be deprived of his property save by authority of law.]

7. Freedom to practise any profession [Art. 19(1Xg) & 6]

Art. 19(1)(g) confers on *every citizen* the freedom to practise any *profession* or to carry on any *occupation, trade or business*.

Under this Article, every citizen has the right to choose any employment or to take up any trade or calling, subject only to the limits as may be imposed by the State in the interest of public welfare. But this Article does *not* guarantee a monopoly to any individual or association to carry on any occupation. The right to carry on a business also includes the right to close it at any time the owner likes.

It may be noted that Art. 19(1)(g) confers *a right*, and *not* an *obligation*. Therefore, it carries with it also the *right not* to carry on a trade or business.

At the same time, this right is subject to *reasonable restrictions* in the interest of the general public, as for example, when the business carried on is a public utility service, *or* when the closure assumes the form of a 'lockout' and raises an industrial dispute which the legislature seeks to prevent. The right of a lawyer to practise is *not* a natural or absolute right, but is subject to the terms and conditions laid down in the Bar Councils Act which requires an Advocate to get himself enrolled before he can practise in different Courts in India.

Moreover, there is *no fundamental right* of existing traders to be free from competition of new traders. (*Nagar Rice Mills v. N.T.C. Bros—AIR. 1971 S.C. 246*)

Formerly, if the State itself wished to carry on trade or business, ousting private traders from that trade, wholly or partially, the State could be justified in doing so, only if it was reasonable. However, the Constitutional Amendment of 1951 *now* exempts the State from the condition of reasonableness, by laying down that the carrying on of any trade, business, industry or service by the State *cannot* be questioned on the ground that it is an infringement of the rights guaranteed by Art. 19(1)(g). Hence, the State is now free either to compete with private traders *or* even to create a monopoly in favour of itself, without being called upon to justify its action in the Court as being reasonable.

Under Art. 19(6), the State may :

- (a) impose *reasonable restrictions* upon the freedom of trade, business, occupation or profession in the interest of the general public;
- (b) prescribe the professional or technical qualifications necessary for carrying on any occupation, trade or business;
- (c) carry on any trade, business, industry or service, by itself or through a corporation controlled by the State – to the exclusion of private citizens, wholly or in part.

The phrase "*reasonable restrictions*" appears in this clause also, and as observed by the Supreme Court, "the greater the restriction, the more is the need for strict scrutiny by the Courts".

Thus, in one case, an Act of the Madhya Pradesh Government empowered the Deputy Commissioner to prohibit the manufacture of *bidis* during the agricultural season in such villages as he might specify in his order. The Supreme Court *held* that such a provision is *void*, as it violates Art. 19(1)(g), since a total prohibition of the manufacture imposes an *unreasonable* and *excessive* restriction on the lawful profession of manufacturing *bidis*. (*Chintamanrao*

v. *State of M.P.*, -19c0 S.C.R. 759)

In a case before the Supreme Court, the provisions of the Bombay Municipal Corporation Act, 1888, were challenged on the ground that **the** authorities were conferred arbitrary power to grant or refuse licences for hawkers on public streets and for removing unauthorised hawkers without giving them an opportunity to be heard. *Rejecting* this *contention* the Supreme Court observed that public streets are by their very **nomenclature** and definition, meant for the use of the general public. No person has the fundamental right to carry on any business which causes nuisance, annoyance or inconvenience to the public. It was, therefore, *held* that the provisions of the B.M.C. Act were in the nature of reasonable restrictions in the interest of the general public and *not* violative of Art. 19(1)(g) of the Constitution. (*Bombay Hawkers Union v Bombay Municipal Corporation*, A.I.R. 1985 S.C. 1206)

In a case decided by the Supreme Court, the State of **Kerala** **had** imposed a ban on the use of mechanised fishing nets and mid-water trawlers in territorial waters. This was done to protect the livelihood of **other** poorer fishermen, and to protect the pelagic fish wealth of the territorial waters. The Supreme Court *held* that the restriction was a *reasonable restriction*, and *not* violative of Art. 19(6). (*State of Kerala v. Joseph Antony*, AIR. 1994 S.C. 721)

A temporary legislation to control production, supply and distribution of **an essential commodity** during a period of emergency *cannot* be said to be **unreasonable**. This principle has also been extended to normal times in respect of **an essential commodity** which is in short supply, as for instance, milk

An interesting question arose in *State of Bombay v R.M.D. Chamarbaughwalla* (1956 S.C.R. 874) as to whether there can be a "business" in gambling. The Court rightly *held* that there could *not* be, adding that *crime is certainly not a business*.

It has similarly been *held* that **prostitution and the running of brothels are not 'occupation' or 'trade' or 'business' entitled to the protection of**

Article 19. On the same lines, the Courts have *held* that there is *no fundamental right* to deal in *smuggled goods* or to carry on business in *adulterated foodstuffs*.

A case of great importance under Art. 19(1)(g) is the Supreme Court decision in *Mohd. Hanif Quareshi v. State of Bihar* (AIR. 1958 S.C. 731), both on account of the constitutional questions raised and because of the strong feelings aroused, because it involved the slaughter of cattle, particularly cows. The petitioners, who were Muslims by religion, were engaged in the trade of butchers, and challenged the laws of different States which aimed at preventing cattle slaughter. The ruling of the Court in this case can be summed up as follows :

(i) A total ban on the slaughter of cows of all ages is quite *reasonable* and *valid*, and in consonance with the Directive Principles laid down in Art. 48

(ii) A total ban on the slaughter of she-buffaloes or breeding bulls, as long as they are useful as mulch or draught cattle, is also *reasonable* and *valid*.

(iii) But, a total ban on the slaughter of she-buffaloes, bulls and bullocks *after* they cease to be capable of yielding milk or breeding or of working as draught cattle, *cannot be said to be reasonable* in the interest of the general public.

Further, it must first be shown that a law violates the right to carry on trade, business or profession. If it is to be successfully challenged under Art. 19(1)(g). Thus, for example, it has been *held* that studying in a University is *not* an "occupation" within the meaning of this Article

Also, before a person can complain of the violation of a fundamental right, it must be established that the right claimed is *firstly*, a legal right, and *secondly*, a *fundamental right*. Thus, it has been *held* that a petitioner has no legal right, let alone a fundamental right, to carry on his profession or business in the compound of the Collectorate.

[NOTE.—In connection with Article 19, one must also note the provisions of Article 358, which enacts that the provisions of Art. 19 are liable to be *suspended* during the time that a Proclamation of Emergency is in operation.

Article 358 provides that during a Proclamation of Emergency, the State, including- legislative, executive and local

authorities, shall be free from the restrictions imposed by Art. 19. Of course, the Article revives as soon as the Proclamation expires.’

Summary Of Fundamental Rights under Art. 19 and their Restrictions

The various restrictions which the State can impose on the fundamental rights guaranteed by Art. 19 can be summed up in a Tabular Form as follows :

RIGHT

1. Freedom of speech and expression
2. Freedom to assemble *peaceably* and without arms
3. Freedom to form associations or unions
- 4-5. Freedom to move freely through-out the territory of India— Freedom to reside and settle in any part of the territory of India
6. Freedom to acquire, hold and dispose of *property* (*Now deleted*)
7. Freedom to *practise* any profession, occupation, trade or business.

RESTRICTIONS

1. *Reasonable restrictions* in the in-

terests of :

- | | |
|-------|--|
| (i) | sovereignty and integrity of India, |
| (ii) | security of the State, |
| (iii) | friendly relations with foreign State, |
| (iv) | public order, |
| (v) | decency, |
| (vi) | Morality, |

or in relation to —

- | | |
|--------|--------------------------|
| (vii) | contempt of court, |
| (viii) | defamation, and |
| (ix) | incitement of an offence |

2. *Reasonable restrictions* in the interest of

- (i) sovereignty and integrity of India, and
- (ii) public order.

- 3 *Reasonable restrictions* in the interests of

- (i) sovereignty and integrity of India.
- (ii) public order, and
- (iii) morality.

- 4-5 *Reasonable restrictions*

- (i) in the interest of the general public. or
- (ii) for the protection of the Interests of any Scheduled Tribe

- 7) (i). *Reasonable restrictions* in the interests of the general public.
- (ii) Prescribing professional or technical qualifications
- (iii) Carrying on of any business by the State, to the complete or partial exclusion of citizens.

III. Protection In Respect Of Conviction For Offences (Art. 20)

Art. 20, which enshrines a very valuable fundamental right, provides *three basic guarantees* as follows :

- (1) No person shall be convicted of any offence *except* for violation of a law in force at the time of the commission of the act charged as an offence, nor be subjected to a penalty *greater* than that which might have been inflicted under the law in force at the time of the offence. (Art. 20(1))
- (2) No person shall be prosecuted and punished for the *same* offence *more than once*. [Art. 20(2)]
- (3) No person accused of any offence shall be compelled to be a *witness against himself* [Art. 20(3)].

Each of these three rights guaranteed by Art. 20 are discussed below in their necessary details.

(1) Protection against *ex-post facto* laws [Art. 20(1)]

Art. 20(1) provides protection against *ex-post facto* laws. This Article provides a guarantee similar to the one provided by the American Constitution, which declares that no *ex-post facto* laws shall be passed. Broadly speaking, *ex-post facto* laws are laws which make unlawful and punish, an act which had been lawful when done. The Supreme Court has *held* that what is prohibited under Art. 20 is any *conviction* or *sentence* under an *expost facto* law, and *not* the *trial* thereof.

As observed in *Rao Shiva Bahadur Singh v. State of U.P.*, (A I.R 1953 S.C. 394), "There can be no doubt as to the paramount importance of the principle that such *ex-post facto* laws, which retrospectively create offences and punish them, are bad as being *highly inequitable and unjust*'.

The expression "law in force at the time of the commission of the act" has been judicially considered, and it has been *held* that the phrase must be understood in its natural sense, as being the law *in fact* in existence at the time of the offence, as distinct from any law *deemed* to be operative at such time.

The second part of Article 20(1) guarantees that no person shall be subject to a penalty greater than that which might have been inflicted on him under the law in force at the time when the offence was committed. Thus, in one case, the accused committed an offence in 1947. The relevant Act at that time prescribed a specific punishment of imprisonment or fine or both. Later, the Act was amended and the punishment prescribed was enhanced. In these circumstances, the Court *held* that the enhanced punishment could *not* be applicable to the offence committed in 1947, because of the prohibition in the latter part of Article 20(1). (*Kedar Nath v. State of West Bengal*,—AIR 1953 S.C. 404)

The prohibition under Art. 20(1) is *not* confined only to passing of *expost facto* laws, and extends also to conviction or sentence under such a law. Thus, it prohibits all convictions under an *ex-post facto* laws, and it is immaterial whether such a law is a post-Constitution or pre-Constitution enactment.

However, Art. 20(1) does *not* apply to disciplinary proceedings. (*Pandurang Swamy v. State of A.P.*,—A.I.R. 1971 A.P. 234)

It is to be noted that the *penalty* referred to in Art. 20(1) **must be a penalty for an offence**. Thus, the Supreme Court has *held* that the unauthorised use of canal water was *not* an offence, and the imposition of an enhanced water charge under a local Statute was *not* a penalty for an offence. (*Jawla Ram v. State of Pepsu*,—A.I.R. 1962 S.C. 1248)

The Bombay Rent Act (now replaced by the Maharashtra Rent Act) provides that no landlord can, without just or sufficient cause, cut off or withhold any essential supply or service *enjoyed* by the tenant in respect of the premises let to him. The interesting question before the Supreme Court in one case was Is it enough that this essential supply was "enjoyed" by the tenant *at any time in the past, however, remote, or* should it have been enjoyed *at any time after the Act came into force* ? The Court *held* that if this section was to be construed to mean that the supply should

have been enjoyed some time in the remote past, *i.e.*, before the Act came into force, the act of a landlord, when committed may *not* be penal, but the same act would become penal on the coming into force of the Act. In this sense, it would amount to *ex-post facto* legislation, and therefore, hit by Article 20(1) of the Constitution. Therefore, the correct interpretation would be that such supply should have been enjoyed by the tenant at some time when the Act was in force. (*Kanaiyalal v. Indumati Potdar*,—A.I.R. 1958 S.C. 444)

(2) Protection against double jeopardy [Art. 20(2)]

Art. 20(2) is a guarantee against *double jeopardy*. It lays down that no person can be prosecuted and punished for the same offence more than *once*. The word "and" is very significant, because in order to come under the ambit of Art. 20(2) the person must *both* be prosecuted *and* punished

The protection against double jeopardy is also to be found in the Criminal Procedure Code and in the U.S. Constitution. However, the American Constitution prohibits not only a second *punishment*, but, **also** a second *trial*. Art. 3(a) of the Japanese Constitution also confers a **similar** guarantee.

In *Thomas Das v. State of Punjab* (A.I.R. 1959 S.C. 375), the Supreme Court *held*, by a majority of 4 to 1 (Subba Rao J. dissenting), that in order to claim protection of Article 20(2) it was necessary to prove *three* things :

(i) that there was a previous prosecution. (ii) that as a result of this, the accused was punished: *and* (iii) that the punishment was for the same offence. The Court laid down that *unless all the three conditions were satisfied*, the Article could *not* come into play.

It may be noted that there is *no punishment* within the meaning of Article 20(2), *unless* it is preceded by a prosecution of a criminal nature. This is well-illustrated in a case decided by the Supreme Court where Mr. X, a citizen of India, on his arrival at the Airport, did *not* declare that he had brought gold with him. On a search, it was revealed that he was carrying 107 tolas of gold in contravention of the law. The Customs authorities, thereupon took action against him under the Customs Act and confiscated the gold. Later, a complaint was filed in the Court of the Chief Presidency Magistrate against him, for having committed an offence under the Foreign Exchange Regulation Act. Mr. X pleaded that his prosecution before the Magistrate would be in violation of the fundamental right granted to him by Article 20(2) of the Constitution, because he had already been prosecuted and punished, in as much as the Customs authorities had confiscated his gold. The Supreme Court rejected his plea, and observed that the Customs authorities are *not* a Court or Judicial Tribunal, and that therefore there was no "*prosecution*" of Mr. X; nor did the order of confiscation amount to a "*punishment*" inflicted on him. Mr. X, therefore, could *not* be said to have been *prosecuted and punished* for the same offence for which he was now charged before the Chief Presidency Magistrate. (*Magbool Hasan v. The State of Bombay*,—AIR 1953 S.C. 325)

Magbool Hasan's case (above) was referred to and followed by the Supreme Court in a later case, where it was *held* that an inquiry under the Public Servants (Inquiries) Act, 1850, was a fact-finding inquiry, and the dismissal of a public servant after such an inquiry did *not prevent* a criminal prosecution being launched against him in respect of the same acts. (*S.A. Venkataraman v. Union of India*—AIR. 1954 ac. 375)

Moreover, the *offence* which is the subject-matter of the second proceeding must be the *same* as that of the first proceedings for which he was *prosecuted and punished*. Thus, the previous conviction for one offence, (*e.g.*.. *hurt*) does *not* bar a subsequent trial and conviction for a distinct and separate offence (*e.g.* affray), *even if* both the offences arise out of the *same facts*. (*Sardul Singh v. State of Maharashtra*.-1984 2 S.C.R. 378)

(3) Protection against self-incrimination [Art. 20(3)]

Art. 20(3) provides that no person accused of any offence shall be compelled to be a witness against himself. This Article embodies *the privilege against self-incrimination*. The American Constitution also guarantees a similar right, and the Fifth Amendment lays down that 'No person shall be compelled in any criminal case to be a witness against himself'.

However, this provision does *not* prevent an accused from waiving this privilege, and being a witness in a criminal proceeding in which he is accused.

Thus, *compulsion* is an essential ingredient of Art. 20(3). This clause does *not* prevent the admission of a confession which is made without any inducement, threat or promise, even though it may be subsequently retracted. Nor does it apply when the law gives an option to the accused to enter the witness-box. However, such compulsion need *not* necessarily be *physical*; it may even be *mental*, *Le.* one which renders the statement of the person involuntary.

The observations of the Supreme Court in the *State of Bombay v. Kathi Kalu Oghad* (AIR 1961 S.C. 1808) are interesting. The Court observed, in this case, that Article 20(3) is directed against self-incrimination by an accused person, and self-incrimination must mean giving of information based on the personal knowledge of the person giving the information, and *cannot* include merely the mechanical process of producing documents in Court, which do *not* contain any statement of the accused based on his personal knowledge. Thus, giving *thumb-impression or impressions of the foot and palm or finger prints or specimen writing* by way of identification, are *not* covered by the expression *"to be a witness."*

In the above case, a *Bench of eleven Judges* laid down the following six *important propositions* regarding the extent of the protection afforded by Art. 20(3) :

(i) An accused person *cannot* be said to have been compelled to be a witness against himself, merely because he made statement while in police custody *without anything more*.

(ii) The mere questioning of an accused by a Police Officer, resulting in a voluntary statement, is *not compulsion*.

(iii) 'To be a witness' *cannot* be said to be equivalent to 'furnishing evidence'.

(iv) In its ordinary grammatical sense, 'to be a witness' means giving oral testimony in Court. However, case-law has gone beyond this strict interpretation and has given a wider meaning to this expression. 'To be a witness' has now come to mean imparting knowledge in respect of relevant facts by an oral statement or a statement in writing, made or given in a Court or otherwise.

(v) Giving thumb-impressions or finger-prints or impressions of the foot or palm, or showing parts of the body by way of identification, are *not included* in the expression 'to be a witness'.

(vi) In order to obtain the protection of Art. 20(3), the person must have been 'an accused person' at the time when he made the statement in question. It is *not enough* that he became an accused at any time *after* the statement was made.

In one case the Supreme Court was called upon to decide the question as to whether compulsory production of documents by a Company to an Investigating Inspector (under S 240 of the Companies Act) is hit by Art. 20(3). The Court *held* that Art. 20(3) is *not applicable* in such cases, as the Investigating Officer is *not* a Court and that at the time when the company is called upon to produce the books, there is *no accused person*, and *no accusation* against anyone that he has committed an offence (*Narayanlal Bansilal v. M.P. Mistry*,—A.I.R. 1961 S.C. 29)

In another case, the Supreme Court *held* that a person against whom no formal accusation is made at the time of recording a confessional or incriminating statement by an A.P.E. officer in the course of *an inquiry under the Railway Property (Unlawful Possession) Act, 1966*, is *not* covered by Art. 20(3), and hence his statement *can* be used as *evidence against him*. (*Balkrishna Devidayal v. State of Maharashtra*. (1980) 4 S.C.C. 600)

In one interesting case, Mr. X had gone to the bungalow of the Superintendent of Police to offer him a bribe which was enclosed in an envelope. The Superintendent of Police threw the envelope at Mr. X, who picked it up and went away. Immediately thereafter, some policemen came to Mr. X and asked him to produce the envelope, which he took out from his pocket, and the same was seized by the police. Mr. X argued that this envelope should *not* be allowed to be produced at the trial, because that would amount to admitting compelled evidence against himself. The Supreme Court *held* that Article 20(3) did *not* apply to this case, *firstly*, because there was no compulsion or duress exercised on Mr. X, and *secondly*, because at the time the envelope was seized, Mr. X was *not* an accused. (*Mohd. Dasdadagir v. The State of Madras*,—AIR 1960 S.C. 756)

The Supreme Court had *held* that if the accused's premises are searched under a general search warrant and incriminating evidence is recovered, such recovery arising out of passive submission of the accused to the search, it *cannot* be said that Art. 20(3) is violated, even if such documents contain incriminating statements attributable to the *personal knowledge of the accused*. (*VS. Kuttan Pillai v. Ramkrishnan*, 1 S.C.C. 264)

IV. Protection Of Life And Personal Liberty

(Art. 21)

Art. 21 of the Constitution provides that no person shall be deprived of his *life or personal liberty* except according to *procedure established by law*.

The *object* of Art. 21 is to put a *restraint upon the Executive*, so that it may *not* proceed against the life or personal liberty of the individual, except under the authority of law.

This is the most cherished guarantee in the world. Article 21, read with Article 22, contains the entire provision relating to deprivation of life or personal liberty, as distinguished from restriction of the right to move freely throughout the territory of India, guaranteed under Art. 19(1)(b) and (5).

The Fifth Amendment to the Constitution of the *United States* declares: No person shall be...deprived of his life, personal liberty or *property without due process of law*. " The 14th Amendment imposes a similar restriction on the State authorities. These two provisions are conveniently referred to as the *due process clauses*. The American Judiciary has a right to declare a law as bad even though the competence of the legislature to enact such a law is perfectly within the bounds of the Constitution.

In the *Dartmouth College case*, the due process clause has been defined as the "process of law which *hears* before it condemns, which proceeds upon enquiry, and renders judgment only after trial*. Its meaning is that every citizen shall hold his life, liberty and property and immunities under protection of the *general rules* which govern society. In short, 'due process', as regards a criminal trial, means that no person is to be punished except for a violation of definite and validly enacted laws of the land, and after a trial conducted in accordance with the specific procedural safeguards contained in the Bill of Rights to secure a fair trial.

It is interesting to note that the Draft Constitution of India contained the expression "without due process of law" in place of the words "except according to procedure established by law". However, the Constituent Assembly preferred the latter expression, as it was considered to be more certain and definite.

In England, The Magna Carta provides that "no man shall be taken or imprisoned or outlawed, or exiled, or in any way destroyed, save by the lawful judgment of his peers or by *the law of the land*. ' Explaining this, the Privy Council has maintained that "in accordance with British Jurisprudence, no member of the Executive can interfere with the liberty or property of a British subject, except on the condition that he can support the legality of his action before a Court of Justice. And it is the tradition **of** British Justice that the Judge should *not* shrink from deciding such issues in the face of the Executive".

In India, the duty of seeing that no member of the Executive inteferes with the liberty or property of the citizens, except on the condition that he can support the *legality of his action*, devolves on the Court. At the same time, the Indian Constitution does *not* guarantee the right to any particular procedure. Though the Supreme Court has denied to itself the right to examine the reasonableness of any law depriving a person of his liberty, it has, in fact, interfered in many cases with such orders depriving the liberty of the citizens, on the ground that the procedure laid down by the law which authorises such deprivation has *not* strictly been followed. On such grounds, the Court, in a proceeding for *habeas corpus*, will at once set the person at liberty. This principie has been applied both in the case of *punitive* as well *preventive* detention.

In *Gopalan v. State of Madras* (AIR. 1950 S.C. 115), the Supreme Court considered the scope of Art. 21 in detail. It rejected the argument that Art. 21 contained the American doctrine of due process Moreover, the case laid down that the term *liberty* (in Art 21) is qualified by the adjective *personal*. Hence, the fundamental right guaranteed by Art 21 is a right to *personal liberty*, which is completely different from the rights guaranteed by Art. 19. The Court,

therefore, *held* that a law with reference to Art. 21 *cannot* be challenged on the ground that it violates Art 19.

In *Gopalan's case* (above), a majority of the Bench of the Supreme Court also laid down that the word 'law' (occurring in Art. 21) is to be understood as *State-made law*, and not as *natural law*, i.e., the word is *not* used in the sense of *fus*. However, in the dissenting judgment of Fazal Ali, J. in *Gopalan's case*, a strong and convincing case is made out to interpret *law* as meaning *natural law*.

The decision in *Gopalan's case* has been profusely criticised, both at home and abroad. It is urged that the term law ought to have been interpreted as meaning *natural law*, as pointed out by Fazal Ali, J in his dissenting judgment. Secondly, it is argued that the view of the Supreme Court on the question whether Art 21 is controlled by Art. 19 is extremely technical. A better interpretation would have been to hold that a law under Art. 21 must also satisfy the test of Art 19. In fact, in a later case (*Kachunni v. State of Madras*, -AIR 1960 S C. 1050), the Supreme Court analysed the judgment in *Gopalan's case* and Subba Rao J (who delivered the Court's judgment) observed : "Had the question been *res integra*, some of us would have been inclined to agree with the dissenting view **expressed** by Fazal Ali, J.: but we are bound by this judgment This observation leaves one with the uncomfortable feeling that if *Gopalan's case* had been heard by some other Judges of the Supreme Court, their decision **would probably have been different**.

The formal reversal of this view ultimately came about when the Supreme Court delivered its judgment in *Maneka Gandhi v. Union of India* (AIR. 1978 S.C. 597), where the Court specifically overruled the majority view in *Gopalan's case*, and laid down that Art. 21 is controlled by Art. 19. The Court observed that if there is a law which prescribes a procedure for depriving a person of personal liberty, there may be no infringement of Art. 21; but such a law can still be challenged on the ground that it takes away any fundamental right under Art. 19 of the Constitution. (*Maneka Gandhi's case* is discussed in Appendix IV.)

The view taken in *Gopalan's case* has also been modified in other respects by later decisions of the Supreme Court, and it has been *held* that Art. 21 requires the authority of law even for *restrictions* on personal liberty, as for example,—

- (a) interference of a person's freedom at home, by, for instance, domiciliary visits by the police at night (*Kharak Singh v. State of UP*—AIR. 1963 S.C. 1295); or
- (b) interference with the right of a prisoner in jail to publish a book outside the jail (*State of Maharashtra v. Prabhakar*,—A.I.R. 1966 S.C. 424).

The expression *personal liberty*" (appearing in Art. 21) has been interpreted in a broad sense. According to **Dicey**, it connotes the personal right *not* to be subjected to imprisonment, arrest or other physical coercion, in any manner that does *not* admit of legal jurisdiction. In *Gopalan's case*, it was observed that '*personal liberty*' has been used in Art. 21 as a compedious term including within its meaning all the varieties of rights which go to make up the personal liberties of men.

In *Hussainara Khatoon & Others v. The State of Bihar*, [(1979) 3 S.C.R. 393], the Supreme Court *held* that there is no provision of law under which a woman can be kept in jail by way of *protective custody*', or merely because she is required for giving evidence. As observed by the Court, the expression "*protective custody*" is only an euphemism calculated to disguise what is really nothing but imprisonment. Thus, this type of custody is nothing short of a blatant violation of personal liberty guaranteed by Art. 21 of the Constitution. In the circumstances, the Supreme Court ordered that all women and children in the jails of Bihar under so-called "protective custody" should be released and taken immediately to welfare homes or rescue homes, to be kept there and properly looked after.

It may be noted that when a person is deprived of his life or personal liberty by a law prescribing a procedure for the same, Art. 21 is *not violated*. It is for this reason that the confinement of an under-trial prisoner or the arrest and detention of a person by the police under the Criminal Procedure Code is *not violative of Art. 21*.

In an interesting case decided by the Madhya Pradesh High Court, it was **held** that the right to life guaranteed by Art. 21 also includes the right to live with human dignity. Since an open drainage would endanger public health, the Municipal Corporation was directed to take the necessary measures to eradicate the menace. (*Or. Malhotra v. State of M.P.*, A.I.R. 1994 M.P. 48)

It may further be noted that the protection of Art. 21 is available to *both citizens* as well as *non-citizens*. The protection is equally available to a *convict* behind the bar, subject, of course, to the limitations imposed by his conviction. (*Bhudan v. State of A.P.*,—A.I.R. 1974 S.C. 2092)

In *Nimeon Sangma & Others v. Home Secretary, Govt. of Meghalaya*, [(1980) 1 S.C.C. 700], Supreme Court observed that detention of a large number of under-trial prisoners for a considerable period without a trial violates Art. 21 of the Constitution. As observed by Justice Krishna Iyer in that case, "Criminal justice breaks down at a point when expeditious trial is *not* attempted, while the affected parties are languishing in jail."

Other rights falling under Art. 21

In *Unnikrishnan v. State of A. P.* (1993 1 S. C. C. 645), and in other cases, the Supreme Court has observed that the expression "personal liberty" is of the widest amplitude, and covers several unenumerated rights, such as-

- (a) the right to go abroad;
- (b) the right to privacy;
- (c) the right to legal aid,
- (d) the right against custodial violence,
- (e) the right to live with human dignity,
- (f) the right to a healthy environment,
- (g) the right to health,
- (h) the right to a fair trial,
- (i) the right to shelter.
- (j) the right to protection against hazardous industries. etc

In *Hussainara Khatoon v. Home Secretary, State of Bihar* (AIR 1979 SC 1369), the court passed certain directions in regard to the conditions of under-trial prisoners languishing in the jails of Bihar. The court *held* that under Article 21, the term "procedure" refers to procedure which is just, fair and reasonable and free legal services to the poor is an essential element of the same. Observing that certain under-trials had *been* in jail for periods longer than what they would have been sentenced to if convicted, **the** court *held* that such circumstances were a clear violation of Article 21.

In *Olga Tellis v. Bombay Municipal Corporation* (AIR 1986 SC 180), the Chief Minister of Maharashtra, announced that all pavement dwellers in **the** city of Bombay would be evicted forcibly and deported to their respective places of origin or removed to places outside the city of Bombay. The **court** *held* that the right to life includes the right to livelihood because no person can live without the means of living. Such deprivation would *not only* **denude the** life of its effective content and meaningfulness *but* it would **make life** impossible to live."

Right to education

The Kerala High Court has *held* that the right to education is implicit in the right to life and personal liberty, and that this right is to be understood in the background of Arts. 41 and 45. (*P. Cherriyakaya v. Union of India*, **A.I.R.** 1994 Ker. 27) **Custodial death**

The right against custodial violence and custodial death has its source in Art. 21 of the Indian Constitution. In the words of the Supreme Court, custodial death is one of the worst crimes in a civilized society governed by the rule of law". (*D. K. Basu v. State of West Bengal*, AIR 1997 SC 610) **Delay in trials**

The Supreme Court has *held* that inordinate delay in bringing an accused to trial, or in preferring an appeal against his acquittal, violates Art. 21 of the Constitution if there is no fault on the part of the accused. (*State of Maharashtra v. Champalal*, AIR 1981 SC 1675)

V. Right To Education (S. 21A)

The right to education has *now* been made a fundamental right. Until 2002, provision for free and compulsory

education for children was only a directive principle of state policy (under Art. 45). However, the *Eighty-sixth Amendment, 2002*, has made it a fundamental right, by introducing **An. 21A**, which runs as under :

”The State *shall* provide free and compulsory education to all children of the age of 6 to 14 years in such manner as the State may, by law, determine.” Thus, now, a child who is between the ages of six and fourteen has a fundamental right to free education.

VI. Protection Against Arrest And Detention In Certain Cases (Art. 22)

Article 22 can be divided into two parts : One part deals with persons arrested under the *ordinary law of crimes*, and the other part deals with persons detained under the *law of preventive detention*.

A.-Under the ordinary law [Art. 22(1) to (3)]

(1) No person who is arrested can be detained in custody without being informed, as soon as may be, of the grounds for such arrest; nor shall he be denied the right to consult and to be defended by a legal practitioner of his choice.

(2) Every person who is arrested and detained in custody must be produced before the nearest magistrate within a period of *twentyfour hours* (excluding the time for bringing him to the magistrate), and no person can be detained in custody beyond the said period without the authority of a magistrate.

(3) Clauses (1) and (2) do *not* apply-

(a) to any person who is an *enemy alien*; or

(b) to any person who is arrested or detained under any law providing for *preventive detention*.

In other words, when a person is to be deprived of his personal liberty under the ordinary law of the land, the arrested person must, as soon as may be after arrest, be informed of the grounds of his arrest, produced before a magistrate within 24 hours of his arrest, and be given the opportunity to consult a legal practitioner and to defend himself.

The *object* of conferring a right on an arrested person to be informed of the grounds of his arrest, is to enable such a person to apply for bail or to move a Court for *habeas corpus*. This safeguard also enables the arrested person to prepare his defence in time for the purpose of his trial.

The Supreme Court has clarified that the right to be defended by a legal practitioner does *not* guarantee any absolute right to be *supplied* with a lawyer: it only guarantees a right to have the *opportunity to engage* a lawyer. (*Janardhan v. State of Hyderabad*,— 1951 S.C.R. 344)

Applying Art. 22(2), the Supreme Court has *held* that if a person is arrested under a warrant issued by the Speaker of the State Legislative Assembly, and is *not* produced before a Magistrate within twenty-four hours of his arrest, it would be a violation of Art 22(2), and the person should be ordered to be released (*Ganpati v. Nafisul Hussain*.—A I.R 1954 S C. 36) However, the correctness of this view is open to question in view of the subsequent decision of the Supreme Court in what is known as the *Search Light case*. (*Sharma v. Sinha*,—A.I. R 1960 S.O 1186) (See case No. 10 in Appendix IV at the end of the book.)

The scope of clauses (1) and (2) of Art 22 was examined by the Supreme Court in *State of Punjab v Alal Singh*. (A I R 1953 S.C. 10), in which case the Court observed that the language of Article 22(1) and (2) indicates that it affords protection against such arrests as are effected *otherwise than under a warrant*.

This view was reiterated by the Supreme Court in *Madhu Limaye's case* (AIR. 1969 S.C. 1014), where it observed that the language of this Article suggests that the protection is available against those arrests which are *not* under a warrant issued by a Court. on the allegation or accusation that the arrested person is suspected to have committed an act of a criminal or quasi-criminal nature or some activity which is prejudicial to the public or the interests of the State

B.-Preventive detention [Art. 22(4) to (7)]

Preventive detention means detention of a person without trial, in such circumstances that the evidence in possession of the authority is *not sufficient* to make a legal charge or to secure the conviction of the detainee by legal proof, but may still be sufficient to justify his detention. While the *object* of *punitive* detention is to punish a person for what he has done, the object of *preventive* detention is to prevent him from doing something which is likely to be injurious to the security and safety of the State or the public. The *object* of preventive detention is to prevent an individual, *not merely from* acting in a particular way, *but from* achieving a particular object. [*Gopalan v. State of Madras*, (AIR. 1950 S.C. 27)]

Clauses (4) to (7) of Article 22 provide certain limitations upon the power of the Union and State Legislatures to make any law providing for detention without trial.

It is firstly provided that no law providing for preventive detention can authorise the detention of a person for a longer period than three months unless an Advisory Board, constituted in accordance with the recommendation of the Chief Justice of the appropriate High Court has reported, before the expiration of the said period of *three months*, that there is, in its opinion sufficient cause for such detention.

Moreover, even in cases of preventive detention, a person *cannot* be detained beyond the maximum period prescribed by Parliament (i.e., *three months*). For detaining a person beyond this period without trial, the Advisory Board must make a report that there is sufficient cause for such detention.

The Advisory Board (referred to above) is to consist of a Chairman and *not less than* two other members. Moreover, the Chairman must be a serving Judge of the High Court and other members may be either serving Judges or retired Judges of such a Court.

When any person is detained in pursuance of an order made under any law providing for preventive detention, the *authority* making the order *must communicate* to such person, the *grounds* on which the order has been made, and *must* afford him the earliest opportunity of making a representation against the order. However, the authority concerned is *not* required to disclose any *facts* which it considers against the public interest to disclose : [Art. 22(5) and (6)] In *Saleh Mohammed v. Union of India* (AIR. 1981 S.C. 111). the Supreme Court has *held* that a detainee is entitled to have his representation considered within a reasonable time. In this case, his representation was lying unattended in the office of the Superintendent of the Jail for over three weeks, and it was *held* that such a delay amounted to a violation of Article 22(5), and the detainee was, therefore, entitled to be released forthwith.

It is also provided that Parliament may, by law, prescribe—

- (a) the maximum period for which any person may, in any class or classes of cases, be detained under any law providing for preventive detention; and
- (b) the procedure to be followed by an Advisory Board in an inquiry :

[Art. 22(7)] A very astounding fact about preventive detention in India is that, under the Indian Constitution, persons can be kept in preventive detention *both in normal times as well as in times of emergency*. No other 'democratic' country contains such provisions *in times of peace*. In *Gopalan's case* (referred to earlier), the Supreme Court has called preventive **detention** a "sinister-looking feature" of the Indian Constitution. Of course, in *emergencies* (e.g., during times of war), any enactment or law, howsoever tyrannical or harsh, may be tolerated. But significantly, the Indian Constitution has *not* restricted the operation of preventive detention to such emergencies.

In *State of Punjab v. Jagdev Singh Talwandi*, (AIR. 1984 S.C. 444), the Supreme Court has once again cautioned against the indiscriminate use of preventive detention, and observed as follows :

"Preventive detention is a necessary evil, but essentially an evil. Therefore, deprivation of personal liberty, if at all, has to be on the strict terms of the Constitution. Nothing less. We will utter the oft-given warning once more in the hope that the voice of reason will be heard."

Although other Constitutions, like those of U.S., U.K., and Japan do recognise preventive detention, the same is restricted to *times of emergency*, and there is no like provision in these Constitutions for times of peace. As rightly remarked in Vol. 59 of the Columbia Law Review, it is a delusion to think that the nation's security is advanced by

the sacrifice of **the** individual's basic liberties."

This Article provides a limitation on the power of the Legislature conferred by Art. 21. to make any law for the deprivation of the personal liberty of the citizen. It follows, therefore, that the Indian Constitution has given legislative powers to the States and the Central Government to pass laws permitting preventive detention. For this purpose, Art 22 lays down the permissible limits within which preventive detention powers can be exercised by the legislature, prescribing the minimum procedure that must be included in any law permitting preventive detention. As and when such requirements are *not* observed, the detention, even if valid *ab initio*, *ceases* to be in accordance with the procedure established by law, **and infringes the fundamental right of** the detainee guaranteed under Arts 21 and 22(5) of the Constitution.

As stated above, although the detainee is to be given the grounds of his detention and is to be offered the earliest opportunity to make a representation against such detention, the authority is *not* bound to disclose facts which may be considered by the authority to be against the public interest to disclose. It is for the Courts to jealously ensure that the above limitations **are not** violated by the Executive and the Legislature. because "preventive detention is a serious invasion of personal liberty, and such meagre safeguards as the Constitution has provided against the improper exercise of the power must be jealously watched and enforced by the Court." (*Ramkrishna v. State of Delhi*, -A. I. R. 1953 S C. 318)

It will be seen that the Constitution draws a distinction *between the grounds* which must be communicated to the detainee, and *facts which may not be disclosed if it is* against the public interest to disclose. The *grounds are* the conclusions drawn by the authority and indicate the kind of prejudicial acts which the detainee is suspected of being engaged in. *Facts*, on the other **hand**, constitute the *reasons* or the *evidence* for arriving at the conclusion.

Moreover, the question whether the grounds furnished are *vague or not* is to be determined on a consideration of the circumstances in *each* case. Thus, a communication which is *not* readily intelligible to a layman without legal aid, would be vague. So also a communication in English to a person who is *not* conversant with that language would be invalid. However, vagueness *cannot* be urged when there is an obvious mistake or verbal inaccuracy in stating the ground.

Explaining the implication of the right in the detail, the Supreme Court, in *State of Bombay v. Atmaram Vaidya* (AIR. 1951 S.C. 159), has observed that a detainee also has the right to *be* furnished with particulars to enable him to make a representation against his order of detention. The sufficiency of such particulars is a justiciable issue, the *test* being whether such particulars are sufficient to enable the detained person to make an effective representation against his detention.

In *Prem Nath v. Union of India* (AIR. 1957 Pun. 235), the Punjab High Court considered the various decisions of the Supreme Court and derived the following *five propositions* established by the Supreme Court, *viz* :

- (a) Whether the grounds given are *sufficient or not* is within the jurisdiction of the Court.
- (b) There must be a rational connection between the grounds stated by the Government and the objects which are to be prevented under the statute.
- (c) The grounds must *not* be vague.
- (d) Even if one of the grounds is vague, and others are **not**, the detention would be *illegal*.
- (e) A detainee can challenge his detention in the Court of Law on the grounds of *mala fides*.

The scope of preventive detention was discussed by the Supreme Court in *Frances Mullin v. W.C. Khambra*, [(1980) 2 S.C.C. 275], where the Court observed as follows :

"We have no doubt in our minds about the role of the court in case of preventive detention : It has to be one of eternal vigilance. No freedom is higher than personal freedom and no duty higher than to maintain it unimpaired. *The Court's writ is the ultimate insurance against illegal detention.*"

Conclusion

The *object* of the framers of the Constitution in giving constitutional status to preventive detention was to prevent

anti-social and subversive elements from undermining the welfare of the infant Republic. Though the necessity for making provisions regarding preventive detention was recognised, yet certain safeguards to mitigate the harshness of such detention have been provided in the Constitution. The *restrictions* imposed on preventive detention can be *summed up* as follows :

(a) Under Art. 21

(1) Preventive detention *cannot* be ordered by the executive without the authority of a law and unless it is in conformity with the procedure laid down therein.

(2) The law must be a valid law, i.e., within the competence of the legislature.

(b) Under Art. 22

(1) No law can provide for detention for a period of more than *three months*, unless the cause for detention is investigated by an Advisory Board within the said period.

(2) A state law *cannot* authorise detention beyond the *maximum period* prescribed by the Parliament under the powers given to it under Art. 22.

(3) The Parliament also *cannot* make a law authorising detention beyond three months without the intervention of an Advisory Board, - *unless* the law conforms to the conditions laid down in the above clause.

(4) The Parliament may prescribe the procedure to be followed by Advisory Boards as a safeguard against any arbitrary procedure.

(5) A person detained under a law of preventive detention has a right to obtain information as to the grounds of the detention, and has also the right to make a representation protesting against an order of preventive detention.

Powers of the Court in cases of Preventive Detention

The Courts can pronounce upon the validity of an order of preventive detention on any of the following grounds

(a) The Court may examine the validity of the law itself, *either* on the ground of the competence of the legislature or on the ground of such law being *ultra vires* Art. 22 of the Constitution

(b) When a preventive detention law is challenged, the Court may consider the true nature and character of the legislation, and decide whether it is really on the subject of preventive detention or *not* [*Laxminarayan v. Province of Bihar*. (1950) S.O R 88]

(c) The Court may examine the grounds to see whether the grounds supplied are *relevant* in connection with the order. It can also examine the *bona fides* of the order, and interfere if it is *mala fide*. (*Gopalan v State of Madras*-AIR. 1950 S.C. 27)

(d) The Court may examine the grounds communicated to the detenu to see if they are *sufficient* to enable him to make an effective representation. (*State of Bombay v. Atmaram*,-A.1 R. 1951 S.C. 157)

However, it should be noted that the Courts are *not* competent to enquire into the truth or otherwise of the facts which are mentioned as grounds. Similarly, the Court *cannot* go into the question whether, **on** merits, the detaining authority was justified in making the order of detention or in continuing it. (*Bhim Sen v. State of Punjab*, (1952 S.C.R. 18))

VII. Right Against Exploitation (Arts. 23-24)

The right against exploitation manifests itself under *two* heads as follows:

(a) Traffic in human beings, *begar* and other similar forms of forced labour are prohibited and made an offence. But the State can impose compulsory service for *public purposes*. However, in imposing such service, the State *cannot* make any discrimination on grounds *only* of religion, race, caste or any of them. (Art. 23) The word *begar* (which has not been defined in the Constitution) may be defined as "labour or service exacted by a Government or a person in power without giving remuneration for it". The word thus refers to *forced labour* for which *no pay* is given.

The *sagri* or *hall* system which prevailed in some parts of Rajasthan is an example of forced labour. Under this system, a creditor gives a loan to a debtor on the condition that until the loan is repaid with interest, the debtor (or any member of his family) is to render labour or personal service to the creditor or any other person nominated by him.

An interesting custom prevailing in the State of Manipur came to the notice of the Court in *Kahaosan Thangkhul v. Simirei Shailei* (AIR. 1961 Manipur 1). The custom which seemed to prevail in the State was that each householder in a village would have to offer one day's free labour to the headman of the village. The appellant in the above case challenged this custom as being violative of Article 23 of the Constitution. and the Court *upheld* his contention.

It is interesting to note that, as a result of Art 23, as many as twelve Acts sanctioning forced labour under certain circumstances, became *void* on the enactment of the Constitution, thus providing relief from forced labour to lakhs of persons.

The expression "traffic in human beings" refers to traffic in women for immoral purposes. The Suppression of Immoral Traffic in Women and Girls Act. was passed by Parliament in 1956. The Allahabad High Court has *held* that such a law is *valid*, and is *not inconsistent* with the fundamental right to carry on a business, trade or profession. (*Shama v. State of R.* 1959 All. 57)

However, compulsory service for public purpose is *not* prohibited. This provision would enable the government to conscript people in times of major national calamities like war, floods, *etc.* Thus, it has been *held* that conscription for social service, as for instance spread of literacy, is a public purpose. (*State of Jorawar,—A.I.R.* 1953 A.R. 18)

It may be noted that the Convention of the 11.0 (International Labour Organisation) also contains similar provisions.

(b) No child below the age of *fourteen years* can be employed to work in any factory or mine or engaged in any other hazardous employment. (Art. 24) Several Acts also give effect to this provision of the Constitution, *e.g.*, the Employment of Children Act, the Factories Act, *etc.*

Viii. Right To Freedom Of Religion (Art. 25-28)

This right can be discussed under the following *four* heads :

1. Freedom of conscience and free profession of religion (Art. 25)
2. Freedom to manage religious affairs (Art. 26)
3. Freedom from payment of taxes for promotion of any particular religion (Art. 27)
4. Freedom to attend religious instructions (Art. 28)

1. Freedom of conscience and free profession of religion (Art 25)

Article 25(1) provides that all persons are equally entitled to freedom of conscience, *and* the right to freely profess, practise and propagate religion. This is, however, *subject to public order, morality and health*.

It is to be remembered that India is a *secular* State, but *not* an antireligious State. Equal rights are, therefore, given to all in respect of freedom of conscience and religion.

The word "religion", as used in Art. 25, is to be construed in its strict, etymological sense. In short, it is that which binds a man with his Creator. The Supreme Court has laid down that a religion is *not merely* an opinion, doctrine or belief, but has its outward expression of acts as well Hence, religious practices or performance of acts in pursuance of religious beliefs are as much a part of religion as faith or belief in particular doctrines. (*Rat/la! v. State of Bombay,-56 B.L R.* 1184)

However, it is expressly provided that Art. 25 shall *not* prevent the State from making any law—

(a) regulating or restricting any economic, financial, political or **other secular** activity which may be associated with religious practice,

(b) providing for social welfare and reform, or the throwing open of **Hindu** religious institutions of a public character to all classes and sections of Hindus.

Thus, under the above provision, the State can override religious injunctions prohibiting certain classes from entering the temples or other religious institutions of Hindus.

The wearing and carrying of *Kirpans* is also deemed to be included in the profession of the Sikh religion. Further, the reference to Hindus includes a reference to persons professing the Sikh, Jain or Buddhist religion also.

In *Ouareshi v. The State* (A.I R 1958 S C. 731), an interesting question arose, viz, whether prohibiting cow-slaughter affected the religious right of the Mahomedans. It was argued on behalf of the petitioner that the sacrifice of a cow on the *Bakri-Id* day was a part of the Muslim religion and also **approved** by the *Kuran*. However, the Supreme Court rejected this contention on the **ground** that satisfactory evidence to support it had *not* been produced.

The Supreme Court has *held* that Art. 25 of the Constitution merely protects the freedom to practice rituals, ceremonies, etc., which are an integral part of a religion. The making of gifts for charitable or religious purposes may be a pious act of a person, but the same *cannot* be said to **be an** integral part of any religion. (*John Vallamantlam v. Union of India*, AIR 2003 SC 2902)

As observed by the Supreme Court, no religion prescribes that prayers should be performed by disturbing the peace of others. Nor does any religion preach the use of voice amplifiers or the beating of drums. Even if there is such a practice, it should *not* adversely affect the rights of others *not* to be disturbed in their activities. (*Church of God v. K. K. R. Majestic Colony Welfare Association*, AIR 2000 SC 2773)

2. Freedom to manage religious affairs (Art. 26)

Subject to *public order, morality and health*, every religious denomination or any section thereof has the right—

(a) to establish and maintain institutions for religious and charitable purposes;

(b) to manage its own affairs in matters of religion;

(c) to own and acquire movable and immovable property; and

(d) to administer such property in accordance with law. (Art. 26)

It will be seen that Art. 26 is a corollary to Art. 25. Freedom of religion is meaningless if there is no liberty to maintain and manage the religious institutions.

The word '*denomination*' means "a collection of individuals classed together under the same name". The term thus refers to a religious sect or body having a common faith and organisation and designated by a distinctive name. Thus, a *math* is a religious denomination within the meaning of Art. 26.

It will be seen that clause (b) (above) gives a right to every religious denomination to manage its own affairs in *matters of religion*. Thus, it has been *held* that, according to the ceremonial law relating to temples, the persons who are entitled to enter the temples for worship, the places where they are entitled to stand, the hours when the members of the public are to be admitted, and how the worship is to be conducted, are *all matters of religion*. However, the sacrifice of a cow has been *held not* to be a matter essential to the Muslim religion.

The leading case on Articles 25 and 26 is the Supreme Court decision in the *Shirur Mutt Case* (*Commissioner v. Shirur Mutt*-AIR. 1954 S C. 282), which has been repeatedly followed in later cases. In this case, the Supreme Court observed that, whereas in the U.S. and Australia, the freedom of religion was declared in absolute terms, and the

Courts had to evolve exceptions to that freedom, Articles 25 and 26 embodied the limits of that freedom in the Constitution itself. After a detailed discussion of the scope of these two Articles, the Court struck down certain provisions of a local Act passed by the Legislature of Tamil Nadu.

In another case, the Supreme Court has observed that clauses (c) **and** (d) of the Art. 26 (above) have not *created* any rights in favour of any religious denomination; rather, they have merely safeguarded and guaranteed the *continuance of rights that such denomination had* (*Durgah Committee, Ajmer v. Syed Hussain Ali*,—AIR. 1961 S.C. 1402)

The American Constitution also guarantees freedom of religion, and it is interesting to note that the U.S. Supreme Court has even *held* that the reading of an Official Prayer in a New York Public School is *unconstitutional*.

3. Freedom from payment of taxes for promotion of any particular religion (Art. 27)

Art. 27 provides that no person can be compelled to pay any taxes, the proceeds of which are specifically appropriated in payment of expenses for the promotion or maintenance of any particular religion or religious denomination. This Article secures that the public funds raised by the taxes are *not* to be utilised for the benefit of any *particular* religion or religious denomination. If, therefore, a State imposes tax for the promotion of, say, the Hindu religion, it would be quite *lawful* for a person *to refuse* to pay such tax.

It has been *held* that even if a tax is imposed on persons belonging to a particular religion in order to meet the expenses of *that* particular religion, such tax is *void*. (*L. T. Swamir v. Commr. H.R.F. Madras*—AIR. 1952 Mad. 613)

However, the Supreme Court has also *held* that Art. 27 does *not* prohibit the levy of a 'fee' for the defraying of the expenses of the State for regulating the secular administration of religious institutions. The prohibition in this Article is *not* attracted in such a case, as there is no question of favouring *any particular* religion or religious denomination by such an imposition. (*Commr. H.R.F. v. Lakshminidra*—1954 S.C.R. 1005)

4. Freedom to attend religious instructions (Art. 28)

Under Art. 28, educational institutions wholly maintained *out of State funds* cannot provide *religious* instruction. Even those institutions which are recognised by the State or receive aid from the State *cannot* compel any person to attend religious worship that may be conducted in such institutions, without the consent of such a person, and in case of a minor, without the consent of his guardian. This Article is confined to educational institutions maintained, aided, or recognised *by the State*. It does *not* relate to institutions *other than* these, which have *no connection with the State*.

It is also to be noted that Art. 28 applies only to *religious* instructions. It does *not* prohibit *moral* instructions.

IX. Cultural And Educational Rights (Arts. 29-30)

Cultural and educational rights fall under the following two heads . 1. Protection of interests of minorities (Art 29) 2. Rights of minorities to establish and administer educational institutions (Art. 30)

1. Protection of interests of minorities (Art. 29)

Any section of citizens residing in India and having their distinct *language, script* or culture are guaranteed the *right* to *conserve* the same. A citizen is *not* to be denied admission in any educational institution maintained by the State, or receiving aid out of State funds, on grounds *only* of *religion, race, caste* and *language*. (Art. 29)

The concluding words of this Article show that educational institutions falling under this clause are *not* debarred from imposing conditions or limitations other than those specified, such as previous training, physical fitness, vaccination, discipline and the like.

This Article also does *not* take away the right of an institution to refuse admission or to expel a student on a valid ground, like indiscipline, *provided* the discretion is *not* abused. (*State of Bombay v. Bombay Education Society*,—

In the "*Guru Nanak University case*", the Petitioner, an educational institution registered under the Societies Registration Act as an association comprised of Arya Samajis, challenged a circular issued by the Punjabi University, whereby Punjabi was to be the sole medium of instruction and examination for all pre-University studies, even for Science on the ground that it violated Arts. 26(1), 29(1) and 30(1). A preliminary objection was raised by the Respondents to the effect that the Arya Samaj was *not* a linguistic or religious minority; nor was it a religious denomination. The court negatived this contention and *held* that it would be sufficient for the petitioners if they could establish that they had a distinct script of their own and they were a religious minority, to invoke the protection of Arts. 29(1) and 30(1). The court *also held* that Hindus being a majority in India are *not* a religious minority in Punjab and that the Arya Samajis who are part of the Hindu community in Punjab are a religious minority, who also had a distinct script of their own, i.e., the Devanagari script, which entitled them to invoke the guarantees under the aforesaid provisions of the Constitution (*D.A.V. College, Bhatinda v. The State of Punjab*, AIR 1971 SC 1731).

2. Right of minorities to establish and administer educational institutions (Art. 30)

(1) All minorities, whether based on religion or language, have the right to establish and administer educational institutions of their choice.

- (2) The State shall *not*, in granting aid to educational institutions, discriminate against any educational institution on the ground that it is under the management of a minority, whether based on religion or language.

Interestingly, the Constitution of India has used the term "minority" without defining it. In *Re. The Kerala Education Bill* (AIR 1958 SC 956), the Supreme Court took the view that a minority community is one which is numerically less than 50%. It, however, left open the question as to 50% of what? Of the whole country? Of the State in question? Of a particular city or town?

In subsequent cases, however, the Supreme Court has taken a stand that "minority" is to be determined in relation to the particular legislation which is challenged before the court. For instance, in the *Guru Nanak University case* (referred to above), the Supreme Court rejected the contention of the State of Punjab that a religious or linguistic minority is to be determined in relation to the entire population of India. If a State law is in question, such minority is to be determined with reference to the State population. It was, therefore, *held* that Hindus in Punjab constitute a religious minority. The court *also held* that likewise, the Arya Samajists in Punjab also constitute a religious minority, having their own distinct language and script.

Following well-established provisions of law, it has been *held* that the Anglo Indians constitute a religious as well as a linguistic minority. However, the Theosophical Society *cannot* be regarded as a religious minority.

The scope of Articles 29 and 30 was fully considered by the Supreme Court in *State of Bombay v. Bombay Education Society* (referred to above.) In that case, the Government of the former State of Bombay issued an Order denying admission to English-medium schools to those whose mother tongue was *not* English. Although the Order was issued with a view to promote the Hindi language, the Supreme Court *held* it to be violative of Art. 29, and hence, bad. The Court observed that the *object* of the Order may be laudable, but the *method* of achievement of the objects was inconsistent with the right guaranteed by Art. 29. (This case has been discussed at greater length in Appendix IV of this book.)

In *Shri Krishna v. Gujarat University* (A.I.R. 1962 Guj. 86), the Gujarat High Court had to consider the validity of an Act which prohibited the use of English as a medium of instruction. The Court *held* that the Act violated Arts. 29 and 30 of the Constitution. The University of Gujarat went in appeal to the Supreme Court, but lost the appeal.

The *Forty-fourth Amendment* has also provided that if a law is made for the compulsory acquisition of any property of an educational institution established and administered by a minority (referred to in clause (1) above), the State must ensure that the amount fixed or determined under such law for the acquisition of such property is such as would *not* restrict or abrogate the right guaranteed under that clause.

In *The All Saints High School v. The Government of Andhra Pradesh & Others* (AIR. 1980 S.C. 1044) the Supreme Court, after an exhaustive analysis of its earlier decisions, laid down the *exact scope and ambit of Article 30*, observing that this Article is completely in consonance with the *secular nature of democracy* and the Directives of the Constitution. The Court observed that although, unlike Art 19, the right under Art. 30 is absolute and unconditional, this does *not* mean that it contains a free licence for maladministration, so as to defeat the very object behind Art. 30, namely the advancement of excellence and perfection in the field of education.

In one case, the Delhi University issued two circulars whereby the college was directed to extend the last date for admitting applications and also to admit students on the uniform basis of marks secured in the qualifying examination. The college contended that the above circulars violated its right under Art 30(1). The court *held* that the college was established and administered by the Christian community which is a minority community and therefore it was entitled to the right guaranteed under Art. 30(1). It *further held* that though the state was authorised to frame regulatory provisions, the basic right of minorities to manage educational institution cannot be taken away. (*St. Stephen's College v. The University of Delhi*, AIR 1992 SC 1630)

X. Right To Property (Arts. 31-310 & Sch. 9)

The right to property has two *aspects*. *Firstly*, it is a right to acquire, hold and dispose of property, and *secondly*, it is a right *not* to be deprived of such property acquired or held. Article 19(1)(f) and (5) (*now deleted*) formerly provided for the right to acquire, hold and dispose of property as a fundamental right, and laid down the limitations permissible on such right. Arts. 31 (*now deleted*), 31A and 318 deal with the second aspect of the right to property. Before its omission, Art. 31(1) provided that no person shall be deprived of his property, save by authority of law. The rest of the Article dealt with the nature of the law that could deprive a person of his property.

The *central idea* behind the right of the State to take away the property of an individual is based on the doctrine of "*eminent domain*". The right of a nation or a State to take property for public use is *eminent* or *paramount*. It is a right superior to the right of an individual to hold property. It is inherent in the nature of sovereignty. Government has the right to acquire private property for public use, *even when* the owner of the property objects to giving it up: if it were otherwise, the Government would *not* be able to perform its functions, because private property is needed from time to time for public purpose, as for instance, for Navy-yards, Post-offices. Customhouse, schools, parks, highways, and so on. But such acquisition of property by the Government has to be under authority of law, and such laws must satisfy certain minimum requirements provided for by the law.

As the right to property is no longer a fundamental right (by virtue of the Forty-fourth Amendment), this topic is discussed below under the following two heads :

A. Position before the Forty-fourth Amendment 1978.

B. Position after the Forty-fourth Amendment 1978.

A. Position before the Forty-fourth Amendment 1978.

The provisions of Art. 31 before its deletion were as follows :

(1) No person shall be *deprived* of his property save by the authority of law [Art. 31(1)]

- (3) No property shall be compulsorily acquired or requisitioned save for a *public purpose* and save by authority of a law which provides, for compensation (*) for the property so acquired or requisitioned, and either fixes the amount of the compensation or specifies the principles on which and the manner in which the compensation (*) is to be determined and given; and no such law shall be called in question in any court on the ground that the compensation (*) provided by that law is not adequate. [Art. 31(2)]

(*) NOTE. —The above is Article 31(2) as it stood *at the time* of the famous *Bank Nationalisation Case (R.C. Cooper and Others v. The Union of India—AIR. 1973 S.C. 564)*. In this case, the Court laid down two important principles, viz.—

(a) That the compensation under Article 31(2) should be *just compensation*. If no method of valuation is laid down

or if such method is not reasonable, the Courts would certainly interfere in the matter.

(b) That any acquisition of property **must satisfy not only Article 31(2), but also Article 19(1)(f).**

To reverse both the above principles enunciated by the decision, Parliament reacted promptly, and passed the *Twenty-fifth Amendment* to the Constitution, whereby the word "*compensation*" was replaced by word "*amount*". The Amendment also clarified that such *amount* could be paid otherwise than in cash. It was further provided by the Amendment that Article 19(1)(f) would *not* apply to any law relating to the acquisition or requisition of property for a public purpose.

After this amendment, Article 31(2) stood as follows :

(2) No property shall be compulsorily acquired or requisitioned save for *a public purpose* and save by authority of a law which provides for acquisition or requisitioning of the property for an *amount* which may be fixed by such law, or which may be determined in accordance with such principles and given in such manner as may be specified in such law; and no such law shall be called in question in any court on the ground that the *amount* so fixed or determined is *not* adequate or that the whole or part of such *amount* is to be given otherwise than in cash :

Provided that in making any law providing for the compulsory acquisition of any property of an educational institution established and administered by a minority referred to in Art. 30(1), the State shall ensure that the amount fixed by, or determined under, such law, for the acquisition of such property is such as would *not* restrict or abrogate the right guaranteed under that clause

This Amendment was challenged before a Full Bench of the Supreme Court in *Swami Kesavananda Bharati v. State of Kerala* (A I R 1973 S.0 1461). The Full Bench *upheld* this Amendment in substance. However, it ruled that the courts *could* decide on the point as to whether a particular amount paid for property acquired by the Government *is or is not adequate*. In other words, the courts would be competent to see whether the amount is *arbitrary* or *illusory* in a given case

[The *Bank Nationalisation case* and *Swami Kesavananda Bharati's case* have been discussed at greater length in Appendix IV J

(2A) Where a law does *not* provide for the transfer of the ownership or right to possession of any property to the State or to a corporation owned or controlled by the State, it shall *not* be deemed to provide for the compulsory acquisition or requisitioning of property, notwithstanding that it deprives any person of his property.

(2B) Nothing in Article 19(1)(f) shall affect any law as is referred to in Clause (2) above.

(3) Article 31(3) provided that if a law relating to compulsory acquisition or requisition of property has been passed by a *State Legislature*, it would *not* have effect, *unless* the President assents to it.

(4) Article 31(4) laid down that, if at the commencement of the Constitution, a Bill pending in a State Legislature has been passed by such Legislature and has received the President's assent, it could *not* be called into question on the ground that it contravenes Article 31(2) of the Constitution.

(5) Vide Article 31(5), it was provided that nothing in Article 31(2) shall effect—

(a) the provisions of any existing law other than a law to which the provisions of clause (6) apply; or

(b) the provisions of any law which the State may hereafter make—

- (i) for the purpose of imposing or levying any *tax* or *penalty*; or
- (ii) for the promotion of *public health* or the prevention of danger to life or property; or
- (iii) in pursuance of any agreement entered into between the Government of the Dominion of India or a Government of India and the Government of any other country, or otherwise, with respect of property declared by law to be *evacuee property*.

(6) Art. 31(6) made certain provisions for State laws enacted before the Constitution came into being.

It may be noted that compulsory acquisition of property can be only for a *public purpose*. It is open to the Courts to inquire into the question as to whether compulsory acquisition under a particular statute is for a public purpose. In *State of Bihar v. Kameswar Singh* (AIR. 1952 S.C. 252), the Supreme Court observed that the definition of "*public purpose*" is elastic, and the concept changes with time and the state of society and its needs.

It may also be noted that no satisfactory definition of the term *public purpose* has been arrived at by the Courts. The expression can only be defined by a process of *judicial inclusion and exclusion*. Broadly speaking, *two theories* appear in judicial attempts to list the type of objects covered by the expression. *The first* limits its connotation to *public use, occupation or employment*, whereas the *second* and more liberal one makes it synonymous with *public advantage* and *public benefit*. In view of the complex conditions prevailing in to-day's society, the second interpretation is to be preferred.,

The *salient features* of Article 31 (as it stood before the Forty-fifth Amendment) can broadly be summarised as follows :

(1) No person shall be deprived of his property save by authority of law. Therefore, there *cannot* be deprivation of property under an executive order. (*State of West Bengal v. Subodh Gopal*, -A.I.R. 1954)

(2) Property can be compulsorily acquired or requisitioned only under the authority of law.

(3) Such law must be *a valid law*.

(4) Such acquisition or requisition must be for *a public purpose*.

(5) The law authorising such act must provide for compensation or specify the principles on which the compensation is to be determined. (**After the Twenty-fifth Amendment**, the word "compensation" was replaced by **the word "amount"**.)

(6) The amount payable on compulsory acquisition or requisition can be paid otherwise than in cash.

(7) The Courts will be competent to see if the amount paid for compulsory acquisition or requisition is *illusory* or *arbitrary* in any given case. (*Swami Kesavananda Bharti's Case*).

(8) If the law does *not* provide for the transfer of the ownership or right to compensation of any property to the State or to a corporation owned or controlled by the State, it does *not* amount to compulsory acquisition or requisition. As a result of the amendment by the Constitution (4th Amendment) Act, 1955, a law will no longer be open to the attack that the compensation payable is *not* adequate. If the law is one made by the legislature of a State, it shall *not* be effective unless it is reserved for consideration of the President, and his assent is obtained.

B. Position after the Forty-fourth Amendment

The Constitution (Forty-fourth) Amendment Act, 1978 brought about a *drastic change* in respect of the right to property. This Amendment omitted Art. 31 completely, thus taking away this right from the Chapter on Fundamental Rights.

A new Chapter, viz, Ch. IV was introduced in Part XII of Constitution, and this Chapter now contains a *new Article*. Art. 300A, which provides as follows :

"No person shall be deprived of his property save by authority of **law**". The *effect* of this amendment in short, is as follows .

(i) The right to property is *no more a fundamental right*. Rather, it is relegated to Ch. IV of Part XII of the Constitution.

(ii) The new Article, Art 300A, is identical in terms with the former Art. 31(1). Therefore, the comments and judicial

observations on Art. 31(1) would also hold good for Art 300A. subject, of course, to the fact that the right is no more a fundamental right. However, there are no provisions now corresponding to sub-clauses (2) to (6) of Art. 31.

Art. 31A-Saving of laws providing for acquisition of estates, etc.

(1) Notwithstanding anything contained in Art 31, no law providing for—

(a) the acquisition by the State of any estate or of any rights therein or the extinguishment or modification of any such rights; *or*

(b) the taking over of the management of any property by the State for a limited period either in the public interest or in order to secure the proper management of the property; *or*

(c) the amalgamation of two or more corporations either in the public interest or in order to secure the proper management of any of the corporations; *or*

(d) the extinguishment or modification of any rights of the managing agents, secretaries and treasurers, managing directors, directors and managers of corporations, or of any voting rights of shareholders thereof; *or*

(e) the extinguishment or modification of any rights accruing by virtue of any agreement, lease or licence for the purpose of searching for, or winning, any mineral or mineral oil or the premature termination or cancellation of any such agreement, lease or licence, shall be deemed to be void on the ground that it is inconsistent with, or takes away or abridges any of the rights conferred by Art. 14 or Art. 19.

It is provided *that* where such a law is a law made by the Legislature of a State, the provisions of this Article shall *not* apply thereto, *unless* such law, having been reserved for the consideration of the President, has received his assent.

It is also provided *that* where any law makes any provision for the acquisition by the State of any estate and where any land comprised therein is held by a person under his personal cultivation, it shall *not* be lawful for the State to acquire any portion of such land as is within the ceiling limit applicable to him under any law for the time being in force, or any building or structure standing thereon or appurtenant thereto, *unless* the law relating to the acquisition of such land, building or structure, provides for payment of compensation at a rate which shall *not* be less than the market value thereof.

The constitutional validity of Art. 31A has been challenged before the Supreme Court on several occasions. In its historic decision in *Golak Nath's case* (discussed in detail in Appendix IV), Art 31A was *held* to be *valid*. The note struck by later cases reversing *Golak Nath's case* does *not* militate against the vires of Art. 31A. Thus, in *Kesavananda Bharatis case* (also discussed in Appendix IV), Art. 31A was *upheld* by a 13-member Bench of the Supreme Court. In another decision Art. 31A was once again challenged as being unconstitutional, and once again, the Supreme Court *upheld* it as being *valid*. (*Ambica Prasad Mishra v. State of U.P. & Others.* (1980) 3 S.C.C. 719)

In yet another *case*, *Kiarnan Rao v. Union of India* (AIR. 1981 S.C. 271), the Supreme Court has *held* that the introduction of Art. 31A in the Constitution does *not* damage or destroy the basic structure of the Constitution, and is, therefore, *valid*.

Article 31B- Validation of certain Acts and Regulations

Article 31B provides that certain Acts and Regulations specified in the Ninth Schedule to the Constitution shall *not* be void on the ground that they are inconsistent with, or that they take away or abridge, any fundamental right guaranteed under the Constitution.

The Ninth Schedule to the Constitution contains a long list of about 284 Acts saved by S. 31B. A few illustrative enactments are :

- (i) The Bihar Land Reforms Act, 1950.
- (ii) The Bombay Tenancy and Agricultural Lands Act, 1948.
- (iii) The Uttar Pradesh Zamindari Abolition and Land Reforms Act, 1950.
- (iv) The Gujarat Agricultural Land Ceilings Act, 1950.
- (v) The Industries (Development and Regulation) Act, 1951.

Articles 31A and 31B did *not* find place in Constitution as originally **framed**; they have been incorporated in it later. Their *effect* is to ensure that no law providing for the acquisition of estates or of any rights therein or for the modification of such rights is held void on the ground that it infringes any of the fundamental rights guaranteed by the Constitution. Early in 1951, some of the State laws providing for the abolition of the Zamindari system (including the Bihar Land Reform Act, 1950) were *held* void **by** the respective State High Courts, on the ground that they contravened some of the provisions dealing with the fundamental rights. The Governments were anxious to abolish the *Zamindari* system, and to reform the entire land tenure system as early as possible, and felt that the Constitution should be amended in such a manner as to remove all constitutional obstacles from the path of legislation providing for measures of land reforms which had become long overdue in the country. These two Articles were, therefore, incorporated in the Constitution by passing the First Amendment Act, 1951.

The Supreme Court has *held* that amendments made to the Ninth Schedule before the decision in *Kesavananda Bharati's case* on 24th April 1973 are *valid*. However, Acts further included in this Schedule *after* 24th April 1973, would have to satisfy the test of damage to the basic structure or essential features of the Constitution. (*Waman Rao v. Union of India*, (1980) 3 S.C.C. 587)

Article 31C-Saving of laws giving effect to directive principles

Art. 31C is dealt with hereunder under the following *three* heads :

- A. Position before the Forty-second Amendment, 1976.
- B.** Position after the Forty-second Amendment, 1976.
- C. Position *after* the *Minerva Mills' case*, 1980

A. Position before the Forty-second Amendment (1976)

Prior to 1976.— Article 31C (which was *introduced* by the *twenty-fifth Amendment* to the Constitution) provided that notwithstanding anything contained in Article 13 (discussed earlier), no law giving effect to the policy of the State towards securing—

- (a) that the ownership and control of the material resources of the community are so distributed as best to subserve, the common good [Article 39(b)], *or*
- (b) that the operation of the economic system does *not* result in the concentration of wealth and **means** of production to the common detriment [Article 39(c)]

shall be void on the ground that it is inconsistent with, or takes *away* or abridges, any of the rights conferred by Article 14, Article 19 or Article 31. This part of Article 31C came up for scrutiny of the Supreme Court in *Swami Kesavananda Bharati v State of Kerala* (A I R 1973 S.O 1461), and the same was *upheld* by the Full Bench of the Supreme Court (This case is discussed at length in Appendix IV to this book)

The Twenty-fifth Amendment also provided that no law containing a declaration that it was for giving effect to the principles contained in Article 39(b) or (c) (above) could be called in question in any Court of Law on the ground that it did *not* give effect to such policy. The majority of the Full Bench in the above case *struck down* this clause, and **held** that the Court **would** have the power to see whether any such enactment does really serve **such** aims.

This Amendment had also originally provided for the assent of the President in cases where such law was made by a State Legislature. This part of the Amendment was also *struck down* by the majority of the Full Bench in the same case. The Court observed that Parliament alone would have the right to abridge the fundamental rights. The Chief Justice of India remarked that if this power were to be given to the State Legislature, it would enable them to apply one law to political opponents of the ruling party and another to members of the party and would enable a State Legislature to set up complete totalitarianism in the State.

B. Position after the Forty-second Amendment (1976)

The Constitution (Forty-second) Amendment Act, 1976, sought to widen the scope of Art. 31C, so as to include *not only* the Directive Principle contained in clauses (b) and (c) of Art. 39, *but all* the Directive Principles laid down in Part IV of the Constitution. Thus, it was provided that laws giving effect to *all* or *any* of the Directive Principles were sought to be saved from attack on the ground of infringement of Fundamental Rights conferred by Arts. 14, 19 and 31 of the Constitution (effectively Arts. 14 and 19 only, as Art. 31 has been omitted by the Forty-fourth Amendment, 1978).

C. Position after the Minerva Mills Case (1980)

The provision introduced by the Forty-second Amendment (above) to cover *all* Directive Principles, instead of only those covered by clauses (b) and (c) of Art. 39 was challenged before the Supreme Court in *Minerva Mills Ltd. v. Union of India* (AIR. 1980 S.C. 1789), where a five-member Bench of the Supreme Court (Bhagwati J. dissenting) *struck down* this amendment, holding that to destroy the guarantees given by the Chapter on Fundamental Rights, in order, purportedly, to achieve the goals of the Directive Principles would amount to destroying the basic structure of the Constitution. The Court, therefore, *held* that this amendment, being beyond the amending power of Parliament, was *void* and *unconstitutional*, on the ground that *it would damage a basic or essential feature of the Constitution*.

(A reference may be made to the discussion of the *Minerva Mills' Case* in Appendix IV.)

Article 31D—Saving of laws in respect of anti-national activities (Deleted)

The *Forty-second Amendment of the Constitution* had introduced a *new Article*, viz., Art. 31D, giving power to Parliament to make laws to prevent or prohibit *anti-national activities*, and to prevent or prohibit the formation of *anti-national* associations. However, *this Article was later repealed by the Forty-third Amendment, 1977*.

CONCLUDING NOTE

It will be seen from the above-mentioned fundamental rights that freedom of expression, freedom of association, freedom of movement and the like are guaranteed only to *citizens*, while rights relating to the protection of life and personal liberty are guaranteed to *every person*, irrespective of his or her being a citizen. Evidently, rights of the latter category are regarded as of greater human importance than those of the former.

Again, whilst some fundamental rights (*e.g.*, Arts. 14, 16, 20, 21 and 22 impose limitations upon State action, others (*e.g.*, Arts. 15(2) and 17) impose limitations upon the action of private individuals.

Xi. Right To Constitutional Remedies (Arts. 32-35 & 359)

Ubi jus ibi remedium : There is no right without a remedy. So, fundamental rights would be *useless* unless there are adequate provisions to *enforce* them. As observed by the Supreme Court in *Fertilizer Corporation Kamgar Union v. Union of India*. (AIR. 1981 S.C. 344), "A right without a remedy is a legal conundrum of a most grotesque kind" Accordingly, *the right to enforce all the fundamental rights is itself made a fundamental right under the Constitution*.

Art. 32 can be summarised thus

(a) The Constitution guarantees the *right to move* the *Supreme Court* for the enforcement of the fundamental rights [Art. 31(1)]

(b) The *Supreme Court* has the *power to issue* directions or orders or *writs* including writs in the nature of *habeas corpus*, *mandamus*, *prohibition*, *quo warranto* and *certiorari*, whichever may be appropriate, for the enforcement of any of the Fundamental Rights discussed above [Art 32(2)]

(c) The powers mentioned in Art. 32(2) above can be exercised by any other Court empowered by Parliament. [Art.

32(3)]

When Article 32 was being drafted in the Constituent Assembly, Dr. Ambedkar, 'the father of the Constitution'. was heard to say

"If I was asked to name one particular article in this Constitution as the most important—an article without which this Constitution would be a nullity, I could not refer to any other article except this one. It is the *very soul of the Constitution and the very heart of it*, and I am glad that the House has realised its importance. Thus, Art. 32 enshrines a very valuable right. As observed by the Supreme Court, if a prisoner's fundamental right is flouted or legislative protection is ignored, the Supreme Court's writ will run, breaking through stone walls and iron bars, to right the wrong and restore the rule of law. (*Charles Shobraj v. Suptd., Central Jail*, AIR 1978 SC. 1514)

Different types of Writs

WRIT OF HABEAS CORPUS.—This writ may be regarded as *one of the most important safeguards of personal liberty*. This writ is available in all cases of *deprivation of personal liberty* or *wrongful detention*. On an application, the Court is empowered to direct that the detained person be produced before it, and is entitled to inquire into the grounds of his detention. If the Court is satisfied that such detention is illegal, it can order the immediate release of the person.

The writ of *habeas corpus* is the most celebrated prerogative writ in English constitutional law. It is a process for securing the liberty, and ensuring the protection and well-being of the subject wrongly deprived of his personal liberty. It is addressed to him who detains another in custody and commands him to produce the body, (*i.e.*, the person himself), and his further custody then depends on what the Court orders in that behalf.

Under English law, formerly, if an application was rejected by one judge, a person could make a fresh application to another judge of the same Court, and could thus go on and on, from one judge to another, till a merciful judge could be found. This practice has been put an end to in 1960, by legislation which has laid down that, if once an application is rejected, a fresh application *cannot* be made to another judge on the same grounds. *In India* also, no fresh application can be made to other judges of the same Court, if an application has been heard and refused by one judge of that Court.

It may be noted that the *object of habeas corpus is remedial*, and *not punitive*. This means that the writ is meant to determine the legality or illegality of a detention, and its object is *not* to punish a person for any offence. Thus, where a person was arrested and ill-treated in a jail but later released, it was *held* that a petition for *habeas corpus* would *not* lie *alter* his release.

Normally, it is for the *arrested person* to make an application for *habeas corpus*. But if for any reason, he is unable to do so, a friend or a *relative* can also make an application for his release.

In a case before the Supreme Court, a telegram by a prisoner to a Judge was treated as a *Habeas Corpus Petition*. Discussing the broad scope of this writ, the Court observed in this case (*Prem Shankar Shukla v. Delhi Administration*, (1980) 3 S.C.C. 526) as follows :

"No longer is this writ trammelled by the traditional limits of English vintage: for our founding fathers exceeded the inspiration of the prerogative writs by phrasing the power in larger diction. That is why, in India as in America, the broader horizons of *habeas corpus* spread out beyond the orbit of release from illegal custody, into every trauma and torture on persons in legal custody, if the cruelty is contrary to law, degrades human dignity, or defiles his personhood

Although a *Habeas Corpus* Petition is generally formally drawn out by a lawyer, no set form is necessary. In *Sunil Batra v. Delhi Administration* [(1980) 3 S.C.C. 488], a letter was written by a prisoner in Tihar Jail directly to a Judge of the Supreme Court, complaining that a Jail Warder had pierced a baton into the anus of another prisoner to extract money from the victim's visiting relatives. This *letter* was considered by the Supreme Court as a *Habeas Corpus* Petition, and proceedings were initiated. So also, in *Prem Shankar Shukla's case* (referred to above) a

telegram sent by a prisoner to a Judge was treated as a Petition for the writ of *habeas corpus*.

In what is commonly referred to as the "*Habeas Corpus Case*" (*Add. Dis. Magistrate, Jabalpur v. Shivkant Shukla*, (1976), 2 S.C.C. 521), the Supreme Court *held*, by a majority of 5 to 1, that a person who is detained under MISA (Maintenance of Internal Security Act) could *not* move a **Court** and ask for his release, as long as the enforcement of fundamental rights remains suspended during emergency. In a strong dissenting judgment, Mr. Justice Khanna *held* that the Constitution does *not* empower any authority to suspend the power of the High Courts to issue writs of *habeas corpus* during an emergency. (The *Habeas Corpus Case* is discussed at length in Appendix IV to the book.)

WRIT OF MANDAMUS.—The writ of *mandamus* (literally meaning : We *command* is a high prerogative writ of a most extensive remedial nature. In its original form, it was a command issued in the King's name from the King's Bench Division of the High Court of Justice, and directed to any person, corporation, or inferior Court of Judicature, requiring him to do something stated therein relating to his office, and which the Court felt was in the interests of justice. Today, it is used principally for public purposes and to compel the performance of public duties. It is, however, also used to enforce private rights when they are withheld by public officers.

It is to be noted that *mandamus* lies, *not only* against *executive* authorities, *but also* against *judicial* and *quasi-judicial* authorities.

The *four conditions* to be satisfied before a writ of *mandamus* can **be** issued are :

- (i) The Petitioner must show that he has a *legal right* to obtain performance of a *legal duty*.
- (ii) Such a duty must be one which is imposed by the Constitution or any other law (but *not* under a contract)
- (iii) Such a duty must be a *ministerial duty* and *not discretionary* in nature.
- (iv) The right which is claimed should be a judicially enforceable right.

The Supreme Court has *held* that if an individual has acted upon a representation or promise made by the Government, he can successfully file a Petition for *mandamus* to compel the Government to perform that promise, — even though the promise may be contained in a non-statutory or executive instruction. (*Union of India v. Anglo-Afghan Agencies* 11 R 1968 SC 718)

In one case, it was *held* that the Accountant-General of Bihar was under an obligation to grant a passage benefit to the wife and children of the Petitioner, and his refusal to do so was arbitrary and unwarranted. **As** no other adequate remedy was available, the Court issued a Writ of *Mandamus* against him. (*N. Baksi v The Accountant-General, Bihar* A.I.R. 1957 Patna 515)

In another case, the Gujarat High Court *held* that the Vice-Chancellor of Gujarat University was under a *public duty* to allow the University Senate to discuss certain matters within its powers. and that this duty was *not* a matter of discretion, but was obligatory. When, therefore, the Vice-Chancellor did *not* allow the Senate to discuss the matter, he was *held* to have failed in his duty, and as there was no other adequate remedy, a Writ of *Mandamus* was issued to secure its performance. (*Kasturbhai v. Gujarat University* A.I.R. 1960 Gujarat 14)

Mandamus when not issued.—*Mandamus* will *not* be granted against the following classes of persons :

- (i) The President or the Governor.
- (ii) The High Court or a Judge of the High Court, acting in a *judicial* (as distinguished from administrative) capacity.
- (iii) Central or State legislatures.
- (iv) Persons who do *not* hold *public* offices.
- (v) A company registered under the Companies Act, even if it is a "government company" as defined in that Act, — *unless* it is an agency or instrumentality of the Government.

WRIT OF PROHIBITION.—The writ of prohibition has been described as "a judicial writ, issuing out of a Court of superior jurisdiction, and directed to an inferior Court, for the purpose of preventing the inferior Court from usurping a jurisdiction with which it is *not* legally vested, or in other words, to compel Courts entrusted with judicial

duties, to keep within the limits of their jurisdiction”.

A writ of prohibition is issued by a superior Court directing an inferior Court *not* to exercise jurisdiction with which it is *not* legally vested. Such a writ compels the Courts entrusted with judicial duties to keep within the limits of the jurisdiction. It orders the immediate stoppage of the trial of the case in the lower Court. A writ can be issued against a judge of an inferior Court if that judge is interested in the case, or is otherwise biased.

A writ of prohibition is issued on a notice of motion or an application supported by an affidavit. If the judge or any party proceeds with the case in spite of a writ of prohibition, contempt of Court proceedings can be started against the person concerned. It may be noted that the writ of prohibition can also be issued to *non-judicial* public bodies in cases where such bodies take *quasi-judicial* decisions.

Thus, Courts have issued a Writ of Prohibition to prevent a Tribunal from proceeding further in a matter, when the Tribunal :

- (a) is acting without jurisdiction;
- (b) is acting beyond its jurisdiction;
- (c) is acting in violation of the rules of natural justice;
- (d) is proceeding under a law which is unconstitutional or *ultra vires*;
- (e) is acting in contravention of a fundamental right.

WRIT OF CERTIORARI.—**Certiorari** means '*To be more fully informed of.*' Such a writ is issued by a superior Court and is directed to the judge or other officer of an inferior Court of record. It requires that the *record* of the proceedings in some cause or matter pending before such inferior Court be *transmitted to the superior Court* to be there dealt with, in order to ensure that the applicant will have sure and speedy justice.

Regarding the nature and scope of the writ of certiorari, Viscount Simon has made the following observations : "The ancient writ of *certiorari* in England is an 'original writ' which may issue out of a superior Court requiring that the record of the proceeding in some case or matter pending before an inferior Court should be transmitted to the superior Court to be there dealt with. The writ is so named because in its original Latin form, it required that the King should 'be certified' of the proceedings to be investigated. The *object* of this writ is to ensure, by the exercise of the authority of a superior Court, that the jurisdiction of the inferior Tribunal is properly exercised. This writ does *not* issue to correct purely executive acts; but, on the other hand, its application is *not* narrowly limited to an inferior Court in the strictest sense. Broadly speaking, it may be said that if the act done by the inferior body is a judicial act, as distinguished from a ministerial act, *certiorari* will lie. The remedy, in point of principle, is derived from the superintending authority which the Sovereign's Superior Courts, and in particular the Court of King's Bench, possess and exercise over inferior jurisdiction."

In *Province of Bombay v. K.S. Advani* (AIR. 1950 S.C. 222), the Supreme Court has laid down that *two conditions* must be satisfied before a writ of *certiorari* can be asked for. *Firstly*, the decision of the authority (which is challenged) must be judicial or quasi-judicial in nature. *Secondly*, the challenge must be in respect of excess or want of jurisdiction of the deciding authority. Unless *both* these conditions are satisfied, the petition for a writ of *certiorari* cannot succeed.

The writ of *Certiorari* is normally issued for :

- (i) enforcement of fundamental rights;
- (ii) quashing a decision which is without, or in excess of, jurisdiction;
- (iii) quashing a decision which has 'an error of law apparent on the face of the record': *and*
- (iv) violation of the principles of natural justice.

It is to be noted that a writ of *Prohibition* differs from a writ of *Certiorari*. A writ of *Prohibition* can be brought at an earlier stage of the proceedings complained of. It is a *preventive*, rather than a remedial, measure.

WRIT OF QUO WARRANTO.—The writ of *quo warranto* is issued to prevent the illegal assumption of any *public* office or usurpation of *any public* office by anybody.

A writ of Quo Warranto, meaning *By what warrant* or '*By what authority*' may be issued by a Court, when a person acts in a capacity in which he is *not* entitled to *act*. It is a writ of right issued by a Court against a person who claims or usurps any office, franchise or liberty. Such a writ requires the person against whom it is issued to show as to by what authority he supports his claim, so that the same may be determined. **The** writ of Quo Warranto is in the nature of an injunction. Students of **the** constitutional history of England will remember how Edward I started Quo Warranto proceedings against those barons who were holding baronial courts without the authority of the King.

A writ of *quo warranto* will be issued by the Court when the following *five conditions* are satisfied

- (i) The office must be a *public office*.
- (ii) **The** office must be *substantive in nature*.
- (iii) Such office must have been created under the Constitution **or by**
- (iv) The Respondent must have asserted his claim to such office.
- (v) The Respondent should *not* be legally qualified to hold the office or remain in office, because of contravention of a constitutional or statutory provision.

This writ lies only when the person against whom it is *directed* occupies a public office,—or at least if the duties attached to such office are of a public nature. Once this condition is satisfied, any private person can apply for the writ, — even if such a person has no personal interest in the matter. Thus, it has been *held* that a Chief Minister, a Judge of the High Court, an Advocate-General, the chairman of a Municipality and a member of a University Senate are *all* persons who hold a public office, and therefore, a writ of *quo warranto* can be prayed for against their appointment.

Public Interest Litigation

The trend of the Supreme Court, in entertaining, and even encouraging, writs filed in public interest, has given a healthy boost to what is known as '*public interest litigation*'. Normally, only that person whose individual right has been violated would have *locus standi*, to file a writ petition for the enforcement of a fundamental right. However, when there is a breach of some public duty *or* a breach of a constitutional provision which causes injury to the general public, *any person* may be allowed to file a writ petition for such violation. The Supreme Court has thus anxiously looked into conditions in jails and other similar institutions in public interest, with a view to remedying the conditions prevailing therein. For this purpose, legal formalities have been cast aside, and as seen above, letters and telegrams have been treated as Writ Petitions. (See *Prom Shanker Shukla v. Delhi Administration and Sunil Batra v. Delhi Administration*, referred to above.)

In yet another case, the Supreme Court reiterated the view that a letter addressed to the Supreme Court by a person acting *pro bono publico*, can be treated as a Writ Petition. It would neither be right nor fair to expect such a person to incur expenses from his own pocket to go to a lawyer and have a regular Writ Petition filed in the Court. Therefore, in such cases, even a simple letter complaining of legal injury to the writer (*or* to a class of persons who on account of poverty or disability or socially or economically disadvantaged position, *cannot* approach the Court for relief) can be tried and disposed of as Writ Petition. (*Bandhu Mukti Morcha v. Union of India* A.I.R. 1984 S.C. 802)

In the above case, *Bhagwati J.* observed as under :

When the court entertains public interest litigation, it does *not* do so in a cavilling spirit *or* in a confrontational mood, *or* with a view to tilting at executive authority or seeking to usurp it; but its attempt is only to ensure observance of social and economic rescue programmes, legislative as well as executive, framed for the benefit of the have-nots and the handicapped, and to protect them against violation of their basic human rights, which is also the constitutional obligation of the executive. The court is thus merely assisting in the realisation of the constitutional objectives."

Following the same principle, a member of the Bar was allowed by the Supreme Court to challenge the constitutionality of mass orders of transfers of Judges. (*Gupta v. Union of India* A.I.R. 1982 S.C. 149)

Likewise, the Director of Social Work was allowed to challenge the system of payment of wages to famine relief workers. (*Sanjit v. State of Rajasthan* 1983 U.J.S.C. 161)

In an *interesting case*, two Professors of the Delhi University addressed a letter to the Supreme Court in connection with the inhuman and degrading living conditions of the inmates of the protective home at Agra, which was in blatant violation of Art. 21 of the Constitution. *The Supreme Court treated this letter as a writ petition* and permitted the Professors to maintain a *public interest litigation* (in the form of a writ) for enforcing the constitutional rights of those inmates. (*Dr. U. Baxi v. State of UP*. A.I.R. 1987 S.C. 191)

In *D.S. Nakara v. Union of India*, (1983 1 S.C.C., 305), the Supreme Court explained the scope of public interest litigation in the following words :

Any member of the public having sufficient interest can maintain an action for judicial redress for public injury arising from breach of public duty or from violation of some provision of the Constitution or the law, and seek enforcement of such public duty and observance of such constitutional or legal provision ” The observations of Justice Bhagwati in this connection in *S.P. Gupta v. Union of India* (AIR 1982 S.C. 1419) are interesting. In that case, he observed :

it is necessary to democratise the judicial remedies, remove technical barriers against easy accessibility to justice, and promote Public Interest Litigation, so that the large masses of people belonging to deprived and exploited sections of humanity may be able to realise and enjoy the socioeconomic rights granted to them.’

As observed by the Supreme Court, any member of the public having sufficient interest can maintain an action for judicial redress for public injury arising from a breach of public duty or from a violation of some provision of the Constitution. (*D. S. Nakara v. Union of India*, 1983 1 SCC, 305)

However, a third party *cannot* seek a remedy under Art. 32 or Art. 226 to remedy *individual* cases of wrong or injury.

The Delhi High Court has *held* that public interest litigation is ***not maintainable*** in the case of judicial and quasi-judicial matters. (*Govt. Servants Co-op. House Building Society Ltd. v. Union of India* A.I.R. 1994 Delhi, 112)

Delay in filing Writ Petitions

As there is no prescribed period of limitation for filing Writ Petitions, a question often arises as to whether such a Petition is liable to be dismissed *only* on the technical ground of *laches* (i.e., undue delay) The answer is that each case is to be considered in the background of its peculiar facts and circumstances. The Court expects a person whose fundamental rights have been violated to approach the Court with *due diligence*. My *unreasonable delay* on his part may induce the Court to come to a conclusion that he has either slept over his rights *or* has acquiesced in the alleged violation thereof.

In *Had Singh v. State of U.P.* (AIR. 1984 S.C. 1020), a Writ Petition was filed *two-and-a-half years* after a Notification for the acquisition of certain land was issued by the Government. The Supreme Court *held* that such a Petition is to be *dismissed* on the ground of delay alone, because any interference with acquisition proceedings after two-and-a-half years would be likely to cause serious public prejudice.

There is, however, no hard-and-fast rule prescribing *what quantum of delay* is fatal for a Writ Petition, the decision being naturally dependent on the facts and circumstances of each case. Thus in another case, the Supreme Court refused to dismiss a Writ Petition on the ground of delay, although the Petition was filed challenging a provisional Seniority List, *12 years* after the List was issued by the State Government. In this long period of 12 years, the concerned Department did *not* finalise the List; nor did it reply to the representations made to it by the Petitioners during this period. The Supreme Court *held* that the Petition was *not bad on the ground of laches*, and the Provisional Service List was *held* to be invalid. (*G.P. Doyal and Others v. Chief Secretary, Govt. of UP.*, A.I.R. 1984 S.C. 1527)

Power of Parliament to modify the rights conferred by Part III in their application to Armed Forces etc. (Art.

33)

Under S. 33, Parliament has the right to determine, to what extent any of the fundamental rights may be restricted or abrogated as regards the following classes of persons, so as to ensure the proper discharge of their duties and maintenance of their discipline :

- (a) the members of the Armed Forces; or
- (b) the members of the Forces charged with the maintenance of public order; or
- (c) persons employed in any bureau or other organisation established by the State for purpose of intelligence or counter-intelligence; or
- (d) persons employed in, or in connection with, the tele-communication systems set up for the purposes of any Force, bureau or organisation referred to in clauses (a) to (c).

Suspension of fundamental rights (Art. 359)

In connection with the subject of fundamental rights, the provisions of Article 359 may also be noted. This Article provides that where a *Proclamation of Emergency* is in operation, the President may declare that the rights to move any Court for the enforcement of the rights conferred by this Part, and all proceedings pending in any Court for the enforcement of such rights remain *suspended* for the period *during* which the *Proclamation* is in force. Every such order is also to be laid before each House of Parliament.

Law as to restriction or suspension of fundamental rights (Arts. 33-34, 352, 359 & 368)

The Law as to restriction or suspension of fundamental rights may **be** summed up as follows :

- (a) The Constitution allows *reasonable restrictions* to be placed on the fundamental rights guaranteed by Article 19 provided they relate to matters (like public order etc.) specified in Article 19 (considered above).
- (b) Parliament has been authorised by the Constitution to restrict or abrogate the fundamental rights in their application to the Armed Forces, *etc.*, with a view to ensuring the proper discharge of their duties by the Forces and maintenance of discipline among them. (Art. 33)
- (c) Parliament has been given the power to indemnify any person in the service of the State for acts done in any area where martial law is in force, in connection with maintenance or restoration of order. Parliament can also validate any sentence passed or punishment inflicted in such an area under martial law. (Art. 34)
- (d) When a Proclamation of Emergency has been issued by the President under Art. 352, the fundamental rights conferred on citizens by Art. 19 will remain suspended while the Proclamation is in operation. These rights include freedom of expression, movement, assembly and association. (Art. 358)
- (e) While a Proclamation of Emergency is in operation, the President may, by an order, suspend the right to move the Courts for enforcing such fundamental rights as may be mentioned in the order. Such orders must be laid before Parliament as soon as possible, **and** Parliament has the right to modify or rescind such orders. (Art 359)

In *Add. Dist. Magistrate, Jabalpur v. Shrivakant Shukla* (1978) 2 S.C.C. 521 (also known as the *Habeas Corpus Case*), a five-judge Constitution Bench of the Supreme Court delivered a very important decision on the subject of the enforcement of fundamental rights during emergency. By a four to one majority, the Court *held* that no person detained under the Maintenance of Internal Security Act (MISA) can move a Court and seek his release, as long as the enforcement of fundamental rights remains suspended during such emergency. (A reference may be made to this **case** in Appendix IV to the book.)

Judicial review under the Indian Constitution

As every federal form of the Government involves a distribution of powers, it also requires a written constitution. It follows, therefore, that it falls upon the Courts to decide whether a law violates the limitations prescribed in the Constitution, and to declare it void or *ultra vires* to that extent.

The power of *judicial review* entrusted to the Courts by Articles 32 and 226 is, however, *not a new feature In India*. Although the Government of India Act, 1935, did *not* contain analogous provisions, nevertheless, the Courts in India and the Privy Council had always considered the *vires* of legislation, declaring it to be invalid if it violated constitutional limitations.

In the Indian Constitution, the *doctrine of judicial review* and the *principle of legislative supremacy* have been harmonised, so far as the fundamental rights are concerned. Art. 13 of the Constitution provides that any law, rule or order which is inconsistent with Part III of the Constitution (which provides for the fundamental rights) is *void*. Art. 32 of the Constitution provides that the Supreme Court is empowered to give relief in the nature of a writ to any individual whose fundamental rights have been infringed. Similarly, Art. 226 empowers the High Court to give similar remedies.

Arts. 32, 226 and 13 give an impression that *the doctrine of judicial review* provided for in the Indian Constitution is in an undiluted form. But on careful examination, it will appear that certain rights are kept out of the process of judicial review and in the case of those rights, *the doctrine of legislative supremacy* prevails. Art. 21 of the Constitution provides that no person shall be deprived of his life or liberty except according to the procedure established by law. The meaning of the phrase "according to the procedure established by law" was interpreted by the Supreme Court in the case of *Gopalan v. State of Madras* (discussed earlier). The Supreme Court *held* in that case that "except according to the procedure established by law" would *not* mean the same thing as "the due process of law" clause of the American Constitution. On the other hand, the phrase would mean that any law could prescribe a procedure for depriving a person of his life or liberty. Therefore, any law which would prescribe the procedure for deprivation of life or liberty of an individual would be *valid* law. The constitutional validity of such a law *cannot* be examined by the Court. To this extent, the right to personal freedom is kept out of the working of the doctrine of judicial review.

Similarly, under Art. 19, various freedoms, like the right to freedom of speech and expression, the freedom of association and the freedom of movement *can* be subject to reasonable restrictions on grounds like public morality, order *etc.*, and further, such restrictions must be *reasonable*. The Court *can* examine *whether the restriction is reasonable or not*.

Thus, there is a compromise struck between the *doctrine of judicial review* and the *principle of legislative supremacy*.

Articles 32 And 226

The difference between the power and jurisdiction of the Supreme Court and the High Courts under Arts. 32 and 226, respectively, must be carefully noted. The Supreme Court, under Art. 32, has power to issue directions or orders or writs for the enforcement of fundamental rights *only*, but under Art. 226, the High Courts have the power to issue such writs for the enforcement of fundamental rights *and for any other purpose*. Thus, the powers of the High Courts are, in this sense, wider.

(It is interesting to note that the *Forty-second Amendment* had deleted the words, "for any other purpose", thereby resulting in a restriction of the powers of the High Courts. However, the expression was restored by the *Forty-fourth Amendment*, conferring once again the powers earlier conferred on the High Courts.)

This distinction between Art. 32 and Art. 226 was reiterated by the Supreme Court in *Fertilizer Corporation Kamgar Union v. Union of India* (AIR. 1981 S.C. 344) in the following words :

"The difference in the phraseology of the two Articles brings out the marked difference in the nature and purpose of the right conferred by these Articles. Whereas the right guaranteed by Article 32 can be exercised for the enforcement of fundamental right; *only*. the right conferred by Article 226 can be exercised, *not only* for the enforcement of fundamental rights, *but for any other purpose*."

The jurisdictions of the High Courts and the Supreme Court are *concurrent* for the purpose of the enforcement of fundamental rights. Therefore, it is *not obligatory* on the petitioner to first move the High Court for the purpose of

the enforcement of his right. He may approach the Supreme Court directly. However, the Supreme Court has *held* in *Daryao v. State of U.P.* (AIR. 1961 S.C. 1457-1460) that a petitioner who has moved the High Court for the enforcement of his fundamental rights, and whose petition is dismissed, *cannot* move the Supreme Court under Art. 32 on the basis of the same facts.

Another point of difference is that under Art. 32, a remedy is available only if the fundamental rights are infringed by *the State*, while under Art. 226, the High Courts can provide remedies even if the fundamental rights are interfered with by *private individuals*.

It must also be noted that, whereas Art 32 confers a fundamental right to move the Supreme Court for the enforcement of the fundamental rights conferred by Part III of the Constitution. Art. 226 does *not* confer any fundamental right to move the High Court for the enforcement of the fundamental rights.

DIRECTIVE PRINCIPLES OF STATE POLICY

(Arts. 37-51 & 355)

"In my judgment, the directive principles have a great value, for they lay down that our ideal is economic democracy." — Dr. Ambedkar

The framers of our Constitution have chosen the middle path between the *ideal* and the *practicable*. They realised that some salutary principles, though necessary and highly desirable, could *not* be placed on the same level as fundamental rights. Hence, these *directive principles*, as they are called, have been put on a separate footing in Part IV of the Constitution.

This Part embodies a series of *general injunctions*, a number of *pious wishes* styled "Directive Principles of State Policy", which are intended to give an indication of the *policy* which the Union and the State ought to follow. They are directions to the State to meet those social, economic and cultural reforms which the framers of the Constitution looked upon as the *ideas of the new order*, but to which they did *not* give *legal* effect in the framework of the organic law itself.

The nature of Directive Principles.—The Directive Principles are like the *Instrument of Instructions* which were issued to the Governors of the Colonies by the British Government under the 1935 Act. The only difference is that they are instructions to the legislature and executive. Such a concept is welcome. Whenever there is a grant of power in general terms, it is necessary that it should be accompanied by *instructions regulating its exercise*.

Their legal force.—The Directive Principles of State Policy can be used for the purpose of private and political criticism, but *they confer no legal rights and create no legal remedies*. They are good guides, but they *cannot* be enforced. Human experience shows that whenever no machinery is provided for the enforcement of certain rights, they become merely paper declarations and *are not* of much practical value.

Thus, directive principles *cannot* be enforced by any Court. They are excluded from the purview of the Courts, and are, therefore, *not* justiciable. (See. Art. 37 below.) They differ from fundamental rights in that whereas the Directive Principles *are not* justiciable, fundamental rights *are* justiciable, that is to say, they can be *enforced by legal action*. (Art. 32)

Origin of the Directive Principles.—The provisions of the Constitution relating to Directive Principles provide a *novel feature*, in the sense that nothing comparable is to be found in any of the older Constitutions, as for example, the *American Constitution*. The *Weimer Constitution of Germany* did mention a few such principles, but these were *not* distinguished from fundamental rights. It was the *Irish Constitution* which, for the first time, mentioned directive principles in a clear perspective, distinguishing them from the fundamental rights. Our Constitution, *like the Irish Constitution*, lays down that these principles are *not judicially enforceable*. But it goes a step further to lay down that, nevertheless, they are fundamental in the governance of the country, and that it shall be the duty of the State to implement them by suitable legislation.

The Supreme Court has *held* that when there is a conflict between the Directive Principles and fundamental rights,

the fundamental rights shall prevail. (State of Madras v. Shri Champakan,—A.I.R. 1951 S.C. 226)

The above observation of the Supreme Court is to be read subject to the important rule of interpretation that an attempt must first be made to harmonize the two,— and it is only in cases of irreconcilable conflict, that the fundamental rights will prevail over the Directive Principles.

A five-member Bench of the Supreme Court has reiterated the need to give a harmonious interpretation to the Directive Principles. Although the Directive Principles are *not enforceable*, yet the Court should make a real attempt to *harmonize and reconcile* the Directive Principles and the Fundamental Rights. Any collision between the two should be avoided as far as possible. (*State of Tamil Nadu v. L. Abu Kavur Rai and others*, A.I.R. 1984 S.O 326)

It is also to be noted that under Art. 31C, if any law is passed to implement a directive principle covered by clause (b) or (c) of Art. 39 (see below), such a law *cannot* be challenged on the ground that it is inconsistent with, or takes away or abridges, any fundamental right conferred by Art. 14 (Right to Equality) or Art. 19 (Right to Freedom).

As seen earlier (Chapter III), an attempt was made by the Forty-second Amendment, 1976, to cover within the ambit of Art 31C, *not only* the Directive Principles mentioned in clauses (b) and (c) of Art. 39, *but all* the Directive Principles. This amendment was, however, struck down by the Supreme Court in the *Minerva Mills case* (referred to earlier)

(The *Minerva Mills' case* is discussed in detail in Appendix IV.) These Directive Principles cover a wide range of subjects The *general duty* of the State is defined in Article 38, to secure and protect the social order in which justice—social, economic and political.— shall inform all the institutions of national life. This is elaborated further by Art 39 Article 40 directs the State to organise *village panchayats* Article 41 provides that the State shall, within the limitations of its economic capacity and development, make effective provisions for the rights to work, of education, and of public assistance in case of unemployment, old age, sickness, disablement and other cases of undeserved want. Just and humane conditions of work, maternity relief, a living wage, decent standard of life, full enjoyment of leisure, a uniform civil code, free primary education, raising of the standard of living, improvement of public health, the preservation of national monuments and international peace and security are among the other provisions dealt with in the other Articles of this Part. (See below.)

As stated above, these Directive Principles have no *legal force*. This is made quite clear by Art. 37, which runs thus —

The Directive Principles shall *not be enforceable by any Court but* the principles therein laid down are nevertheless fundamental in the governance of the country, and it shall be the duty of the State to apply these principles in making law. [Art. 37]

The fact that the directive principles are *not enforceable* in a Court of Law does *not*, however, mean that no judicial notice is taken of such principles. The Courts have *held* that a *harmonious interpretation has always* to be aimed at. The State, while it implements these principles, should take care to see that the fundamental rights are also protected at the same time. *If not*, the provisions regarding the fundamental rights would, (as observed in *Mahomed Hanif Querishi v. The State of Bihar*), be a 'mere rope of sand'.

In this connection, the observations of Jagannadhdas J. in *Subodh Gopal's Case* (1954 S.C.R. 670) are interesting

"I am also of the opinion that the country may *not* ignore the directive principles as having no bearing on the interpretation of the constitutional problems, since Article 37 categorically states that."

In the *State of Bihar v. Kameshwar Prasad*, (1952 S.C.J 354), the Supreme Court went a step further and relied upon the directive principles to explain the implication of the words "public purpose" occurring in Part III of the Constitution (dealing with fundamental rights).

The Directive Principles laid down in Part IV of the Constitution are *seventeen* in number. To these, may be added an *eighteenth*, contained in Art. 355. All these can be listed as follows

1. State to secure a social order for the promotion of the welfare of the people (Art. 38)

The State shall strive to *promote* the *welfare* of the *people*, by securing and protecting as effectively as it may, a social order in which social, economic and political justice, shall inform all the institutions of the national life.

It is further provided that, in particular, the State shall strive to minimise the inequalities in income, and endeavour to eliminate inequalities in status, facilities and opportunities, *not only* amongst individuals, *but also* amongst groups of people residing in different areas *or* engaged in different vocations.

2. Certain principles of policy to be followed by the State (Art. 39)

The State shall direct *its policy towards securing*—

(a) that the citizens, men and women, equally have the right to an *adequate means of livelihood*;

(b) that the ownership and control of the *material resources* of the community are so *distributed* as best to subserve the common good;

(c) that the operation of the economic system does *not* result in the *concentration of wealth* and the means of production to the common detriment;

(d) that there is *equal pay for equal work* for both men and women;

(e) that the *health* and *strength* of workers, men and women and the tender age of children are *not abused*, and the *citizens* are *not forced* by economic necessity to *enter avocations unsuited* to their age or strength; (f) that children are given opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity, and that *childhood* and *youth* are *protected* against *exploitation* and against moral and material abandonment.

Thus, the Monopolies and Restrictive Trade Practices (MRTP) Act, **was** enacted to further the directive of clause (c) above. (This Act is now replaced by the Competition Act.)

3. Equal justice and free legal aid (Art. 39A)

Art. 39A provides that the State shall secure that the operation of the legal system promotes justice on a basis of equal opportunity, and shall, in particular, provide *free legal aid* (by suitable legislation or schemes or in any other way) to ensure that opportunities for securing justice are *not* denied to any citizen, by reason of economic or other disabilities.

Thus, several Legal Aid Clinics and similar programmes have been **set up** in furtherance of the directive principle laid down in Art. 39A.

The Supreme Court has *observed* that it is the constitutional right of every accused person who is unable to engage a lawyer and secure legal services on account of reasons such as poverty or indigence, to have free legal services provided to him by the State. and the State is under a constitutional mandate to provide a lawyer to such accused person, if the needs of justice so require. The Court *further observed* that if free legal services are *not* provided to such an accused, the trial itself may run the risk of being vitiated as contravening Article 21 of the Constitution. (*Aussainara Khatoon & Others v The Home Secretary, State of Bihar*, (1980) 1 S.C.C. 108)

4. Organisation of village panchayats (Art. 40)

The State shall take steps to organise village *panchayats*. and endow them such powers and authority as may be necessary to enable them to function as units of self-government

The Seventy-third Amendment of the Constitution (1993) has now introduced Chapter IX (consisting of Arts 243 to 243-0), containing detailed provisions regarding *Panchayats*.

5. Right to work, to education and to public assistance in certain cases (Art. 41)

The State shall, within the limits of its economic capacity and development, make effective provisions for securing the *right to work*, *to education* and *to public assistance in cases of unemployment, old age, sickness and*

disablement, and in other cases of undeserved want.

8. Provision for just and humane conditions of work and maternity relief (Art. 42)

The State shall make provisions for securing *just and humane conditions of work* and *for maternity relief*.

7. Living wage, etc., for workers (Art. 43)

The State shall endeavour to secure (by suitable legislation or economic organisation or in any other way) to all workers, agricultural, industrial or otherwise —work, a *living wage*. conditions of work ensuring a *decent standard of life* and full enjoyment of leisure and social and cultural opportunities, and in particular, the State shall endeavour to *promote cottage industries* on an individual or co-operative basis in rural areas.

8. Participation of workers in management of Industries (Art. 43A)

Art. 43A provides that the State shall take steps (by suitable legislation or in any other way) to secure the participation of workers in the management of undertakings, establishments or other organisations engaged in any industry.

9. Uniform Civil Code for citizens (Art. 44)

The State shall endeavour to secure for the citizens a *uniform civil code* throughout the territory of India.

As various systems of "personal law" prevail in the country, this Article enjoins on the State the task of establishing a uniform civil code for the *whole of India*. At present, *Hindus* are governed by Hindu Law, the uncoded portion whereof is based on the ancient Sanskrit texts. Likewise, the *Muslims* are governed by Muhammadan law, which is based on the *Koran*. Moreover, there are separate matrimonial laws for the *Christians* and the *Parsees*. As India has accepted **the ideal of a secular State**, this Directive Principle seeks to replace **the various systems of personal law by a uniform civil code**.

It is towards the fulfillment of this goal that, in 1955 and 1956, Parliament codified the laws relating to Hindus in respect of marriage, divorce, minority and guardianship, succession, maintenance and adoption. A secular Bill governing adoption of all children was also introduced in Parliament, but was later withdrawn.

In the celebrated (and the equally controversial) *Shah Banos case (Mohd Ahmed Khan v. Shah Bano Begum. A.I.R. 1985 S.C. 945)*, the Supreme **Court** pleaded for a uniform Civil Code throughout India, and observed as follows : "A common Civil Code will help the case of national integration, by removing desperate loyalties to laws which have conflicting ideologies."

Likewise, in another decision of the Supreme Court (*Ms. Jorden Diengdeh v. S.S. Chopra. A.I.R. 1985 S.C. 935*), the Court reiterated the **urgent** necessity for a uniform Civil Code, and observed :

"The time has now come for a complete reform of the law of **marriage** and make a uniform law applicable to all people, irrespective of religion or caste."

10. Provision for early childhood care and education (Art. 45)

The State shall endeavour to provide early childhood care and education **for all children** until they complete the age of six years.

This provision was introduced by the *Eighty-sixth Amendment, 2002. Prior thereto, S. 45* provided that the State shall endeavour to provide free and compulsory education to all children under the age of **14**. *After the said Amendment, the right to* education for all children between the ages of 6 and 14 has been made a Fundamental Right.

The position today is that early childhood care and education for children below the age of 6 is a Directive Principle, whereas **free and** compulsory education for all children between the ages of 6 and 14 **is** a Fundamental Right.

11. Promotion of educational and economic Interests of Scheduled Castes, Scheduled Tribes and other weaker sections (Art. 46)

The State shall promote, with special care, the educational and economic interests of the *weaker sections of the people*, and in particular, of the *Scheduled Castes* and the *Scheduled Tribes*, and shall *protect them* from social injustice and all forms of exploitation.

12. Duty of the State to raise the level of nutrition and the standard of living and to improve public health (Art. 47)

The State shall regard the raising of the level of nutrition and the standard of living of its people and the improvement of public health as among its primary duties, and in particular, the State shall endeavour to bring about *prohibition* of the consumption (except for medicinal purposes) of *intoxicating drinks* and of *drugs* which are injurious to health. In implementation of this Directive Principle, some States (*e.g.* Gujarat) have enacted legislation relating to prohibition of liquor within the State.

13. Organisation of agriculture and animal husbandry (Art. 48)

The State shall endeavour to organise *agriculture* and animal husbandry on modern and scientific lines, and *take steps for preserving and improving the breeds*, and *prohibiting the slaughter* of cows and calves and other milch and draught cattle.

Thus, in *Md. Hanif Quareshi v. State of Bihar* (AIR. 1958 S C. 731), the Supreme Court relied upon Art. 48, and held that a law which prohibits the slaughter of cows and calves and other milch and draught cattle capable of work, will be *valid and constitutional*.

14. Protection and improvement of environment and safe-guarding of forests and wild life (Art. 48A)

Art. 48A provides that the State shall endeavour to protect and improve the environment, and to safeguard the forests and wildlife of the country.

15. Protection of monuments and places and objects of national importance (Art. 49)

It shall be the obligation of the State to protect *every monument* or place or object of artistic or historic interest, declared to be of national importance, *from spoliation*, disfigurement, destruction, removal, disposal or export, as the case may be.

In pursuance of this directive principle, Parliament **has** enacted the Ancient and Historical Monuments and Archaeological Sites and Remains (Declaration of National Importance) Act, 1951

16. Separation of judiciary from the executive (Art. 50)

The State shall take steps to *separate the judiciary from the executive* in the public services of the State.

The Constitution itself contains stringent provisions which provide for an independent judiciary, which is totally free from executive control. Likewise, the Code of Criminal Procedure, 1973, contains several provisions for achieving this ideal of separation of the judiciary from the executive

17. Promotion of international peace and security (Art. 51)

The State shall endeavour to—

- (a) promote international *peace and security*;
- (b) maintain *just and honourable relations* between nations;
- (c) foster *respect for international law and treaty obligation* in the dealings of organised people with one another;
and
- (d) encourage *settlement of international disputes by arbitration*.

The Supreme Court has clarified that, if ever there is any conflict between International Law and the internal law of India, the Court must follow the latter. Incidentally, in this particular case, the Court also came to the conclusion that

no such conflict in fact arose. (*Gramophone Co. of India v. Birendra Bahadur Pandey*, A.I.R. 1984 S.C. 667)

18. Duty of Union to protect States against external aggression and internal disturbances (Art. 355)

Art. 355 (which is *not* in Chapter IV of the Constitution, which deals with Directive Principles), provides that it shall be the duty of the Union to *protect every State against external aggression and internal disturbance*, and to ensure that the Government of every State is carried on in accordance with the provisions of the Constitution.

Utility of the Directive Principles

The Directive Principles contained in Part IV of the Constitution have often been criticised. Critics, at home as well as abroad, have pointed out that these directives are *neither properly classified nor logically set out*. Most of the promises, it is said, are *vague* and *represent ideals*, without being categorical on vital issues.

Although such criticism has some merit, nevertheless, it is also to be remembered that these directives do serve a purpose,— and a very important one. They lay down the ideal of a welfare State, and if properly and judiciously implemented, will lead India towards its goal of an ideal welfare State. Moreover, they will also lend a continuity of policy to the country. *Governments may come, and governments may go, but these directives will go on for ever.*

Thus, the directives are *not* a set of *new year's resolutions* or a *political manifesto*. Rather, they constitute *a code of conduct* in the hands of all who may have to shoulder the responsibility of administering the country. These directives are like the *constitutional conventions* which prevail in England, and should always remain in the forefront in the governance of the country.

Moreover, under Art. 31C of the Constitution, laws passed to implement directives covered by clauses (b) or (c) of Art. 39 (see above) are now immune from challenge under Art. 14 (Right to Equality) and Art. 19 (Right to Freedom).

Furthermore, although the directive principles are ***not justiciable***, the Judiciary has nonetheless respected these principles when interpreting laws passed by the legislature. Often, the constitutional validity of statutes has been decided on the strength of the directive principles. Thus, Art. 43 was relied upon to uphold the reasonableness of a restriction imposed under the Minimum Wages Act. So also, when deciding the reasonableness of a law relating to cow-slaughter, the Supreme Court turned to Art. 48.

How far these Directives have been realized

India has gone a long way in implementing most of the Directives contained in Part IV of the Indian Constitution. Statutes on land reforms, nationalisation of Banks and Insurance Companies, promotion of cottage industries and village ***panchayats*** are concrete examples of the implementation of these directive principles. The enactment of codifying legislation in the hitherto uncoded Hindu Law (as reflected in the Hindu Marriage Act, the Hindu Succession Act, *etc.*) was also a bold step towards codifying the personal laws of the Hindus. So also, passing of the Monopolies and Restrictive Trade Practices Act 1969. — and later — of the Competition Act, 2002 — were direct attempts at achieving the goal enshrined in Art. 39.

However, a lot yet remains to ***be*** done. We still do ***not*** have a uniform civil code for all Indians; nor have we secured the right to work to every able-bodied citizen of India; nor is early childhood care and education available to all children under ***six years of age***. Ours is an infant democracy and one ***cannot*** expect to see radical changes overnight. It is, therefore, heartening to see that ***our Nation is, slowly but surely, marching ahead towards its goal of a Welfare State.***

4-A

FUNDAMENTAL DUTIES

(Art. 51A)

Prior to the Forty-second Amendment of the Constitution, which came into force on 1st February, 1977, there was no provision in the Constitution dealing with the *fundamental duties of a citizen*. Art. 51k which was introduced by this Amendment, now provides for *eleven fundamental duties*. This Article lays down that it shall be the duty of every citizen of India—

- (a) to abide by the Constitution, and respect its ideals and institutions, the National Flag and the National Anthem;
- (b) to cherish and follow the noble ideals which inspired *our* national struggle for freedom;
- (c) to uphold and protect the sovereignty, unity and integrity of India;
- (d) to defend the country and render national service when called upon to do so;
- (e) to promote *harmony* and the *spirit of common brotherhood* amongst all the people of India, transcending religious, linguistic and regional or sectional diversities; to renounce practices derogatory to the dignity of woman;
- (f) to value and preserve the rich heritage of our composite culture;
- (g) to protect and improve the natural environment, including forests, lakes, rivers and wild life, and to have compassion for living creatures;
- (h) to develop the scientific temper, humanism and the spirit of inquiry and reform;
- (i) to safeguard public property and to abjure violence;
- (j) to strive towards excellence in all spheres of individual and collective activity, so that the nation constantly rises to higher levels of endeavour and achievement; *and*
- (k) who is a parent or guardian, to provide opportunities for education to his child, or as the case may be, ward, between the age of 6 and 14 years.

The list of *fundamental duties* was incorporated in the Constitution on the recommendation of the *Swaran Singh Committee*. This has now brought our Constitution in the line with Art. 29(1) of the Universal Declaration of Human Rights. Similar provisions are also to be found in the Constitutions of Japan, China and U.S.S.R.

It may be noted that when Art. 51A was introduced in 1977, *ten* Fundamental Duties [clauses (a) to (j)] were listed. The *eleventh duty* [(clause k)] was introduced by the Eighty-sixth Amendment, 2002.

Fundamental duties have often been invoked in litigation involving protection of the environment. (See *Sachindanand v. State of West Bengal*, AIR 1987 SC 1109)

It is interesting to note that Art. 51A does **not** contain provision for the **enforcement** of the fundamental duties of citizens. Actually, the Swaran Singh Committee had suggested that the Parliament be empowered to impose punishment for breach of fundamental duties. However, this suggestion was **not** accepted when the Amendment Bill was drafted. Nevertheless, it is reasonable to expect that if the State makes any law to prohibit any act or conduct in violation of any of the fundamental duties, the Courts would uphold such a law as being a reasonable restriction on the corresponding fundamental right.

Although Art. 51-A **cannot** be enforced by a writ, its provisions can be used for interpreting ambiguous statutes. (*Mumbai Kamgar Sabha v. Abdulbhai*, AIR 1976 SC 1455)

Moreover, the Courts may also take the fundamental duties into consideration when interpreting a provision of an Act which admits of two possible constructions.

The **moral value** of the fundamental duties is, in the words of late Prime Minister Mrs. Indira Gandhi, **"not** to smother rights, **but** establish a democratic balance".

It is to be noted that Art. 51-A is confined to all **citizens**, and does **not** apply to all **persons**.

THE UNION (Arts. 52-151)

In this Chapter, *three important topics* are discussed, namely :

A. THE UNION EXECUTIVE (Arts. 52-78, 85-87)

Under this head, the law relating to the following topics is discussed : (1) The Doctrine of Separation of Powers under the Indian Constitution. (2) The President of India (Arts. 52-62, 73)
(3) The Vice-President of India (Arts. 63-71)
(4) The Council of Ministers (Arts. 74-78)
(5) The Attorney-General for India (Arts. 76, 88 & 124)

B. PARLIAMENT (Arts. 79-122)

Under this head, the following six topics are discussed :

- (1) The Constitution of Parliament (Arts. 79-88, 330, 331, 334)
- (2) Disqualification of members of Parliament (Arts. 101-104)
- (3) Disabilities, powers, privileges and immunities of Parliament and its members (Arts. 101, 105 and 106)
- (4) Conduct of Parliamentary business (Arts. 85-88, 99, 100, 104, 121-122 and the Third Schedule)
- (5) Procedure in financial matters (Arts. 112-117)
- (6) General provisions (Arts. 120-122)

C. THE UNION JUDICIARY (Arts. 124-147)

This is sub-divided into :

- (1) Supreme Court Judges (Arts. 124-128)
- (2) The Supreme Court of India (Arts. 129-147)

A. The Union Executive (Arts. 52-78, 85-87)

(1) THE DOCTRINE OF SEPARATION OF POWERS UNDER THE INDIAN CONSTITUTION

The Indian Constitution, though a federal Constitution, has *not* adopted the doctrine of separation of powers, unlike the American Constitution, where the working of this doctrine is well-exemplified. The executive in India, both at the Centre and in the States, is based on the Cabinet system of Government and is responsible to the Parliament. The President of the Union of India is the constitutional head of the State, and therefore, the central executive is *not* a Presidential executive.

The only extent to which the doctrine of separation of powers is adopted in the Constitution is to that of guaranteeing the *independence of the judiciary*. Elaborate provisions are made to ensure the independence of the judiciary from legislative and executive interference. Besides providing certain guarantees regarding appointment, removal and service conditions, the Constitution further provides that no discussion shall take place in Parliament with respect to the conduct of any judge of the Supreme Court or of a High Court in the discharge of his duties. The *only exception* is provided by Art. 129. under which steps can be taken to remove a judge of the Supreme Court.

Moreover, Art. 50 (dealing with Directive Principles) also provides that the State shall take steps to separate the judiciary from the executive in the public services of the State.

In *Gopalan's case* (AIR 1950 S.C. 27). Patanjali Shastri J. observed that the people of India, in delegating to the legislature, the executive and the judiciary. their respective powers. reserved to themselves certain fundamental rights, so called because they had been retained by the people and made paramount to the delegated powers as in the U.S. After examining the doctrine of separation of powers, the Learned Judge accepted the British, as opposed to the American, view that the maxim *delegate potestas non potest delegari* (a delegate **cannot** delegate) did *not* apply to legislatures in India. and that the Indian constitution, unlike the American one, was *not based on the doctrine separation of powers*.

(2) THE PRESIDENT OF INDIA (Arts. 52-62, 73)

The President of India is *the most important executive officer* in the Constitution. He is the supreme executive authority of the Union. The President occupies almost the same position as the King under the English Constitution. He is the 'head of the State, but *not* of the Executive. He *represents* the nation, but does *not rule it* He is the *symbol*

of the nation His place in the administration is that of *a ceremonial seal* by which the nation's decisions are made known

Article 52 provides that there shall be President of India The *executive power* of the Union is vested in him, and is exercised by him either *directly or through officers* subordinate to him Also vested in him is the supreme command of the Defence Forces of the Union [Art 53]

EXECUTIVE POWER.—Wynes defines the term "*executive*" in the following words : "The *executive* may be deemed as the authority within the State which administers the law, carries on the business of Government and maintains order within, and security from without, the State"

The various powers that are included within the comprehensive expression "executive power" in a modern State have been grouped by political writers under the following heads :

- (a) *Administrative* power, i.e., the execution of the laws and the administration of the Government;
- (b) *Diplomatic* power, i.e., the conduct of foreign affairs;
- (c) *Military* power, i.e., the organisation of the armed forces and the conduct of war;
- (d) *Legislative* power, i.e., the summoning, prorogation *etc.*, of the Legislature; **and**
- (e) *Judicial* power, i.e., granting pardons, reprieves *etc.*, to persons convicted of crime.

Extent of the executive power of the Union [Art. 73]

Art. 73 provides that the executive power of the Union extends to the matters with respect to which Parliament has the power to make laws. Such executive power, however, does *not* extend in any State to matters with respect to which the Legislature of that State has *also* the power to make law.

In other words, what Art. 73 lays down is that the Union has exclusive executive power for—

- (a) the administration of laws made by Parliament under its exclusive powers; and
- (b) exercise of its treaty powers.

While executive authority in regard to matters in the *Concurrent List* is ordinarily left to the States. Parliament is entitled to provide that in *exceptional* cases, the executive power of the Union shall also extend to these subjects.

All *executive* action of the Government of India is taken in the name of the President. [Art. 77(1)] He is entitled to a free official residence and such other emoluments and allowances as are determined by Parliament by law and until such determination, the President shall get Rs. 1.50.000 per month. (When enacted, the Constitution had fixed Rs. 10,000 as the President's salary.) The emoluments of the President are *not* subject to reduction during the terms of his office. [Art. 59] He holds office for *five years* unless he, by writing under his hand addressed to the Vice-President, *resigns* his office, or is *removed* from office for *violation of the Constitution*. [Art. 56] A person holding the office of the President is also eligible for re-election. [Art. 57]

Before entering upon his office, the President has to *make* and *subscribe* in the presence of the Chief Justice of India (or, in his absence, the seniormost Judge of the Supreme Court available) an *oath or affirmation* in the prescribed form. [Art. 60] All orders and other instruments made and executed in the name of the President are to be *authenticated* in such manner as may be specified by him, and the validity of an order or instrument which is so authenticated *cannot* be called in question on the ground that it is *not* an order or instrument made or executed by him. [Art. 77(2)]

Rules As To Election Of President

(Arts. 54-55, 58-59 & 71)

The President of India is elected by the members of an *electoral college* consisting of :

- (a) the elected members of *both* Houses of Parliament, *and*
- (b) the elected members of the Legislative Assemblies of the States. [Art. 54]

As far as practicable, there must be uniformity in the scale of representation of the different States at the election of the President. For the purpose of securing this uniformity, the number of votes which each elected member of Parliament and of the Legislative Assembly of each State is entitled to is to be determined in the following manner :

(a) **Each** elected member of the *Legislative Assembly* has as many

votes as there are multiples of one thousand in the **quotient** obtained by dividing the population of the State **by the total** number of the elected members.

(b) If, after taking the said multiple, the remainder is *not less than 500*, then the vote of each member is to be increased by one.

(c) Each elected member of *either House of Parliament* has such number of votes as may be obtained by dividing the total number of votes assigned to the Legislative Assemblies of the States by the total number of elected members of both the Houses of Parliament, any fraction exceeding half being counted as one. [Art. 55]

The President's election is to be held in accordance with the *system of proportional representation by means of a single transferable vote*, and the voting at such election is to be by secret ballot. [Art. 55(3)]

PROPORTIONAL REPRESENTATION BY MEANS OF A SINGLE TRANSFERABLE VOTE.—This device is adopted, *not only for* the election of the President, *but also for* election of the representatives of the States in **the** Council of States (Art. 80(4)), and for election of the members of the Legislative Council of a State. [Art. 171(4)]

Now, the essential features of the system of voting by means of a single transferable vote are as follows. The election is held by general constituencies. All the candidates who compete for the seats allotted to a constituency have their names printed on one ballot paper. Each elector has only one vote, in the sense that he will be capable of electing one candidate only. But that vote will *not* be wasted in case the candidate whom he wishes to elect has *not* got more than the required number of votes, called the 'quota'. The voter is required to indicate his first, second and third preferences and so on, by placing the figures 1,2,3 *etc.* against each candidate. The voting paper, under this system, will be on the **following pattern** :

Name of Candidate	Order of Preference (Filled up by the voter)
A	2
B	4
C	1
D	3

In the above voting paper, the voter has indicated that his first preference **is** for C, and failing C, his vote should be transferred to A, **and so on**.

At the time of the first count, *only the first preference votes of all the candidates are counted*, and a candidate getting an *absolute majority* of first preference votes is declared to be elected. Thus, if in the above example, the total number of voting papers is 1,000 and C secures 501 (or more) first preference votes, he will be declared to be elected. But, *if there is no absolute majority* of first preference votes in favour of any candidate, a *second count* is resorted to. At the stage of the second count, the candidate getting the minimum number of first preference votes is eliminated, and the votes from such ballot papers are transferred to **the** other candidates, according to the preferences indicated on these ballot papers. Thus, if C has obtained only 400 first preference votes, A had secured 300, B has obtained 160, and D had secured 140, a second count would become necessary. At this count, D is eliminated, as he gets the minimum number of first preference votes. Now, if all the 140 votes of D have indicated their second preference for C, those 140 votes will be transferred to C, making his total votes 540 (400 *plus* 140), and C would be elected on the second count.

As seen above, Art. 55 makes a reference to the *population* of a State. It is now provided that the expression "population" means the population as ascertained at the last Census of which the figures are published. However,

it is also provided that this shall be a reference to the 1971 Census, until the figures for the first Census taken after the year 2026 have been published.

Qualifications for election (Arts. 58-59)

The Constitution prescribes the following qualifications which a person must fulfil to be eligible for election as President :

- (a) He must be a citizen of India.
- (b) He must have completed the age of 35.
- (c) He must be qualified for such election.

A person is *not* eligible for election as President, if he holds any office of *profit* under the Government of India (or the Government of any State or under any local or other authority subject to the control of any of the said Governments). But, a person is *not* to be deemed to hold any office of profit, *by reason only* that he is the President or Vice-President of the Union or the Governor of any State or is a Minister either for the Union or for any State. [Art. 58]

The President *cannot* be a member of either House of Parliament or of a House of the Legislature of any State, and if he is, then he is deemed to have vacated his seat on his assumption of office as President. Further, he *cannot* hold any office of profit. [Art. 59]

Art. 71 provides that all doubts and disputes arising out of or in connection with the election of the President (and Vice-President) are to be decided by *the Supreme Court*, whose decision is final. Subject to this, Parliament is given power to regulate any matter relating to the election of the President.

However, it is expressly provided that the election of a person as a President is *not* to be called in question on the ground of the existence of any vacancy (for whatever reason) among the members of the electoral college electing him.

If the election of a person as President is declared *void*, acts done by **him** in exercise and performance of the powers and duties of the office of President *on or before* the date of the decision of the Supreme Court **are not** invalidated by reason of that declaration. [Art. 71 (4)]

Powers Of The President (Arts. 3, 53, 72-77, 85-87 etc. & 392)

The various powers which the President enjoys under the Constitution can be grouped under *eight heads* as follows :

1. *Executive* powers : Arts. 74-77, 124, 148, 155-156, 217, 283, 280, 299, 316, 324, 338, 344.
2. *Military* powers : Art. 53(2).
3. *Legislative* powers : Arts. 3, 85-87, 112, 115, 117, 123, 151, 247, 338.
4. *Rule-making* powers : Arts. 77, 101, 118, 318 and 320.
5. *Judicial* powers : Arts. 72, 143.
6. *Emergency* powers : Arts. 352-360 and 365.
7. *Financial* powers.
8. *Miscellaneous* powers : Art. 392

1. Executive powers (Arts. 74-76, 77, 124, 148, 155-156, 217, 283, 280, 299, 316, 324, 338, 344)

(1) All *executive* action of the Government of India is to be expressed to be taken in the name of the President. [Art. 77(1)] All orders and other instruments made and executed in the name of the President are to be authenticated in such manner as may be specified by him. The validity of an order or instrument which is so authenticated *cannot* be called in question on the ground that it is *not* an order or instrument made or executed by him. [Art 77(2)]

All *contracts* made in the exercise of the executive power of the Union or of a State are to be made by the *President*.

and all such contracts and all assurance of property made in the exercise of that power are to be executed on behalf of the President *or* by such persons and in such manner as he may direct or authorise. [Art 299(1)]

(2) The President also has the power to *appoint*

- (i) The Prime Minister of India and other Ministers of the Union Art. 74 (ii) The Attorney-General for India Art 76
- (iii) The Comptroller and Auditor-General of India : Art. **148**
- (iv) The Judges of the Supreme Court - Art 124
- (v) Judges of the High Courts of the States : Art. 217
- (vi) The Governor of a State Art 155
- (vii) An Inter-State Council : Art. 283
- (viii) The Union Public Service Commission and a joint Commission for a group of States : Art. 316
- (ix) The Finance Commission : Art 280
- (x) Election Commissioners - Art 324
- (xi) Special Officer for Scheduled Castes and Scheduled Tribes: Art. 338
- (xii) A Commission on Languages : Art. 344.

(3) The President also has the power to *remove*—

- (i) The Ministers : Art. 75(2);
- (ii) The Attorney-General for India Art. 76(4); and
- (iii) the Governor of a State : Art. 156(1).

2. Military Powers [Art. 53(2)]

As regards the military powers of the President, he is the *Supreme Commander of the Defence Forces*, But, Article 53 of the Constitution specifically provides that the exercise of military power by the President is to be regulated by law. Parliament has the right to make the laws for the raising, maintenance, control and employment of the Defence Forces.

Parliament also has the right to lay down, by law, the method of declaring war and making peace. The Indian President *cannot* declare war or employ force without, or in anticipation of, the sanction of the Parliament. Interestingly, the Indian President does *not* possess the wide power which the American President does in this field.

3. Legislative powers (Arts. 3, 85-87, 112, 115, 117, 123, 151, 247, 338)

The legislative powers of the President are as follows :

- (a) The power to summon, prorogue and dissolve Parliament : Art. 85 (b) The right to make an opening address : Art. 87
- (c) The right to address and send messages : Art. 86
- (d) The power to cause certain reports and statements to be laid before Parliament. so that Parliament may have the opportunity to take its action upon them, *e.g.* the Annual Financial Statement (Art. 112), the Report of the Comptroller and Auditor-General of India relating to the accounts of the Government of India (Art. 151)
- (e) The power of sanctioning introduction of certain legislative measures, *e.g.* for alteration of State boundaries (Art. 3), Money Bill (Art. 117), *etc.* (f) The power to legislate by Ordinances during recesses of Parliament : Art. 123.

Power to promulgate Ordinances during recess of Parliament (Art. 123)

Ordinance when promulgated [Art. 123(1)]

If, at any time (*except when both Houses of Parliament are in session*), the President is satisfied that circumstances exist which render it necessary for him to take immediate action, he may promulgate such *Ordinances* as the circumstances appear to him require.

It is to be remembered that the promulgation of an Ordinance can be made *only when the Legislature is in recess, and not in session*. The executive is given the power to issue Ordinances and thereby promulgate a law for a short period of time. This technique of law-making is obviously devised to enable the executive to meet unforeseen or urgent situation arising in the country at a time when the country's legislature is *not* in session.

At first glance, this law-making power of the executive may appear to be undemocratic. However, *when properly analyzed*, the provisions of Art. 123 clearly indicate that this power can be used only in situations of necessity. In any case, the Ordinance has to be placed before both the Houses when they assemble and it can be disapproved by them.

The Article empowers the President to legislate by Ordinance, to meet with any circumstances that require immediate action, *when Parliament is not in session*. A session is the period of time between the first meeting of Parliament and its prorogation or dissolution, whichever takes place earlier. Parliament must, therefore, be deemed to be in session till it is prorogued or dissolved. It will thus be seen that an Ordinance made by the President under the present Article [or by a Governor under Art. 213(1)] will be *void if it is promulgated before* an order of prorogation of the legislature is made and notified.

Its effects [Art. 123(3)]

Such an Ordinance has the *same force and effect as an Act of Parliament*.

When inoperative [Art. 123(2)(a)]

Such an Ordinance may be withdrawn at any time by the President. It must also be laid before both Houses of Parliament, and it ceases to operate at the expiry of *six weeks* from the reassembly of Parliament, *or*, if before the expiry of that period, resolutions *disapproving* it are passed by *both* Houses—upon the passing of the *second* of those resolutions.

When void [Art. 123(3)]

If an Ordinance under this Article makes any provision which Parliament would *not* under this Constitution be competent to enact, the Ordinance would be *void* to that extent. This Article makes the legislative power of the President *co-extensive* with the power of the Parliament itself. So, he *cannot* enact what the Parliament could *not* : [See Arts 245 to 254 below] Thus, an Ordinance violating any fundamental right would be *void*.

Whether the Ordinance-making power is to be exercised on the personal satisfaction of the President

Although Art. 123 confers the Ordinance-making power on the President, as in all other matters, he would have to act on the advice of the Council of Ministers. As observed by the Supreme Court, -The Ordinance is promulgated in the name of the President and in a constitutional sense, on his satisfaction; but it is in truth promulgated on the advice of his Council of Ministers and on their satisfaction. (*R. C. Cooper v. Union of India*, also known as *the Bank Nationalisation Case*, AIR 1970 SC 564)

Whether an Ordinance is subject to judicial review

In the *Bank Nationalisation Case* (above), the Government had issued an Ordinance under which the Central Government sought to nationalise several banks. This Ordinance was challenged before the Supreme Court, contending that the condition precedent contained in Art. 123 had *not* been fulfilled. The argument that was put forward was that Art. 123 does *not* make the President the final arbiter of the exercise of the conditions on which the power of Ordinance making may be exercised. On the other side, the Government argued that the satisfaction of the President was purely subjective and Government was under no obligation to disclose the existence of, or justify, the circumstances which made it necessary to take immediate action. The court found a clever solution to this problem : It *held* that as the Ordinance had already been converted into an Act of Parliament, it would be best to leave the question open, as it had become academic.

Later, in *A. K. Roy v. Union of India* (AIR 1982 SC 710), once again the question of judicial review of the

President's satisfaction was raised before the Supreme Court, this time with reference to the National Security Ordinance, which was promulgated in 1980 to provide for preventive detention. Once again, the Supreme Court thought it prudent to leave this question open. However, this time, it did observe that "judicial review is *not* totally excluded regard to the question relating to the President's satisfaction."

The Supreme Court has *also held* that since the power to promulgate an Ordinance is a legislative - and *not* an executive - power, its exercise *cannot* be questioned on grounds such as improper motive or non-application of mind or on the grounds of its propriety, expediency or necessity. (T. Venkata Reddy v. State of Andhra Pradesh, AIR 1985 SC 724)

On this aspect of Art. 123, the following observations of the Supreme Court in *K Nagraj v. State of Andhra Pradesh* (AIR 1985 SC 551) are interesting.

"It is impossible to accept the submission that an ordinance can be invalidated on the ground of non-application of mind. The power to issue an Ordinance is *not* an executive power, but is the power of the executive to legislate. This power is plenary within its field like the power of the legislature to pass laws, and there are no limitations upon that power, except those to which the legislative power of the legislature is subject. Therefore, though an Ordinance can be invalidated for contravention of the constitutional limits which exist on the power of a legislature to make laws, it *cannot* be declared invalid for the reason of non-application of mind, any more than any other law can be. An executive act is liable to be struck down on the ground of non-application of mind; *not* the Act of a legislature." In all the above cases, the Supreme Court appears to have treated an Ordinance on the same footing as a law made by the legislature. However, it is submitted that this exaggerated immunity sought to be extended to Ordinances may *not* be justified. *Firstly*, whilst legislation is made through an elected body, an Ordinance is *not*. *Secondly*, the process of legislation is open and transparent, with an inbuilt mechanism of debating its pros and constitution, *not only* inside the legislature, but also outside it. The Ordinance-making power *cannot* boast of these qualities. *Lastly*, although an Ordinance is a legislative act, it is *not* a legislative act of the legislature, and thus, should be open to attack on the ground of *male fides*.

4. Rule-making powers (Arts. 77, 101, 118, 318 and 320)

1) The President is empowered to make rules for the more convenient transaction of the business of the Government of India and for the allocation of such business amongst the Ministers. (Art. 77)

(2) If a person is chosen *both* as a Member of Parliament *as well as* a Member of a State Legislature, his seat in Parliament becomes vacant according to the rules made by the President in this connection. (Art. 101)

(3) In consultation with the Chairman of the Rajya Sabha and the Speaker of the Lok Sabha, the President is empowered to make rules as to the procedure to be followed at joint sittings of the two Houses and for communication between the two Houses. (Art. 118)

(4) The President may, by regulation, —

(a) determine the number of members of the Union Public Service Commission, the Joint Commission, and their conditions of service, *and*

(b) make provisions with respect to the number of members of the staff of these Commissions and their conditions of service. (Art 318)

(5) The President can also make regulations specifying the cases in which it would *not* be *necessary* to consult the Public Service Commission while making recruitments to the services under the Union. However, all such regulations are to be laid before the Parliament. (Art. 320)

5. Judicial Powers (Arts. 72 & 143) The Judicial powers of the President are mainly *two*, enumerated in Arts. 72 and 143.

1. *Power to grant pardons etc.. and to suspend, remit etc., sentences* (Art. 27)

The President has the power to grant *pardons, reprieves, respites or remissions of punishment*, or to *suspend, remit or commute* the sentence of any person convicted of any offence — (a) in all cases where the punishment or sentence is by a *Court Martial*; or (b) where the punishment or sentence is for an offence against any law relating to a matter to which the executive power of the Union extends, or (c) where the sentence is a sentence of *death*.

However, clause (a) above does *not* affect any power conferred by law on any Officer of the Armed Forces of the Union to suspend, remit or commute a sentence passed by a Court Martial.

Similarly, clause (c) above does *not affect* the Governors power to suspend, remit or commute a death sentence under any law for the time being in force

KINDS OF PARDON.—A *pardon may be full, limited or conditional*.

REPRIEVE.—Reprieve refers to the *stay* of execution of a sentence or **of the** enforcement of a penalty. Thus, when a reprieve is granted, the execution of a sentence is *suspended*.

RESPIRE.—Respite means awarding a lesser sentence instead of the penalty prescribed. (The literal meaning of the term is *to discharge or dispense with*.)

REMISSION.—Remission reduces the *quantum* of a sentence without changing its *character*, as when rigorous imprisonment for one year is reduced to rigorous imprisonment for six months.

COMMUTATION.—Commutation is a change to a *lighter* penalty of a different form, as when a death sentence is commuted to imprisonment for life.

2. Power to consult the Supreme Court (Art. 143)

If, at any time, it appears to the President that a question of *law or fact* has arisen (or is *likely to arise*) which is of such a *nature* and of such *public importance* that it is *expedient* to obtain the opinion of the Supreme Court upon it, he may *refer the question to that Court* for consideration, and the Court *may*, after such hearing as it thinks **fit**, report to the President its opinion thereon.

Under this Article, the President, as the executive head of the Union, is empowered to refer questions of *law or fact for the* opinion and report of the Supreme Court. Such a question may have actually arisen *or may* be likely to arise, but it must be of such a *nature* and of such *public importance* that it is *expedient* to obtain the opinion of the Supreme Court upon it. This power to consult the Supreme Court is known as the *consultative power of the President*. The use of the word '*may*' clearly indicates that no obligation is cast on *the* Supreme Court to give its opinion in a given case.

However, the President can also refer to the Supreme Court, any dispute arising out of any *treaty*, agreement, engagement, *sanad* or other similar instrument executed before the commencement of the Constitution, but which continues in force even after such commencement. In such cases, it is *obligatory* on the Supreme Court to give its opinion. (This is fully discussed later under Arts. 143 and 145 under the heading *Consultative Jurisdiction of the Supreme Court*.)

6. Emergency Powers : Part XVIII (Arts. 352-360 & 365)

[This *important* subject has been discussed in detail in a later Chapter.]

7. Financial Powers

The President is authorised to lay before Parliament, at the beginning of every financial year, a financial statement showing the estimated receipts and expenditure of the Union for that year. No demand for a grant can be made except on the recommendation of the President.

The President also has the power to distribute between the Union and the States, shares from income-tax, and to

assign to Assam, Bihar, Orissa and West Bengal, grant-in-aid in lieu of their shares from jute export-duty. The President is also empowered to set up a Finance Commission. (For all these topics, a reference may be made to the Chapter on Financial Provisions.)

8. Miscellaneous Powers (Art. 392)

Power to remove difficulties (Art. 392)

The President may, for the purpose of *removing any difficulties*, (particularly in relation to the *transition* from the provisions of the Government of India Act, 1935, to the provisions of the Constitution) by order *direct that the Constitution shall have effect subject to such adaption*, whether by way of modification, addition or omission, as **he** may deem to be necessary or expedient. But no such order can be made after the first meeting of Parliament, and *every order* so made is to be *laid before Parliament*. This Article is to-day of academic interest only, and was designed to prevent difficulties which were likely to present themselves during the transition from the provisions of the Government of India Act, 1935, to the provisions of the Constitution.

President's Privileges (Art. 361)

The *four main privileges* of the President are laid down in Art. 361, **as follows**

1. The President is *not answerable to any Court* for the exercise and performance of the powers and duties of his office or for any act done by him in the exercise and performance of those powers and duties. But the conduct of the President may be brought under review by any Court, Tribunal or body appointed by either House of Parliament *for the investigation of a charge under Article 61* (below)
2. No criminal proceedings whatsoever can be *instituted or continued* against the President in any Court *during his term of office*.
3. No process for the *arrest or imprisonment* of the President can issue from any Court *during his term of office*
4. No civil proceedings, in which relief is claimed against the President, can be instituted *during his term of office* in any Court, in respect of any act done (or purporting to be done) by him in his *personal* capacity, whether *before or after* he entered upon his office as President, until the *expiry of two months* notice in *writing* delivered to the President (or left at his office) stating (i) the nature of the proceedings, (ii) the cause of action therefore, (iii) the name, description and place of residence of the party by whom such proceedings are to be instituted, and (iv) the relief which he claims

Procedure For Impeachment Of The President [Art. 61 & 361(1)]

It is *important* to remember that a President can be impeached *only for violation of the Constitution and nothing else*. This is made clear by subclause (1) to Art. 61. There are *three steps* in this *important procedure*. When a President is to be impeached for violation of the Constitution, the

following procedure is to be followed :

1. The charge must first be preferred by either *House of Parliament*. However, *no such charge can be preferred, unless—*
(a) the proposal to prefer such a charge is contained in **a resolution** which has been moved *after at least fourteen days'* notice in writing, signed by *not less than one-fourth* of the total number of members of the House, has been given, of their intention to move the resolution; and
(b) such resolution has been *passed* by a majority of *not less than two-thirds* of the total membership of the House.
2. When a charge has been so preferred by either House of Parliament, the *other House* must *investigate the charge*, and the President has the right to *appear* and to be *represented* at such investigation.

The conduct of the President can be brought under review by any Court, Tribunal or body appointed or designated

by the House of Parliament for the investigation of a charge under Art. 61 : [Art. 361(1)]

3. If as a result of the investigation, *a resolution* is passed by a majority of *not less than two-thirds* of the total membership of the House by which the charge was investigated, declaring that the charge preferred against the President has been *sustained*—*such* a resolution has *the effect of removing the President from his office* as from the date on which the resolution is so passed. It will be observed that the above power of Parliament to impeach the President acts as an *effective check* against the *dictatorial use* of the Presidential powers. It is noteworthy that this provision has never been invoked till date.

(3) THE VICE-PRESIDENT OF INDIA (Arts. 63-71)

There shall be a Vice-President, who shall be *ex-officio Chairman* of the Council of States (Arts. 63 & 64). It is he who has to act as the President in the event of any vacancy in the office of the President by reason of his death, resignation or removal. Likewise, when the President is unable to discharge his functions owing to absence, illness or any other cause, the Vice-president discharges the functions of the President until the date on which the President resumes his duties. The salary of the Vice President is Rs. 1,25,000 per month. **How elected [Art. 66(1) & (2)]**

The Vice-President is elected by the members of both Houses of Parliament assembled at a joint meeting following *the system of proportional representation by means of the single transferable vote*. (This system of voting has been explained earlier in detail, when dealing with the election of the President.) The Vice-President *cannot* be a member of either House of Parliament **or** of a House of the Legislature of any State, and even if he is, he is **deemed** to have vacated his seat on the date on which he enters upon his office as Vice-president.

His term of office (Arts. 67 & 68)

The term of office of a Vice-President is five years, unless he resigns or is removed from office (as discussed below). An election to fill a vacancy caused by the expiry of the term of office of the Vice-President **is** to be completed before the expiration of that term. However, if the vacancy occurs by reasons of his death, resignation or removal or otherwise, **the** election is to be held *as soon as possible* after the occurrence of the vacancy. The person who is elected in such circumstances is entitled to hold office for the full term of *five years* from the date on which he enters upon his office. A Vice-President holds office until the appointment of his successor, even though his term of office has expired.

Qualification for election as Vice-President [Arts. 66(3), (4) & (71)]

A person is *not* eligible for election as Vice-President, unless he
(i) *a citizen of India*,
(ii) has completed the age of *thirty-five years*, and
(iii) **is** qualified for election as a member of the Council of States.

Also, a person holding any office of profit under the Government of India or the Government of any State or under any local or other authority subject to the control of any of the said Governments is *not eligible* for election as Vice-President [Art. 66(3)]. However, a person is *not* to be deemed to hold any office of profit by reason *only* that he is the President or the Vice-President of **the** Union or the Governor of any State or is a Minister of the Union or of any State. [Art. 66(4)]

Art. 71 provides that all doubts and disputes arising out of or in connection with the election of the Vice-President are to be decided by **the Supreme Court**, whose decision is final. Subject to this, Parliament is given power to regulate any matter relating to the election of the Vice-President.

However, it is expressly provided that the election of a person as a Vice-President is *not* to be called in question on the ground of the existence of any vacancy (for whatever reason) among the members of the electoral college electing him

If the election of a person as Vice-President is declared *void*, acts done by him in exercise and performance of the powers and duties of the office of Vice-President *on or before* the date of such decision are *not* to be *invalid* by

reason of that declaration [Art. 71(4)]

His oath of office (Art. 69)

The Vice-President must, before entering upon his office, *make and subscribe* before the President (or some person appointed in that behalf by him), an *oath or affirmation* in the prescribed form.

How he may resign [Art. 67(a)]

The Vice-President may, by *writing under his hand addressed to the President*, resign his office.

How removed [Art. 67(b)]

The Vice-President may be *removed* from his office by a *resolution of the Council of States* passed by a *majority* of all the then members of the Council *and agreed to by the House of the People*. But no such resolution can be moved unless at least *fourteen days notice* has been given of **the** intention to move the resolution.

(4) THE COUNCIL OF MINISTERS (Arts. 74-75, 78 & Sch. 3)

NATURE OF THE COUNCIL OF MINISTERS.—The smaller body of ministers who form the *advisory council* of the President, with the Prime Minister at its head, and by whom the general policy of the executive (as also of the more important legislative measures introduced by the Government in Parliament) is decided, is known as the *Council of Ministers*, whose duty it is to *aid* and to *advise* the President in the exercise of his functions.

Before the Forty-second Amendment of the Constitution (which came into force on 1st February, 1977), a hotly-debated question was whether the President was *bound* to accept the advice of the Council of Ministers, that is, whether he was *a mere nominal executive head, a figure-head*,— or whether he enjoyed some *real power*. Before that Amendment, nowhere was it laid down in the Constitution that the President *shall* accept the advice of his ministers. The inevitable conclusion was that President of India was *not* a mere figure-head, but enjoyed some real power. The only question was—to what extent could the President exercise his power? Now, in ordinary and *normal day-to-day administration*, he would *act* according to the advice of his Ministry. But in an *extraordinary situation*, it was said the President might *not* follow the advice of the ministers, if it was in the best interest of the nation to do so. So, it was opined that the Indian President was, by no means, a mere figure-head but, *unlike* the English King, had real power.

Dr. Rajendra Prasad, the first President of the Indian Republic, **and** who was also the President of the Indian Constituent Assembly, made **the** following observation regarding the position of the President *vis-a-vis the* ministers : — ”Although there is no specific provision in the Constitution itself, making it binding on the President to accept the advice of his ministers, it is **hoped** that the convention under which, in England, the King always acted on the advice of ministers, would be established in **this** country also, and the President would become a Constitutional President in all matters.”

After the Forty-second Amendment, the above discussion assumes a purely academic character, as it is now made clear that *the President is bound by the advice of the Council of Ministers*. For this purpose, Art. 74 of the Constitution was amended, and it is *now* provided that *the President shall act in accordance with such advice*.

The *Forty-fourth Amendment*, 1978, has further provided that the President may require the Council of Ministers to *reconsider* their advice, either generally or otherwise. When after reconsideration, advice is tendered to him, the President *must* act in accordance with such advice.

The detailed provisions relating to the Council of Ministers may now be **dealt** with.

(1) The Council of Ministers (Arts. 74-75 & Sch. 3)

The Constitution provides for a Council of Ministers, headed by **the** Prime Minister, to aid and advise the President in the exercise of his functions. [Art. 74(1)]

The Ninety-first Amendment, 2003, provides that the total number of Ministers in the Council of Ministers, including the Prime Minister, *cannot exceed fifteen per cent of the total number of members of the Lok Sabha*.

The Prime Minister is appointed by the President, and the other ministers are appointed by the President on *the advice of the Prime Minister*, but all of them hold office during the pleasure of the President, and they are *collectively responsible* to the House of the People. [Art. 75(1)-(3)]. This means that if the ministers lose the confidence of the House, they can be required to resign. The question whether any, and if so, what advice was tendered by the ministers to the President *cannot* be inquired into *by any Court*. [Art. 74(2)].

COLLECTIVE RESPONSIBILITY OF MINISTERS.—The doctrine of collective responsibility of ministers connotes that members of the Ministry are *jointly* and *severally* responsible to the House of the People, for every legislative and executive act of the Government. as also for every legislative measure introduced in Parliament with the authority of the Government. The responsibility of the Ministers, individually and collectively, is secured by the fact that the ministers can be dismissed from office as soon as they lose the confidence of the House of the People.

As observed by the Supreme Court the *object* of collective responsibility is to make the whole body of ministers vicariously responsible for such acts of the others as are referable to their collective violation. Thus, even if an individual minister is *not* personally responsible for an act, he would be delmed to share the responsibility with those who actually committed that *act*. (*K. M. Sharma v. Devi Lal*, AIR 1990 SC 528)

NATURE OF THE MINISTERIAL RESPONSIBILITY AT THE CENTRE.—The system of the ministerial responsibility, as provided in the Indian Constitution, is similar to that which prevails in England. There are two *aspects* of this responsibility, *viz.*, responsibility to the legislature, and responsibility to the President.

(i) *Responsibility to the Legislature.*—As regards ministerial responsibility to the legislature, Article 75 of the Constitution provides that the Council of Ministers is collectively responsible to the House of the People. The *result* is that the House of the People can dismiss the Ministry by passing a vote of no-confidence against it *or* rejecting a Bill introduced by the Ministry. It is also provided that the salaries and allowances of the ministers are to be such as Parliament may, from time to time, by law, determine. The *result* of this provision is that the House of the People can force a minister to resign by reducing his salary to a nominal amount *or* rejecting it altogether. In this way, an individual minister can be disposed of

As is the practice in England, in India also, when the Ministry is outvoted in the House of the People, it may refuse to resign. It may request the President to dissolve the House of the People in order to know the will of the people. If at the new election, the old Ministry secures a majority in the House of the People, it continues to remain in office. If it does *not* Will the requisite majority, it has to resign.

(ii) *Responsibility to the President.*—As regards the responsibility of the ministers to the President, the Constitution provides that the Prime Minister is to be appointed by the President, and the other ministers are to be appointed by the President on the advice of the Prime Minister. The ministers are to hold office during the pleasure of the President. Thus, the President can dismiss any minister he pleases. But in actual practice, the President will exercise this power only on the advice of the Prime Minister. The *reason* is that if the President dismisses a minister without *or* against the advice of the Prime Minister, it will lead to the resignation of the whole Ministry. In such an eventuality, the President has to find an alternative Ministry to carry on the administration of the country. That may *not* always be possible, particularly if the old Ministry had a comfortable majority in the House of the People. Thus, discretion will force the President to use his power of dismissal of ministers only on the advice of the Prime Minister.

Relation between the President and the Cabinet *Position before the Forty-second Amendment (1977)*

Before the Forty-second Amendment of the Constitution, there **was a** controversy regarding the constitutional status of the President. There were two *views* on this question. *One* view was that the Indian Constitution was essentially a Constitution providing for a Cabinet system of Government responsible to the Parliament. Therefore, the President was just a constitutional head, and held a position similar to the Monarch in the U K. This promoted several constitutional writers to observe that *the President reigns, but does not rule*. *The other* view was that though the

Indian Constitution provided essentially for a Cabinet system of Government, *yet the* President was *not* just a figure-head, and in exceptional circumstances, his office could be an office of effective powers.

This controversy needs to be examined in the light of the provisions in the Constitution regarding the relation of the President and the Council of Ministers, as the provisions stood *before* the Forty-second Amendment. Article 74 provides for a Council of Ministers with the Prime Minister at the head to aid and advise the President in the exercise of his functions. Art. 75 provides that the ministers shall hold office during the pleasure of the President. These two provisions of the Constitution have been interpreted in different ways. Those who held that the President was nothing more than a constitutional head, and was always bound by the advice of the Council of Ministers, held their views for the *following reasons* :

- (1) According to Art. 64, there is a Council of Ministers. Therefore, **the** absence of ministers and the President acting without the aid and advice **of** such ministers would amount to a departure from the Constitution.
- (2) The British Cabinet system was the model of the Indian Council of Ministers, and therefore, the conventions adopted in the British Constitution must be invariably followed in India also. Therefore, the President *cannot* act independently of the aid and advice of the Council of Ministers
- (3) If the President were to act independently of such aid and advice, he might be taking a political decision and thus expose himself to political controversies.
- (4) The very essence of the Cabinet system of Government is the Cabinet's responsibility to the Parliament. If the President were to act independently of the advice of the Council of Ministers, such action would **not** fall within the sphere of Parliamentary responsibility.
- (5) If the President were to act independently, it would lead to a kind of personal despotism in view of his apparently vast powers_
- (6) Such a President might dissolve the Parliament, proclaim an emergency and suspend the elections, and thus virtually convert the Indian Constitution into an instrument of despotism.

Support for this view can be found in the observations of the Supreme Court in ***Raj Sahib v. State of Punjab*** (AIR 1965 S.C. 549), where the Court **held** that the English system of parliamentary executive has been adopted by our Constitution, and that the President and the Governors are only constitutional heads, the real executive powers being vested in the Council of Ministers.

As against the above arguments, those who held that, under certain exceptional circumstances, the President might act independently of the aid and advice of the Prime Minister or the Council of Ministers, advanced the **following arguments** in favour of their view :

- (1) The Constitution, as originally framed, only provided for the Council of Ministers; nowhere did it categorically state that the President has to act only on the aid and advice of the Council of Ministers. (Now, of course, **after** the Forty-second Amendment, it **is** so specifically stated)
- (2) In view of the federal nature of the Constitution, there was no reason to believe that **all** the conventions of the British Constitution should be invariably followed in India.
- (3) So far as the federal and national problems are concerned, the President, who has been elected by the Parliament and the Legislative Assemblies of the States, may be made a representative of the nation, rather than the Prime Minister, who would be just a leader of the majority party in the Parliament. Therefore, in case of any conflict between the interest of the nation as a whole and the view of the majority party in Parliament, it might be proper for the President to act in the interest of the nation
- (4) It was further argued that the President in India is **not** a hereditary Monarch, but an elected representative of the people (though indirectly elected). Therefore, there is no reason as to why he should shun political controversies.

(5) It was also pointed out that the British practice of the requirement of the signature of the ministers before affixing the Royal Seal **is not** adopted in India. Therefore, there is no constitutional difficulty even if the President were to act without the aid and advice of the Council of Ministers.

In conclusion, it used to be said that though the letter of the Constitution of India might justify the view that in certain exceptional circumstances the President might act independently, yet it would be wrong to believe that the Indian Constitution is a compromise between the Presidential system of Government and the Cabinet system of Government. Essentially, the President of India was considered to be the constitutional head of the Cabinet. It appears that this tradition was more than justified as a result of the constitutional practice since the commencement of the Indian Constitution.

Position after the Forty-second Amendment (1977)

As stated earlier, *after the Forty-second Amendment*, the above discussion assumes a purely academic character, as *Art. 74 has now been amended to provide that President of India is bound by the advice of the Council of Ministers*. This confirms the view that he is only the *constitutional head* of the nation. Indeed, *he reigns, but does not rule*.

Other provisions as regards Ministers (Art. 75)

Before a minister enters upon his office, the President must administer to him, the oaths of *office* and of *secrecy*, according to the prescribed forms.

A minister, who for any period of *six consecutive months*, is *not a* member of either House of Parliament, at the expiration of that period, *ceases* to be a minister.

(2) The Prime Minister (Arts. 75 & 78)

The Prime Minister is appointed by the President, and holds office during the pleasure of the President.

His *duties* are to be found in Art. 78, and are as under :

(a) To *communicate* to the President, all decisions of the Council of Ministers relating to the administration of the affairs of the Union and *proposals for legislation*.

(b) To *furnish* such *information relating* to the administration of the affairs of the Union and proposals for legislation, as the President may call for.

(c) If the President so requires, to *submit for the consideration of the Council of Ministers*, any *matter* on which a decision has been taken by the minister, but which has *not* been considered by the Council.

The Prime Minister certainly occupies a position of superiority over the other ministers. He is often described as the "*keystone of the cabinet arch*". Sometimes, he is also described as *primus inter pares*, the *first among equals*. However, this seems to be an understatement, inasmuch as a Prime Minister, and more so, a powerful Prime Minister, has no equals.

The superiority of the Prime Minister is also reflected in the fact that it is he who recommends to the President, the appointment of the other ministers. Likewise, he can also recommend to the President, the dismissal of a particular minister. Normally, a minister who does *not* agree with the Prime Minister has to resign. Such a minister *cannot continue in the* Ministry and, at the same time, criticise the Prime Minister **openly**. **Such** behaviour would indeed be incompatible with basic principles **of the cabinet** system of government.

Again, it is the Prime Minister who defends the cabinet on the **floor of** the House. His resignation would mean the fall of the entire **cabinet**. A person with a strong personality and a comfortable majority in **the Lok Sabha** can well become a very powerful Prime Minister. It is, therefore, said that *the office of the Prime Minister is what its holder chooses to make it*. And, recent history has shown how true this statement can be.

There is yet another weapon in the hands of Prime Minister. He can advise the President to dissolve the *Lok Sabha*. It is this potent power that gives the Prime Minister full control over the *Lok Sabha*, rather than *viceversa*. With a relatively weak President, the Prime Minister can almost become an "elected dictator".

(It may be noted that the provisions of Art. 167 as regards the (Council of Ministers of a State are similar to those of the Art. 78 above.)

(5) THE ATTORNEY-GENERAL FOR INDIA (Arts. 76, 88 & 124)

Art. 76, 88 and 124 contain *important provisions* regarding the Attorney General of India.

The President appoints a person who is qualified to be appointed a Judge of the Supreme Court to be Attorney-General for India. [Art. 76(1)] **His qualifications [Arts. 76(1) & 124]**

The qualifications of the Attorney-General of India are the same as those of *Supreme Court* Judge. laid down in AP. 124, *namely*. —

1. He must be *a citizen of India* .

2. (a) He must have been, for at least *five years a Judge* of a High Court, or of two or more such Courts in succession

or (b) He must have been, for at least *ten years. an advocate of High* Court, or of two or more such Courts in succession

or (c) He is, in the opinion of the President, a *distinguished jurist*. The Attorney-General holds office during the pleasure of the President, and receives such remuneration as the President may determine [Art. 76(4)]

His duties [Art. 76(2)]

His duties are to give *advice* to the Government of India upon **such** legal matters, and to perform such other duties of **a legal character**, **46** may be referred or assigned to him by the President, and to **discharge the** functions conferred on him by this Constitution.

Under the Rules made by the President of India, the **Attorney-General** has to advise the Government of India on legal matters, and **also appear on** behalf of the Government of India in cases before the **Supreme Court and the High Courts**, if called upon to do so. He also has to represent the Government of India in any reference made by the President to the Supreme Court under Art. 143.

His rights [Arts. 76(3) & 88]

The Attorney-General has the *right of audience* in all Courts in India [Art. 76(3)], as also the right to speak in, and otherwise to take part in the proceedings of either House, any joint sitting of the Houses, or any Committee of Parliament of which he may be named a member, but is *not by* virtue of this Article, entitled to vote. [Art. 88]

As the head of the Indian bar, he is also entitled to precedence in all courts.

In England, the office of the Attorney-General is regarded as a political office, in the sense that he is a member of the Ministry, and stands and falls with the Ministry. *In India*, on the other hand, theoretically at least, the Attorney-General does *not* belong to the Council of Ministers and the dismissal of a particular Ministry would *not* affect his post.

B. Parliament (The Union Legislature)

PARLIAMENT (Ch. II: Arts. 79-122 & 330-331, 334 & Schedules 3 & 4)

Parliament, the Central Legislature of India, is a sovereign body It is independent of all external authority. There is a great difference between the English and the Indian Parliament, in that *whereas* no Act of the English Parliament can be challenged *in the Courts*, *an Act of the Indian Parliament will be subject to judicial review*, i.e., the Judiciary in India has the power to declare an Act of Parliament to be *unconstitutional and void*. This is a very powerful

safeguard of the liberty of the subjects, and it prevents the executive from infringing the liberty of the people in an unconstitutional manner.

This Chapter deals with the *composition* of Parliament (Arts. 78-88), its officers (Arts. 89-98), their *disqualifications* (Arts. 101-104), their *powers, privileges, immunities, etc.* (Arts. 105-106) and its *procedure* (Arts. 107-111), including the procedure to be followed in *financial matters* (Arts. 112-122).

(1) The Constitution Of Parliament (Arts. 79-88, 330-331, 334)

The Union Parliament consists of the *President* and *two Houses* known as the *Council of States and the House of the People*. [Art. 79]

It will be seen that Union Parliament is a composite body consisting of the President and the two Houses. Consequently, a 'law of the Parliament' means a law passed by the two Houses, followed by the assent of the President, subject to the provisions regarding Money Bills, in Art. 109.

It may be noted that *resolutions* of *either* House of Parliament by themselves are *not* equivalent to laws made by Parliament. (*Stockdale v. Hansard*, (1839) 9 A. & E. 1)

A. THE COUNCIL OF STATES (Rajya Sabha) [Arts. 80, 83(1), 84 & 89-92]

Its composition [Arts. 80 & 83]

The Council of States consists of :— (a) twelve members, to be nominated by the President, consisting of persons having **special** knowledge or practical experience in respect of literature, science, **art** and social service, *and (b) not more than 238 representatives of the States and the Union territories (i.e., not more than 250 in all). There* is no provision for direct election to the Council of States. The members are elected by the elected members of the Legislative Assemblies of the States in accordance with *the system of proportional representation by means of a single transferable vote*. [Art. 80(1), (3), **(4)**]

The allocation of seats in the Council of States to be filled **by representatives of** the States and of the Union territories is in accordance with the provisions in that behalf contained in the Fourth Schedule. [Art. 80(2)]

The representatives of the Union territories in the Council of **States are to** be chosen **in** such manner as Parliament may by law prescribe. [Art. 80(5)]

The Council of States *is not* subject to dissolution, but **one-third of the members thereof retire** on the expiry of every second year. [Art. 83(1)]

The object of Art. 83(1) is to prevent the House from being turned into **a** body, and to have into it a continuous flow of fresh talents. Thus, the Council of States is a *permanent* house and *not* subject to dissolution, with one-third of its members retiring every second year

Qualifications for its membership (Art. 84)

A person is qualified to be a member of **the Rajya Sabha, it** –

- (a) he is a citizen of India;
- (b) he is not less than 30 years of age: *and*
- (c) he possesses such other qualifications as may be prescribed by Parliament.

Chairman and Deputy Chairman of the Council of States (Arts. 89-92)

The Vice-President of India is the *ex-officio* Chairman of the Council of States, which Council may choose its Deputy Chairman, who must vacate his office if he ceases to be a member of the Council. In **the absence** of the Chairman, the Deputy Chairman performs **all his** functions and duties. He may, by writing under his **hand addressed to** the Chairman, *resign* his office, and may after 14 days **notice be removed** from his office *by a*

resolution of the Council passed by a majority of all the then members of the Council. **The Chairman or the Deputy Chairman respectively cannot preside while a resolution for his removal from office is under consideration.**

The Chairman has the right to speak in, and otherwise to take part in the proceedings of the Council of States, while any resolution for the removal of the Vice-President from his office is under consideration, but he is **not** entitled to vote on such resolution or on any other matter during such proceeding.

B. THE HOUSE OF THE PEOPLE (Lok Sabha) (Arts. 81-84, 93-98, 100, 112, 330-334)

Its composition (Art. 81)

The House of the People is also known as The Lower House” or the ”Lok Sabha”.

Subject to the provisions of Art. 331, the Lok Sabha consists of the following

- (a) not more than *530 members* directly elected by the people. The constituencies are to be territorial and the election is to be on the basis of *adult suffrage*, that is, every citizen who is *not* less than eighteen years of age, and is *not* otherwise disqualified on the ground of non-residence, unsoundness of mind, crime or corrupt or illegal practice, is entitled to be a voter
- (b) *not more than 20 members* to represent the Union territories, chosen in such manner as Parliament may by law provide.

For the purposes of sub-clause (a) of clause (1),—

- (a) there is to be allotted to each State, a number of seats in the House of the People, in such manner that the ratio between that number and the population of the States is, so far as practicable, the same for all States; *and*
- (b) each State is divided into territorial constituencies, in such a manner that the ratio between the population of each constituency and the number of seats allotted to it is, so far as practicable, the same throughout the State.

Upon the completion of each census, the allocation of seats in the House of People to the States and the division of each State into territorial constituencies is to be readjusted by such authority and in such manner as Parliament may by law determine. However, such re-adjustment *cannot* affect the representation in the House of the People until the dissolution of the existing House. [Art. 82]

Its duration [Art. 83(2)]

Unless sooner dissolved, the House of the People continues for *five years*, and the expiry of such a period of *five years* operates as *a dissolution* of the House. The said period may, while a Proclamation of Emergency is in operation, be extended by Parliament for a period **not** exceeding *one year* at a time, and *not* extending, in any case, beyond **a** period of *six months* after the proclamation has ceased to operate.

In spite of the provisions for universal adult suffrage, some special provisions have been made for the representation of minorities in the House of the People. This is provided for in Art. 330 to 334, which may be summarised thus :

Seats are to be reserved in the House of the People for the *Scheduled Castes and Scheduled Tribes*. Additionally, the President may, if he is of the opinion that the *Anglo-Indian community* *Is not adequately represented* in the House of the People, nominate *one member* of that community to the House of the People. But such a reservation of seats for the Scheduled Castes and Tribes as also the nomination of the Anglo-Indians under Art. 331 is to cease after *sixty years* from the commencement of the Constitution.

Qualification for membership [Art. 84]

To be qualified to be a member of the Lok Sabha, a person :

- (a) must be a citizen of India;
- (b) must be not less than 25 years of age: *and*
- (c) must possess such other qualifications as may be prescribed by Parliament

Speaker and Deputy Speaker of the House of the People (Arts. 93-98)

The House of the People choose two members of the House to *be* respectively *Speaker* and *Deputy Speaker* thereof. Either of them is liable to *vacate* his office if he *ceases* to be a member of the House of the People. He may, at any time, by *writing under his hand* addressed, if such member is the *Speaker* to the *Deputy Speaker* (and if such member is the *Deputy Speaker*, to the *Speaker*) *resign* his office. He may also be *removed* from his office *by a resolution* of the House (moved after 14 days' *notice*) passed by a *majority of* all the then members of the House, and neither can preside while a resolution for his removal from office is under consideration. In the absence of the Speaker, his duties are to be performed by the Deputy Speaker.

Position of the Speaker [Arts. 94(c), 100(1) & 112(3)(b)]

The position of the Speaker is sought to be made impartial and independent by the following provisions in the Act

- (i) His salary and allowances are charged on the Consolidated Fund. [Art. 112(3)(b)]
- (ii) He can be removed only by a resolution of the House *passed* by a majority of all the then members of the House [Art- 94(c)]
- (iii) He has no vote, except in the case of a tie [Art 100(1)]

(2) Disqualifications Of Members (Arts. 101-104)

Art. 102 lays down *five important circumstances* which will disqualify a person from being a member of the Parliament, *i.e.*, **member** of either the Council of States or the House of the People, as follows :

A person shall be disqualified from being a member of either House of Parliament in any of the following six cases, viz,—

- (a) if he holds any such office of profit under the Government of **India** or the Government of any State, as is declared by Parliament by a law to disqualify its holder; or
- (b) if he is of *unsound mind*, and stands so *declared* by a competent Court; or
- (c) if he is *an undischarged insolvent*; or
- (d) if he is *not a citizen of India* or has voluntarily *acquired the citizenship of a Foreign State* or is under any acknowledgment of *allegiance* or adherence to a *Foreign State*; or
- (e) if he is so *disqualified* by or under any law made by Parliament; or
- (f) if he is disqualified under the Tenth Schedule to the Constitution (on the ground of defection).

It will thus be seen that while Art. 84 lays down the *positive* qualifications required for membership of either House of Parliament. Art. 102 lays down the *negative* requirements, *i.e.* the disqualifications.

If any question arises as to whether a member of either House of Parliament has become subject to any of the disqualifications mentioned above, the question is to be referred for the *decision of the President* and his decision is *final*. [Art. 103 (1)]

Before giving any decision, the President must obtain the opinion of the Election Commission, and must act according to such opinion. (See Chapter XV for detailed provisions regarding the Election Commission.)

Effect of disqualification [Art. 101(3)]

If a member of either House of Parliament becomes subject to any of the disqualifications mentioned above, his seat thereupon becomes vacant.

Member's seat, when becomes vacant [Art. 101(3) & (4)]

A member's seat becomes vacant in *three* cases, viz,

1. If a member *resigns* his seat (by writing under his hand addressed to the Chairman or the Speaker), his seat becomes vacant.
2. If for a period of *sixty days*, a member of either House of Parliament is, without the permission of the House, *absent*, from *all* meetings thereof, the House may declare his seat *vacant*.
3. Lastly, **if** a member of either House of Parliament becomes subject to the disqualifications mentioned in Art. 102 (above), his seat thereupon becomes vacant.

Penalty for voting by a non-qualified or disqualified person (Art. 104)

If a person sits or votes as a member of either House of Parliament *before taking the oath or affirmation as required* by Art. 99, *or* when he *knows* that he is *not qualified* or that he is *disqualified* or that he is *prohibited* from so doing by any law—he becomes *liable* in respect of *each day* on which he so sits or votes to a *penalty of five hundred rupees* to be recovered as a *debt due to the Union*.

(3) Disabilities, Powers, Privileges And Immunities Of Parliament And Its Members (Arts. 101, 105-106)

1. Disabilities [Art. 101(1) & (2)]

The disabilities of a member of Parliament are *two*, viz.—

(1) No person can be a member of *both* Houses of Parliament.

(2) No Person can be a member *both* of Parliament and of a House of the Legislature of a State, and if a person is chosen a member both of Parliament and of a House of Legislature of a State, then at the expiry of such period as may be specified by the rules made by the President, that person's seat in Parliament becomes vacant, unless **he** has resigned his seat in the Legislature of the State.

2. Powers, Privileges and immunities (Arts. 105-106)

The powers, privileges and immunities of a Member of Parliament (collectively referred to here as "privileges") are mainly the following four **Privilege 1**

There shall be freedom of speech in Parliament. However, this freedom is subject to :

- (a) the other provisions of the Constitution (as for instance, discussion regarding High Court and Supreme Court Judges in Parliament); *and*
- (b) the Rules and Standing Orders regulating Parliamentary procedure.

As *free, frank* and *fearless* discussions in Parliament are the touchstone of a democracy, total freedom of speech is guaranteed by the Constitution. If members are to express themselves freely and fearlessly in Parliament, it is logical that this right be granted to immunize them from the fear of being hauled up in a court for words uttered Inside the House.

The origin of this freedom can be traced to England, when in the 17th Century, Sir John Eliot was convicted by the court for seditious speeches made by him in the House of Commons The House of Lords reversed the decision on the ground that words spoken in Parliament can be judged only within the four walls of Parliament Later, this right was incorporated in the Bill of Rights in England.

As observed by the Supreme Court "Once it was proved that Parliament was sitting and business was being transacted, anything said during the course of that business was immune from proceedings in any court." (*Tej Kiran Jain v. Sanjiva Reddy*, AIR 1970 SC 1573)

In *Tej Kiran Jain's case* (above), certain derogatory remarks were made in Parliament against Jagadguru Shankaracharya, who had allegedly made some remarks about untouchability at the World Hindu Congress held in Patna in 1969. When some of his disciples filed a suit for damages against six Members of Parliament, the High Court rejected the plaint and the Supreme Court, in appeal, upheld the decision of the High Court.

It may be noted that the Rules of Procedure made by Parliament do curtail this right so that this freedom may *not*, in a given case, degenerate into an unrestrained licence to speak whatever a Member wants to. However, even when such Rules are breached, only the Speaker of the House or the House itself can deal with the matter. A person who is aggrieved by such words has no remedy in a court of law.

Again, the Constitution itself imposes certain limitations on this freedom. Thus, for instance, Art. 121 provides that no discussion can take place in Parliament with respect to the conduct of a Judge of a High Court or of the Supreme Court - except when a motion for his removal is being considered by the House.

Although even a slanderous speech made in Parliament enjoys complete immunity, if the Member of the House publishes the same speech *outside* Parliament, he makes himself liable in a court of law. (*Jatish Chandra v. Had Mukhedi*, AIR 1961 SC 613)

In *Jatish Chandra's case* (above) a Member of the House gave notice of his intention to ask certain questions in the House, but the Speaker disallowed those questions. Nevertheless, the Member published the disallowed questions in a local journal. The Supreme Court *held* that such a publication did *not* enjoy a Constitutional immunity as it did *not* relate to anything said or any vote given in the House.

The English courts have, however, taken a more liberal view in the matter. In one case, certain allegations disparaging the character of the plaintiff were made during a debate in the House of Lords. A faithful report of this debate was published in the Times. When the plaintiff sued the Times for libel, the court dismissed the case, observing that the advantage to the community as a whole from the publication of the proceedings of the House would be greater than the occasional inconvenience caused to particular individuals. (*Wason v. Walter*, LA 4 QB 730)

Privilege 2

No Member of Parliament is liable *in any proceedings* in any court in respect of anything said or any vote given by him in Parliament or any Committee thereof. Moreover, no person can so become liable in respect of the publication of any report, paper, votes or proceedings by, or under the authority of either House of Parliament.

The word "proceedings" covers all types of proceedings, whether civil or criminal - or even by way of a writ petition. In other words, nothing said in Parliament is actionable or justifiable.

An interesting incident took place in Uttar Pradesh several years ago. Mr. K, who was *not* a member of the legislature, was sentenced to seven days' imprisonment by the Legislative Assembly for having committed a contempt of the Assembly by printing and publishing a pamphlet. An Advocate filed a writ petition on behalf of K, alleging that such detention was illegal. A division Bench of the High Court passed an order that K be released on bail on furnishing two sureties. When this information was received by the Assembly, it passed a resolution that the two Judges (who passed the order), K and his Advocate had committed contempt of the Assembly and that all of them be taken into custody.

Once again, petitions were filed before the High Court and a Full Bench of the High Court passed an order restraining the Speaker of the Assembly from issuing warrants against the four persons. At this point of time, the President of India made a reference to the Supreme Court under Art. 143 of the Constitution and the Supreme Court decided various questions formulated and referred to it, including whether the legislature was competent to take

against action against Judges of a High Court. (The decision in this case, along with detailed facts of the case, are given in **Appendix IV** under the title, *In Re. Art. 143, Constitution of India*, to which a reference may be made.)

Privilege 3

As originally framed, Art. 105 provided that, in other aspects, the powers, privileges and immunities of each House of Parliament may be as defined by Parliament itself, and until so defined, such privileges would be the same as those of the House of Commons of the UK existing at the date of the commencement of the Constitution, that is, January 26, 1950. Thus, a conscious reference was made in the Constitution (as originally enacted) to the privileges enjoyed by the Member of the House of Commons, perhaps on the ground that such privileges have *not* been exhaustively catalogued even in the UK.

Redlich has defined the privileges of the House of Commons in England as "the sum of fundamental rights of the House and of its individual members as against the prerogative of the Crown, the authority of the ordinary Courts of Law and the special right of the House of Lords."

As the Constitution, as it stood *before* the said Amendment, made a reference to the privileges and immunities of the House of Commons as the commencement of the Constitution (*i.e.* 26th January, 1950), it would be in order to summarise these *privileges and immunities*.

Firstly, members of the House have freedom from civil arrest for a period which begins with *forty days before* the session of the Parliament, and extends upto forty days *after* such session. Arrest on a criminal charge or under a law relating to preventive detention is allowed, but such arrest or detention, with reasons thereof, must be communicated to the House.

Secondly, a member of the House has freedom of speech, debate and proceeding. (It will be noted that this privilege is expressly mentioned in Article 105.)

Thirdly, the English Bill of Rights provides that 'the freedom of speech and debate or proceedings in Parliament ought *not* to be impeached or questioned in any Court S (This privilege is also expressly referred to in Article 1051

Fourthly, the House has the privilege of excluding strangers from the House, and of prohibiting publication of its debates and proceedings. This privilege is incidental to the privilege of freedom of speech and debate.

Lastly, **the** House has the power to enforce its privileges, and to protect itself from insult, indignity or obstruction. This itself is a privilege, and it consists in the power to commit a person to prison for a contempt of the House.

In course of time, however, it was realised - rightly or wrongly - that it was an anomaly if the Constitution of a sovereign country expressly makes a reference to the privileges enjoyed by Members of the Parliament of another country. Accordingly, Art. 105 was amended by the Forty-fourth Amendment to provide that in other respects, the powers, privileges and immunities of each House of Parliament and of the members and the committees of each House shall be those of that House, and of its members and committees, as on 1st February, 1977 (La, the date when the Forty-second Amendment came into force) and as may be envolved by such House of Parliament from time to time.

Art. 105(3) was once again amended by the *Forty-fourth Amendment, 1978*, and it is *now* provided that in other respects. the powers, privileges and immunities referred to above shall be those of the House and of its members and committees immediately before the coming into force of the Forty-fourth Amendment Act.

It is submitted that although a direct reference to the English Parliament has been deleted from Art. 105. an indirect reference will still be necessary. The *reason* is that, to find out the privileges of the House at the date of enforcement of the said Amendment, it will still be necessary to find out ultimately what the privileges of the English Parliament were on the specified date. Thus, the deletion of the reference to the English Parliament appears to be only a cosmetic act or one of politic& jugglery, and unless Parliament enacts a law defining its own privileges, a reference to the Parliament of UK remains inevitable.

Privilege 4

Members of either House of Parliament are entitled to receive such salaries and allowances as may be determined by Parliament by law from time to time. (Art. 106)

A landmark judgment on Parliamentary privilege : *P. V. Narasimha Rao v. State*

In a landmark judgment on this topic, two important questions relating to parliamentary privileges were posed before a five-Member Bench of the Supreme Court in *P. V. Narasimha Rao v. State* (AIR 1998 SC 2120).

In 1993, at one point of time, the Narasimha Rao ministry did *not* enjoy a majority in the Lok Sabha and a vote of no-confidence was sought to be moved against the Government by the Opposition parties. It transpired that, in order to avoid facing defeat on the floor of the House, the ruling party paid large sums of money to certain MPs (of another party) who then voted against the no-confidence motion, defeating the motion on the floor of the House. It was against **the** background of these facts that the Supreme Court had to answer the following two interesting questions :

(a) Whether a Member of Parliament is a "public servant" within the meaning of the term as defined in the Prevention of Corruption Act, 1988 ?

(b) Keeping in mind the provisions of Art. 105 (discussed above), whether a Member of Parliament could claim immunity from prosecution before a criminal court on a charge of bribery in relation to certain proceedings in Parliament ?

The five-Member Bench unanimously answered *the first question* in the affirmative. They *held* that a Member of Parliament or of a State Legislature is a "public servant" under the Prevention of Corruption Act, because he holds an office and is authorised and required to carry out a public duty, namely, effectively representing his constituency.

On *the second question*, however, the Bench was sharply divided. A majority of three Judges took a very broad view of the language of Art. 105 and concluded that a Member of Parliament is protected in court proceedings in any matter which relates to, or has a nexus with, anything said or any vote given in Parliament. Having said that, they held that although the bribe-givers (who were also Members of Parliament) can claim no immunity under Art. 105, but the Members of Parliament who took the bribe would be protected under the said Article, as the bribe could be seen as "a motive or reward" for defeating the no-confidence motion. This thus had a clear nexus with their voting.

The minority Judges, however, preferred a narrower interpretation of Art. 105 and observed that a criminal liability incurred by a Member of Parliament for voting in a particular manner *cannot* be regarded as a liability in respect of "anything said or any vote given in Parliament" and therefore, the bribe-takers could be prosecuted for a criminal offence.

It is submitted, with great respect, that the minority view makes better sense. In a country where corruption is the rule rather than the exception, the view taken by the majority is capable of throwing open all gates for corruption in legislatures at the national and state levels. It is, therefore, hoped that the view expressed by the majority is reconsidered by the Supreme Court in the near future

(4) Conduct Of Parliamentary Business (Arts. 85-88, 99-100, 104, 121-122 & Schedule 3)

1. Summoning (Art. 85)

The President may, from time to time, *summon* the **House** or either House, to meet at such time and place as he thinks fit, he can **also** *prorogue* either House or *dissolve* the House of the People, but six months should *not* intervene between their first and last sittings.

ADJOURNMENT, PROROGATION AND DISSOLUTION — *Prorogation* refers to the termination of a *session*, whereas *adjournment* is an interruption in the course of one and the same session. Dissolution, on the other hand,

means the end of the life of the House itself, and calls for a **fresh** election.

(2) President's address (Art. 86 and 87)

The President *may address* either House of Parliament (*or both Houses assembled together*), and for that purposes, require the attendance of members. He may also *send messages* to either House of Parliament, whether with respect to a Bill then pending in Parliament or otherwise. The House to which any message is so sent shall, with all convenient despatch, consider any matter required by the message to be taken into consideration. (Art. 86)

The President must, at the commencement of the first session after each general election to the House of the People *and* at the commencement of the first session of each year, *address* both Houses of Parliament assembled together and inform Parliament of the causes of its summons (Art. 87)

It may be noted that while Art. 87 makes it *obligatory* upon the President to make the 'opening address' to Parliament, Art. 86 *enables* him to address Parliament (*either House or both Houses together*) *at any time and for any purpose*.

3. Oath by members (Art. 99 and Schedule 3)

Every member of either House of Parliament, before taking his seat, *must* make and subscribe before the President, an *oath* or *affirmation* in the prescribed form.

[The prescribed form of the oath or affirmation to be made by every member of Parliament is contained in the Third Schedule to the Constitution.]

4. Voting of Houses (Arts. 100 & 104)

All questions at any sitting of either House or joint sitting of the Houses are to be *determined by a majority of votes of the members present and voting*. The Chairman or Speaker *cannot* vote in the *first* instance, but has a *casting vote* in the case of an *equality of votes*. [Art. 100(1)]

Some constitutional provisions require a special majority, *e.g.* Arts 61(2)(b); 61(4); 94(c); 108(4); 218; 249(1) and 368.

If a person sits or votes as a member of either House of Parliament *before* he has taken the oath as above, he becomes liable in respect of *each day on which he so sits or votes* to a penalty of *five hundred rupees*, to be recovered as a debt due to the Union. (Art. 104)

Under Art. 122(1), the validity of any proceedings in Parliament *cannot* be called in question on the ground of any alleged irregularity of procedure.

5. The quorum [Art. 100(3) & (4)]

The quorum to constitute a meeting of either House of Parliament is *one-tenth* of the total number of members of the House. It is further provided that if at any time during a meeting of a House there is *no quorum*, it is the duty of the Chairman or Speaker either to *adjourn the House* or to *suspend* the meeting until there is a quorum. [Art. 100(4)]

(3) Legislative Procedure (Arts 107-111)

Provision as to Introduction and passing of Bills (Art. 107)

As seen earlier, the Union Parliament consists of the President *and* the two Houses, namely, the Council of States and the House of the People.

Art. 107 provides for the introduction and passing of all Bills *other than Money* and Financial Bills. For the latter,

there is a special procedure laid down in Arts. 112-117.

There are *three points* to be noted in connection with the introduction and passing of *ordinary Bills*.

1. As to originating a Bill [Art. 107(1)]

A Bill may originate in *either* House of Parliament.

EQUAL POWERS OF THE TWO HOUSES.—This clause enacts the rule that the two Houses should enjoy *equal powers in regard to legislation*. The only inequality is that *Financial Bills cannot be introduced in the Council of States*. [Art. 109(1)]

2. As to the passing of a Bill [Art. 107(2)]

A Bill is *not* to be deemed to have been passed by the House of Parliament *unless it has been agreed to by both the Houses*.

This provision once again recognises that the two Houses of Parliament are co-equal with regard to their powers, because it states that a Bill is *not* to be deemed to have been passed by the House of Parliament *unless* it has been agreed to by *both* the Houses

The procedure regarding Money Bills is separately dealt with in Art. 109. The present clause, therefore, refers to Bills *other* than Money Bills.

When a Bill is passed in one House, and then sent to the other—the latter may adopt one of the following *four options*

(i) If the other House *agrees* to the Bill without *amendment*, it will be deemed to have been passed by *both* Houses of Parliament, and will be at once presented to the President for his assent (Art. 111)

(ii) The other House may *reject* the Bill altogether. In such a case, the provisions of Art 108(1)(a) as to joint sittings may be applied by the President.

(iii) It may *pass* the Bill *with amendments* The Bill will then be returned to the other House If the House which originated the Bill accepts the amendments, the Bill will be presented to the President for his assent (Art. 111) If, however, the originating House does *not agree* to the amendments, and no final agreement between the Houses is reached by means of negotiation, the President may call a *joint sitting* of both the Houses. [Art. 108(1)(b)]

(iv) It may take *no action* on the Bill, *i.e.* keep it lying with itself without returning it to the originating House. In such a case, if 6 months have elapsed since the date of the receipt of the Bill, the President may summon a joint sitting. [Art. 108(1)(c)]

When there is a joint sitting, the two Houses of Parliament have *equal powers* as regards Bills *other* than Money Bills. At the joint sitting, of course, the House of the People may gain a predominance owing to its numerical strength.

3. As to the lapsing of Bills [Art. 107(3), (4) & (5)]

A Bill pending in Parliament does *not* lapse by reason of the *prorogation* of the Houses. Nor does a Bill which was introduced in the Council of States (and is pending there) lapse by a *dissolution* of the House of the People. *But* a Bill which is *pending in the House of the People*, or which, having been *passed by* the House of the People, is pending in the Council of States, does lapse *on a dissolution of the House of the People*.

This clause enacts the rule that pending Bills lapse on dissolution. A Bill may be pending in the House of the People itself or, having been passed by the House of the People, may be pending in the Council of States. In either case, a Bill lapses on a dissolution of the House of the People. An exception to this is Art. 108(5), discussed below.

EFFECT OF DISSOLUTION ON PENDING BILLS

The *effect* of dissolution of the House of the People on pending bills is as under :

- (i) A Bill which originated in the Council of States and is still pending there (*not* having been passed by the House of the People) *will not lapse* on account of dissolution of the House of the People.
- (ii) But, a Bill which is pending in the Council after having been passed by the House of the People, *will lapse* on such dissolution. Similarly, a Bill which is pending in the House of the People, whether originating in that House or sent to it by the Council of States, lapses on such dissolution.
- (iii) But in the cases under (ii) above, the Bill will *not lapse* if **the** President has, prior to the dissolution, notified his intention to summon a joint sitting of the two Houses. [Art 108(1)(5)]

In England, the effect of a dissolution of Parliament — and even a prorogation—on pending Bills is that they *lapse altogether*. This Article relaxes this rule as regards Bills pending at the time of *prorogation* and certain Bills pending at the time of *dissolution*.

It is also to be noted that a Bill which has been passed by both Houses and is awaiting the President's assent at the time of dissolution, *does not lapse* by virtue of anything contained in the Constitution.

Joint sitting of both Houses in certain cases (Arts. 108 & 118)

Since *both* the Houses have equal power, it is possible that a *deadlock* might arise between the two. *Art. 108* is enacted with a view to resolve such a deadlock. It authorises the President to convene a *joint sitting* of both the Houses under the following circumstances

When a Joint sitting can be convened [Art. 108(1)]

A *joint sitting* of both the Houses can be convened if, after a Bill (*other* than a Money Bill) has been *passed* by one House and *transmitted* to the *other* House,—

- (a) the Bill is *rejected* by the *other* House; or
- (b) the Houses have *finally disagreed* as to the amendments **to be** made in the Bill; or
- (c) more than *six months* elapse from the date of the reception of the Bill by the other house *without the bill being passed by it*.

Who can convene a joint sitting, and how [Arts. 108(1) & 118(4)]

The *President* may *notify* to the House (by message, if they are sitting, or by public notification, if they are *not* sitting) his intention to summon them to *meet in a joint sitting for the purpose of deliberating and voting on* the Bill. At such a joint sitting, the Speaker of the House of the People presides.

Any one of the three circumstances (a), (b) or (c) mentioned above *must exist* before the President can convene a joint session and submit the Bill to it. As regards clause (c), it may be noted that in reckoning the period of six months, the period during which the House is prorogued or adjourned for more than *four days* is *not* to be counted. Art. 107 specifies the cases where a Bill would lapse by reason of the dissolution of the House of the People. A lapsed Bill *cannot* be referred to a joint session; but, if prior to the dissolution of the House of the People, the President notifies his intention to submit the Bill before a joint sitting, the Bill does not *lapse* by reason of the dissolution of the House of the People.

It may be noted that *the provisions of the Constitution regarding joint sittings do not apply to Money Bills*.

Procedure at such joint sitting [Art. 108(3) & (4)]

Where the President has notified his intention to summoning the Houses to meet in a joint sitting, *neither House can proceed further with the Bill*. At the joint sitting of the two Houses, if the Bill, with such *amendments* (if any) as are agreed to in the joint sitting, is passed by a *majority* of the members of *both* houses present and voting, it is deemed to *have been passed* by both Houses

If, however, the Bill having passed by one House has *not* been passed by the other House with amendments and returned to the House in which it originated—no amendment can be proposed to the Bill (other than any amendments, if any, as are made necessary by the delay in the passage of the Bill). So also, if the Bill has been so passed and returned, only such amendments as aforesaid can be proposed to the Bill and such other amendments as are relevant to the matters with respect to which the Houses have *not* agreed: and the decision of the person presiding as to the amendments is to be final. The above clause limits the amendments which can be moved to a Bill during its consideration at a joint sitting of the two Houses, its *object* being to ensure that the proceedings at the joint sitting are *not* unnecessarily delayed.

Lastly, where a joint sitting has been summoned prior to the dissolution of the House of the People, the Bill in respect of which ~~the~~ sitting was convened *does not lapse* on the dissolution of the House of the People. [Art. 108(5)]

Money Bills (Arts. 109-110 & 117)

It is well-known that one of the factors which contribute to the wellbeing of an individual or a nation is *finance*. The Constitution, therefore, contains some *special* and important provisions as regards Money Bills.

”Money Bill” defined (Art. 110)

A Money Bill is one which deals with any of the following matters only, viz.—

- (1) The imposition, abolition, remission, alternation or regulation of any tax.
- (2) The regulation of the *borrowing of money or the giving of any guarantee* by the Government of India, or the amendment of the law with respect to any *financial obligations undertaken* by the Government of India.
- (3) The *custody* of the Consolidated Fund or the Contingency Fund of India, the *payment* of moneys into or the *withdrawal* of moneys, *from* any such Fund.
- (4) The *appropriation* of moneys out of the Consolidated Fund of India.
- (5) The *declaring* of any expenditure to be expenditure charged on the Consolidated Fund of India or the *increasing* of the amount of any such expenditure.
- (6) The *receipt of money* on account of the Consolidated Fund of India or the public account of India or the custody or issue of such money or the audit of the accounts of the Union or of a State.
- (7) Any matter incidental to any of the matters mentioned in clauses (1) to (6) above.

A Bill is *not* be deemed to be a Money Bill by reason *only* that it provides for the *imposition of fines* or other pecuniary penalties, *or* for the demand or payment of fees for *licences* or fees for service rendered, *or* by reason that it proves for the imposition, abolition, remission, alternation or regulation of any tax by any local authority or body for local purposes.

If any question arises whether a Bill is a Money Bill or *not*, the *decision of the Speaker* of the House of the People thereon is *final*.

When a Money Bill is transmitted to the Council of States under Article 109, and when it is presented to the President for assent under Article 111, there must be endorsed on every such Bill, a certificate of the Speaker of the

House of the People, signed by him that it is Money Bill.

Special procedure in respect of Money Bills [Arts. 109-110(4) & 117]

A Bill or amendment making provisions for any of the matters specified in clauses (1) to (6) above *cannot* be introduced or moved *except* on the *recommendation* of the President, and a Bill making such provision *cannot* be introduced in the *Council of States*. [Art. 117(1)]

The *three important steps* in this special procedure are laid down in **Arts.** 109 and 110 as under :

1. A Money Bill *cannot be introduced* in the Council of States. [Art. 101(1)]

2. After a Money Bill has been *passed* by the House of the People, it must be *transmitted* to the Council of States for its recommendations. The Council of States must, *within fourteen days* from the date of its receipt of the Bill, *return* the Bill to the House of the People with its *recommendations*, and the House of the People *may* thereupon either *accept* or *reject* all or any of the recommendations of the Council of States. If, however, it is *not* so returned, it is to be deemed to have been *passed* by both the Houses at the expiration of the said period *in the form in which it was passed by the House of the People*. (Art. 109)

3. If the House of the People *accepts* any of the recommendations of the Council of States, the Money Bill is *deemed* to have been *passed* by both Houses with the amendments recommended by the Council of States and accepted by the House of the People. If, however, the House of the People does *not accept* any of the recommendations of the Council of States, the Money Bill is *deemed* to have been *passed* by both the Houses *in the form in which it was passed by the House of the People, without any of the amendments* recommended by the Council of the States (Art. 109)

Thus, the provisions of the Constitution establish a definite superiority of the House of the People in respect of Money Bills.

General procedure regarding President's assent to Bills (Art. 111)

A Bill does *not* become law unless and until the President *assents* to it. In other words, a Bill will *not* be an Act of the Indian Parliament until it receives the assent of the President

When a Bill is presented to the President, after its passage in both the Houses of Parliament, the President is entitled to take any of the following *three* steps :

- (i) He may declare his assent to the Bill; or
- (ii) He may declare that he withholds his assent to the Bill; or
- (iii) He may, *in the case of Bills other than Money Bills*, return the Bill for reconsideration of the Houses, with or without a message suggesting amendments.

In case the President exercises the *third* option (above). and the Bill is passed *again* by both the Houses of Parliament with or without amendment, and again presented to the President, it is *obligatory* upon him to assent to it.

Art. 111 lays down the law relating to the President's assent, as under :

When a Bill has been passed by the Houses of Parliament, it is to be *presented* to the President, and the President must declare *either* that he assents to the Bill *or* that he *withholds assent* therefrom. The President, may, however, *return the Bill* (if it is *not a Money Bill*) to the Houses, with a *message* requesting that they *reconsider* the Bill and, in particular, consider the desirability of *introducing* any such *amendments* as he may recommend in message, and when a Bill is so *returned* the Houses *must* reconsider the Bill accordingly. If such a bill is passed again by the Houses, with or without amendment, and presented to the President for assent, *the President cannot withhold assent therefrom*.

The above provision does *not* apply to Money Bills. This is because a Money Bill is introduced only on the recommendation of the President; therefore, if the President recommends it and it is passed by the House of the People, he is presumed *ipso facto* to have given his assent.

'POCKET VETO' OF THE PRESIDENT.—It may be noted that Art. 111 does *not* prescribe any time-limit within which the President has to declare his assent or refusal or to return a Bill. He may thus indefinitely postpone a Bill. By this he would be able to exercise something like a 'pocket veto' by simply postponing it indefinitely. In other words, *the President has only a delaying veto under the Indian Constitution.*

(5) Procedure In Financial Matters

(Arts. 112-117)

There are *five* stages in the procedure relating to financial matters, as follows :

1. *Presentation of the Annual Financial Statement.*—The President must cause the annual financial statement (popularly called *the Budget*) for the ensuing year to be laid before both the Houses of Parliament. Usually, the Finance Minister presents the Budget every year. [The composite definition of the 'Annual Financial Statement' is laid down in Art. 112 discussed below.]

2. *The general discussion in both Houses.*—The presentation of the Budget is followed by a general discussion of the Statement as a whole in both the Houses.

3. *Voting of the demands by the House of the People.*—This is the right of the *House of the People alone*. The Council of States has no further say in the matter beyond *the general discussion*.

In the House of the People, after the general discussion is over, the estimates are to be submitted in the form of demands for grants on the particular heads followed by a vote of that House. The House of the People has the following powers in respect of each demand : (i) *to assent* to the demands; or (ii) *to refuse it*; (iii) *to reduce it*. It will be seen that the House of the People has no power *to increase* a demand, or to *alter the destination* of a grant, or to put any condition as to the *appropriation* of the grant. *The Lok Sabha thus has the exclusive right of granting supplies.*

4. *The Appropriation Act.*—The grants, as voted by the House of the People, will be embodied in a Money Bill and passed by Parliament as such. This Act is known as the Appropriation Act and is the sole legal authority for the appropriation of money from the Consolidated Fund of India

5. *The Finance Act.*—Similarly, the new taxing proposal of the Budget will be embodied in another Bill and passed as the Annual Finance Act.

I. Annual Financial Statement

[Arts. 112-113 & 117(3)]

Definition [Art. 112(1)]

The Annual Financial Statement, also known as the *Budget*, is a statement of the estimated receipt and expenditure of the Government of India for the year.

Laying of the Statement before the Houses [Art 112(1)]

In respect of *every* financial year, the President must **cause the** statement to *be laid before both* the Houses of Parliament.

FINANCIAL YEAR.—The Financial year is a period of one **year from** 1st April of a year till 31st March of the next year.

What such a Statement shows [Art. 112(1) & (2)]

The Annual Financial Statement shows separately the **sums required** to meet (i) the expenditure charged upon the Consolidated Fund of India; and (ii) *other* expenditure proposed to be made *from the* Consolidated Fund of India; it also distinguishes expenditure on *revenue* account from *other* expenditure.

What expenditure can be charged on the Consolidated Fund of India [Art. 112(3)]

Art. 112(3) lays down as to *what expenditure can be charged on the Consolidated Fund of India*. It provides that only the following expenditure can be charged on the Consolidated Fund of India :

1. The emoluments, allowances, salaries and pension payable to—(i) The President; (ii) The Chairman and Deputy Chairman of the Council of States and the Speaker and the Deputy Speaker of the House of the People (iii) Judges of the Supreme Court and High Courts; and (iv) the Comptroller and Auditor-General of India.
2. Debt charges for which the Government of India is liable, including interest, sinking fund charges and redemption charges, and other expenditure relating to the raising of loans, and the service and redemption of debt.
3. Any sums required to satisfy any judgment, decree or award of any Court or arbitral Tribunal: and
4. Any *other* expenditure declared by the Constitution by Parliament to be so charged.

Lastly, expenditure charged upon the Consolidated Fund of India *cannot* be submitted to the vote of Parliament [Art 113(1)]. However, this Article does *not* prohibit *discussion* of expenditure charged on the Consolidated Fund. Thus, either House can discuss and criticise such expenditure, although it *cannot* vote upon it Further, Art. 117(3) provides that a Bill which, if enacted and brought into operation, would involve expenditure from the Consolidated Fund **of** India *cannot be passed* by either House of Parliament, *unless the President has recommended* the consideration of the Bill to that House.

II. Procedure In Parliament As To Estimates

(Art. 113)

The *second* 'financial matter' provided for in the Act is one relating to *estimates* discussed in Art. 113. It prescribes a very short procedure as to estimates, as follows :

1. Estimates relating to expenditure charged upon the Consolidated Fund of India are *not submitted to the vote of Parliament*, but **the** Parliament has power to discuss any such estimates. [Art 113(1)]
2. So much of the said estimates as relate to *other* expenditure are submitted in the form of demands for *grants* to the House of the People, and the House of the People has the power to *assent or to refuse* to assent to any demand, or to assent to any demand, subject to a *reduction* of the amount specified therein. [Art. 113 (2)]

No *demand* for a grant can be made except on the *recommendation* of the *President*. [Art. 113(3)]

This sub-clause [i.e., Art. 113(3)] enacts the well-known principle of public finance that no proposal for the imposition of taxation, or for the appropriation of public revenues, nor any proposal affecting or imposing any charge upon these revenues, can be made except on the responsibility of the Executive. It is, therefore, provided that the President as one in whom the executive power of the Union is vested, must recommend every demand for a grant. Moreover, it ensures that the Executive is solely responsible for the expenditure of public money, whether that takes place through a Money Bill, or indirectly through some general statute involving expenditure.

Appropriation Bills (Arts. 113-115)

The third 'financial matter' is the one relating to Appropriation Bills

discussed in Arts. 114 and 115.

What Is an Appropriation Bill

An Appropriation Bill is one which provides for the appropriation out of the Consolidated Fund of India of money required to meet—(a) the grants made by the House of the People; and (b) the *expenditure* charged on the Consolidated Fund of India, but *not* exceeding the amount shown in the statement previously laid before Parliament.

The procedure relating to an Appropriation Bill

As regards the procedure relating to an Appropriation Bill, *three points* are to be noted, viz.—

1. *Firstly*, no amendment can be proposed to an Appropriation Bill in either House of Parliament, which would have the effect of *varying* the *amount* or *altering* the *destination* of any grant so made, and the decision of the person presiding as to whether an amendment is inadmissible under this clause is *final*.
2. *Secondly*, no money can be *withdrawn* from the Consolidated Fund of India *except* under an *appropriation* made by law passed in accordance with the provision of Art. 114.
3. *Thirdly*, if the amount authorised by Art. 114 is found to be *insufficient* for the purpose of that year, or when a need has arisen during the current financial year for *supplementary* or *additional expenditure* upon some *new* service *not* contemplated in the annual financial statement for that year, or if any money has been spent on any service during a financial year in *excess* of the amount granted for that service and for that year, the President must cause to be laid before both the Houses of Parliament *another* statement showing the estimated amount of that expenditure, or cause to be presented to the House of the People a demand for such excess, as the case may be, whereupon the provisions of Articles 112, 113 and 114 are to have effect in relation to any such statement and expenditure or demand.

IV. Votes On Account, Votes Of Credit And Exceptional Grants (Art. 116)

Apart from normal demands for grants, the President is authorised by the Constitution to place before Parliament, if he considers it necessary, demands for *additional* or *supplementary* or *excess* grants, and the same procedure must be gone through in respect of such grants. as in the case of the normal annual demands for grants. The House of the People has been empowered to make advance grants, or even exceptional grants, to which also the normal procedure for grants or appropriation will apply. They can be made by the *House of the People* only. Art. 116 deals with them as under

1. Votes on account [Art. 116(1Xa)]

The House of the People has the power to make any *grant in advance* in respect of the estimated expenditure for a part of any financial year, pending the completion of procedure for the voting of such grant and the passing of the law in accordance with the provisions of Article 114 in relation to that expenditure.

VOTES ON ACCOUNT.—The term "votes on account" is a technical term referring to provision for grants in advance to be made by the House for enabling the departments to carry on until the passing of the Annual Financial Statement is complete. Votes on account may be passed on *any day subsequent* to the presentation of the Budget.

2. Votes of credit [Art. 116(1)(b)]

The House of the People also has the power to make a *grant for meeting an unexpected demand upon the resources of India* when, on account of the magnitude or the indefinite character of the service, the demand *cannot* be stated with the details ordinarily given in an annual financial statement.

VOTES OF CREDIT. —Sometimes, it happens that owing to an unexpected demand for money caused by some national emergency, the Government may require funds for which it is *not* possible to give detailed estimates. In such a case, the House would grant the money required by a vote of credit passed in the same way as annual grants

3. Exceptional grants [Art. 116(1)(c)]

The House of the People also **has** the power to **make** an *exceptional grant* which forms no part of the current service of any financial year.

Parliament has the power to authorise by law the withdrawal of money from the Consolidated Fund of India for the purposes for which such grants are made.

(6) General Provisions (Arts. 120-121) 1. Language to be used in Parliament (Art. 120)

The language for the transaction of business in Parliament shall be *Hindi or English*, subject to the provisions of the Constitution in respect of the official language. (See the Chapter on the Official language.)

Unless Parliament otherwise provides, at the expiration of fifteen years from the commencement of the Constitution, this language is to be only Hindi. It is provided that the Speaker, or the Chairman, as the case may be, may permit any member having inadequate knowledge of Hindi or English to address the House in his mother tongue.

2. Restriction on discussion In Parliament (Art. 121)

No *discussion* can take place in Parliament with respect to the conduct of any *Judge* of the *Supreme Court* or of a *High Court* in the discharge of his duties, *except* upon a *motion* for presenting an address to the President praying for the *removal* of the Judge as provided for in Art. 124 (below).

3. Court *not* to inquire into proceedings of Parliament (Art. 122)

The *validity* of any proceedings in Parliament *cannot* be called in question on the ground of any alleged irregularity of procedure, and no officer or member of Parliament in whom powers are vested by or under the Constitution for regulating procedure or the conduct of business, or for maintaining order in Parliament is subject to the jurisdiction of *any* Court in respect of the exercise by him of *those powers*. (A reference may be made to a decision of the Supreme Court in *Re Art. 143, Constitution of India*, in Appendix IV.)

C. The Union Judiciary (Ch. IV : Arts. 124-145)

The constitutional provisions relating to the Union Judiciary may be discussed under the following *two heads* :

(1) The Supreme Court Judges (Arts. 124-128, 374 and Schedules 2 & 3) (2) The Supreme Court of India (Arts. 129-137, 143, 145 and 363)

(1) Supreme Court Judges (Arts. 124-128, 374 & Schedules 2 and 3)

Art. 124 of the Constitution provides for a Supreme Court of India, consisting of a Chief Justice of India and *twenty-five* other Judges, who are appointed by the President. Parliament, however, has the power to Increase the number of Judges. The Judges of the Supreme Court hold office until the age of 65. A Judge may, by writing under his hand addressed to the President, *resign* his office. It has also been provided that the *age* of a Judge of the Supreme Court is to be determined by such authority and in such manner as Parliament by law provide.

His qualifications [Art. 124(3)]

A person is *not qualified* for appointment as a Judge of a Supreme Court, *unless* he is a *citizen of India*, (a) has been, for at least five years, a *Judge* of a High Court or of two or more such Courts in succession; or (b) has been, for at least *ten years* an *advocate* of a High Court or of two or more such Courts in succession; or (c) is, in the opinion of the President, a *distinguished jurist*.

How appointed

Every Judge of the Supreme Court is to be appointed by the President. by warrant under his hand and seal, after

consultation with such of the Judges of the Supreme Court and of the High Courts in the States as the President may deem necessary for the purpose. In the appointment of every Judge other than the Chief Justice, the Chief Justice of India is always to be consulted.

Before entering upon his office, every Judge must *make* and *subscribe* before the President, (or some person appointed in that behalf by him) an *oath or affirmation* in the following form

”I, *AB.*, having been appointed Chief Justice (or a Judge) of the Supreme Court of India. do swear in the name of God (or solemnly affirm) that I will bear true faith and allegiance to the Constitution of India as by law established, that I will uphold the sovereignty and integrity of India, that I will duly and faithfully and to the best of my ability, knowledge and judgment, perform the duties of my office without fear or favour, affection or illwill and that I will uphold the Constitution and the laws.”

No person who has been a Judge of the Supreme Court can *plead* or *act* in any Court or before any authority within the territory of India.

When the Constitution came into force, the salary of the Chief Justice was fixed at As 5,000 per month, and that of other Judges at Rs. 4,000 per month. These amounts were increased from time to time, and currently, the Chief Justice draws a salary of As. 1,00,000 per month, and the other Judges As 90,000 per month

Every Judge of the Supreme Court is also entitled without payment of rent to the use of an official residence, pension, travelling allowance and leave allowance, as set out in the Second Schedule to the Constitution. Such privileges and allowances *cannot* be varied to his disadvantage after his appointment

In a case involving the *policy to be followed* in the appointment of Supreme Court Judges, it has been *held* by the Supreme Court that there is a constitutional convention to the effect that the opinion of the Chief Justice of India has primacy in the matter. Such a convention is now well-established, and must be read into Art. 124. (*S C. Advocates on-Record Association v. Union of India*. AIR 1994 S C 268)

In the above case, the Supreme Court has considered at length, the matter of appointment and transfer of High Court and Supreme Court Judges, and a reference may be made to this case discussed at length in Appendix IV.

How removed [Art. 124(4) & (5)]

A Supreme Court Judge *cannot be removed* from his office, *except by an order of the President* passed after an *address by each House of Parliament, supported by a majority of the total membership of the House and* by a majority of *not less than two-thirds* of the members of that House present and voting has been presented to the President in the same session for such removal on ground of *proved misbehaviour or incapacity*. For this purpose, Parliament may regulate the procedure for the presentation of an address and for the investigation and proof of his misbehaviour or incapacity.

If Art. 125 is read along with the above clauses (4) and (5) of Art. 124, it will be seen how the independence of the Judiciary is sought to be safeguarded by our Constitution. Art. 125(2) runs thus—

Neither the privileges nor the allowances of a Judge nor his rights in respect of leave of absence or pension shall be varied to his disadvantage after his appointment.

When, however, a Proclamation of Emergency is in operation, the President has the power to reduce the salaries and allowances of the Supreme Court Judges. [Art. 360].

It will thus be seen that the above provisions ensure, to a great extent, the *independence of the Judiciary in India*.

Appointment of *ad hoc* Judges (Arts. 127-128)

If, at any time, there is no *quorum* of the Judges of the Supreme Court available to hold or continue any session of the Court, the Chief Justice of India may (with the previous consent of the President and after consultation with the

Chief Justice of the High Court concerned) request, in writing, the attendance at the sittings of the Court, as an *ad hoc* Judge, for such period as may be necessary, of a Judge of a High Court. who thereupon *must* attend the sittings of the Supreme Court, and has all the jurisdiction, powers and privileges, and shall discharge the duties, of a Judge of the Supreme Court. [Art. 127].

The Chief Justice of India may, with the previous consent of the President, request any person who has held the office of a Judge of the Supreme Court or of the Federal Court, to sit and act as a Judge of the Supreme Court. *If* such a person consents to do so, he is entitled, while so sitting and acting, to such allowances as the President may by order determine, and has all the jurisdiction, powers and privileges of a Judge of that Court. [Art. 128].

Independence Of The Supreme Court

In a Constitution which has a federal scheme of distribution of powers, **the** judiciary is the *custodian and guardian of the Constitution*. Therefore, **the** Supreme Court of India, which is the highest judicial organ, and therefore entrusted with the ultimate task of acting as the custodian **and** guardian of the Constitution, has to be independent of the influence of the **Government** concerned. Further, the Supreme Court of India is the highest **Court of Appeal**, **and** is also a Court entrusted with the function of protecting the fundamental rights of individuals. In view of these important functions of the Supreme Court, the independence of this Court is of utmost importance.

The framers of our Constitution have tried to secure the independence of the Supreme Court by various measures. While providing for such safeguards, the framers drew inspiration from the American, Swiss and British examples. The various safeguards in the Constitution to ensure the independence of the Supreme Court, can be summed up as follows :

(1) Appointment

A Judge of the Supreme Court is appointed by the President, by a warrant under his hand and seal, after consultation with such of the Judges of the Supreme Court and of the High Courts in the States, as the President may deem necessary for the purpose, and holds the office until he attains the age of 65 years. Thus, the appointment of Judges has rightly been lifted from the realm of pure politics.

The Supreme Court has observed that the independence of the judiciary will, in the long run, sink, if the Government, who is a major litigant, enjoys absolute authority in the nomination of Judges of superior Courts. (See *S.C. Advocates-on-Record Association v. Union of India*, A.I.R. 1994 S.C. 268, discussed at length in Appendix IV.)

(2) Removal

A Judge of the Supreme Court *cannot* be removed from his office, **except** by an order of the President passed after an address by each House of Parliament, supported by a majority of the total membership of that House and by a majority of *not less than two-thirds* of the members of that House present and voting, presented to the President in the **same** session for such removal, on the ground of proved misbehaviour or incapacity.

(3) Salaries and allowances

The salaries and allowances of the Judges have been fixed by the Second Schedule, and *cannot* be altered or varied to their disadvantage after their appointment. Thus, independence is ensured by this assurance that a Judge's salary and allowances will *not* be adversely affected (to his disadvantage), *even if* Parliament makes a new law *after* his appointment.

However, when a Proclamation of Emergency is in operation, **the** President has the power to reduce such salaries and allowances

(It may be noted that the salaries, as originally stated in the Second Schedule of the Constitution, have been increased from time to time, by constitutional amendments as also by the High Court **and** Supreme Court Judges (Conditions of Service) Amendment Acts

(4) Charge on the Consolidated Fund

The administrative expenses of the Supreme Court, including all salaries, allowances and pensions payable to the Judges and other officers and servants of the Court, are charged upon the Consolidated Fund of India, and any fees and other moneys taken by the Court form part of that fund. The sums which are charged upon the Consolidated Fund of India are *not* put to the vote of Parliament. [Art. 146(3)].

(5) Appointment of officers

The appointments of the officers and servants of the Supreme Court are made by the Chief Justice of India or such other Judge or officer of the Court as he may direct, provided that the President may, by rule, require that in such cases as may be specified in the rule, no person not already attached to the Court can be appointed to any office connected with the Court, save after consultation with the Union Public Service Commission. [Art. 146(1)].

(6) Conduct *not* open to discussion in Parliament

The Constitution also forbids any discussion of the conduct of a Judge in Parliament *except* upon a motion for his removal. (Art. 121).

(7) No right to practise

Under Art. 124(7), a person who has been a Judge of the Supreme Court *cannot* plead or act in *any* Court or before *any* authority in India. This provision would also go a long way in ensuring the independence of the Judges of the Supreme Court.

(2) The Supreme Court of India (Arts. 32, 129-137, 143, 145 and 363)

The Supreme Court of India is a *Court of record*, and has all the powers of such a Court, including the powers to punish for contempt of itself. [Art. 129].

WHAT IS A "COURT OF RECORD".—A Court of record is a Court whose acts and proceedings are enrolled for perpetual memorial and testimony, and which can impose fine and imprisonment for contempt of its authority.

SEAT OF SUPREME COURT.—Art. 130 provides that the Supreme Court shall sit in *Delhi* or in such other places, as the Chief Justice of India may, with the approval of the President, appoint.

THREE KINDS OF JURISDICTION OF THE SUPREME COURT (Arts. 32, 131-139, 142-145, 363 and 374)

The Supreme Court exercises three *important kinds of jurisdiction viz.*, 1. *Original*; 2. *Appellate*; and 3. *Advisory* (or *Consultative*).

1. Original Jurisdiction of the Supreme Court (Arts. 32, 131, 143 and 363)

The Supreme Court exercises original jurisdiction in *three kinds of disputes only*, as follows :

- (a) any dispute between the *Government of India* and one or more States; *or*
- (b) any dispute between the Government of India and any State or States on one side and *one* or more other States on the *other*; *or*
- (c) any dispute between two or more States,— in so far the dispute involves any question (whether of law or fact) on which the existence or extent of any legal right depends. [Art. 131].

Moreover, *three types of disputes are expressly excluded* from the original jurisdiction of the Supreme Court, *viz.*,—

- (1) The original jurisdiction does *not* extend to a dispute arising **out** of any treaty, agreement, covenant, engagement,

sanad or other similar instrument which, having been entered into or executed before the commencement of this Constitution, continues in operation after such commencement, and which provides that the said jurisdiction shall *not* extend to such a dispute. [Art. 131].

It is, however, open to the President to refer such disputes to the Supreme Court for *opinion* and the Supreme Court, after such hearing as it thinks fit, *must* report to the President its opinion thereon. [Art. 143(2)].

(2) Neither the Supreme Court nor any other Court has jurisdiction in any dispute arising out of any provision of a treaty, agreement, covenant, engagement or *sanad* entered into or executed before the commencement of this Constitution by any Ruler of an Indian State and to which the Government of the Dominion of India was a party. [Art 363].

(3) *Lastly*, under Article 262, Parliament may provide for the adjudication of any dispute or complaint with respect to the use, distribution or control of the waters in any inter-State river or river valley Parliament may further provide that neither the Supreme Court nor any other Court shall exercise jurisdiction in respect of any such dispute or complaint

The Supreme Court has *held* (in *State of Bihar v. Union of Inches—AIR. 1970 S.C. 1446*) that apart from the *three* matters cited above, the following *three matters* also appear to be excluded from the original jurisdiction of the Supreme Court and vested in other tribunals of the Constitution. namely :

- (i) matters referred to the Finance Commission (Art 280),
- (ii) adjustment of certain expenses between the Union and the States (Art. 290); and
- (iii) reference to the Supreme Court under Art 143(2), read with the Proviso to Art. 131.

ORIGINAL JURISDICTION OF THE SUPREME COURT.—It must **be** remembered that the original jurisdiction of the Supreme Court is strictly limited by Art. 131. It is *not* a Court of ordinary original jurisdiction in *all matters* and between all *parties*. In order to invoke the original jurisdiction of the Supreme Court, the following *three conditions* must be satisfied, namely—

(a) The parties to the dispute should be those specified in clauses (a) to (c) above.

(b) The dispute should be one involving a question relating to a *legal right* as distinguished from a *political right* over which Courts have no jurisdiction.

(c) The question must *not* be one which is excluded by Art. 131 itself or by any other provision of the Constitution.

Article 32 empowers the Supreme Court to issue directions or orders in the nature of the writs of *habeas corpus*, *mandamus*, *prohibition*, *quo warrant*^o and *certiorari*, or any of them, for the enforcement of fundamental rights. It is to be noted that this jurisdiction is *not exclusive*. It is *concurrent*, and the High Courts of States have also been granted similar powers.

Art. 139 also invests the Supreme Court with exactly similar powers. It lays down as follows :

Parliament may, by law, confer on the Supreme Court power to issue directions, orders or writs, including writs in the nature of *habeas corpus*, *mandamus*, *prohibition*, *quo warrant*o and *certiorari*, or any of them, for any purposes other than those mentioned in Article 32(2).

(The nature of the various writs has already been considered whilst discussing Art. 32.)

2. Appellate jurisdiction (Art. 132-137)

There are *two aspects* of the appellate jurisdiction of the Supreme Court. *In the first place*, the Supreme Court has the power to hear appeals which involve interpretation of the Constitution. It is immaterial whether such appeals relate to civil, criminal or other proceedings. *Secondly*, appeals lie to the Supreme Court in civil and criminal matters, when certain conditions (discussed below) are satisfied.

Appeals to the Supreme Court, when allowed (Arts. 132-137)

An appeal lies to the Supreme Court in the following three cases. viz,—

(1) Appeals from High Courts in Constitutional Cases (Arts. 132-133)

An appeal lies to the Supreme Court from any judgment, decree or final order of a High Court in India, whether in a civil, criminal or other proceeding, if the High Court certifies that the case involves a substantial question of law as to the interpretation of Constitution. [Art. 132(1)]. The Supreme Court has clarified that in an appeal under Art. 133(1), if **there** is a new point which has *not* been argued before the High Court, the Appellant *cannot* be allowed to raise it for the first time before the Supreme Court. (*Shri Shailagouda & Others v. Gurusangappa Ramasangappa Desai*, A.I.R. 1980 S.C. 1759).

Further, a party appealing to the Supreme Court under Art. 133 (below) may also urge, as one of the grounds in such appeal, that a substantial question of law as to the interpretation of Constitution has been wrongly decided. [Art. 133(2)].

The minimum number of judges who must sit for the purpose of deciding any case involving a substantial question of law as to the interpretation of the Constitution is five. [Art. 145(3)].

When a Certificate to file an appeal before the Supreme Court is granted by the High Court, adequate reasons are to be given by the High Court. If, however, this Certificate is defective, the appeal is *not* liable to be dismissed only on this ground, when a substantial question of law of general public importance is raised, and when special leave could have been obtained from the Supreme Court itself. (*Biswabani Pvt. Ltd v. Santosh Kumar Dutta*, A.I.R. 1980 S.C. 226).

APPEALS INVOLVING CONSTITUTIONAL QUESTIONS.—Article 132 deals with appeals involving interpretation of the Constitution, arising out of any proceedings in a High Court—civil, criminal or otherwise. It will thus be seen that this Article ensures that though a High Court may pronounce upon the validity of an Act or decide any question involving the interpretation of the Constitution, the *final authority* in such matters is the Supreme Court, whatever be the nature of the suit or proceeding in which such question may arise.

Under Art. 132, two conditions have to be satisfied :

- (i) The case must involve a question of law as to the interpretation of the Constitution: *and*
- (ii) Such a question should be a substantial question of law.

Thus, under this provision, *no appeal* can lie on a question of fact.

It has been held that the word '*substantial*' occurring in the expression '*substantial question of law*' does not necessarily mean a question of general importance; the term also covers a case where there is a difference of opinion. (*State of J & K v. Ganga*,—A I R 1960 S.C. 356).

Thus, the following can be said to be instances where a substantial question of constitutional interpretation is involved

- (i) a suit challenging a statute as *ultra vires* or inconsistent with a mandatory provision of the Constitution.
- (ii) a conviction which is challenged as *ultra vires*:
- (iii) a question on whether a law or an executive order contravenes any fundamental right.

On the other hand, the following have been held *not* to involve a question of law as to the interpretation of the Constitution, namely

- (i) a question as to whether an Act has been correctly applied to the facts of a case:

(ii) a question whether a reasonable opportunity has been given under Art. 311(2).

(2) Appeals from High Courts in civil matters (Art. 133)

Art. 133 provides that an appeal shall lie to the Supreme Court from any judgment, decree or final order in a civil proceeding of a High Court in India, if the High Court certifies :

(a) that the case involves a substantial question of law of general importance, *and*

(b) that in the opinion of the High Court, the said question needs to be decided by the Supreme Court.

Prior to the Thirtieth Amendment, Art. 133 also allowed an appeal to the Supreme Court in cases where the amount or value of the subject-matter of the dispute was certified by the High Court to be *twenty thousand rupees* or more. The *reason* for amending Article 133 was that it was widely felt that valuation in terms of money (twenty thousand rupees) was *not a rational yardstick* for conferring a right of appeal. It was rightly pointed out that an important question of law may arise even in suits of a small value. Conversely, the test of valuation resulted in cases without merit going in appeal to the Supreme Court, only on the ground that the valuation test was satisfied. The Law Commission drew attention to this anomaly, and consequently, the Thirtieth Amendment was passed to cure this defect.

It will be seen that, for the purposes of Art. 133, it is *not* a mere question of law, *but a substantial* question of law, that is required for the purpose of the certificate. In other words, it must be such that there may be some doubt or difference of opinion in the matter. Where there is a divergence of opinion amongst the High Courts, the fact that the rulings of a particular High Court (from which the appeal is sought to be preferred) are uniform does *not* prevent the question from being a substantial question of law. (*Subba Rao v. Veeraju*—A.I.R. 1951 Mad. 969).

Moreover, such substantial question of law should also be of *general importance*. In other words, it must be such that, apart from the parties to the litigation, the *general public* should also be interested in the determination of that question by the highest tribunal of the land.

When no appeal lies to Supreme Court [Art. 133(3)]

Under Art. 133(3), *unless* Parliament by law otherwise provides, no appeal can lie to the Supreme Court from the judgment, decree or final order of *one* Judge of a High Court.

(3) Appeal in criminal matters [Arts. 134 & 136]

An appeal lies to the Supreme Court from any judgment, final order or sentence in a *criminal* proceeding of a High Court in India, if the High Court—

(a) has, on appeal *reserved* an order of *acquittal* of an accused person and *sentenced* him to *death*; *or*

(b) has *withdrawn for trial* before itself any case from any Court subordinate to its authority, *and* has, in such trial, *convinced* the accused person and *sentenced* him to *death*; *or*

(c) *certifies* that the case is a *fit* one for appeal to the Supreme Court. [Art. 134].

Certificate for appeal to the Supreme Court [Art. 134A]

Art. 134A provides that every High Court passing or making a judgment, decree, final order or sentence referred to in Art. 132(1) or 133(1) or 134(1),—

(a) *may*, on its own motion, if it deems fit to do so; *and*

(b) *must*, if an oral application is made by or on behalf of the aggrieved party immediately after the judgment, decree, final order or sentence,—

determine the question of whether a Certificate of the nature referred to in Art. 132(1) or Art. 133(1) or Art. 134(1)

may be given in respect of that case.

Special leave to appeal (Art. 136)

Notwithstanding anything contained in this Chapter, the Supreme Court may, in its discretion, grant *special leave to appeal from any judgment, decree, determination, sentence or order* (other than an order made under any law relating to the Armed Forces) in any cause or matter passed or made by any Court or Tribunal in India. [Art. 136]. It will be seen that by virtue of this Article, the Supreme Court can grant special leave in *any* case—in civil cases, in criminal cases, income tax cases, *etc.* Such a Petition is often referred to as a Special Leave Petition (*SLP*). However, the *discretionary power* with which the Supreme Court is invested under Art. 136 is to be exercised *sparingly and in exceptional cases only*.

In case of appeals against *conviction*, the Supreme Court normally does *not* interfere with the findings of the lower courts. (*Sudama Pandey v. State of Bihar*, AIR 2002 SC 693)

However, in case of appeals against *acquittals*, the Supreme Court would readily interfere when the approach of the High Court is far from satisfactory. (*Anvaruddin v. Shakour*, AIR 1990 SC 1242)

The nature of the jurisdiction of the Supreme Court under Art. 136 was explained by *Mahajan J.* in *Bharat Bank Ltd. v. Its Employees* (A.I.R 1950 S.C. 188), where he observed that the power conferred by this Article was **not** controlled by the limitations contained in the other Articles on the Court's powers to entertain an appeal. He further observed that the court had the power to grant such leave, *not only* in respect of *final orders*, *but also* in respect of *interlocutory orders*.

The Supreme Court has observed that its jurisdiction under Art 136 is, no doubt, to be exercised sparingly. However, if the appellant shows that the concurrent decision of two or three lower Courts are manifestly unjust, it is *not only the right* of the Supreme Court, *but also its duty*, to remedy the injustice. As the Court observed, injustice should *not* be perpetuated, just because it has been done two or three times in the same case. (*M/s. Variety Emporium v. Mohd. Ibrahim Naina*, AIR. 1985 SC. 207).

No *rules or principles* as to when such leave ought to be granted and when it ought to be refused can be laid down, as each case would depend on its own peculiar facts. As the Supreme Court itself observed in one case, "It is *not* possible to define the limitations on the exercise of the discretionary jurisdiction vested in this Court by Art. 136. It being **an** exceptional and overriding power, naturally, it has to be exercised sparingly and with caution and only in special and extraordinary situations." (*Dhakeswari Cotton Mills Ltd. v. C.I.T., West Bengal*—AIR. 1955 S.C. 65).

If a point was *not* taken up, or *not* pressed, before the High Court, the Supreme Court would *not* allow such a point to be raised before it. (*Nityanandarkar v. State of Orissa*. AIR 1991 SC 1134)

Although there is no fetter on the power of the Supreme Court under Art. 136, certain salutary principles have been developed by the Supreme Court in this connection. Thus, ordinarily, the Supreme Court will *not* convert itself into a third Court of fact in civil or criminal cases. However, it will interfere with findings of fact, if there has been an illegality or an irregularity of procedure, or a violation of the principles of natural justice, resulting in an absence of a fair trial or a gross miscarriage of justice, or where the findings are vitiated by an error of law.

The Supreme Court has *held* that, in the absence of exceptional circumstances, the Supreme Court does *not* sit in judgment over what is held by a High Court and re-appreciate the evidence under Art. 136. (*Krishnan Lal v. State of Haryana*. (1980) 3 S.C.C. 159).

Ordinarily, the Supreme Court would refuse to entertain an appeal Under Art. 136 from the order of a tribunal where the litigant has *not* availed himself of the ordinary remedies available to him at law, as for instance, a statutory right of appeal or revision.

So also, special leave would *not*, as a rule, be granted where the appeal has become academic, as for instance, where the relief sought has become nugatory in the light of subsequent events.

It has been *held* that if a Special Leave Petition is summarily dismissed, this *cannot* prevent other parties from filing a Special Leave Petition against the *same Judgment*. (*Delhi Administration v. Madan Lal Nangia*, AIR 2003 SC 4672)

In its Fourteenth Report, the Law Commission has adversely commented on the frequency with which leave to appeal was granted by the Supreme Court under this Article, especially in criminal matters. The Commission was of the opinion that the decision of the High Courts (in appeal) would have no finality, and this certainly does *not* add to the prestige or position of the High Courts.

The Supreme Court itself has also On *Shantilal Maganlal v. Chunilal Ranchhodas*, A.I.R. 1984 S.C. 1578), deprecated the practice of indiscriminately filing special Leave Petition and Review Petitions in the Supreme Court, observing as follows :

”This application for Review is nothing short of an abuse of the process of the Court and a waste of the time of this Court. **We** must express our deep dissatisfaction and anguish with the indiscriminate manner in which petitions for special leave and petitions for review are being filed. The present application is entirely frivolous and is accordingly dismissed.”

Summary of appellate jurisdiction of the Supreme Court

The appellate jurisdiction of the Supreme Court may be classified under the following heads :—

(1) Appeals on constitutional questions : (a) By certificate of High Court [Art. 132(1)]. (b) By special leave of the Supreme Court [Art. 132(2)].

(2) Appeal involving no constitutional questions : (a) Civil [Art. 133]. (b) Criminal [Art. 134].

(3) Appeal by special leave of the Supreme Court, in any case *other* than the above [Art 136].

3. Consultative (or advisory) jurisdiction of the Supreme Court (Arts. 143 & 145)

The last form of jurisdiction conferred on the Supreme Court is *consultative* or *advisory* in nature. This is provided for in Article 143, which reads as follows :

If, at any time, it appears to the President that a question of *law or fact* has arisen, or is *likely* to arise, which is of such a *nature* and of such *public importance* that it is expedient to obtain the opinion of the Supreme Court upon it, he may refer the question to that Court for consideration, and the Court *may*, after such hearing as it thinks fit, *report* to the President its *opinion thereon*.

The minimum number of Judges who will hear such a reference are *five*. The judgment and the report is delivered in *open Court* and with the concurrence of the majority of Judges present But a Judge who does *not* concur may deliver a *dissenting judgment*.

By this Article, the President, as the executive head of the Union, is enabled to refer questions of *law or fact* for the ”opinion” and report of the Supreme Court. Such a question may have actually *arisen* or may be *likely to arise*, but it must be of such a *nature* and of such *public importance* that it is *expedient* to obtain the opinion of the Supreme Court upon it. This power to consult the Supreme Court is known as the *consultative power of the President*. It is to be noted that the Constitution is silent on the question as to whether the opinion of the Supreme Court is binding on the President or *not*.

The use of the word ”may” above clearly shows that no obligation is cast on the Supreme Court to give its opinion on such question of law or fact, when sought for by the President

Thus, in the Presidential reference made to the Supreme Court on the Ram Janmabhoomi - Babri Masjid controversy, a five-member Constitutional Bench of the Supreme Court unanimously declined to answer the controversial question on whether there was any temple or other Hindu religious structure at the site where the

Masjid was demolished at Ayodhya. The reference by the President was interestingly dubbed "superfluous and unnecessary". (A reference may be made to this historic judgment of the Supreme Court in Appendix IV of this book.)

It is interesting to note that the Supreme Court of the U.S.A. has also *refused to give advice to the American President when requested to do so*.

However, Art. 143 also authorises the President to refer to the Supreme Court, any dispute arising out of any treaty, agreement, covenant, engagement, *sanad* or other similar instrument which has been executed before the commencement of the Constitution, but which continues in operation even after such commencement. In such cases, it is laid down that the Supreme Court *shall give* its opinion thereon to the President. The use of the word "shall" shows that it is *obligatory* on the Supreme Court to give its opinion in such cases.

The advisory opinion given by the Supreme Court under Art. 143 is *not* a "judgment", and does *not*, therefore, furnish a good root of title, such as one which might spring from a judgment of the Supreme Court. As there are no parties before the Court in such a Reference proceeding, the opinion of the Court in such a proceeding is *not* binding on any party. (*In Re Allocation of Lands & Buildings*—AIR. 1943 F.C. 13).

Prima facie, an opinion given under Art. 143 does *not* fall within the ambit of Art. 141 (which lays down that the law declared by the Supreme Court shall be binding on all Courts within the territory of India). However, it is interesting to note that the opinion of the Supreme Court in the *Delhi Laws Act* (Case No. 21 in Appendix IV) has been frequently referred to and followed by the different High Courts.

There has been considerable controversy over the advisory jurisdiction of the highest Court of India. There are two *schools of thought* on the subject. *According to one*, it is undesirable to turn the highest Court of the country into a consultative department of the executive of the day. *The view of the other school* is that there is nothing wrong in such procedure.

Section 213 of the Government of India Act, 1935 also contained a similar provision. There is a similar provision in Section 4 of the Judicial Committee Act of 1934.

The following observations of the *Vardachariar Committee*, which made its report to the Constituent Assembly, are interesting : "There has been considerable difference of opinion amongst jurists and political thinkers on the expediency of placing on the Supreme Court an obligation to advise the head of the State on difficult questions of law. In spite of arguments to the contrary, it was considered expedient to confer advisory jurisdiction upon the Federal Court under the existing Constitution by Section 213 of the Act. Having given our best consideration of the arguments *pro* and *con*, we feel it will be, on the whole, better to continue that jurisdiction even under the new Constitution. It may be assumed that such jurisdiction is scarcely likely to be invoked, and if, as we propose, the Court is to have a strength of ten or eleven Judges, a pronouncement by the *full* Court may well be regarded as authoritative. This can be assured by requiring that references to the Supreme Court for advice shall be dealt with by the full Court."

The advisory opinion of the Supreme Court has been invoked in several cases, as for instance, *In Re Indo-Pakistan Agreement* (AIR. 1960 S.C. 845), *In the matter of the Kerala Education Bill* (AIR. 1958 S.C. 958), *In Re. Delhi Laws Act* (AIR. 1951 S.C. 332), and *In Re. Article 143 of the Constitution of India* (AIR. 1965 S.C. 475). All these cases are discussed in Appendix IV of this book.

Miscellaneous provisions

1. The Supreme Court has the power to review any judgment pronounced or order made by it : (Art. 137).
2. Art. 139A provides that if, on its own motion, or on an application made by the Attorney-General of India, or by a party to any such case, the Supreme Court is satisfied that cases involving the same (or substantially the same) questions of law are pending before two or more High Courts, *and* that such questions are substantial questions of general importance, the Supreme Court may withdraw the case (or cases) pending before the High Court (or the High Courts, as the case may be), and dispose of such cases itself. Likewise, if it deems it expedient to do so for the

end of justice, the Supreme Court may transfer any case, appeal or other proceedings before any High Court to any other High Court.

It is also provided that when the Supreme Court withdraws a case to itself, it may determine the question of law and then return the case to the High Court along with a copy of its judgment. Thereafter, the High Court must proceed to dispose of the case in conformity with such judgment. (Art. 139A).

3. The law declared by the Supreme Court is binding on all **Courts** within the territory of India. (Art. 141).

Art. 141 reiterates the theory of the binding force of precedents (*stare decisis*) and gives it constitutional sanction. In this connection, it may be noted that decisions of even the highest Court of land on *questions of fact* cannot be cited as precedents and the binding force of a decision lies in the *ratio* or the *principle* laid down by the decision.

Although the expression "binding on all Courts used in Art 141 is wide enough to cover the Supreme Court itself, it has been *held* that the expression does *not* include the Supreme Court (*Bengal Immunity Co. Ltd. v. State of Bihar*. - A.1R 1955 S.0 661) In fact, no final Court of Appeal (including, now, the House of Lords also) has held itself to be absolutely bound by its judgments delivered in the past. Thus, the Supreme Court is free to depart from the previous decision if it is satisfied of its error and its baneful effect on the general interest of the public.

A good illustration is *Vatheeswarana's case* (1983 Cri L.J. 481), when in February, 1983, the Supreme Court *held* that a delay of two years in executing a death sentence is, by itself, sufficient to entitle the accused to have it reduced to a sentence of life-imprisonment. However, only a month later, (**Le.**, in March 1983), this decision was overruled by the Supreme Court in *Sher Singh's case* (1983 Cri. L.J. 803), and it was *held* that there *cannot* be a hard-and-fast rule that two-year delay in executing a death sentence gives a right to the murderer to have his death sentence commuted to life-imprisonment.

Decisions of the Supreme Court are, as stated above, binding on all courts and it is immaterial that the conclusion of the majority of the Supreme Court was arrived at by the different Judges on different grounds or by different processes of reasoning. (*Ramesh v. Union of India*, AIR 1990 SC 560)

A High Court *cannot* overrule a decision of the Supreme Court on the ground that the Supreme Court had given a judgment without considering a particular point. As observed in one case, it is *not only* a matter of discipline for the High Courts, *but also* a constitutional mandate laid down by Art. 141 that the law declared by the Supreme Court is binding on all courts in India. (*S. S. Kumar v. Jagdeeshan*, AIR 2002 SC 681)

The Patna High Court has *held* that an interim order passed by the Supreme Court in a particular case *cannot be* taken to be the "law" within the meaning of Art. 141. (*The M.G.M. Medical College v. The State of Bihar*, A.I.R. 1994 Pat. 22).

It is also to be remembered that a decision of the Supreme Court is an authority for what is decided - and *not* what can logically be deduced therefrom. A small difference in facts - or even a few additional facts - can make all the difference and take away the precedential value of a Supreme Court decision. (*Bhavnagar University v. Palitana Sugar Mills Pvt. Ltd.*, AIR 2003 SC 511)

Following the observations of the Supreme Court in several cases, it can be said that the following categories of decisions of the Supreme Court will have *no binding force, namely*, -

- (a) *Obiter dicta*. i.e., statements made "by the way", and *not* forming part of the *ratio decidendi*;
- (b) A decision *per incuriam*, i.e., a decision given in ignorance of a statute.
- (c) A decision passed *sub silentio*, i.e., without any argument on the relevant question.
- (d) A consent order, i.e., an order passed with the consent of the parties, and with the reservation that it should *not be* treated as a precedent.

4. The Supreme Court may pass such decree, or make such order as is necessary, for doing complete justice in any case or matter pending before it, and any decree so passed or order so made is enforceable throughout the territory of India. [Art. 142(1)].

Subject to the provisions of any law made by Parliament, the Supreme Court has all the powers to make any order for the purpose of securing the attendance of any person, the discovery or production of any document, or the investigation or the punishment of any contempt of itself. [Art. 142(2)].

5. All authorities, civil and judicial, in the territory of India, are to act in aid of the Supreme Court. (Art. 144).

4. Comptroller And Auditor-General Of India (Arts. 148-151, 124 & 377)

His appointment, oath etc. (Art. 148)

The Comptroller and Auditor-General of India is appointed by the President by warrant under his hand and seal. Before he enters upon his office, he has to make and subscribe before the President (or some person appointed in that behalf by him), an oath or affirmation in the prescribed form.

It is also provided that neither his salary nor his rights in respect of leave, pension or retirement age, can be varied to his disadvantage after his appointment

After he has ceased to hold his office, he is *not* eligible for further *office either* under the Government of India or under the Government of any State.

How removed [Arts. 124(4) & 148(1)]

The Comptroller and Auditor-General can be removed from office only in the like manner and on the like grounds as a Judge of the Supreme Court. In other words, he *cannot* be removed from his office, except by an *order of the President* passed after an *address* by each House of Parliament *supported by a majority* of total membership of that House *and* by a majority of *not less than two-thirds* of the members, of that House present and voting, has been presented to the President in the same session for such removal *on the ground of proved misbehaviour or incapacity*.

The administrative expenses of the office of the Comptroller and Auditor-General, including all salaries, allowances and pension are charged upon the Consolidated Fund of India

His duties and powers (Art. 149)

The Comptroller and Auditor-General performs such duties and exercises such powers in relation to the accounts of the Union and the States as may be prescribed by Parliament

The Supreme Court has observed that the Constitution does *not* preclude the President from referring a matter to the Pay Commission, provided the Final Rules are made after consulting the Office of the Comptroller & Auditor-General. (**K. V. Nair v Union of India**, AIR S. C. 1990, 2295)

Form of accounts (Art. 150)

The accounts of the Union and of the States are to be kept in **such form** as the President may prescribe, on the advice of the Comptroller **and** Auditor-General of India.

Audit reports (Art. 151)

The reports of the Comptroller and Auditor-General of India relating to the *accounts of the Union* are to be submitted to the President, who causes them to be laid before each House of Parliament. Likewise, the reports relating to the *accounts of a State* are to be submitted to the *Governor* of the State, who causes them to be laid before the Legislature of the State.

It is of academic interest to note that the Constitution also provides that the Auditor-General of India holding office immediately *before* the commencement of this Constitution shall become, on such commencement Comptroller and Auditor—General of India. (Art. 377).

Term of Office

Parliament has passed the Comptroller and Auditor-General (Conditions of Service) Act, 1953, under which he holds office for a term of *six years*, and is also entitled to a pension.

(NOTE: A reference may be made to a book entitled "Aspects of Audit Control" by Shri Ashok Chandar, in which an ex-Comptroller and Auditor-General describes the functions of his office, as also the problems that he has to face.)

THE STATES

The following topics are discussed in this Chapter :

1. THE STATE EXECUTIVE (Arts. 152-167 *etc.*)

This topic is discussed under the following *three* heads :

- A. The Governor (Arts. 153-166, *etc.*)
- B. The Council of Ministers (Arts. 163-164)
- C. The Advocate-General for the State (Art. 165, *etc.*)

THE STATE LEGISLATURE (Arts. 168-212)

Under this head, the following *two* topics are dealt with :

- A. The Legislative Assembly (Arts. 170-172, *etc.*)
- B. The Legislative Council (Arts. 171-173, *etc.*)

PROCEDURE IN THE STATE LEGISLATURE (Arts. 174-176, *etc.*) The following *three* topics fall under this head :

- A. General procedure (Arts. 174-176, *etc.*)
- B. Legislative procedure (Arts. 196-201)
- C. Procedure in Financial matters (Arts. 202-207)

THE HIGH COURTS IN THE STATES (Arts. 214-230, *etc.*) SUBORDINATE COURTS (Arts 233-236)

(NOTE.— In this Chapter, unless the context otherwise requires, the expression "State" does *not* include the State of Jammu and Kashmir.] The essential principle of a federation applies to India, *tar.*, that in respect of subjects which are allotted by the Constitution to the States, they have the power to pass laws and administer them But this principle is subject to the following important qualifications. *viz.*—

1 The Constitution authorises the Governor of a State to reserve a Bill for the consideration of the President But in doing so, he acts on the advice of his Ministers, who are responsible to the Legislature So also, under Art. 31 of the Constitution, a State Legislature *cannot* acquire property for a public purpose, *unless* the Bill for such an acquisition has been reserved for the consideration of the President and has received his assent.

2. The previous sanction of the President is also necessary for the introduction of certain types of Bills in the State Legislature and for promulgating certain types of ordinances

3. The Union Parliament has also the power to make any law for implementing any treaty or agreement with other countries, even though the subject of such treaty falls within the State List.

4. The Union Parliament has also the power to legislate on a specified State subject, provided a particular State legislature passes such a resolution.

5. During an emergency, when the security of India is threatened either by war or external aggression, the President may, by a proclamation, empower the Union Parliament to make laws *even* in respect of matters enumerated in the State List.

6. The executive power of every State must be so exercised as *not* to impede or prejudice the executive power of the Union.

7. With regard to the distribution of revenues between the Union and the States, the Union has a deciding voice.

8. The President has the power of appointing Governors of States.

Taking all these facts into consideration, one is tempted to conclude that there is over-centralisation, and India could have avoided Federalism. But this is *not quite correct*, because the foundations of the federal system in India were laid in the Government of India Act, 1935. (See Appendix 1.) The *primary object* of the 1935 Act was *not* to create a Constitution as such, but to bring about a gradual transfer of power. The States had no independent existence under the 1935 Act, and hence, they had to accept whatever type of Constitution was given to them. The Centre, no doubt, exercises an increasing measure of control over all the federating units, but this is so in an emergency only. Otherwise, the States are independent to act as they like within the framework of the Constitution and also within the framework of subjects allotted to them in the State List.

1. THE STATE EXECUTIVE (Arts. 153-164, 166, 167, 213)

A. THE GOVERNOR The executive power the State vests in the Governor, just as the executive power of the Union is vested in the President. The executive machinery of the State, like that of the Union, is also Parliamentary, and therefore, the same political system is intended to operate in the State as the one in the Union. The Governor, being the executive head, all executive action is taken in his name. He is to act on the advice of his Council of ministers. The Governor is no doubt vested with considerable powers, but as a matter of convention, he is *not* expected to exercise these powers to the detriment of the State. He is a constitutional Governor and is, therefore, the constitutional head of the State.

It is a controversial point whether the Governor appointed by the President can serve any useful purpose, and whether there is any merit in the principle of *appointment* of the Governor of a State. The original plan in the draft Constitution was to have *elected* Governors (as in the United States), but this was replaced by the method of appointment by the President, mainly for the following *five* reasons :

(a) It would save the country from the harmful consequences of another election run on personal issues, which would be highly detrimental **to the** progress and unity of the country.

(b) An elected Governor would consider himself to be superior to his Chief Minister, who is returned from a single constituency. This might lead to friction between the Governor and his Council of Ministers. Under the Indian Constitution, which unfolds a Parliamentary system of Government, the Governor is intended to be a constitutional head of the State, the real executive power being vested in the Ministry, which is responsible to the Legislature.

(c) A Governor elected on adult franchise to be at the executive head of the State would rather prefer to be the Chief Minister or even a Minister with effective powers. The party in power would naturally put up a candidate for the election of a Governor, a person who was *not* as outstanding as the Chief Minister-to-be, with the result that the State would *not* be able to get the best man of the party. Being subsidiary in importance to the Chief Ministers he would be the nominee of the Chief Minister in the State, which is *not desirable*.

(d) Through the procedure of appointment by the President, the Union Government would be able to maintain its control over the States.

(e) The method of election would encourage separatist tendencies. The stability and unity of the Governmental machinery of the country as a whole can be achieved only by adopting the system of nomination.

As against the above arguments, one can also highlight the disadvantages in nominating the Governor of a State. A nominated Governor may *not* be able to work for the welfare of the State, particularly when a country follows the convention of *not* appointing a person from the same State to be its executive head. Further, there is a chance of friction between the Governor and his Ministers, because if the Chief Minister does *not* belong to the same party as the nominated Governor, there would be difference of opinion quite often, as has happened in some States in the recent past.

The argument that the system of election would *not* be compatible with a Parliamentary or Cabinet system of Government is *not quite correct*, because at the Centre, there is an elected President, who is advised by a Council of Ministers. Of course, the election of the President is *not direct*. A nominated Governor would always act under the instructions of the Centre and he is likely to create constitutional deadlocks. It is **also** maintained that the method of appointment of the head of the executive by the federal executive is repugnant to the strict federal system **which** prevails in the U.S.A. and Australia.

The main provisions relating to the post of a Governor are as under:

Each State has a Governor, and the same person can be appointed as Governor of two or more States. [Art. 153] The *executive power* of the State is *vested* in him, and exercised by him, either directly or through officers subordinate to him. [Art. 154] All *executive* action of the Government of a State is expressed to be taken in the name of the Governor. [Art. 166(1)] Orders and other instruments made and executed in the name of the Governor are to be authenticated in a specified manner, and the validity of an order or instrument which is **so authenticated cannot be** called in question on the ground that it **is not an** order or instrument made or executed by *the* Governor. [Art. 166(2)]

His appointment and terms and conditions of office (Arts. 155-159)

The Governor is *appointed by the President* by warrant under his hand and seal, *and holds office during the pleasure of the President*. He holds office for *five years or until his successor enters upon his office*.

A person is *not* eligible for appointment as a Governor, *unless he is a citizen of India and has completed the age of thirty-five years*.

Such a person *cannot* be a member of either House of Parliament or of a House of the Legislature of any State. If a member of either House of Parliament or of a State Legislature is appointed as a Governor, he is deemed to have vacated his seat in that House on the date on which he enters upon his office as Governor.

Moreover, a Governor *cannot* hold any other office of profit. [Art. 158(2)]

Before entering upon his office, the Governor must *make and subscribe* in the presence of the Chief Justice of the High Court (or, in his absence, the seniormost Judge of that Court available), an *oath or affirmation* in the prescribed form. [Art. 159]

The Governor may, by writing under his hand addressed to the President, *resign* his office. He is entitled to a salary of Rs. 1,10,000 per month, as also the usual allowances. He is entitled to the same privileges to which the Governor of the corresponding provinces were respectively entitled immediately before the commencement of the Constitution.

The Governor is also entitled, without payment of rent, to the use of his official residence, and is also entitled to such emoluments, allowances and privileges as may be determined by Parliament by law. Where the same person is appointed as the Governor of two or more States, the emoluments and allowances payable to the Governor are to be allocated among the States in such proportions as the President may by order determine. The emoluments and allowances *cannot* be diminished during his term of office.

It may be noted that almost all the provisions which apply to the President apply to a Governor also. So, all the observations made above relating to the President apply also to a Governor.

Powers Of A Governor (Arts. 154, 162-166, 174 & 213)

The powers of a Governor of a State are analogous to those of the President, except that the Governor has no 'diplomatic', 'military' or 'emergency' powers. The following powers are conferred on him by the Constitution :

1. He is at the head of the *executive* power of the State. The executive power of the State being vested in the Governor, is to be executed by him either directly or through officers subordinate **to** him in accordance with the Constitution. (Art. 154(1))

2. All *executive* action of the Government of a State is to be expressed to be taken in the name of the Governor. [Art 166(1)] Orders and other instruments made and executed in the name of the Governor are to be authenticated in the specified manner, and the validity of an order or instrument which is so *authenticated* *cannot* be called in question on the ground that it is *not* an order or instrument made or executed by the Governor. [Art. 166(2)]

Extent of executive power of a State.— Under Art. 162, the executive power of a State extends to the matters with respect to which the Legislature of the *State* **has** power to make laws. But, where the Legislature of a State and Parliament have *equal* power, the power of the *State* to legislate is *subject* to that of the *Union*. Art. 246 mentions three lists, namely, the *Union* List, the *State* List and the *Concurrent* List. The Union, that is to say, Parliament, will ordinarily make laws for all the subjects mentioned in the *Union* List. So also, the *States* can make laws as to the subjects mentioned in the *State* List. Art. 162 enacts that when Parliament and a State have equal powers to legislate, the power of the *Union* shall be *supreme* and that of a *State* shall be *subordinate*.

3. The Governor appoints Ministers, and they hold office during his pleasure. [Art. 164]

4. The Governor has a right of opening address, of addressing and sending messages to and of summoning, proroguing and dissolving the Legislature, just as the President has [Arts 174-176]

5. He has the power to cause the Annual Financial Statement to be laid before the State Legislature [Art 202(1)], and making demands for grants and recommending Money Bills (Art 207(1))

6. He has the power of promulgating Ordinances during any recess of the Legislature (Art 213), and power of vetoing State Bills, with power to reserve them for the consideration of the President. [Arts. 200-201]

7. Lastly, he has power to grant pardon. [Art 161] The Governor's power to grant pardons and his legislative power of promulgating Ordinances will now be dealt with at length. (**The other** powers of a Governor are self-explanatory, some of them being similar to the powers of the President, already discussed in an earlier Chapter.)

Power to grant pardons, remissions, etc. (Art. 161)

The Governor has the power to grant *pardons*, *reprieves*, *respite*s or remissions of punishment, or to suspend, remit or commute the sentence of any person convicted of any offence against any law relating to a matter to which the executive power of the State extends. (Art 161)

A comparison of the powers of pardon conferred on the President of India (Art. 72) and the Governors of States (Art. 161) shows that the President's power is wider than that of the Governors.

The pardoning power of the Governor **was considered** *In Re Chennugadu* (AIR. 1954 Mad. 911), where the State Government had ordered a total jail delivery to mark the establishment of the State. The Court, in this case, observed that a similar power was conferred by the American Constitution on the President of the United States (who had the same power to pardon as was possessed by the Crown in England), and that the President and Governors in India also had the same power. Accordingly, the Court *held* that the Order of the Government was *constitutionally valid*.

In *Nanavati's case* (62 B.L.R. 383), a Full Bench of the Bombay High Court *held* that the pardoning power of a Governor was similar to the corresponding power possessed by the Crown in England and by the President in the U.S., and that his power could be exercised *before, during, or after the trial*.

When KM. Nanavati applied to the Supreme Court for special leave to appeal, a Constitution Bench of the Supreme Court, by a majority of 4 to 1, *held* that the Governor's order was constitutionally invalid from the *time* that the Supreme Court was seized of the matter. (**KM. Nanavati v. State of Bombay**— A.I.R. 1961 S.C. 112). A powerful (**and** perhaps, more convincing) dissenting judgment was delivered by Kapur, J., who *held* that the pardoning power could be exercised *at any time*, and that it did *not* conflict with the power of the Supreme Court. The Learned Judge also stressed the distinction between *executive* and *judicial* control over sentences.

This point was again considered by the Supreme Court in *Sara? Chandra Rabha's case* (AIR. 1961 S.C. 334), where the Court *unanimously* accepted the distinction between *executive* and *judicial* control over sentences, a distinction which so glaringly appears in the dissenting judgment in *Nanavati's case*. Thus, although technically *Nanavati's case* has *not* been overruled, it is clear that *Sarat Chandra Rabha's case* has deprived it of its binding efficacy.

Legislative power of the Governor (Art. 213)

Art. 213 deals with the *power of a Governor to promulgate Ordinances* in certain cases. This power is similar to the one conferred on the President by Art. 123.

When a Governor can promulgate an Ordinance

If at any time (except when the Legislative Assembly of a State is *in session*, or where there is a Legislative Council in a State, except when *both* Houses of the Legislature are in session), the Governor is satisfied that *circumstances* exist which *render* it necessary for him to take *immediate* action, he may promulgate such Ordinances as the circumstances appear to him to require. Such an Ordinance may be *withdrawn* at any time by the Governor.

When he cannot promulgate an Ordinance

A Governor *cannot* promulgate an Ordinance—

(i) when the Legislative Assembly or Legislative Council is in **session**;

Or

(ii) when — (a) a Bill containing the same provisions would, under the Constitution, have required the *previous sanction of the President* for the introduction thereof into the Legislature; or

(b) he (the Governor) would have deemed it necessary to *reserve* a Bill containing the same provisions *for the consideration* of the President; or

(c) an Act of the Legislature of the State containing the same provisions would have been invalid *unless*, having been reserved for the consideration of the President, it has received the *assent* of the President. *Its effect*

An Ordinance promulgated under this Article has the *same force and effect* as an Act of the Legislature of the State *assented to by the Governor*.

The subsequent procedure

Every such Ordinance is to be *laid before the Legislative Assembly* of the State, or where there is a *Legislative Council* in the State, before *both* the Houses.

When it ceases to operate

Such an Ordinance ceases to operate at the expiry of six *weeks* from the *re-assembly* of the Legislature, or if *before* the expiration of that period, a *resolution disapproving it* is passed by the Legislative Assembly and agreed to by the Legislative Council, if any,—upon the *passing of the resolution* or, as the case may be. on the resolution being *agreed to* by the Council.

When void

If an Ordinance makes any provision which would **not be valid** if enacted in an Act of the Legislature of the State assented to by the Governor, such *an* Ordinance would be *void*.

The Governor's privileges (Art. 361)

The privileges of a Governor laid down in Art 361 are **mainly four**, as under :

1. He is *not answerable* to any *Court* for the exercise and performance of the *powers* and *duties* of his office or for any act done (or purporting to be done) by him in the exercise and performance of those powers and duties.

However, this does *not* restrict the right of any person to **bring** appropriate proceedings against the Government of the State.

2. No criminal proceedings whatsoever can be instituted or **continued** against the Governor of a State in any Court *during his term of office*.

3. No process for the arrest or imprisonment of the Governor of **a State** can issue from any Court *during his term of office*.

4. No civil proceedings in which relief is claimed against the Governor of a State can be instituted during his term of office in any Court in respect of any act done (or *purporting* to be done) by him in his *personal* capacity whether *before* or *after* he entered upon his office as Governor of such State, until the *expiration of two months* after *notice in writing* has been delivered to the Governor or *left* at his office stating (i) the *nature* of the proceedings; (ii) *cause of action* therefore, (iii) *name, description and place of residence* of the party by whom such proceedings are to be instituted and (iv) the *relief* which he claims.

B. THE COUNCIL OF MINISTERS (Arts. 163, 164 & Schedule 3, Forms V & VI)

The Constitution provides for a Council of Ministers with the Chief Minister at the head to *aid* and *advise* the *Governor* in the exercise of his functions. [Art 163(1)]

The question whether any and if so what, advice was tendered by the Ministers to the Governor *cannot* be inquired into by any Court [Art. 163(3)]

If any question arises whether any matter *is or is not* a matter in which the Governor is to act in his *discretion*, the decision of the Governor is to be *final*, and the validity of anything done by the Governor *cannot* be called in question on the ground that he *ought* or *ought not* to have acted in his discretion. [Art. 163(2)]

The Council of Ministers is *collectively responsible* to the Legislative Assembly of the State. [Art 164(2)] Articles 163 and 164(2) above lay down in general terms the principle of *ministerial responsibility*, viz., that the Governor, in the various spheres of executive activity, should act on the *advice of his ministers*.

Art. 163(2) is intended to emphasize the fact that the Governor *may* act in his discretion in specific cases mentioned

in the Constitution. **The** meaning of this provision is that the Governor should *always* act on ministerial advice, except in *particular or specific* cases where he is empowered to act *in his discretion*. In other words, Art. 163 is to be read in conjunction with such other Articles as *specifically reserve to the Governor the power to act in his discretion*. Article 163 should *not*, however, be construed as giving the Governor power to *disregard* the advice of **his** Ministers in *any* matter in which he decides to disregard the same.

It appears, from the wording of Art. 163, that the Governor has to exercise his functions with the aid and advice of his Ministers. The question, however, is—whether the Governor is always bound to take the advice of the Ministry. In other words, is he a mere “rubber stamp” in the hands of his Ministry *or* has some real power? Now, the Indian Constitution is silent on this point. But the Governor is expected, at least normally, to act as a constitutional head and to follow the advice of his Ministers. For Art. 164(2) clearly lays down **that the** Council of Ministers is collectively responsible to the Assembly, *Le.*, **a Ministry enjoying the** confidence of the people.

In this connection, the following observations from the judgment of the Calcutta High Court in **Sunil Kumar’s case** are interesting :

”Under the present Constitution, the power to act in his discretion or in his individual capacity has been taken away, and the Governor, **therefore**, must act on the advice of his Ministers. This is the constitutional position as explained to us by the Advocate-General, and we accept his view.”

Their appointment, term of office and oaths (Art. 164)

The Chief Minister is appointed by the Governor, and the other Ministers are appointed by the Governor on the advice of the Chief Minister, and the Ministers hold office during the *pleasure* of the Governor. (Art. 164(1))

It is **now** provided by the **Ninety-first Amendment, 2003**, that the total number of ministers, including the Chief Minister, in the Council of Ministers in a State, **cannot exceed** fifteen per cent of the total number of members of the Legislative Assembly of that State. At the same time, this number **cannot be** less than 12.

After its amendment by the **Constitution (Ninety-fourth Amendment) Act, 2006**, Art. 164(1) also lays down that there should be a minister in charge of tribal welfare who may, in addition, be in charge of the welfare of the Scheduled and backward classes or any other work.

Duty of the Chief Minister (Art. 167)

It is the duty of the Chief Minister of each State to **communicate** to the **Governor** of the State, all **decisions** of the Council of Ministers relating to the administration of the affairs of the State and proposals for legislation as also to **furnish** such **information** as the Governor may call for; and if the Governor so requires, to submit for the consideration of the Council of Ministers, any matter on which a decision has **been** taken by a Minister, but which has **not** been considered by the Council, [Art. 167]

Rights of a Minister (Art. 177)

Every Minister has the right to **speak** and otherwise to **take part**, in the proceedings of the Legislative Assembly of the State (or, in the case of a State having a Legislative Council, both Houses), but is **not** entitled to vote.

Before a Minister enters upon his office, the Governor administers to him the oath of **office** and of **secrecy** according to the prescribed forms.

C. THE ADVOCATE-GENERAL FOR THE STATE (Arts. 165, 177 & 217)

By whom appointed [Art. 165(1)(3)]

The Advocate-General is appointed by the Governor. He holds office during the pleasure of the Governor, and receives such remuneration as the Governor may determine.

His qualifications (Art. 217)

His qualifications are the *same* as those of a High Court Judge, viz.,— he must be *a citizen of India* and must have (a) held judicial office in India for 10 years, or (b) been a High Court advocate for at least 10 years.

It has been *held* that even a person who has completed the age of sixty years can be appointed as an Advocate-General. Under Art. 217, a High Court judge has to retire at the age of sixty, and therefore, a writ of *quo warranto* was filed challenging the appointment of a person who was already sixty, as the Advocate-General of a State. The Court dismissed the writ, observing that such a person *can* be appointed to the post of Advocate-General. (*Karkare v. Shevde*, A.I.R. 1952 Nag. 330)

His duties [Art. 165(2)]

The Advocate-General has to *give advice* to the Government of the State upon such legal matters, and perform such other duties of *a legal* character as may be referred or assigned to him by the Governor.

His rights (Art. 177)

He has the right to *..speak and take part* in the *proceedings* of the Legislative Assembly or the Legislative Council, but is *not* entitled to *vote* therein.

Under the Advocates Act, the Advocate-General enjoys the position of being an *ex officio* member of the State Bar Council. In *Adi Gandhi v. H.M. Seervai* (AIR. 1971 S.C. 385), the Supreme Court considered his position under Advocates Act, and observed as follows

”The Act gives a right Of pre-audience over the Advocates to the Attorney General, the Solicitor-General, the Additional SolicitorGeneral and the Advocate General. The right of pre-audience gives them a standing for hearing of cases, but does *not* confer on them any other right.”

Whether he holds a political office

An interesting question is whether the office of the Advocate-General is a political office. It is clear from Arts. 165 and 177 that the AdvocateGeneral does *not* hold a political or ministerial office. This Article does *not* require him to be a member either of the State legislature or the State executive. He has a right to address the legislature, but has no right to vote. It is evident that the framers of the Constitution did *not* wish to make his office a political one, as in England. Rather, they followed the corresponding provisions of the Government of India Act, 1935, whereunder his office was obviously non-political.

Whether his statements bind the Government

Generally speaking, when a concession is made by a Government Pleader in a trial court, it does *not* bind the Government, unless it is in writing on instructions from a responsible officer. However, this principles does *not* apply to a concession made by the Advocate-General, because he is assumed to be a responsible person who makes a statement with a sense of responsibility. (*Periyar v. State of Kerala*, AIR 1990 SC 7192)

2. THE STATE LEGISLATURE (Arts. 168-172 & 333-334)

Its composition (Art. 168)

For every State, there is a *Legislature*, which consists of the *Governor*, and

(a) in the States of Bihar, Maharashtra, Karnataka, Madhya Pradesh, and Uttar Pradesh,—two Houses—one known as the *Legislative Council* and the *other* as the *Legislative Assembly*.

(b) in *other States*,— *one* House, known as the *Legislative Assembly*.

Abolition or creation of legislative Council in States (Art. 169)

Art. 169 confers—

- (a) a right to *abolish* the Legislative Council— on States *having* such a Council: and
- (b) a right to *create* a Legislative Council— on States *not having* such a Council.

For both the above purposes, the Legislative Assembly of the State concerned can pass a resolution for the abolition or the creation of such a Council (as the case may be). by a *majority of the total membership* of the Assembly and by a *majority of not less than two-thirds of the members present and voting*. When such a resolution is passed, Parliament must give effect to it by abolishing or creating a Legislative Council, as the case may be. Further, when Parliament passes such a law, it is *not* deemed to be an amendment of the Constitution for the purposes of Art. 368.

A. THE LEGISLATIVE ASSEMBLY (Arts. 170, 172-173, 178-181, 333-334)

The Legislature of every State consists of the Governor and one or two Houses, as the case may be. As stated above, there are two Houses in the States of Maharashtra, Madhya Pradesh, Uttar Pradesh, Karnataka and Bihar. In each of the other States, there is only *one* House

Where there are two Houses of the Legislature of a State, the **Lower** House is known as the *Legislative Assembly* and the Upper House as the *Legislative Council*. Where there is only *one* House, it is known as the *Legislative Assembly*.

Its composition and duration (Arts. 170, 172, 333-334)

The Constitutional provisions regarding the composition of a **Legislative** Assembly are contained in Arts 170, 172, 333 and 334. These provisions can be summarised as under

The Legislative Assembly of each State consists of not more than 500, and not less than 60, members chosen by direct election from territorial constituencies in the State. For this purpose, the State is divided into territorial constituencies in such a manner that the ratio between the population of each constituency and the number of seats allotted to it is, as far as practicable, the same throughout the State.

Population means the population as ascertained by the last preceding census with published figures. It is further provided that this shall be a reference to the 2001 census, until the relevant figures for the first census taken after the year 2026 have been published. Upon the completion of each census, the total number of seats in the legislative Assembly of each State and the division of each State into territorial constituencies is to be readjusted by such authority and in such manner as Parliament may by law determine. Such readjustment does *not* affect representation in the Legislative Assembly until the dissolution of the then existing assembly.

But the Governor of a State may, if he is of the opinion that the *Anglo-Indian community* needs representation in the Legislative Assembly of the state and is *not* adequately represented therein, nominate one member of the community to the Assembly as he considers appropriate. Such a reservation is to cease after *sixty* years.

Tenure of Legislative Assembly (Art. 172)

Every Legislative Assembly of every State, unless sooner dissolved, continues for *five years*, and no longer, and the expiry of the said *five years* operates as a *dissolution* of the Assembly. But the said period may, while a Proclamation of Emergency is in operation, be *extended* by Parliament for *one year at a time*, and *not* extending in *any case beyond six months after* the Proclamation has *ceased* to operate.

Its officers (Arts. 178-181)

Every Legislative Assembly of a State has a Speaker and *Deputy Speaker*, who must vacate their seats if they cease to be members of the Assembly. They may *resign* their office by writing under their own hands addressed to each

other. They may be *removed* from their office by *a resolution* (moved after **14** days' notice) passed by *a majority* of all the then members of the Assembly.

In the absence of the Speaker, his duties are to be performed by the Deputy Speaker. The Speaker or the Deputy Speaker *cannot* preside while any resolution for his *removal* from office is under consideration, but the Speaker has the right to *speak* in, and otherwise to take part in the proceedings of the Legislative Assembly while any resolution for his removal from office is under consideration, and is, notwithstanding anything in Art. 189, entitled to vote in the first instance, but *not* in the case of equality of votes.

Qualifications for his membership (Art. 173)

To qualify for membership of a Legislative Assembly, a person must be (1) *a citizen of India*; (2) *twenty-five years of age*; and (3) must possess *any other qualification* as may be prescribed by Parliament.

Oath or affirmation (Art. 188)

Every member of the Legislative Assembly of a State before taking his seat, *makes and subscribes* before the Governor (or some person appointed in that behalf by him) an *oath* or *affirmation* in the prescribed *form*.

Penalty for sitting and voting without oath etc. (Art. 193)

If a person sits or votes as a member of Legislative Assembly of State without complying with the requirements of Art. 188 (above), or when he *knows* that he is *not qualified* or that he is *disqualified* for membership thereof, *or* that he is *prohibited* from so doing by any law—he becomes liable, in respect of *each day* on which he *sits* or votes, to a penalty of *five hundred rupees* (per day) *to be recovered as a debt due to the State*.

Disqualification of members (Art. 191)

A person is disqualified for being *chosen* as, and for *being*, a member of the Legislative Assembly of a State—

(a) if he holds any such office of profit under the Government of India or the Government of any State specified in the First Schedule, as is declared by Parliament by law to disqualify its holder; *or*

(b) if he is of *unsound* mind and stands so *declared* by a competent Court; *or*

(c) if he is *undischarged insolvent*; *or*

(d) if he is *not a citizen of India*, or has voluntarily *acquired the citizenship of a foreign State*, or is under any acknowledgment of *allegiance* or *adherence* to a foreign State; *or*

(e) if he is so disqualified by or under any law made by Parliament.

Under the Fifty-second Amendment, 1985, a person is also disqualified from being a member of a State Legislature if he is disqualified under **the** Tenth Schedule to the Constitution (*i.e.* on the ground of defection).

Effect of disqualification (Art. 190)

On his becoming subject to any of the above disqualifications, *a member's seat thereupon becomes vacant*.

Resignation of member (Art. 190)

A member of a House of a State Legislature may *resign* his seat by writing addressed to the Speaker or the Chairman (as the case may be), and once such resignation is accepted, his seat becomes vacant.

However, it is also provided that if from information received or otherwise, the Speaker or the Chairman (as the case may be), is satisfied that such resignation is *not* voluntary or genuine, he shall *not* accept such a resignation.

Decisions on questions as to disqualification (Art. 192)

Under Art. 192, if any question arises as to whether a member of a House of a State Legislature has become subject to any of the disqualifications mentioned in Art. 191 (above), the question is to be referred to the decision of the Governor, who has to obtain the opinion of the Election Commission, and must act according to such opinion.

B. THE LEGISLATIVE COUNCIL (Arts. 171-173 & 183-185)

Its composition and duration (Arts. 171-172)

The Legislative Council of a State consists of a total number of members *not exceeding* one-third of the total number of members in the Legislative Assembly of that State. The total number of members in the Council of a State should be *at least* 40. Out of these,—

(a) *one-third* are to be elected by electorates consisting of members of Municipalities, District Boards and other Local authorities as are specified by the Parliament;

(b) *one-twelfth* are to be elected by electorates consisting of persons residing in the State who have been, for at least three years, *graduates* of any university in the territory of India;

(c) *one-twelfth* are elected by teachers of at least three years' standing in *educational institutions*, *not* lower in standard than that of a secondary school;

(d) *one-third* are elected by the members of the Legislative Assembly of the State, from amongst persons who are *not* members of the Assembly; and

(e) the *remainder* are nominated by the Governor. These consist of persons having special knowledge or practical experience in *literature, science, art, co-operative movement and social service*.

The Legislative Council of a State is a permanent House which is *not subject to dissolution*, but *one-third* of the members thereof *retire* on the expiry of every *second year* in accordance with the provisions made in that behalf by Parliament.

Its officers (Arts. 182-185)

The Legislative Council of every State chooses *two members* of the Council to be respectively *Chairman* and *Deputy Chairman* thereof, who *vacate* their office if they *cease* to be members of the Council. They may, by writing under their hands, *resign* their office. They may also be *removed* from their office, by a *resolution* of the Council passed (after 14 days' prior notice) by a *majority* of all the then members of the Council. Such persons themselves *cannot* preside while a resolution for their removal from office is under consideration. But the *Chairman* has the right to speak in, and otherwise to take part in the proceedings of, the Legislative Council while any resolution for his *removal* from office is under consideration in the Council, but is entitled to vote only in the first instance, but *not* in the case an equality of votes.

Qualifications for membership (Art 173)

A member of Legislative Council must be (1) *a citizen of India*; (2) not less than *30 years of age*; and (3) must possess such other qualification as may be laid down by Parliament.

Oath or affirmation (Art. 188)

Every member of the Legislative Council of a State must, **before** taking his seat, *make and subscribe* before the Governor (or **some** person appointed in that behalf by him), an *oath* or *affirmation* in the prescribed *form*.

Penalty for sitting and voting without oath, etc. (Art. 193)

If a person sits or votes as a member of the Legislative Council of a State without complying with the requirement of Art. 188 (above), or when he *knows* that he is *not qualified* or that he is *disqualified* for membership thereof, or that he is *prohibited* from so doing by any law—he becomes liable, in respect of *each* day on which he so sits or votes, to a penalty of *five hundred rupees* per day to *be recovered as a debt due to the State*.

Disqualification of members (Art. 191)

A person is disqualified for being *chosen* as, and for *being*, a member of the Legislative Council of a State,—

(a) if he holds any such office of profit under the Government of India or the Government of any State specified in the First Schedule, as is declared by Parliament by law to disqualify its holder;

(b) if he is of *unsound* mind and stands so *declared by a competent Court*;

(c) if he is an *undischarged insolvent*;

(d) if he is *not a citizen of India* or has voluntarily *acquired the citizenship of a foreign State* or is under any acknowledgment of *allegiance or adherence* to a *foreign State*. or

(e) if he is disqualified by or under any law made by Parliament; or

(f) if he is disqualified under the Tenth Schedule (*i.e.* on the ground of defection).

An "office of profit" is an office which is capable of yielding a profit or pecuniary gain. An honorary Chairman of a Board of Election *cannot* be said to hold an office of profit. (*Ramakrishna v State of Karnataka*, AIR 1993 Kar. 54)

Effect of disqualification (Art. 190)

On his becoming subject to any of the above disqualifications, his seat thereupon becomes *vacant*.

Their disabilities (Art. 190)

The disabilities of a member of a Legislative Council are mainly *two* : 1. No person can be a member of *both* Houses of the Legislature of a State; nor can he be a member of the Legislature of two or more States specified in the First Schedule.

2. If, for a period of *sixty days*, a member of a House of the Legislature of a State is, without permission of the House, *absent* from *all* meetings thereof, the House *may* declare his seat vacant.

Their powers, privileges and immunities (Art. 194)

The powers, privileges and immunities of members of State Legislatures are mainly the following *two* :

1. There shall be *freedom of speech* in the Legislature of every State.

2. No member of the Legislature of a State is liable in any proceedings in any Court in respect of anything *said* or any *vote given* by him in the Legislature or any committee thereof, and no person can be so liable in respect of the *publication* by or under the authority of a House of such a Legislature of any report, paper, votes or proceedings. (See case No. 17 in the list of cases in Appendix IV.)

Prior to the Forty-second Amendment, 1976, it was provided by Art. 194(3) that in *other respects*, the powers, privileges and immunities of a House of Legislature of a State (and of its members and committees) shall be such as may be laid down by the Legislature by law, and till then shall be the same as those of the House of Commons of the U.K.

[It will be seen that the powers, privileges and immunities of Members of State Legislature are analogous to those of

Members of Parliament. The discussion under Article 106 in the Chapter on the Union Legislature may also be read here.)

However, the position was substantially altered by *the Forty-second Amendment, 1976*, and Art. 194(3) was substantially amended to provide that in other respects the powers, privileges, immunities of a House of a State Legislature and of the members and committees of such a Legislature shall be those of that House and of its members and committees as on the date when the Forty-second Amendment came into force, and as may be evolved by such House, as far as may be in accordance with those of the Lok Sabha, where such House is the Legislative Assembly, and in accordance with those of the Rajya Sabha, where such House is the Legislative Council.

Undoing the above amendment, the *Forty-fourth Amendment, 1978*, now provides that the powers, privileges and immunities of a Legislature and its members and committees shall be those of that House **and** of its members and Committees immediately before the coming into force of the *Forty-fourth Amendment, 1978*.

Utility of Legislative Councils

Several critics of constitutional law have expressed their doubts on the utility and desirability of having a Second Chamber (*i.e.*, a Legislative Council) in the States. It has been pointed out that the powers of such a Chamber are restricted. Moreover, *in financial matters*, such a Chamber is more or less powerless. *Even in non-financial matters*, it has no effective voice in the sphere of legislation. No doubt, a Bill which is *not* a Money bill can be introduced in the Legislative Council, but the Council has no power corresponding to that of the Assembly. In the absence of a provision for a joint sitting of the two Houses, the will of the lower House, *i.e.*, **the** Legislative Assembly, ultimately prevails, and the Council has merely the power of delaying the passage of a Bill to which it does *not agree*. It is, therefore, doubted whether it is advisable to have Legislative Councils in States at the cost of a heavy expense on the treasury.

On the other hand, several other constitutional *pundits* have defended the existence of the Second Chamber in the States on the ground that it prohibits hasty legislation and acts as a check on the Legislative Assembly. Moreover, it affords an opportunity to give representation to the minority, and enables the Government to secure the services of experienced persons in the State Legislature. It is pointed out that a careful analysis of the working of the Legislative Councils in States where they exist shows that these Second Chambers have served a useful purpose in such States.

3. PROCEDURE IN THE STATE LEGISLATURE (Arts. 174-176, 189 & 196-212)

The procedure to be followed in the State Legislature is similar to that followed in the Union Parliament.

The legislative procedure of the State Legislatures is discussed under the following *three heads* :

- A. General Procedure
- B. Legislative Procedure
- C. Procedure in Financial Matters

A. GENERAL PROCEDURE (Arts. 174-176 & 189)

The following *four* topics are discussed under this head:

1. Meeting of the Houses
2. Address by the Governor
3. Voting in the Houses
4. Quorum.

1. Meeting of the Houses (Art. 174)

The House or Houses of the Legislature of the State is to **be** summoned to meet *twice* at least *in every year*, and six months (or more) must *not* intervene between the first and the last sitting

The Governor may— (i) *summon* the House, or either House, to meet at such time and place as he thinks fit, (ii) *prorogue* the House or Houses: or (iii) *dissolve* the Legislative Assembly.

2. Address by the Governor (Arts. 175-176)

The Governor may address both Houses assembled together, and *may*, for that purpose, require the attendance of the members. He *may send messages* to the House or Houses of the Legislature of the State, whether with respect to a Bill then pending in the Legislature or otherwise.

At the commencement of the first session, after each general election to the Legislative Assembly and at the commencement of the first session of each year, the Governor must address the Legislative Assembly or, in the case of a State having a Legislative Council, *both Houses* assembled together, and *inform* the Legislature of the causes of its summons.

3. Voting In the Houses [Art. 189(1)]

All *questions* at any sitting of a House of the Legislature of a State are to be *determined by a majority of votes* of the members present and voting, *other than the Speaker or Chairman*, who *cannot* vote in the *first* instance, but can exercise a *casting vote* in the case of an *equality* of votes.

4. Quorum [Art. 189(3) & (4)]

Art. 189(3) provides that the *quorum* to constitute a meeting of a House of the Legislature of a State is *ten members or one-tenth of the total* number of members of the House, whichever is greater. Further, it is also provided that if at any time during a meeting of the Legislative Assembly or the Legislative Council of a State there is *no quorum*, the *Speaker or Chairman* shall *adjourn* the House or *suspend* the meeting *until* there is a quorum.

B. LEGISLATIVE PROCEDURE (Arts. 196-210)

Four topics fall under this head of legislative procedure. They are as under:

1. Introduction and passing of Bills
2. Lapsing of Bills
3. Governor's assent to Bills
4. Money Bills.

1. Introduction and passing of Bills (Arts. 196-197)

1. A Bill may *originate* in either House of the Legislature of a State which has a Legislative Council. Such a Bill *cannot* be deemed to have been *passed* by the Houses of the Legislature of a State *unless* it has been *agreed to by both Houses*. [Art. 196]

2. If after a Bill (*other than a Money Bill*) has been passed by the Legislative Assembly of a State having a Legislative Council and transmitted to the Legislative Council—(a) the Bill is *rejected* by the Council; *or* (b) more than *three months* elapse from the date on which the Bill is laid before the Council without the Bill being passed by it; *or* (c) the Bill is passed by the Council *with amendments* to which the Legislative Assembly does *not* agree, the Legislative Assembly may *pass* the Bill *again*, in the same or in any subsequent session, with or without such amendments, and then transmit the Bill as so passed to the Legislative Council.

If, after a Bill has been so passed for the *second* time by the Legislative Assembly and transmitted to the Legislative Council—(a) the Bill is *rejected* by the Council *or* (b) more than *one month* elapses from the date on which the Bill is laid before the Council without the Bill being passed by it: *or* (c) the Bill is passed by the Council with amendments to which the Legislative Assembly does *not* agree—the Bill is to be deemed to have been **passed** by the Houses of the Legislature of the State *in the form in which it was passed by the Legislative Assembly for the second time*, with such amendments, if any, as have been made or suggested by the Legislative Council and agreed to by the Legislative Assembly. [Art. 197]

It may be noted that, while a difference between the two Houses of the *Union Parliament* is to be resolved by a *joint sitting*, there is *no such provision* for solving differences between the Assembly and the Council of the State

Legislature. In the latter case, the will of the Lower House, viz., the Assembly, ultimately prevails, and the Council has no more power than to *delay* the passage of the Bill to which it does *not* agree.

2. Lapsing of Bills (Art. 196)

A Bill pending in the Legislature of a State does *not* lapse by a reason of the *prorogation* of the House or Houses thereof: nor does a Bill *pending* in the Legislative Council of a State which has *not* been *passed* by the Legislative Assembly lapse on a *dissolution* of the Assembly. But a Bill which is *pending* in the Legislative Assembly of a State, or which having been *passed* by the Legislative Assembly is *pending* in the Legislative Council, lapses on a *dissolution* of the Assembly. [This Article corresponds to Art. 107. The notes on that Article **will be** equally applicable here]

3. Governor's assent to Bills (Arts. 200-201)

When he *may*, and when he *must*, assent

When a Bill has been passed by the Legislative Assembly of a State (or, in the case of a State having a Legislative Council, has been passed by *both* Houses of the Legislature of the State), it is *presented* to the Governor, who must declare *either* that he *assents* to the Bill, *or* that he *withholds assents* therefrom, *or* that he *reserves* the Bill for the *consideration of the President*. He may, however, *return* the Bill (if it is *not* a Money Bill) together with a *message* requesting that the House or Houses *reconsider* the Bill *or introduce* any such *amendments* as he may recommend in his message. When a Bill is so returned, the House or Houses *must reconsider* the Bill accordingly, and if the Bill is *passed again* by the House or Houses, with or without amendment, and *presented* to the Governor for his assent, the Governor *cannot withhold assent* therefrom.

When he *shall not* assent

The Governor *cannot* assent to, but must *reserve for the consideration of the President*, any Bill which may *derogate* from the *powers of the High Court as to endanger the position* in which that Court is, by this Constitution, designed to fill. [Art. 200]

GOVERNOR'S POWERS OF VETO—From what is stated above, it will be seen that when a Bill is presented to the Governor, after its passage by the Houses of the Legislature, the Governor has the power to take any of the following steps :

(a) He may declare his *assent* to the Bill, – in which case it would become law.

(b) He may declare that he withholds his assent to the Bill, – in which case the Bill fails to become law.

(c) He may, in the case of a Bill *other* than a Money Bill, return the Bill for reconsideration to the Houses (or the House where the Legislature is unicameral), with a message. But if the Bill is again passed by the Legislature with or without amendment, it would be *obligatory* upon the Governor to give his assent to the Bill, which will thereupon become law.

(d) The Governor may reserve a Bill for the consideration of the President. **In** one case, such reservation is compulsory, viz., where the law in question would derogate from the powers of the High Court under the Constitution.

(e) In the case of a Money Bill so reserved, the President may either declare his assent or withhold it. But in the case of a Bill other than a Money Bill, the President may, instead of declaring his assent or refusing it, direct the Governor to *return* the Bill to the Legislature for reconsideration. In this latter case, the Legislature must reconsider the Bill within six months, and if it is passed again, the Bill is presented to the President again. But it is *not* obligatory upon the President to give his assent in this case too. [Ad 201]

4. Money Bills

What is a Money Bill [Art. 199(1)]

A *Money Bill* is one which deals with any of the following matters, namely —

- (a) The imposition, abolition, remission, alteration or regulation of any *tax*;
- (b) The regulation of the *borrowing* of money, or the *giving* of any *guarantee* by the State, or the amendment of the law with respect to any *financial obligations* undertaken or to be undertaken by the State,
- (c) The *custody* of the *Consolidated Fund* or the *Contingency Fund* of the State, the *payment* of money into or the *withdrawal* of moneys from any such Fund;
- (d) The *appropriation* of moneys out of the Consolidated Fund of the State;
- (e) The *declaring* of any expenditure to be expenditure charged on the Consolidated Fund of the State or the *increasing* of the *amount* of any such *expenditure*; or
- (f) The *receipt* of money on account of the Consolidated Fund of the State or the Public Account of the State or the *custody* or *issue* of such money;
- (g) Any matter incidental to any other matters specified in sub-clauses (a) to (f) above.

What Is *not* Money Bill (Art. 199)

But a Bill is *not* deemed to be a Money Bill *merely because* it provides for – (i) the *imposition* of fines or penalties or (ii) the demand of *fees* for *licences* or fees for services rendered, or (iii) the imposition, abolition, remission, alteration or regulation of any *tax* by any local authority or body for *local* purposes.

If any *question* arises whether a Bill introduced in the Legislature of a State which has a Legislature Council is a *Money Bill* or not, the *decision* of the *Speaker* of the Legislative Assembly of such State thereon is *final*.

Special procedure in respect of Money Bills (Arts. 198-199 & 207)

In connection with the passing of a Money Bill in the State legislature, six points are to be borne in mind *viz.*,—

1. A Bill or any amendment making provision for any of the matters specified in sub-clause (a) to (f) of Article 199 (above) *cannot* be introduced or moved *except* on the *recommendation* of the Governor, and a Bill making such a provision *cannot* be introduced in a Legislative Council. But no such recommendation is required for moving an amendment making provisions for the *reduction* or *abolition* of any *tax*. [Art 207]
2. A Money Bill *cannot* be introduced in the *Legislative Council* [Art. 198]
3. After a Money Bill has been *passed* by the Legislative Assembly of a State having a Legislative Council, it is to be *transmitted* to the Legislative Council for its recommendations. The Legislative Council must, within *fourteen days* from the date of its receipt of the Bill, *return* the Bill to the Legislative Assembly with as *recommendations*, and the Legislative Assembly may thereupon either *accept* or *reject* all or any of the recommendations of the Legislative Council. If it is *not* so returned within the said 14 days, it is to be deemed to have been *passed by both Houses*, at the expiry of the said period. *in the form in which it was passed by the Legislative Assembly*. [Art. 198]
4. If the Legislative Assembly *accepts* any of the recommendations of the Legislative Council, the Money Bill is *deemed* to have been *passed* by both Houses with the amendments recommended by the Legislative Council and accepted by the Legislative Assembly. [Art. 198]
5. If the Legislative Assembly does *not accept* any of the recommendations of the Legislative Council, the Money Bill is deemed to have been passed by both Houses *in the form in which it was passed by the Legislative Assembly*, without any of the amendments recommended by the Legislative Council. [Art 198]
6. There must be endorsed on every Money Bill, the certificate of the Speaker of the Legislative Assembly *signed* by him that it is a Money Bill. [Art. 199]

C. PROCEDURE IN FINANCIAL MATTERS (Arts 202-207)

The following *four* financial matters are dealt with in Arts. 202-207 :

1. Annual Financial Statement
2. Procedure as to estimates
3. Appropriation Bills
4. Votes on account, votes of credit, and exceptional grants.

1. Annual Financial Statement (Arts. 202 and 207)

Its nature [Art. 202(1)]

The Annual Financial Statement is a statement of the *estimated receipt and expenditure* of the State for the year. The Governor must, in respect of every financial year, cause it to be laid before the House or Houses of the Legislature of the State.

What should the estimates show [Art. 202(2)]

The estimates of expenditure embodied in the annual financial statement show *separately*— (a) the sums required to meet the expenditure described as expenditure charged upon the Consolidated Fund of the State; *and* (b) the sum required to meet other expenditure from the same Fund. It must, moreover, distinguish expenditure or revenue-account from other expenditure.

What expenditure can be charged on the Consolidated Fund of a State [Art. 202(3)]

The following expenditures are to be expenditure charged on the Consolidated Fund of each State—

- (a) the emoluments and allowances of the Governor and other expenditure relating to his office;
- (b) the salaries and allowances of the Speaker, Deputy Speaker of the Legislative Assembly and the Chairman and the Deputy Chairman of the Legislative Council;
- (c) debt charges, including interest, sinking fund charges and redemption charges, and expenditure relating to the raising of loans and the service and redemption of debt;
- (d) the salaries and allowances of High Court Judges;
- (e) any sums required to satisfy any judgment, decree or award of any court or arbitral Tribunal;
- (f) any other expenditure declared by this Constitution, or by the Legislature of the State, to be so charged.

(Art. 202 corresponds to Art. 112)

Further, Art. 207 declares that a Bill which, if enacted and brought into operation, would involve expenditure from the Consolidated Fund of a State *cannot* be passed by a House of the Legislature of the State *unless* the Governor has *recommended* the *consideration* of the Bill to that House.

2. Procedure as to estimates (Art. 209)

As regards the estimates, the following *two points* of procedure may be noted :

1. Estimates relating to the expenditure charged upon the Consolidated Fund of a State *cannot* be submitted to the vote of the Legislative Assembly, but the Legislative Assembly *may discuss* the estimates.
2. Secondly, so much of the said estimates as relates to other expenditure is to be submitted in the form of demands for grants to the Legislative Assembly, and the Legislative Assembly has the power to assent, or to refuse to assent, to any demand, or to assent to any demand subject to a reduction of the amount specified therein, and no demand for a grant can be made except on the recommendation of the Governor. (Art. 203 corresponds to Art. 113, discussed in an earlier Chapter.)

3. Appropriation Bills (Arts. 204-205)

Appropriation Bills are Bills to provide for the appropriation, out of the Consolidated Fund of the State. of all

moneys required to meet— (a) the grants made by the Assembly; and (b) the expenditure charged on the Consolidated Fund of the State. These Bills are introduced after the grants under Art 203 are made. Art 204(3) then proceeds to enunciate an important rule, namely, that no money can be withdrawn from the Consolidated Fund of the State, except under appropriation made by law passed in accordance with the provisions of that Article

No amendment can be proposed to any such Bill in the House, or either House of the Legislature of the State, which would have the effect of varying the amount or altering the destination of any grant so made or of varying the amount of any expenditure charged on the Consolidated Fund of the State, and the decision of the person presiding, as to whether an amendment is inadmissible under the clause, is *final*. [Art. 204(2)]

If the grant under Article 204 is found to be insufficient, or when a need has arisen for supplementary or additional expenditure upon some new service *not* contemplated in the annual financial statement for that year, *or* if any money has been spent on any service during a financial year in excess of the amount granted for that service, the Governor must cause to be laid before the House (or Houses of the Legislature) another statement showing the estimated amount of that expenditure. [Art. 205] (Articles 204 and 205 correspond to Articles **114 and** 115. All the comments which apply to **Articles 114 and** 115 apply to Articles 204 **and** 205 also.)

4. Votes on account, votes of credit and exceptional grants (Art. 206)

The Legislative Assembly of a State has the power (a) to make any grant in advance in respect of the estimated expenditure for a part of any financial year; (b) to make a grant for meeting an unexpected demand upon the resources of the State; and (c) to make an *exceptional grant*, which forms no part of the current service of any financial year, and the Legislature of the State may authorise the withdrawal of moneys from the Consolidated Fund of the State for the purposes for which the said grants are made.

Miscellaneous Provisions

Language of Legislature (Art. 210)

The business in the Legislature of a State is to be transacted in the official language of the State *or* in Hindi *or* in English. But after 26th January, 1965, all business of a State Legislature must be carried on in the official language of the State *or* in Hindi.

Restriction on certain discussion (Art. 211)

No discussion can take place in the Legislature of a State with respect to the conduct of any Judge of the Supreme Court or of a High Court in the discharge of his duties.

Effect of irregularity in procedure [Art. 212(1)]

Art. 212 is a *curative* measure. It lays down that the validity of any proceedings in the Legislature of a State *cannot* be called in question on the ground of any alleged irregularity of procedure.

No officer or member of the Legislature of a State in whom powers are vested by or under this Constitution for regulating the procedure or the conduct of business, or for maintaining order, in the Legislature, is subject to the jurisdiction of any Court in respect of the exercise by him of those powers.

4. THE HIGH COURTS IN THE STATES (Art. 124, 214-230, 235)

The *basic object* underlying the provisions made in the Constitution regarding the High Courts in the States is *judicial independence*. In this connection, the following remarks from Agarvala's 'Constitution are relevant :

It may be noted that the powers of the State Legislatures with regard to the constitution and organisation of High Courts have been severely restricted by various provisions contained in the Constitution. Judges are to be appointed by the President; they are removable by the President only on addresses by both Houses of Parliament — so that both appointment and removal have been taken out of the hands of the State authorities and vested in the centre. (Cf.

Art. 217). Minimum salaries of a Judge nor his rights in respect to leave or pension shall be varied to his disadvantage after his appointment. (Cf. Art. 221). Then there is the provision that every High Court shall have unqualified superintendence over all Courts and Tribunals throughout its territorial jurisdiction. (Cf. Art. 227). Security of tenure, security of remuneration, security of revisional jurisdiction (in the form of superintendence) have all been assured by the Constitution itself. The actual salaries of Judges have been fixed (Cf. Second Schedule) in the Constitution itself. Their allowances and rights in respect of leave of absence, and pension are to be determined by Parliament by law (Cf. Art. 221) and, until so determined, they will be such as are specified in the Constitution. (Cf. Second Schedule). *The object of these provisions is to secure judicial independence.*”

1. HIGH COURT (Arts. 214-216, 226-228, 230 & 235)

There is a High Court for each State. (Art. 214). The High Court is *a Court of record*, and has the power to punish for *contempt* of itself. (Art. 215) Every High Court consists of a Chief Justice and such other Judges as the *President* may appoint. (Art. 216)

In one interesting decision of the Supreme Court, it was *held* that no litigant can claim that the High Court should be located within proximal distance from his place of residence (*Federation of Bar Association in Karnataka v. Union of India*. AIR 2000 SC 2544)

Powers of a High Court (Arts. 226-228, 230 & 235)

1. Power to issue certain writs (Art. 226)

Art. 226 empowers the High Courts to issue, to any person or authority, including the Government (in appropriate cases), directions, orders or writs, including writs in the nature of *habeas corpus*, *mandamus*, *prohibition*, *quo warranto*, *certiorari*, or any of them— (i) for the enforcement of any of the fundamental rights conferred by

Part III of the Constitution, or (ii) *for any other purpose*. This Article is as important as Art 32. and numerous cases have been decided in this matter. It should be noted that the High Court can issue writs under (a) only after a decision that the aggrieved party has a fundamental right which has been infringed, and under (b) only after a finding that the aggrieved party has a legal right which entitled him to any of the aforesaid writs and that such right has been infringed Interim relief *cannot* be granted without determining the rights of the parties in question in the proceeding.

As observed by the Supreme Court, the power conferred on the High Courts by Art. 226 of the Constitution is to enforce the *rule of law* and ensure that the State and other statutory authorities act in accordance with the law. (*K. S. Bhoir v. State of Maharashtra*, AIR 2002 SC 444)

The Supreme Court has reiterated that the powers of a High Court to issue writs is *discretionary*, and if the High Court finds that there is no satisfactory explanation for the inordinate delay (*laches*), it may reject the petition, if it finds that the issue of writ will lead to public inconvenience and interference with the rights of others. (*Ashok Kumar Mishra v. Collector of Raipur*, (1980) 1 S.C.C. 180).

As observed by the Bombay High Court, the existence of an alternate remedy is *not* a bar to the exercise of the writ jurisdiction by a court. (*R. O. Agrawal v. State of Maharashtra*, AIR 1994 Born. 87).

Further, it should be noted that a comparison of Art. 32 and Art. 226 will clearly show that Art. 32 guarantees the right to move the Supreme Court for the enforcement of the fundamental rights, and this right is in itself a fundamental right. Art. 226 only confers on the High Court the power to enforce the fundamental rights by appropriate writs.

The scope of this Article has been the subject of great controversy in numerous cases decided by various High Courts and the Supreme Court. The consensus of opinion is that a person can move the High Court only when he has no other equally adequate, convenient and expeditious remedy available. But in the case of violation of a fundamental right it has been *held* by the Supreme Court that if the Supreme Court *cannot* refuse to interfere under Art. 32, *ipso facto* the High Court **must** also grant relief under Art. 226.

Art. 226 also provides that a party against whom an interim order is made —

(i) without furnishing him a copy of the petition and all the supporting

documents: *and*

(ii) without giving him an opportunity to be heard, —

may make an application to the High Court for vacating such an order, and furnish a copy of such an application to the other party (or the party's counsel). If this is done, the High Court must dispose of the application within a period of *two weeks*, and if it does *not* do so, the interim order is to stand vacated at the expiry of the said period of two weeks. Art. 226 also specifically provides that the power conferred on the *High Court* by Art. 226 is *not* in derogation of the power conferred on the *Supreme Court* by Art. 32(2).

In one case, the Petitioner had directly approached the High Court against his order of termination, praying for a writ of *certiorari*. The High Court allowed the petition, quashed the order of dismissal, and ordered reinstatement with back wages. *On appeal* to the Supreme Court, it was **held** that, in the absence of finding of facts, the High Court is only entitled to quash the impugned order, and it **cannot** ordinarily order reinstatement of the Petitioner. (*Managing Director, U.P. Warehousing Corp. v. V.N. Vijpayee*, (1980) 3 S.C.C. 459).

[The writs of *habeas corpus*, *mandamus*, *prohibition*, *quo warranto* and *certiorari* have already been discussed under Art. 32, in an earlier Chapter.]

2. Power of superintendence (Art. 227)

Art. 227 provides that every High Court shall have superintendence over a// Courts and tribunals throughout the territories in relation **to which** it exercises jurisdiction (*except* a Court constituted by or under **any law** relating to the *Armed Forces*), and for this purpose, it may—

(a) call for *returns* from such Courts;

(b) make and issue general *rules* and *prescribe forms* for regulating the practice and proceedings of such Courts;

(c) prescribe forms in which books, entries and accounts shall be kept by the officers of any such Courts; and

(d) *settle tables of fees* to be allowed to the sheriff and all clerks and officers of such Courts and to attorneys, advocates and pleaders practising therein. (Such rules, forms or tables, however, require the previous approval of the Governor.)

The power under Art. 227 does *not* vest the High Court with any unlimited prerogative to rectify all kinds of hardship or wrong decisions made within the limits of its jurisdiction. (*Nizzar v. Varghese*, AIR 1992 Ker. 312). Likewise, the High Court would *not* interfere with a finding of fact, in cases where the subordinate tribunal has jurisdiction, except where such a finding is perverse *or* is *not* based on any material whatsoever. (*Mani v. Phiroz*, AIR 1991 SC 1992).

The Supreme Court has observed that powers under Art. 227 may be exercised in a fit case where it is **shown that grave** injustice has been done to a party. (*O. Mathai v. M. Abdul Khadir*, AIR 2002 SC 110)

However, the jurisdiction under Art 227 must be sparingly exercised. It can be exercised to correct errors of jurisdiction, but **not** to upset pure findings of fact, which is within the domain of an appellate court only (*Khimji Vishmi v. Premier High School*, AIR 2000 SC 3495)

3. Power to withdraw cases to itself (Art. 228)

If satisfied that a case pending in a Court subordinate to it involves a substantial question of *law as to the interpretation of the Constitution*, the determination of which is necessary for the disposal of the case, the High Court has the power to *withdraw* the case, and it may — *either* (a) dispose of the case itself, *or* (b) *determine* the said question of *law*, and *return the case* to the Court from which the case has been so withdrawn, together with a copy of its judgment on such question, and the said Court must, on receipt thereof, proceed to dispose of the case in conformity with such judgment [Art 228].

4. Appointment of Officers and servants and the expenses of High Courts (Art. 229)

(1) Appointments of officers and servants of a High Court are made by the Chief Justice of the Court *or* such other Judge or officer of the Court as he may direct.

However, the Governor of the State may, by rule, require that in such cases as may be specified in the rule, no person *not* already attached to the Court can be appointed to any office connected with the Court, save after consultation with the State Public Service Commission.

(2) Subject to the provisions of any law made by the Legislature of the State, the conditions of service of officers and servants of a High Court are such as may be prescribed by rules made by the Chief Justice of the Court *or* by some other Judge or officer of the Court authorised by the Chief Justice to make rules for the purpose.

It may be noted that the rules made under this clause, so far as they relate to salaries, allowances, leave or pension, require the approval of the Governor of the State.

(3) The administrative expenses of the High Court, including all salaries, allowances and pensions payable to or in respect of the officers and servants of the Court, are to be charged upon the Consolidated Fund of the State, and any fees or other moneys taken by the Court form part of that Fund.

Parliament may, by law

- (a) extend the jurisdiction of a High Court to. or
- (b) exclude the jurisdiction of a High Court from, any Union territory.

Where the High Court of a State exercise jurisdiction in relation to a Union territory,—

- (a) nothing in the Constitution is to be construed as empowering **the** Legislature of the State to increase, restrict or abolish that jurisdiction; and
- (b) the reference in Art. 227 to the *Governor* is to be construed as a reference to the *President* in relation to any rules, forms or tables for subordinate Courts in that territory.

5. Control over subordinate Courts (Art. 235)

Every High Court has control over district Courts and Courts subordinate thereto, including the posting and promotion of, and the grant of leave to, persons belonging to the judicial service of a State and holding any post inferior to the post of district judge.

Establishment of a common High Court for two or more States (Art. 231)

Notwithstanding anything contained in the preceding provisions of this Chapter. Parliament has the power to establish, by law, a *common High Court* for two or more States and a Union territory.

In relation to any such High Court— (a) the reference in Art. 217 to the Governor of the State is to be construed as a reference to the Governors of all the States in relation to which the High Court exercises jurisdiction; (b) the reference in Art. 227 to the Governor is, in relation to any rules, forms or tables for subordinate Courts, is to **be** construed as a reference to the Governor of the State in which **the** subordinate Courts are situate; and (c) the reference in Arts. 219 and 229 to the State are to be construed as a reference to the State in which the High Court has its principal seat. And if such a **principal seat** is a Union territory, the references in Art. 219 and 229 **to the** Governor, Public Service Commission, Legislature and Consolidated Fund of the State are to be construed respectively as reference to the President, Union Public Service Commission. Parliament and Consolidated Fund of India.

2. HIGH COURT JUDGE (Arts. 124, 127, 219-221, 224 & Sch. 3)

His appointment and tenure [Art. 217(1)]

Every High Court Judge is to be appointed by the President by *warrant* under his hand and seal after consultation with the Chief Justice of India, the Governor of the State and the Chief Justice of the High Court. He holds office until he attains the age of *sixty-two* years and may, by writing under his hand addressed to the President, *resign his* office.

If any question arises to the age of a Judge of a High Court, **the** question is to be decided by the President, after consultation with the Chief Justice of India, and the decision of the President is final.

In *S.C. Advocates-on-Record Association v. Union of India* (AIR 1994 S.C. 268), the Supreme Court over-ruled its earlier decision in *S.C. Gupta v. Union of India*, and *held* that fixation of the number of judges of a High Court is a justiciable issue. It *also held* that in making **a** review of **the** Judge strength of a particular High Court, the opinions of the Chief Justice of that Court and the Chief Justice of India would carry great weight.

How removed [Art. 124(4)]

A High Court Judge may be *removed* from his office in the manner provided in clause **(4)** of Article 124 for the removal of a Judge of the Supreme Court, namely, by an *order of the President passed* after an address by each House of Parliament, *supported by a majority* of the total membership of that House *and by a majority* of not less than *two-thirds* of the members of that House present and voting has been presented to the President for such *removal on the ground of proved misbehaviour or incapacity*.

His qualifications [Art. 217(2)]

A person is *not* qualified to be appointed as a High Court Judge *unless* he is *a citizen of India*, and -

(a) has, *for at least ten years*, held a judicial office in the territory of India; *or*

(b) has, *for at least ten years* been an Advocate of a High Court or of two or more High Courts in succession

[The *Forty-second Amendment*, 1976, had added *a third* clause [clause (c)], to enable the appointment of a distinguished jurist as **a** High Court Judge although such a person may *not* have held a judicial office or practised as an Advocate for the stipulated minimum period of ten years. This clause was, however, **deleted by the Forty-fourth Amendment**, 1978.)

His oath or affirmation (Art. 219)

A High Court Judge must, before he enters upon his office, **make and** subscribe before the Governor of the State, an oath or affirmation in the prescribed form.

Salary, allowances etc. (Art. 221 & Sch. 3)

A Chief Justice is entitled to get Rs. 90,000 monthly and the other High Court Judges to Rs. 80,000 as salary. Their allowances and pension cannot be varied to their disadvantage after their appointment.

His disability (Art. 220)

No person who, after the commencement of the Constitution, has held office as a permanent Judge of a High Court, can plead or act in any Court or before any authority in India. *except* the Supreme Court and the other High Courts. The expression "High Court" does *not* include a High Court for a State specified in Part B of the First Schedule as it existed before the commencement of the Constitution (Seventh Amendment) Act, 1958.

Art. 220 *previously provided* that no person who has held office as a Judge of the High Court after the commencement of this Constitution could plead or act in *any Court* or before any authority within the territory of India. This Article was found to be too strict, and hence was amended to allow *able* persons to give the benefit of their ability in any other **High** Court, *i.e.*, other than the one in which they had been **Judges, and in the** Supreme Court.

His office, how vacated [Arts. 217 & 224]

The Office of a High Court Judge is vacated by his being appointed by the President to be a Judge of the Supreme Court, *or* by his being transferred by the President to any other High Court within the territory of India. [Art. 217]

If, by reason of any temporary increase in the business of the High Court by reason of arrears of work therein, it appears to the President that the number of Judges of that Court should be for the time being increased, the President may appoint duly qualified persons to be additional Judges of the Court for such period *not* exceeding 2 years as he may specify. When any Judge of a High Court other than the Chief Justice is, by reason of absence or for any other reason, unable to perform the duties of his office or is appointed to act temporarily as Chief Justice, the President may appoint a duly qualified person to act as a Judge of that Court until the permanent Judge has resumed his duties. [Art. 224]

Transfer of Judges (Art. 222)

Art. 222 empowers the President to *transfer* a Judge from one High Court to another. However, this must be done in consultation with the Chief Justice of India, and the Judge so transferred is entitled to an additional compensatory allowance.

In *Union of India v. Sankalchand* (AIR. 1977 S.C. 2328), **the** constitutional validity of a Notification issued by the President **of India**, transferring a Judge from one High Court to another was **upheld by a** majority of Judges of the Supreme Court. The Court observed **that**, in order to uphold and protect the independence of the judiciary, it is *not necessary* to construe Art. 222 to mean that a judge *cannot be* transferred to another High Court without his consent.

The same question was once again held before the Supreme **Court** in *S.P. Gupta v. Union of India* (1981 Supp. S.C.C. 87), where the transfer of the Chief Justice of the Patna High Court to the Madras High Court was challenged. The Court, by a majority, once again *held* in this case (also known as the *Judges' case*), that the consent of the concerned Judge is *not* a pre-condition to a transfer. If the transfer **is** in public interest, the personal inconvenience of the Judge is to be disregarded. The Court, however, also cautioned that this power of transfer should *not* be used by way of punishment for an oblique purpose, as for instance, against a judge who does *not* give judgements in favour of the government. Taking all considerations into account, a majority of the judges of the Bench of the Supreme Court upheld the transfer. (See also, *S.C. Advocates-on-Record Association v. Union of India*, referred to above.)

Appointment of Acting Chief Justice (Art. 223)

When the office of the Chief Justice of a High Court is vacant or when such Chief Justice is unable to perform his duties (by reason **of** absence or otherwise), the duties of his office are to be performed **by** such one of the other Judges of the Court as the President **may** appoint for this purpose

5. SUBORDINATE COURTS [Arts. 233-234 & 236(a)]

A. — Appointment of District Judge (Arts. 233-234 & 238(a))

1. *Appointment of district judges (i.e. Judge of a City Civil Court, additional district judge, joint district judge, assistant district judge, chief judge of a small causes Court, Chief presidency magistrate, additional chief presidency magistrate, sessions judge)* in any state are to be made *by the Governor of the State on consultation with the High Court*. [Arts. 233(1) & 236]

2. *Appointments of persons other than district judges to the judicial service of a State* are to be made by the Governor of the State after consultation with the State *Public Service Commission and the High Court*. [Art. 234]

B. - Qualifications for appointment [Art. 233(2)]

For a person who is *not* already in the service of the Union or of a State, to be appointed as a District Judge, the

candidate must have been for not less than *seven years*, an *advocate* or *pleader*, and should be *recommended* by the High Court for such appointment.

[Art. 238]

(Repealed) The provisions relating to States in Part B of the First Schedule have been *repealed* by the Constitution (Seventh Amendment) Act, 1956. Hence, Art. 238 has been *omitted*.

8

THE UNION TERRITORIES

(Articles 239 to 241)

Art. 239 of the Constitution deals with the administration of the Union territories, and provides that every Union territory shall be administered by the President acting, to such extent as he thinks fit, through an administrator to be appointed by him with such designation as he may specify. Notwithstanding anything contained in Part VI, the President can also appoint the Governor of a State as the administrator of an adjoining Union Territory, and where a Governor is so appointed, he must exercise his functions as such administrator, independently of his Council of Ministers.

Art. 239A empowers the Parliament to create, by law, a local legislature or Council of Ministers, or both, for the Union Territory of Pondicherry.

It is specifically provided that such a law is *not* to be deemed to be an amendment of the Constitution for the purposes of Art. 368, even if such a law contains any provision which amends, or has the effect of amending, the Constitution.

It is also provided that, after the Sixty-ninth Amendment of the Constitution, the *Union Territory of Delhi* is to be designated as the *National Capital Territory of Delhi*, and provisions have been made for a Legislative Assembly and a Lieutenant Governor for Delhi. (Art. 239-AA)

Art. 239B then deals with the power of the administrator to promulgate Ordinances during the recess of the legislature of the Union territories. Such an Ordinance can be promulgated if the administrator of such territory is satisfied that circumstances exist which render it necessary for him to take immediate action in the matter. However, *before* promulgating such an Ordinance, the administrator must obtain instructions from the President in that behalf.

Art. 240 confers powers on the President to *make* regulations for certain Union territories. Thus, he may make regulations for the peace, progress and good government of the Union territories of :

- (a) The Andaman and Nicobar Islands;
- (b) Lakshadweep;
- (c) Dadra and Nagar Haveli;
- (d) Goa, Daman and Diu; and
- (e) Pondicherry.

Any regulation so made may repeal or amend any Act made by Parliament or any existing law which is for the time being applicable to the Union territory, and when promulgated by the President, has the **same** force and effect as an Act of Parliament which applies to that territory.

Art. 241 enables the Parliament to constitute a High Court for Union territories or to declare any Court in any such territory to be a High Court for all or any of the purposes of this Constitution. It is also provided that the provisions relating to the State High Court apply in relation to every Union Territory High Court, subject to such modifications or exceptions **as Parliament may by law provide**.

Subject to the provisions of the Constitution and to the provisions of any law of the appropriate Legislature made by virtue of powers conferred on that Legislature by or under the Constitution, every High Court exercising jurisdiction immediately before the commencement of the Constitution (Seventh Amendment) Act, 1956, in relation to any Union territory is to continue to exercise such jurisdiction in relation to that territory **after** such commencement.

Nothing in this Article derogates from the power of Parliament to extend or exclude the jurisdiction of a High Court for a **State**, or from, any Union territory or part thereof.

THE PANCHAYATS

(Arts. 243-243-0)

Arts. 243 to 243-0 were inserted into the Constitution by the *Seventythird Amendment of the Constitution* (which came into effect on 24th April, 1993) to provide for *Gram Sabhas* and *Panchayats*.

A "*Gram Sabha*" is defined to mean a body consisting of persons registered in the electoral rolls relating to a village comprised within the area of a *Panchayat* at the village level.

A "*Panchayat*" is defined to mean an institution, by whatever name called, of self-government, constituted under Art. 243-B of the Constitution.

All the seats in a *Panchayat* are to be filled by persons chosen by *direct election* from territorial constituencies in the *Panchayat* area. For this purpose, the *Panchayat* area is to be divided into territorial constituencies in such a manner that the ratio between the population of each constituency and the number of seats allotted to it is, as far as possible, the same throughout the *Panchayat* area.

Provisions are also made for reservations of seats for the Scheduled Castes and Scheduled Tribes and for women belonging to such castes and tribes.

Every *Panchayat* is to last (unless dissolved earlier) for *five years* from the date of its first meeting, *and no longer*.

The State Legislature may endow the *Panchayats* with such powers and authority as may be necessary to enable them to function as institutions of self-government. In particular, the State Legislature may, by law, —

- (a) authorise a *Panchayat* to levy, collect and appropriate taxes, duties, tolls and fees (within specified limits);
- (b) assign to a *Panchayat*, such taxes, duties, tolls and fees as may be levied and collected by the State Government;
- (c) provide for making grants-in-aid to the *Panchayats* from the Consolidated Fund of the State;
- (d) provide for constitution of such funds for crediting all money received by or on behalf of the *Panchayats*, and for withdrawal of money therefrom.

The superintendence, direction and control of the preparation of electoral rolls for, and the conduct of, all elections to the *Panchayats* are vested in the State Election Commission (S. 243-B). Furthermore, no election to any *Panchayat* can be called in question, except by an *election petition* presented to such authority and in such manner, as may be provided by the State Legislature. (Art. 243-0)

A *Finance Commission* is also to be constituted by the Governor of the State to review the financial position of the *Panchayats* and make necessary recommendations to the Governor.

The State Legislature may also make provisions with respect to keeping of accounts by the *Panchayats*, and for the auditing of such accounts.

9-A

THE MUNICIPALITIES

(Arts. 243-P to 243-ZG)

Arts. 243-P to 243-ZG were inserted by the Seventy-fourth Amendment, 1992. Art. 243-0 provides for —

- (a) a *Nagar Panchayat* - for a transitional area, *i.e.* an area in transition from a rural area to an urban area;
- (b) A Municipal Council — for a smaller urban area; *and*

(c) A Municipal Corporation — for a larger urban area.

Art. 243-R lays down that all seats in a Municipality are to be filled by persons chosen by *direct election* from the territorial constituencies in the Municipal area. For this purpose, each Municipal area is to be divided into territorial constituencies known as "wards".

The State Legislature may provide —

(a) for the representation in a Municipality of persons having special knowledge or experience in Municipal administration, the members of Parliament and of State Legislatures and Chairpersons of the various Committees; *and*

(b) for the manner of election of the Chairperson of the Municipality.

In all cases of a Municipality with a population of *three lacs* or more, Ward Committees are to be established. The State Legislature has to **make** provisions with respect to —

(a) the composition and territorial area of a Ward Committee; *and*

(b) the manner in which the seats of a Ward Committee are to be **filled**

Provisions are also made for reservation of seats for the Scheduled Castes and Scheduled Tribes and for women belonging to such castes and tribes

Every Municipality is to continue (unless dissolved sooner) for *live years* from the date of its first meeting. *and no longer*

The State Legislature may, by law, endow the Municipalities with such powers and authority as may be necessary to enable them to function as institutions of self-government. In particular, the State Legislature may, by law.—

(a) authorise the Municipality to levy, collect and appropriate such taxes, duties, tolls and fees within specified limits,

(b) assign to a Municipality, such taxes, duties, tolls and fees as may be levied and collected by the State Government;

(c) provide for constitution of such Funds for crediting all money received by or on behalf of the Municipalities, and for withdrawal of money therefrom.

The superintendence, direction and control of the preparation of electoral rolls for, and the conduct of all elections to the Municipalities are vested in the State Election Commission (Art. 243-ZA). Moreover, no election to any Municipality can be called in question, except in an election petition presented to such authority, and in such manner, as may be provided by the State Legislature. (Art. 243-ZG)

10

THE SCHEDULED AND TRIBAL AREAS (Arts. 244, 244A, 312 & Fifth and Sixth Schedules) (1) Provisions As To The Administration And Control Of Scheduled Areas And Scheduled Tribes [Arts. 244(1), 342 and Sch. 5 Pares. 1-6]

What is a Scheduled Tribe [Art. 342(1)]

Art. 342(1) provides that the President may, with respect to any State or Union territory (and in case of a State, after consultation with the Governor of that State), by public notification, specify the tribes or tribal communities for the purposes of the Constitution.

(1) Administration And Control Of Scheduled Tribes

[Art. 244(1) & Fifth Schedule]

Art. 244(1) provides that the provisions of the *Fifth Schedule* to the Constitution apply to the administration and control of the Scheduled Areas and Scheduled Tribes in any State, *other than* the State of Assam, Meghalaya, Tripura and Mizoram.

The salient features of the Fifth Schedule may be summarised as follows:

Tribes Advisory Council

In every State having Scheduled Areas therein, a *Tribes Advisory Council* is to be appointed. This Council is to consist of *not more than twenty members*, of whom three-fourths must be representatives of the Scheduled Tribes in the Legislative Assembly of the State.

Its duty

It is the duty of the Tribes Advisory Council to *advise on* such matters pertaining to the *welfare and advancement* of the *Scheduled Tribes* in the States as may be referred to them by the Governor.

The Governor may, by public notification, direct that any particular Act of Parliament or of the Legislature of the State shall *not* apply to a Scheduled Area in the State *or* shall apply to Scheduled Area in the State *subject* to such exceptions and modifications as he may specify. He may also (after consulting the Tribes Advisory Council), *make regulations for the peace and good government of a Scheduled Area*. Such regulations may—(a) prohibit or restrict the transfer of land by or among members of the Scheduled Tribes in such area; (b) regulate the allotment of land of members of the Scheduled Tribes in such area; *and* (c) regulate the carrying on of the business as money-lender by persons who lend money to members of the Scheduled Tribes in such area.

All such regulations are to be submitted forthwith to the President, and until assented to by him, have no effect.

Scheduled Areas The President may, at any time, by order,—

- (a) direct that the whole or any specified part of Scheduled Area shall cease to be a Scheduled Area or a part of such area, as the case may be; (b) increase the area of any Scheduled Area in a State after consulting the Governor of that State;
- (c) alter any Scheduled Area—but *only* by way of rectification of boundaries;
- (d) on any alternation of the boundaries of a State (*or* on the admission into the Union or the establishment of a new State), declare any territory *not* previously included in any State, to be, or to form part of, a Scheduled Area;
- (e) rescind, in relation to any State or States, any order made as above, and make fresh orders redefining the Scheduled Areas in consultation with the Governor of the concerned State

(2) Provisions as to the Administration Of Tribal Areas In Assam, Meghalaya, Tripura And Mizoram [Art. 244(2) & Sixth Sch., Pares. 1-20]

By virtue of Art. 244(2), the provisions of the *Sixth Schedule* are made applicable to the Tribal Areas in the State of Assam, Meghalaya, Tripura and Mizoram.

The following are a few salient features of the Sixth Schedule : The following Tribal Areas are declared to be autonomous districts, viz.,— (a) In the State of Assam

- (1) The North Cachar Hills District,
- (2) The Karbi Anglong District

(b) In Meghalaya :

- (1) Khasi Hills District.
- (2) Jaintia Hills District.
- (3) Garo Hills District.

(c) In Tripura :

Tripura Tribal Areas District

(d) In Mizoram

- (1) The Chakma District.
- (2) The Mara District.
- (3) The Lai District.

Each of these autonomous districts has a *District Council* consisting of *not more than thirty members*, of whom—

- (a) *not more than four persons* are to be nominated by the Governor, and
- (b) *the rest* are to be elected on the basis of adult suffrage.

Further, there is a separate *Regional Council* for each area constituting an autonomous region, as given above.

Each District Council and each Regional Council is a body corporate by the name respectively of the District Council of (*name of district*), and the Regional Council (*name of region*), has perpetual succession and a common seal, and can sue and be sued by the said name. The administration of an autonomous district is vested in the District Council for such district and the administration of an autonomous region is vested in the Regional Council for such region.

The Regional Council for an autonomous region and the District Council for an autonomous *district* have power to make laws with respect to the allotment, occupation, use of land, the management of forests, the use of any canal or water-course for the purpose of agriculture, the inheritance of property, marriage, divorce, social customs, *etc.* The Regional Council and District Council may constitute *Village Councils* or Courts for the trial of suits and cases between the parties all of whom belong to Scheduled Tribes within such areas, and may appoint members of such Village Councils and the Regional Council and the District Council have powers of an *appellate Court* over both. Moreover, the Governor may confer on Regional Council powers under the Civil Procedure Code and the Criminal Procedure Code.

The District Council for an autonomous district may establish, construct, or manage, *primary schools*, dispensaries, *markets*, cattle pounds, *ferries*, *fisheries*, roads and water-ways in the district and, in particular, may prescribe the language and the manner in which primary education shall be imparted in the primary schools in the district.

In each autonomous *district*, there is a *District Fund* and for each autonomous *region*, and a Regional Fund to which all moneys received by the district or Regional Council are credited. Both the Councils have power to assess and collect revenue and taxes on professions, trades, vehicles, *etc.* The District Council may also make regulations for the control of money-lending and trading by non-tribals. The Governor may, at any time, appoint a Commission to examine and report on any matter relating to the administration of the autonomous districts and autonomous region in the State.

If, at any time, the Governor is satisfied that an act or resolution of a District or a Regional Council is likely to endanger the safety of India or is likely to be prejudicial to public order, he may annul or suspend such act or resolution. Such an order is to be laid before the Legislature of the State as soon as possible and shall remain in force for 12 months.

The Governor may, on the recommendation of a Commission, order the dissolution of a District or a Regional Council and (a) direct that a fresh general election shall be held immediately for the consideration of the Council, or (b) assume the administration himself for a period *not exceeding twelve months*.

(Arts. 245-263, 169 & Sch. 7)

DIVISION OF SOVEREIGNTY.—This Chapter deals with the power of Parliament (also known as '*Me Centre*') and the power of a State to make laws. The division of governmental powers, or rather, of the right to exercise them, between the Union and State Governments is, in constitutional parlance, spoken of as "*division of sovereignty*".

The relation between the Union and the State is, according to the Constitution Act, of two kinds-

1. *Legislative*, and
2. *Administrative*,

Articles 245 to 255 deal with the *former*. while Articles 256 to 263 deal with the *latter*.

(I) LEGISLATIVE RELATIONS (Art. 245-254, 369 & Schedule 7)

Parliament may make laws for the *whole* or any *part* of the territory of *India*, and the Legislature of a *State* may make laws for the whole or any part of the *State*. (Art 245) Art. 245 defines the territorial limits of the powers of legislation vested in the Parliament and the legislatures of the States Now, there are 98 matters enumerated in the Seventh Schedule over which Parliament can exclusively legislate. (This is known as the *Union List* or *List I* of the *Seventh Schedule*.) Article 246, therefore, proceeds to enact as under

Union List (Art. 246(2) & List I of the Seventh Schedule)

Parliament has *exclusive* power to make laws with respect to **any** of the matters enumerated in the Union List. The following are *some of the matters* enumerated in this List

1. Defence of India and every part thereof, including preparation for defence and all such acts as may be conducive in times of war **to** its prosecution and after its termination to effective demobilisation
2. Naval, military and air forces, and other armed forces of the Union.
3. Delimitation of cantonment areas, local self-Government in such areas, the constitution and powers within such areas of cantonment authorities and the regulation of house accommodation (including **the** control of rents) in such areas.
4. Naval, military and air force works
5. Arms, firearms, ammunition and explosives.
6. Atomic energy and mineral resources necessary for its production.
7. Industries declared by Parliament by law to be necessary for the purpose of defence or for the prosecution of wars.
8. Central Bureau of Intelligence and Investigation.
9. Preventive detention for reasons connected with Defence, Foreign Affairs, or the security of India; persons subjected to such detention.
10. Foreign affairs; all matters which bring the Union into relation with any foreign country.
11. United Nations Organisation.
12. War and Peace.
13. Citizenship, naturalisation and aliens.

14. Extradition.

15. Railways.

Concurrent List [Art. 246(2) & List III of the Seventh Schedule]

Parliament *and* the Legislature of any State also have power to make laws with respect to any of the matters enumerated in the "*Concurrent List*", i.e. List III of the Seventh Schedule, *some of which* are given below :

1. Criminal law, including all matters included in the Indian Penal Code at the commencement of the Constitution, *but excluding* offences against laws with respect to any of the matters specified in List I or List II, *and excluding* the use of naval, military or air force or any other armed forces of the Union in aid of the civil power.

2. Criminal procedure, including all matters included in the Code of Criminal Procedure at the commencement of the Constitution.

3. Preventive detention for reasons connected with the security of a State, the maintenance of the public order, or the maintenance of the supplies and services essential to the community; persons subjected to such detention.

4. Removal from one State to another State of prisoners, accused persons and persons subjected to preventive detention for reasons specified in entry 3 (above).

5. Marriage and divorce; infants and minor's adoption; wills: intestacy and succession; joint family and partition; all matters in respect of which parties in judicial proceedings were, immediately before the commencement of the Constitution, subject to their personal law.

6. Transfer of property other than agricultural land; registration of deeds and documents.

7. Contracts, including partnership, agency, contracts of marriage, and other special forms of contracts, but *not* including contracts relating to agricultural land.

8. Actionable wrongs.

9. Bankruptcy and insolvency.

10. Trust and trustees.

11. Administrator-General and official trustees.

12. Forests.

13. Protection of wild animals and birds.

14. Population control and family planning.

15. Electricity.

As stated above, as regards the above matters. *both* the Parliament and a *State* Legislature have power to *legislate*.

State List [Art. 246(3) & List II of the Seventh Schedule]

The Legislature of any State has *exclusive* power to make laws for such State (or any part thereof) with respect to any of the matters enumerated in the *State List*, *Le.*, List II of the Schedule. *Some of the items* enumerated in this List are as follows :

1. Public order (but *not including* the use of naval, military or air forces or any other Armed Forces of the Union or of any other Force subject to the control of the Union or of any contingent or unit thereof in aid of the civil power).

2. Police, including railway and village police.
3. Officers and servants of the High Court; procedure in rent and revenue Courts; fees taken in all Courts, except the Supreme Court.
4. Prisons, reformatories, Borstal institutions and other institutions of a like nature, and persons detained therein; arrangements with other States for the use of prisons and other institutions.
5. Local Government, that is to say, the constitution and powers of municipal corporations, improvement trusts, district boards, mining, settlement authorities and other local authorities for the purpose of local selfGovernment or village administration.
6. Public health and sanitation, hospitals and dispensaries.
7. Pilgrimages, other than pilgrimages to places outside India.
8. Intoxicating liquor, that is to say, the production, manufacture, possession, transport, purchase and sale of intoxicating liquors.
9. Relief of the disabled and unemployable
10. Burials and burial grounds; cremations and cremation grounds.
11. Libraries, museums and other similar institutions controlled or financed by the State; ancient and historical monuments and records other than those declared by Parliament by law to be of national importance.
12. Communications, that is to say, roads, bridges, ferries and other means of communication *not* specified in List 1, municipal tramways; ropeways; inland waterways and traffic thereon subject to the provisions of Lists I and III with regard to such waterways, vehicles other than mechanically propelled vehicles
13. Agriculture, including agricultural education and research, protection against pests and prevention of plant diseases.
- 14.** Fisheries.
15. Markets and fairs.

As regards the above matters, a *State alone* has power to **make** laws. In this connection, a reference may also be made to Article 369, which gives temporary power to Parliament to make laws with respect to certain matters in the State List *as if* they were matters in the Concurrent List. The said Article runs as follows :

Notwithstanding the above, for a *period of five years from the commencement of this Constitution*, Parliament also had the power to make laws with respect to the following matters as if they were enumerated in **the** Concurrent List, namely :

- (a) trade and commerce within a State in, and the production, supply and distribution of cotton and woollen textiles, raw cotton (including ginned cotton and unginned cotton or *kapas*), cotton seed, paper (including newsprint), food-stuffs (including edible oilseeds and oil), cattle fodder (including oilcake and other concentrates, coal (including coke and derivatives of coal); iron, steel and mica;
 - (b) offences against laws with respect to any of the matters mentioned in clause (a), jurisdiction and powers of all Courts, except the Supreme Court, with respect to any of those matters, and fees in respect of any of those matters, but *not* including fees taken in any Court.
- However, any law made by Parliament, which Parliament would *not* but for the provisions of this Article, have been competent to make, would, to the extent of the incompetency, cease to have effect on the expiration of the said

period, except as respect things done or omitted to be done before the expiration thereof.

State legislature, *not* a delegate of the Union Parliament

The State legislature under the Indian Constitution is *not* a delegate of the Union Parliament. *Both legislatures derive powers from the same Constitution*, the State legislature drawing its powers from the State List and the Concurrent List. Within its appointed sphere, the State legislature has independent legislative power. (*State v. Narayandas*, A.I.R. 1958 Born. 68)

Since *both* the Union and the State legislatures derive their respective powers from the same written Constitution, which divides the legislative powers between them, one legislature *cannot* by delegation of subjects that are exclusively within its field, clothe the other with legislative capacity to make laws on that subject. Hence the Union legislature *cannot* delegate or transfer its powers to the State legislatures, and *vice versa*. (*In Re Delhi Laws Act*, 1912 (1961) S.C.R. 1747)

The legislature *cannot* delegate its essential functions

Though our Constitution has *not* adopted the strict doctrine of *Separation of Powers*, nor embodied any express prohibition against delegation of powers by the Legislature to the Executive or any subordinate body, the Supreme Court has *held* that the Legislature under the Indian Constitution *cannot* delegate the essential functions which have been entrusted to it by the Constitution.

- (i) The essential legislative functions are the determination of the legislative policy and its formulation. In other words, the legislature *cannot* delegate to another agency, the exercise of its judgment on the questions as to what the law should be.
- (ii) The power to modify an Act in its essential particulars (so as to involve a change of policy) is also an essential legislative function.

”To alter the essential character of an Act or to change it in material particulars is to legislate, and that, namely, the power to legislate, all authorities are agreed, *cannot* be delegated by a Legislature which is ***not*** unfettered.”

It follows that the conferment of the power on the Executive to modify an Act without any limitation on the power to modify constitutes an unconstitutional delegation of legislative function, for, in making modifications, the whole aspect of an Act or a section may be changed.

When Parliament can legislate with respect to matters in the State List or Concurrent List (Arts. 248-253)

Articles 248 to 253 of the Constitution lay down the *five important circumstances* in which Parliament *can* legislate with respect to matters *not* contained in the Union List.

1. Residuary powers of legislation (Art. 248)

Parliament has *exclusive* power to make any law with respect to any matter *not* enumerated in the Concurrent List or the State List. It is clear from Article 248, that *all residuary powers of legislation remain with Parliament*.

The three Lists show that the enumeration of items of these lists is perhaps the most elaborate and exhaustive enumeration contained in any federal constitution in the world. Therefore, occasions to resort to the ”residuary” Article would be comparatively rare. Yet, as it is beyond the wit of man to anticipate all matters of future legislation, *residuary powers of legislation* are vested in the Parliament by the Art 248.

2. National interest (Art. 249)

The *second case* is one where it is necessary in the *national interest* that Parliament should so act. Article 249 governs such a case. It lays down as follows

If the Council of States *declares by a resolution* (supported by *not less than two-thirds* of the members present and

voting) that it *is necessary or expedient in the national interest that Parliament should make laws* with respect to any matter enumerated in the *State List* specified in the resolution, it shall be lawful for Parliament to make laws for the whole or any part of the territory of India with respect to the matter, while the resolution remains in force. Such a resolution remains in force for *one year* only.

However, Parliament may pass a *further resolution* extending the continuance of the earlier resolution for a further period of one year from the date on which the earlier resolution would have otherwise ceased to be in force. It will be seen that this Article confers power on Parliament to legislate with respect to a matter in the *State list* in the *national interest*, upon a *resolution* passed by the Council of States backed by *two-thirds* of the members present and voting.

Under this Article, Parliament can legislate when a subject becomes a matter of *national* concern as distinguished from *provincial* concern, though the subject belongs to the *State List*, provided a resolution is passed by a two-third majority in favour of such exercise of power *by the Council of States*.

It is to be noted that this power can be exercised by the Council of States, *not only in times of emergency or national crisis, but also in normal times*. The only saving grace is that two-thirds of the members of the Council of States must vote on such a resolution. Now, the Council of States consists of representatives of the various States, and it is therefore expected that the interests of the State would be duly protected.

3. During Proclamation of Emergency (Art. 250)

Thirdly, while a *Proclamation of Emergency* is in operation, Parliament has the power to make laws for the whole or any part of the territory of India with respect to *any of* the matters enumerated in the *State List*. It will be noted that this Article provides that, during the Proclamation of Emergency, the Union Parliament shall have the powers of the Legislature of a Unitary State, in order that it may adequately deal with the situation.

4. By consent of State (Art. 252)

Fourthly, Parliament can legislate for two or more States *by their consent*. It is provided that if it appears to the Legislature of two or more States to be desirable that any of the matters with respect to which Parliament has no power to make laws (except as provided in Arts. 249 and 250 above) should be regulated by Parliament, and if resolutions to that effect are passed by all the Houses of the legislatures of such States, it becomes lawful for parliament to pass laws for regulating those matters in such States..

However, such an Act passed by Parliament can be amended or repealed *only by another Act of Parliament and not by an Act of the State Legislature concerned*. While Article 263 provides for the creation of an Inter-State Council for effecting co-ordination between the States in matters of common interest, the present Article provides the legislative means to attain that object.

5. International agreement (Art. 253)

Lastly, Parliament has the power to make any law for the whole or any part of the territory of India, *for implementing any treaty, agreement or convention with any other country* or any decision made at any *international conference*, association or other body.

Provisions for inconsistency between Union laws and State laws (Arts. 251 & 254)

Arts. 251 and 254 declare the principle that when a State law *conflicts* with the law made by Parliament, the *latter* shall prevail. Thus, it is provided that if any provision of law made by the Legislature of a State is *repugnant* to any provision of a law made by *Parliament, the law made by Parliament*, (whether passed *before or after* the law made by the Legislature of such State) *shall prevail*, and the law made by the Legislature of the State shall, to the extent of the repugnance, be *void*.

Where a law made by the Legislature of a State with respect **to** one of the matters enumerated in the *Concurrent List* contains any provisions repugnant to the provisions of *an* earlier law made by Parliament or an existing law with

respect to the matter, then, the law so made by the Legislature of such State shall, if it has been reserved for the consideration of the President and has received his assent, prevail in that State.

However, this provision does *not* prevent Parliament from enacting, at any time, any law with respect to the same matter, including a law adding to, amending, varying or repealing the law so made by the Legislature of the State. [Art. 254(2)].

Article 254 provides that, in certain cases, when a Legislature legislates beyond the power given to it under the Seventh Schedule, such law, to the extent of the repugnance, is *void*. However, it must be noted that when a legislation is made, it may have some provisions which incidentally fall beyond the list of its powers. In such cases, the validity of the law will be decided on the basis of the doctrines discussed below.

The Doctrine of Pith and Substance

When the legislative powers of the Union and the States are divided in mutually exclusive lists, it is possible that a question may arise in practice as to whether a law purporting to be made under an entry in one list, falls *in fact* within an entry in another list, over which such legislature has no power to make laws.

To answer such questions, the Privy Council evolved the *doctrine of pith and substance*, which is an important feature of the Canadian Constitution. Under this doctrine, one must see the *pith and substance*—or the true nature and character—of the legislation. As the Supreme Court explained, if an Act falls *substantially* within the powers expressly conferred upon a legislature, such Act is *not invalid merely because* it *incidentally* touches or encroaches on matters which have been assigned to another legislature

Therefore, when the *vires* of a law is challenged, the encroachment **must** be looked at as an *organic whole*, and *not* as a mere collection of sections from different parts to such Act. If the impugned Act is *substantially* within the legislative competence of the legislature, it *cannot* be set aside.

This doctrine was first applied in India by the Privy Council in the *Central Provinces Case*, and has been followed by the Supreme Court in several subsequent cases.

In *Prafulla Kumar Mukherjee v The Bank of Commerce Ltd.*, (A I R. 1947 P.C. 60), it was strongly argued that though the doctrine of pith and substance may be applicable to Canada and Australia, it *cannot* be applied in India, where the framers of the Constitution had foreseen the difficulties that might arise, and had therefore provided *three*, and *not two*, legislative lists. The Privy Council, however, did *not* accept this argument. This case has *been* repeatedly followed by the Supreme Court, *e.g.*, in *State of Bombay v. Jethabhai*, (1951 S.C.R 51) and in *State of Bombay v. F.N. Bulsara* (AIR. 1951 S.C. 318).

In *State of Bombay v. F.N. Bulsara* (referred to above), the Supreme Court explained the doctrine in the following words

“It is well-settled that the validity of an Act is *not* affected if it incidentally trenches on matters outside the authorised field, and therefore, it is necessary to inquire in each case, what is the *pith and substance* of the Act impugned. If the Act, when so viewed, substantially falls within the powers expressly conferred upon the Legislature which enacted it, then it *cannot* be held to be invalid *merely because* it incidentally encroached on matters which have been assigned to another Legislature.”

The Doctrine of Incidental Encroachment

The *doctrine of incidental encroachment* is a corollary of the above doctrine, and it lays down that once a law falls *in pith and substance* within a legislative entry, *any incidental encroachment* on an entry in another list does *not*, of itself, make it invalid. Thus, in *Prafulla Kumar's case* (above), it was *held* that, since the law fell in pith and substance within an entry in List II, it was valid *even though* it incidentally touched another entry contained in List I.

The Doctrine of Severability

Whenever two interpretations of a statute are possible, one of which would make the law *valid*, and the other *void*, the former is always to be preferred. However, *if this is not possible*, the Court will have to decide whether the law is bad as a whole or whether the part which is bad can be *severed* (i.e. separated) from the rest and declared void, leaving the other parts of the statute intact.

Thus, it is *only if* the valid and the invalid provisions are *separate and distinct* that this doctrine can be applied, *provided further* that after striking out the invalid portions, what remains is itself a complete code independent of the rest (which has been struck down). It follows that if the valid and invalid provisions are so inextricably mixed up that they *cannot* be separated, *the whole statute* will be declared *void*.

It has been *held* that where the valid and invalid provisions are joined together by using words "*and*" or "*or*", and the enforcement of the valid provision is *not* dependent on the enforcement of the invalid provision, i.e. *if* the valid provision *can* be enforced even if the invalid one *cannot* be enforced, the two provisions *can* be said to be *severable*. In such a case, only the valid provision will be upheld and given effect to. (*State of Bihar v. Kameshwar Singh*, AIR 1952, S.C. 252)

If, however, one does *not* find several provisions joined together, but only one provision covering *valid* as well as *invalid* objects, which *cannot* be separated without altering the language, and which is capable of being used for a legal purpose as well as for an illegal purpose, *it is totally invalid*, and will *not* be allowed to be used even for the legal purpose. (*Superintendent, Central Prison v. Ram Manohar Lohia*, AIR 1960, S.C. 633)

In *Ramesh Thappar v. State of Madras* (AIR 1950 S.C. 124), the Supreme Court observed as under :

"Where a law purports to authorise the imposition of restrictions on a fundamental right in language wide enough to cover restrictions both within and without the limits of constitutionally permissible legislative action affecting such right, it is *not* possible to uphold it, even so far as it may be applied within the constitutional limits, as it is *not* severable."

The Doctrine of Colourable Legislation

When a legislature lacks legislative competence in a particular field, it may frame its statute so as to make it appear that the statute falls within one of the entries it has power to legislate upon. This is called *colourable legislation*, which means that, while the statute *pretends* to be on a subject falling within the competence of the legislature, it is *in reality* a law **on a** prohibited field. Such a law will be examined by the Courts, and if found to be an instance of colourable legislation, will be struck down as *void*.

In a federal Constitution, the transgression of its limits by a legislature, central or state, may in some cases be *open, direct and overt*. In other cases, it may be *disguised, indirect and covert*, in the shape of *colourable legislation*.

Commenting on this doctrine, the Supreme Court observed "The whole doctrine of colourable legislation is based upon the maxim that **you cannot** do indirectly what you *cannot* do directly." (*K.C. Gajapati Narayan Deo v. State of Orissa*, A.I.R. 1953 S.C. 375)

In another case, the Supreme Court explained this doctrine, **and** observed that a question often arises as to whether a particular legislature has transgressed the limits of its constitutional powers. Now, such transgression may be direct or manifest, but it may also be disguised, covert and indirect, in which latter case, the term *colourable legislation* is applied. (*Gullapalli Nageswara Rao v. A.P.S.R.T.C.* A.I.R 1959 SC. 308)

Before applying the test of colourable legislation, the *test of pith and substance* (discussed above) should be applied. If the legislature is competent to pass a law and it *incidentally* encroaches on the sphere of another legislature, the law will *not* be *invalid*. But if a legislature which lacks competence purports to act under a relevant entry, with a view to assuming legislative competence, it would be a case of colourable legislation, and the law would be declared to be *invalid*. Thus, **the doctrine of** colourable legislation looks to the *competence* of a legislature, and *not* to its *motives*.

In other words, if a legislature is competent to make a particular law, **its motive** in enacting it is *not relevant*. (**K. C.**

Gajapati Narayan Deo v State of Orissa (AIR 1954 S. C. 375)

In such a case, *i.e.* when the legislature is competent to make the law, the fact that it may operate harshly on some persons is also *not relevant*. (*State of Bihar v. Maharaja Kameshwar Singh*, AIR 1952 S C 252)

Requirements as to recommendation and previous sanctions to be regarded as matters of procedure only (Art. 255)

No Act of Parliament or of the Legislature of a State, and no provision in any such Act is to be invalid by reason *only that* **some** recommendation or previous sanction required by this Constitution **was not** given, if assent to that Act was given —

- (a) where the recommendation required was that of the Governor, —either by the Governor or by the President;
- (b) where the recommendation required was that of the *Rajpramukh*.—either by the *Rajpramukh* or by the President;
- (c) where the recommendation or previous sanction required was that of the President, — by the President.

Power of Parliament to provide for the establishment of certain additional courts (Arts. 247)

Art. 247 provides that Parliament may, by law, provide for the establishment of any additional courts for the better administration of laws made by Parliament or of any existing laws with respect to a matter enumerated in the Union List.

Summary of the law as to distribution of legislative power between Parliament and State Legislature (Arts. 245-255)

The Parliament can make laws for the *whole* or *any part* of the territory of *India*. The Legislature of a State can make laws for the *whole* or *any part* of the *State*. In general, Parliament has powers to make laws with respect to subjects enumerated in the Union List (List I) The State Legislatures are empowered to make laws on subjects enumerated in the State List (List II). In addition to the Union List and State List, there is a *third List* called the *Concurrent List* (List III). With respect to subjects enumerated in the Concurrent List, both the *Parliament and the State Legislatures may legislate*. The Parliament, in addition to Lists I and III, has the following additional legislative authority :

1. To legislate on any matters *not* enumerated in any List. (Art. 248) 2. To legislate on matters enumerated in the State List, *if authorised by the Council of States* by a resolution passed by *not less than 2/3rd* of the members present and voting. (Art. 249)
3. To legislate on any of the matters enumerated in the State List when a Proclamation of Emergency is in force. (Art, 250)
4. To legislate on a subject enumerated in the State List, if requested to do so, by a resolution passed by all the Houses of the Legislature of a State (or States). (Art. 242)
5. To legislate for the whole or any part of the territory of India for giving effect to an *international agreement*. (Art. 263)

2. ADMINISTRATIVE RELATIONS (Ch. II : Arts. 256-263)

The following *three* topics are examined here:

- (1) Executive power of State, how exercised
- (2) Disputes relating to inter-State waters
- (3) Co-ordination between States

(1) Executive Power Of State, How Exercised (Arts. 256-257 & 261)

Articles 256 and 257 lay down as to *how* the executive power of a State is to be exercised.

The executive power of every State is to be exercised so as —

- (i) *To ensure compliance with the laws made by Parliament* and any existing laws which apply in that State. Further, the executive power of the Union extends to the giving of such directions to a State as may appear to the Government of India to be *necessary* for that purpose. (Art. 256)

This Article makes it the constitutional duty of every State to enforce Union laws as are applicable in that State. Not only that, the Executive of the Union also has the power to give directions to the State Government to ensure the due compliance with the above duty, *viz.*, the enforcement of the Union laws.

(ii) *Not to impede or prejudice the exercise of the executive power of the Union.* The executive power of the Union extends to the giving of all necessary directions to a State, including directions as to the (i) construction and maintenance of means of communication of national or military importance: *and (ii)* measures to be taken for the protection of the railways within the State. All costs incurred in the carrying out of these two directions are to be paid by the Government of India to the State. (Art. 257) Article 261 then proceeds to lay down something in the nature of a '*directive principle*' so far as judicial decisions of the Union and State Courts are concerned. It provides that full *faith and credit* is to be given throughout India to public acts, records and judicial proceedings of the Union and of every State and *final* judgments or orders passed by civil Courts in any part of the territory of India shall be *capable of execution anywhere within that territory*.

Power of the Union to confer powers, etc., on States In certain cases (Art. 258)

(1) Notwithstanding anything in this Constitution, the President is empowered, with the consent of the Government of a State, to entrust either conditionally or unconditionally to that Government or to its officers, functions in relation to any matter to which the executive power of the Union extends.

(2) A law made by Parliament which applies in any State may, notwithstanding that it relates to a matter with respect to which the Legislature of the State has no power to make laws, confer powers **and** impose duties, or authorise the conferring of powers **and** the imposition of duties, upon the State officers and authorities thereof.

(3) Where by virtue of this Article, powers and duties have **been** conferred or imposed upon a State, or officers or authorities thereof, the Government of India must pay to the State, such sum as may be agreed, or in default of agreement, as may be determined by an arbitrator appointed by the Chief Justice of India, in respect of any extra cost of administration incurred by the State in connection with the exercise of those powers and duties.

Powers of the States to entrust function to the Union (Art. 258A)

Notwithstanding anything in this Constitution, the Governor of a State may, with the consent of the Government of India, entrust, either conditionally or unconditionally, to that Government or to its officers, functions in relation to any matter to which the executive power of the State extends.

(2) Disputes Relating To Inter-state Waters (Art. 262)

Art. 262 aims at empowering Parliament to enact laws in order to provide for the adjudication of disputes relating to waters of inter-State rivers and valleys. It is designed to empower Parliament to enact provisions barring the jurisdiction of the Supreme Court or other Courts in respect of such disputes, by providing as follows:

Parliament may, by law, provide for the adjudication of any dispute or complaint with respect to the use, distribution or control of the waters of, or in, *any inter-State* river or valley. It may also provide that neither the Supreme Court nor any other Court shall exercise jurisdiction in respect of any such dispute or complaint.

(3) Co-ordination between States (Arts. 262-263)

Provision with respect to an Inter-State Council (Art. 263)

If at any time, it appears to the President that the public interest would be served by the establishment of a Council, charged with the duty of — (a) *inquiring* into and advising upon disputes which may have arisen between any States; or

(b) *investing and discussing* subjects in which some or all of the states or the Union and one or more of the States, have a common interest; or (c) *making recommendations* upon any such subject and in particular, recommendations, for the better co-ordination of policy and action with respect to that subject, —

the President may by order, establish such a Council and define the nature of the duties to be performed by it and its organisation and procedure.

OBJECT OF ART. 263. — The *object* of Art. 263 is *threefold, viz.*, to co-ordinate State activities, to promote inter-State co-operation *and* to resolve inter-State disputes. It may be noted that the functions of an Inter State Council are *advisory* only.

Inter-State Comity

Though a federal Constitution involves the sovereignty of the States within their respective territorial limits, it is *not* possible to remain in complete isolation from each other, and the very exercise of internal sovereignty by a State would require its recognition by, and co-operation of, the other States of the federation. All federal Constitutions, therefore, lay down certain rules of comity which the States are required to observe in their treatment of one another. These rules and agencies relate to such matters as —

- (a) Recognition of the public acts, records and proceedings of each State in every other State
- (b) Extra-judicial settlement of disputes
- (c) Co-ordination between States
- (d) Freedom of inter-State trade, commerce and intercourse.

Each of the above will now be briefly discussed.

(a) Recognition of public acts, etc.

Since the jurisdiction of each State is confined to its own territory [Art. 245(1)], the acts and records of one State might *not* have been recognised in another State, without a provision to compel such recognition. As stated earlier, the Constitution, therefore, provides as follows

”Full faith and credit shall be given throughout the territory of India to public acts, records and judicial proceedings of the Union and every State.” [Art. 261(1)]

This means that duly authenticated copies of statutes or statutory instruments, judgments or orders of one State are to be given recognition in another State in the same manner as the statutes, *etc.*, of the latter State itself Parliament has the power to legislate as to the mode of proof of such acts and records or the effects thereof.

(b) Extra-judicial settlement of disputes

Since the States in every federation normally act as independent units in the exercise of their internal sovereignty, conflicts of interest between the units are likely to arise. Hence, in order to maintain the strength of the Union, it is essential that there should be adequate provisions for judicial determination of disputes between the units, and for the settlement of disputes by extra-judicial bodies, as well as their prevention by consultation and joint action. While Art. 131 provides for the judicial determination of disputes between States, by vesting the Supreme Court with exclusive jurisdiction in the matter. Art 262 provides for the adjudication of one class of such disputes by an extra-judicial Tribunal. while Art 263 provides for the prevention of inter-State disputes by investigation and recommendation by an administrative body. Thus —

(i) Parliament may, by law, provide for the adjudication of any dispute or complaint with respect to the use, distribution or control of the water of, or in, inter-State rivers or valleys, and also provide for the exclusion of the jurisdiction of all Courts, including the Supreme Court, to entertain such disputes, (Art. 262)

In exercise of this power, Parliament has enacted the Inter-State Water Disputes Act, 1956, providing for the constitution of an *ad hoc* Tribunal for the adjudication of any dispute arising between two or more States with regard to the waters of any inter-State river or river valley.

(ii) The President is empowered to establish an Inter-State Council for enquiring into and advising upon inter-State dispute, if at any time it appears to him that the public interests would be served by the establishment of such Council. (Art. 263)

(c) Co-ordination between States

The power of the President to set up Inter-State Council may be exercised, *not only* for advising upon disputes, *but also* for the purpose of investigating and discussing subjects in which some or all of the States or the Union and one or more of the States have a common interest.

In exercise of this power, the President has constituted the Central Council of Health, the Central Council of Local Self-Government and other similar bodies.

In this connection, it may also be noted that advisory bodies to advise on inter-State matter have also been established under statutory authority.

ZONAL COUNCILS. — Zonal Councils have been established by the States Re-organisation Act 1956, to advise on matters of common interest to each of the five zones into which the territory of India has been divided.

It may be noted that Zonal Councils do *not* owe their origin to the Constitution, but to an Act of Parliament, having been introduced by the States Re-organisation Act as a part of the scheme of reorganisation of the States, with a view to securing co-operation and co-ordination between the States, the Union Territories and the Union particularly in respect of economic and social development.

The five Zones constituted for this purpose are —

- (i) The Central Zone, comprising the States of Uttar Pradesh and Madhya Pradesh.
- (ii) The Northern Zone, comprising the States of Punjab, Rajasthan, Jammu and Kashmir, and the Union Territories of Delhi and Himachal Pradesh.
- (iii) The Eastern Zone, comprising the States of Bihar, West Bengal, Orissa and Assam, and the Union Territories of Manipur and Tripura.
- (iv) The Western Zone, comprising the States of Maharashtra, Gujarat and Karnataka.
- (v) The Southern Zone, comprising the States of Andhra Pradesh, Tamil Nadu and Kerala.

Each Zonal Council consists of the Chief Minister and two other Ministers of each of the States in the zone and the Administrator in the case of a Union Territory. There is also a provision for holding joint meetings of two or more Zonal Councils. The Union Home Minister has been nominated to be the common Chairman of all the Zonal Councils.

The Zonal Councils discuss matters of common concern to the States and Territories comprised in each Zone, matters arising out of the reorganisation of States and the like, and give advice to the Government of the States concerned, as well as to the Government of India.

(d) Freedom of inter-State trade, commerce and Intercourse.

(This topic is discussed in Chapter 13.)

FINANCE, PROPERTY, CONTRACTS AND SUITS

(Arts. 265-300A)

The following *four topics* are discussed in this Chapter :

- I. Finance (Arts. 265-291)
- II. Borrowing (Arts. 292 & 293)
- III. Vesting of property, and liability to sue or be sued on contracts (Arts. 294-300)
- IV. Right to property (Art. 300A)

I. Finance (Arts. 265-291)

The following *five sub-topics* fall under this heading

- (1) General provisions as to taxation
- (2) Law as regards the Consolidated and Contingency Funds.
- (3) Distribution of revenues between the Union and the States.
- (4) The Finance Commission
- (5) Miscellaneous financial provisions

(1) General Propositions As To Taxation (Arts. 265 & 285-289)

The *four basic propositions* relating to taxation are as follows

1. No tax can be *levied or collected except by authority of law*. (Art. 265)

It will be seen that Art. 265 embodies the English principle of 'no taxation without representation'. It is to be noted that, *not only* the *levy*, **but also** *collection* of a tax, must be under the authority of some law, the provisions for making which are to be found in Arts 110, 117, 123, 203 and 213. The *levy or collection* of tax, therefore, *cannot* be done by **mere** resolutions of the Houses of the Legislature or by any executive action.

2. All the property and income of a *State* is *exempt* from Union taxation (Art. 289) and the *property* of the *Union* is *exempt* from all *taxes*. (Art. 285)

3. No law of a State can impose, or authorise the imposition of, a tax on the sale or purchase of goods, where such sale or purchase takes place (a) outside the State, or (b) in the course of the import of the goods into, or export of goods out of, the territory of India. [Art. 286(1)]

Parliament may, by law, formulate principles for determining when a sale or purchase of goods takes place in cases where such sale or purchase takes place outside the State, or in case of import (or export) into (or out of) India [Art. 286(2)]. Any law of a State shall, in so far as it imposes, or authorises the imposition of, a tax on the sale or purchase of goods declared by Parliament by law to be of special importance in inter-State trade or commerce, be subject to such restrictions and conditions in regard to the system of levy, rates and other incidents of the tax as Parliament may by law specify. [Art. 286(3)]

The word 'sale' is used in Art. 286 of the Constitution of India in the sense of transaction of sale, and what is emphasised by the Article is *not* the aspect of passing of property, *but* the aspect of *sale* which consists of various ingredients. Art. 286 puts various restrictions upon the competence of State Legislature to impose tax on the sale or purchase of goods. The first restriction is that it *cannot* tax a sale or purchase which takes place outside the State, where goods are delivered for consumption outside the State. Further, it *cannot* levy any tax even though the goods be inside the State if the sale or purchase is in the course of import or export out of the territory of India. Finally, it *cannot* tax sale or purchase even though it may have taken place inside the State, if the sale or purchase is in the course of inter-State trade or commerce.

4. Government is also *exempt* from paying all taxes on *electricity* consumed by it. (Art. 287)

(2) Law As Regards Consolidated And Contingency Funds (Arts. 266-267, 283-284, 289 & 291)

A. Consolidated Fund of India or of a State (Arts. 266 & 291)

It may be noted that the Union as well as each of the States have a Fund. All the resources of the Union [as specified in clause (1) of Article 266] are to be placed into this reservoir, viz., the Consolidated Fund of India. while the resources of a State are to be placed into a similar Fund, known as the Consolidated Fund of that State. No money can be used out of this Fund, except in accordance with a valid law made by the concerned legislature. Subject to the above, the operation of the fund is to be regulated by legislation. (Art. 283)

Article 266 can be summarised thus :

All revenues received, all loans raised by the issue of treasury bills, loans or ways and means advances and all moneys received by the Government of India or by the Government of State in repayment of loans form one consolidated fund called '*the Consolidated Fund of India*', or '*Consolidated Fund of the State*', as the case may be. Moreover, *no money* out of such Consolidated Funds can be *appropriated* except in accordance with *law* and for the *purpose* and in the *manner* provided in this Constitution. [Art. 266(1)]

All *other* public money received by or on behalf of the Government of India or the Government of a State is to be credited to the *public account of India* or the *public account of the State*, as the case may be. [Art. 266(2)]

B. Contingency Fund of India or a State (Art. 267)

The necessity of a Contingency Fund arises on account of the fact that, under the Constitution, every item of expenditure requires the prior sanction of the Parliament or the State Legislature, as the case may be. Sometimes, an unexpected demand has to be met, and there may be no time to get the sanction of the Parliament or the State Legislature. Consequently, Article 267 provides that Parliament may, by law, establish a Contingency Fund in the nature of an imprest to be entitled the Contingency Fund of India, into which is paid, from time to time, such sums as may be determined by law. This Fund is placed at the disposal of the President, to enable advances to be made by him out of such Fund for the purposes of meeting unforeseen expenditure, pending authorisation of such expenditures by Parliament by law under Article 115 or 116. The same Article provides for the creation of the Contingency Fund of the State by a State Legislature. The Fund is to be at the disposal of the Governor of the State

This Article authorises the creation by Parliament of a Contingency Fund for the Union (or by the Legislature of a State for the State). The amount of the Fund will be determined by law made by the Parliament (or the State Legislature. as the case may be) from time to time. The Fund will be at the disposal of the Executive. to enable advances to be made for the purpose of meeting unforeseen expenditure. pending authorisation of such expenditure by the Legislature as supplementary, additional, exceptional grants or the like.

Custody of Consolidated Funds, etc. (Arts. 283-284)

Arts. 283 and 284 deal with the custody of public moneys, funds, etc., as follows .

The custody of Consolidated Funds. Contingency Funds and money credited to the public accounts shall be regulated by rules made by the President or the Governor of a State, as the case may be (Art 283)

The custody of *suitor's deposits*, and the other money received by public servants and Courts, shall be with the *public account* of India or a State, as the case may be (Art 284)

(3) Distribution Of Revenues Between The Union And The States (Arts. 269-281)

Arts. 269 to 281 deals with the taxes which are to be *levied* and *divided* between the Union and the States.

1. Duties levied by the Union, but collected and appropriated by the States (Arts. 268)

Such stamp duties and such duties of excise on medicinal and toilet preparations as are mentioned in the Union List

can be levied by the Government of India, but are to be collected : (1) in case where such duties are leviable within any Union territory, by the Government of India; *and* (2) in other cases, by the State within which such duties are respectively leviable. The proceeds of such duties do *not* form the part of the Consolidated Fund of India, but are to be assigned to the State.

2. Duties and taxes levied by the *Union*, but assigned to the *States* (Art. 269)

S. 269 provides that taxes on the sales and purchase of goods and taxes on the consignment of goods are to be levied and collected by the Government of India, but are to be assigned to the States.

The net proceeds in any financial year of any such duty or tax, except in so far as those proceeds represent proceed attributable to Union territories, do *not* form part of the Consolidated Fund of India, *but* are to be assigned to the States within which that duty or tax is leviable in that year. and are to be distributed among those States in accordance with such principles of distribution as may be formulated by Parliament by law.

Parliament may, by law, formulate principles for determining when a sale or purchase of goods takes place in the course of inter-State trade or commerce.

3. Taxes levied by *Union*, but distributed between *Union* and *States* (Arts. 270)

S. 270 provides that all taxes and duties referred to in the Union List, *except* —

- (i) the duties and taxes referred to in S. 268 and S. 269;
- (ii) the surcharge on taxes and duties referred to in S. 271; *and*
- (iii) any cess levied for specific purposes by any law made by Parliament, —

are to be levied and collected by the Government of India, and distributed between the Union and the States in the prescribed manner.

Such percentage, as may be prescribed, of the net proceeds in any financial year is *not* to form part of the Consolidated Fund of India, but is to be assigned to the States within which that tax is leviable in that year, and is to be distributed among those States in such manner or form, and at such times as may be prescribed.

Procedure as to Bill amending, imposing or varying any tax (Art 274)

Under Art. 274, any Bill or amendment which —

- (i) imposes or varies any *tax or duty* in which States are interested, *or* (ii) which affects the *principles* on which moneys are distributable to States, *or*
- (iii) which imposes a surcharge for the purpose of the Union, —

can be introduced or moved in either House of Parliament, *only on the recommendation of the President.*

4. Grant from the Union to States (Art. 275)

Art. 275 empowers the Parliament to **aid needy States by grants** known as *grants-in-aid* given to such States. It provides that such sums, as Parliament (or the President) may by law provide, are to be charged on the Consolidated Fund of India in each year as grants-in-aid of the revenues of such States, as Parliament may determine to be in need of assistance, and different sums may be fixed for different States. But after a Finance Commission has been constituted, no order can be made under this clause by the President, except after considering the recommendations of the Finance Commission.

The Union or a State may make any grants for any public purpose, notwithstanding that the purpose is *not* one with respect to which Parliament or the Legislature of the State. as the case may be, may make laws. (Art. 282)

(4) THE FINANCE COMMISSION (Arts. 280-281)

By whom constituted, and its composition [Art. 280(1)]

Within *two* years from the commencement of this Constitution, and thereafter at the expiration of every *fifth* year, the President must constitute a Finance Commission, *consisting* of a *Chairman* and *four* other members to be appointed by the President.

Its duties [Art. 280(3)]

The duties of the Commission are to *make recommendations* to the President *as to—*

(a) the *distribution* between the Union and the States *of* the net proceeds of *taxes* to be divided between them *and* the *allocation* between the States of the respective shares of such proceeds;

(b) the *principles* which should govern the grants-in-aid of the revenue of the States out of the Consolidated Fund of India;

(c) the measures needed to augment the Consolidated Fund of a State to supplement the resources of the *Panchayats* in the State on the basis of the recommendations made by the Finance Commission,

(d) The measures needed to augment the Consolidated Fund of a State to supplement the resources of the *Municipalities* in the State on the basis of the recommendations made by the Finance Commission. *and*

(e) any *other matter* referred to the Commission by the President in the interests of sound finance.

The President must place the recommendations of the Finance Commission before each House of Parliament (Art 281)

The *first* Finance Commission was constituted in 1951 with Shri Neogy as its Chairman. Subsequently, several such commissions have been constituted, and they have made useful recommendations, most of which have been implemented

Parliament has also passed the *Finance (Miscellaneous Provisions) Act, 1951*, which provides that the *Chairman* of the Finance Commission is to be a person who has experience in public affairs. The *four other persons* are to be selected from amongst persons who .

(a) are, or have been, or are qualified to be appointed as Judges of a High Court; *or*

(b) have special knowledge of the finance and accounts of Government; *or*

(c) have had wide experience in financial matters and in administration; *or*

(d) have special knowledge of economics.

The above Act also empowers the Finance Commission to require any person to furnish information on such matters as, in the opinion of the Commission, may be useful for, or relevant to, any matter under its consideration.

The above provisions regarding the constitution and functions of the Finance Commission form a *salutary feature of the Indian Constitution*. The proper working of such a Commission can mitigate the rigours of centralisation in a quasi-federal country like India. However, it may be noted that the recommendations of the Finance Commission are *not binding* on the President, and one can only hope that such recommendations would be seriously viewed and considered by the executive, so that a healthy convention is established in the country.

(5) Miscellaneous Financial Provisions (Arts. 282-290A)

Expenditure defrayable by the Union or a State out of its revenues (Art. 282)

The Union or a State may make any grants for any public purpose, notwithstanding that the purpose is *not* one with respect to which Parliament or the Legislature of the State, as the case may be, may make laws.

Custody, etc., of Consolidated Funds, Contingency Funds and moneys credited to the public accounts (Art. 283)

(1) The custody of the Consolidated Fund of India and the Contingency Fund of India, the payment of moneys into such Funds, the withdrawal of moneys therefrom, the custody of public moneys other than those credited to such Funds received by or on behalf of the Government of India, their payment into the public account of India and the withdrawal of moneys from such account, and all other matters connected with or ancillary to matters aforesaid, are to be regulated by law made by Parliament, and until provisions in that behalf are so made, by rules made by the President.

(2) The custody of the Consolidated Fund of a State and the Contingency Fund of a State, the payment of moneys into such Funds, the withdrawal of moneys other than those credited to such Funds received by or on behalf of the Government of the State, their payment into the public account of the State and the withdrawal of moneys from such account and all other matters connected with or ancillary to matters aforesaid, are to be regulated by law made by the Legislature of the State, and until provision in that behalf is so made, by rules, made by the Governor of the State.

Custody of Suitor's deposits and other money received by public servants and Courts (Art. 284)

All money received by or deposited with —

(a) any officer employed in connection with the affairs of the Union or of a State in his capacity as such, other than revenues or public moneys raised or received by the Government of India **or** the Government of the State, as the case may be; *or*

(b) any Court within the territory of India to the credit of **any cause**, matter, account or persons, -

are to be paid into the public account of India or the public account of the State, as the case may be.

Exemption of property of the Union from State taxation (Art. 285)

(1) The property of the Union is save in so far as Parliament may by law otherwise provide, exempt from all taxes imposed by a State or by any authority within a State.

(2) However, until Parliament by law otherwise provides, any authority within a State may levy any tax on any property of the Union to which such property was immediately before the commencement of this Constitution liable or treated as liable, so long as that tax continues to be levied in that State

Exemption from taxes on electricity (Art. 287)

Save in so far Parliament may by law otherwise **provide, no law** of a State can impose, or authorise the imposition of, a tax on the connection or sale of electricity (whether produced by a Government or other persons) which is –
(a) consumed by the Government of India. or sold to the Government of India. for consumption by that Government.
or

(b) consumed in the construction, maintenance, or operation of **any** railway by the Government of India or a railway company operating that railway, or sold to that Government or any such railway company for consumption in the construction, maintenance or operation of any railway.

Further, any such law imposing, or authorising the imposition of, **a tax** on the sale of electricity must secure that the price of electricity sold to the Government of India for consumption by the Government, or to any such railway company as aforesaid for consumption in the constructions, maintenance or operation of any railway, is less by **the** amount of the tax than the price charged to other consumers of **a** substantial quantity of electricity

Exemption from taxation by States in respect of water or electricity In certain cases (Art. 288)

(1) Save in so far as the Parliament may by order otherwise provide, no law of a State in force immediately before the commencement of the Constitution can impose. or authorise the imposition of, a tax in respect of any water or electricity stored, generated, consumed, distributed or sold by any authority established, by any existing law or any

law made by Parliament for regulating or developing any inter-State river or river-valley.

(2) The Legislature of a State may by law impose, or authorise **the** imposition of, any such tax as is mentioned in **clause (1) above**, but no such law can have any effect, unless it has, after having been reserved for the consideration of the President, received his assent. If any such law provides for the fixation of the rates and other incidents of such tax by means of rules or orders to be made under the law by any authority, the law must provide for the previous consent of the President being obtained to the making of any such rule or order.

Exemption of property and income of a State from Union taxation (Art 289)

(1) The property and income of a State are exempt from Union taxation.

(2) Nothing in clause (1) above prevents the Union from imposing, or authorising the imposition of, any tax to such extent, if any, as Parliament may, by law, provide in respect of a trade or business of any kind carried on by, or on behalf of, the Government of a State, or any operations connected therewith, or any properly used or occupied for the purposes of such trade or business, or any income accruing or arising in connection therewith.

(3) Nothing in clause (2) above applies to any trade or business, or to any class of trade or business which Parliament may by law declare to be incidental to the ordinary functions of the Government.

Annual payment to certain *Devaswom* Funds (Art. 290A)

A sum of forty-six lakhs and fifty thousand rupees are to be charged on, and paid out of, the Consolidated Fund of the State of Kerala every year to the Travancore *Devaswom* Fund. Likewise, a sum of thirteen lakhs and fifty thousand rupees are to be charged on, and paid out of, the Consolidated Fund of the State of Tamil Nadu every year to the *Devaswom* Fund established in that State for the maintenance of Hindu temples and shrines in the territories transferred to that State on the 1st day of November, 1965, from the erstwhile State of Travancore-Cochin.

II. Borrowing (Arts. 292-293)

Art. 292 deals with the power of the *Union* to borrow, and Art. 293 deals with borrowing by *States*.

(I) Power of Union to borrow (Art. 292)

The executive power of the *Union* extends to borrowing, upon the *security of the Consolidated Fund of India*, and to the giving of guarantees within such limits as may be fixed.

(ii) Power of States to borrow [Art. 293(1)]

The executive power of a *State* extends to borrowing *within* India, upon the security of the Consolidated Fund *of the State*, within limits fixed by the Legislature of such State, and to the giving of guarantees within such limits as may be so fixed.

(iii) Power of Union to make loans [Art. 293(2)]

The Government of India may make loans to any State, or **give** guarantees in respect of loans raised by any State, and any **sums** required for the purpose of making such loans is to be charged on **the** Consolidated Fund of India.

(iv) Power of States to raise loans [Art. 293(3)]

A *State cannot*, without the consent of the Government of India, raise any loan, if there is still outstanding, any part of a loan which has been made to the State by the Government of India or by its predecessor Government or in respect of which a guarantee has been given by the Government of India.

Vesting of property & liability to sue or be sued in contracts (Arts. 294 — 300)

(1) VESTING OF PROPERTY IN GOVERNMENT (Arts. 294-297)

All property and assets which vested in His Majesty for the purpose of the Government of the Dominion of India, and all property and assets which were vested in His Majesty for the purposes of Government of each Governor's Province, vest respectively in the Union and the corresponding State. All rights, liabilities and obligations of the Government of the Dominion of India and of the Government of each Governor's Province, whether arising out of any contract or otherwise, become the rights, liabilities and obligations respectively of the Government of India and the Government of each corresponding State, subject to the adjustment made, or to be made, by reason of the creation of the Dominion of Pakistan (Art. 294)

Similarly, all property and assets which were vested in any Indian State vest in the Union (Art 295)

So also, any property in India which, if this Constitution **had not** come into operation, would have accrued to His Majesty or to the Ruler of an Indian State by escheat or lapse, or as *bona vacantia*, for want of a rightful owner, vests, if it is property situate in a *State*, in such *State*, and in any *other* case, in the Union (Art. 296)

ESCHEAT. — *Escheat* takes place when a man dies intestate without heirs, leaving property

LAPSE. — Certain funds lapse to the Government if the rightful owners do *not* claim them within a certain period, e.g., Court deposits

BONA VACANT/A. — This expression means that there is no apparent rightful claimant to the property, in which case, the property accrues to the Government.

Likewise, all lands, minerals, and other things of value underlying the ocean within the territorial waters of India or the continental shelf of India or the exclusive economic Zone of India, vest in the Union and are to be held for the purposes of the Union (Art. 297). Moreover, the executive power of the Union and of each State extends to the carrying on of any trade or business, and to the acquisition, holding and disposal of property and making of contracts for any purpose.

However, the said executive power of the Union is, in so far as such trade or business or such purpose is *not* one with respect to which Parliament may make laws, subject in each State to legislation made by that State. Similarly, the said executive power of each State is, in for as such trade or business or such purpose is *not* one with respect to which the State Legislature may make laws, subject to legislation made by Parliament. (Art. 298)

The High Courts of Bombay and Madras had ruled that a State has the power to ban sale of lottery tickets of other States within the territory of that State. The Supreme Court has, however, *overruled these judgments*, and *held* that, under the Constitution, a State Government *cannot* impose a ban on the sale or distribution on lottery tickets of other States. (*H. Anraj v. State of Maharashtra*, A.I.R. 1984 S.C. 781)

(2) LIABILITY TO SUE OR TO BE SUED ON CONTRACTS, ETC.

(Arts. 299-300) All *contracts* made in the exercise of the executive power of the Union or of a State are to be made by the *President*, or by the Governor of the State, as the case may be. All such contracts and all assurances of property made in the exercise of that power are to be executed on behalf of the President or the Governor by such persons, and in such manner, as he may direct or authorise. [Art. 299(1)]

Neither the President nor the Governor is *personally* liable in respect of any contract or assurance made or executed for the purpose of this Constitution, nor is any person making or executing any such contract or assurance *on behalf of any of them*, *personally* liable in respect thereof. [Art 299(2)]

SUITS AND PROCEEDINGS

Article 300 provides as follows :

(1) The Government of India may *sue* or *be sued* by the name of the

Union of India, and the Government of a State may sue or be sued by the name of the State and may, subject to any provisions which may be made by Act of Parliament or of the Legislature of such State enacted by virtue of powers conferred by this Constitution, sue or be sued in relation to their respective affairs, in the like cases as the Dominion of India and the corresponding Provinces or the corresponding Indian States might have sued or been sued if this Constitution had *not* been enacted.

(2) If at the commencement of this Constitution, —

(a) any legal proceedings are pending to which the Dominion of India is a party, the Union of India is to be deemed to be substituted for the Dominion in those proceedings; *and*

(b) any legal proceedings are pending to which a Province or an Indian State is a party, the corresponding State is to be deemed to *be* substituted for the Province or the Indian **State** in those proceedings.

Article 300, dealing with the suits by or against Government, can be divided into the following *three* parts :

(1) The *first* part deals with *the* procedure to be followed when the Union of India or the Government of the State may sue or be sued against.

(2) The *second* part provides for the nature of the scope of such suits.

Further, it also provides that provisions may be made *on the subject by Act of Parliament or of the legislature of the States*.

(3) The *third* part deals with pending litigation at the commencement of the Constitution.

It may be noted that the second part of Article does not enumerate the nature of the causes of actions, but merely states that the State may be sued as a juristic personality in matters where a suit would lie against the Government, had the Constitution *not* been enacted.

CONTRACTS

It has been *held* that the contractual liability of the State under the Constitution is the same as that of an individual under the ordinary law of the Contract. [*P.C. Biswas v. Union of India*, A I.R 1956 Assam 78]

The liability of Government under a contract arises when the contract is properly executed, *i.e. it is in writing and complies with the necessary formalities*. However, in some cases the Supreme Court has also allowed subsequent ratification of incomplete *contracts by the Government*. *Service agreements with the Government would, however not fall under Art. 299*

TORTS

The liability of the State for actionable wrongs committed by its servants have been the subject-matter of several decisions In several cases, the liability of the State was *held to* be the same as the liability of the Government before the commencement of the Constitution Ultimately, it was traced to the nature of the liability which the East India Company had. Such liability was based on a distinction made between the *sovereign* and *non-sovereign* functions of the Government It was *held* that the Government could *not* be sued for torts committed by the Government or its officers in the exercise of its sovereign functions. [*P. & O. Steam Navigation Co. v Secy. of State*. (1961) 5 Bom H C R., App. A]

This rule was followed in several cases However, in *State of Rajasthan v. Vidyavati* (AIR. 1962 S C 933 Art 300), it was *held* that the protection given to the Government was the result of old feudalistic notions of justice which are inconsistent with the republication form of Government in India, and therefore, the State is as much liable for the tort in respect of an act committed by its servant within the scope of employment and functioning as any other employer.

But, in a later decision, involving an accident caused by a Government employee who was driving a jeep, the Supreme Court seems to have reiterated the distinction between sovereign and non-sovereign functions. In *Kasturilal v. State of UP.*, [AIR. (1965) S.C. 1039], it distinguished the decision in *State of Rajasthan v. Vidyavati*

on the following ground :

”It is obvious that when the Government employee was driving the jeep car from the workshop to the Collector’s residence for the Collector’s use, he was employed on a task or an undertaking which *cannot* be said to be referable to, or ultimately based on, the delegation of sovereign or Governmental powers of the State.”

The following observation of the Supreme Court is relevant :

”If a tortious act is committed by a public servant and it gives rise to a claim for damages, the question to ask is : Was the tortious act committed by the public servant in discharge of statutory functions, which are referable to, and ultimately based on, the delegation of the sovereign powers of the State to such public servant?”

PRIVY PURSES OF RULERS.— *Prior to the Twenty-sixth Amendment* of the Constitution, Art. 291 provided that where under any covenant or agreement entered into by the Ruler of any Indian State before the commencement of this Constitution, the payment of any sums, free of taxes, has been guaranteed or assured by the Government of the Dominion of India to any Ruler of such State as privy purse —

- (a) such sums shall be charged on, and paid out of, the Consolidated Fund of India; and
- (b) the sums so paid to any Ruler shall be exempt from all taxes on income.

Art. 291 has now been repealed by the Twenty-sixth Amendment, 1971.

IV. Right To Property (Art. 300A)

Art. 300A, which was introduced by the *Forty-fourth Amendment, 1978*, provides that no person shall be deprived of his property save by authority of law.

Formerly, this was a *fundamental right* enshrined in Art. 31(1) of the Constitution. However, *now* Art. 31 has been *deleted*, and the former Art 31(1) finds shape in the new Art. 300A (which is *not* in the Chapter on Fundamental Rights). Moreover, all the other sub-sections of Art. 31 [namely sub-sections (2) to (6)] *now do not* find place in the Constitution.

Although the right to property is no longer a fundamental right, it is still a constitutional right. (*Bishamber v. State of UP.*, A.I.R. 1982 SC 33)

As this right is now only a constitutional right, it is *not* a part of the basic structure of the Constitution. (*M. K. Kachar v. State of Gujarat*, J.T. (1994) 4 SC 473)

(A reference may be made to the discussion of this topic in Chapter III.)

TRADE, COMMERCE AND INTERCOURSE WITHIN THE TERRITORY OF INDIA

(Arts. 301-307)

Articles 301-307 of the Constitution deal with the subject of trade, commerce and intercourse within the territory of India. After laying down the *general* rule that trade, commerce and intercourse throughout the territory of India shall be free (Art. 301), the succeeding Articles proceed to lay down the *exceptions* to the rule.

Art. 301 lays down

”Subject to the other provisions of this Part, *trade, commerce and intercourse throughout the territory of India shall be free*”

This Article is based on S 92 of the Australian Constitution, which also lays down that ”trade, commerce and intercourse among the States shall be absolutely free” In fact, the framers of the Indian Constitution made an

improvement on the Australian provision, and such freedom is wider in India than in Australia, because it includes *not only* the freedom of *interState* trade, *but also* that of *infra-State* trade, commerce and Intercourse. However, the Supreme Court has rightly cautioned against relying on the decisions of the High Court of Australia for interpreting Art 301.

The word "*trade*" has a narrower meaning than "*commerce*" and covers all forms of buying and selling. The word "*commerce*", on the other hand, covers all forms of transportation by land, sea and air.

This freedom on inter-State trade and commerce extends to *lawful activities only*. Hence, prize competitions, which are in the nature of gambling, are *not* protected by Art 301.

The Supreme Court has observed that the main *object* of Art 301 is *to allow the free flow of the stream of trade, commerce and intercourse*". It has observed that economic unity is the backbone of political freedom, and that the free movement and exchange of goods throughout India is necessary for the country and for improving its standards of living. Thus, the *underlying idea* of ensuring this freedom is to break down the border barriers between the States, and to create one unit to encourage trade and commerce within the country.

Exceptions (Arts. 302-304)

There are *three* exceptions to the general principle laid down in Art. 301, as follows :

1. *Parliament* may impose such restrictions on the freedom of trade, as may be required *in the public interest*. (Art. 302) But neither Parliament nor the Legislature of a State has power to make any law giving any preference to one State over another, or to make any discrimination between one State and another. (Art. 303)

2. So also, the *legislature of a State* may impose *reasonable restrictions* in the *public interest* on the freedom of trade, commerce or intercourse with or within that State. (Art. 304)

However, no Bill or amendment for this purpose can be introduced or moved in a State Legislature without the *previous sanction of the President*. (Proviso to Art. 304)

3. *The Legislature of a State* may, by law, impose on goods *imported* from *other* States or the Union territories, and tax to which *similar* goods manufactured or produced in that State are subject, so however, as *not* to discriminate between goods so imported and goods so manufactured or produced. (Art. 304)

The above Article deals with the power of a State Legislature. It states that a State Legislature can levy tax on goods imported from other States. But, this power is subject to the condition that such tax must be levied only in cases where similar goods manufactured or produced in the State itself are subject to tax. The *idea* is that there should be no discrimination between goods so imported and goods so manufactured or produced.

It has been *held* that an action which furthers the economic development of the whole of India by removing economic barriers *cannot* be said to be discriminatory. (*Video Electronics v. State of Punjab*, AIR 1990 SC 820)

Lastly, Parliament may appoint an appropriate authority for carrying out the purposes of Articles 301, 302, 303 and 304. and confer on the authority so appointed such powers and duties as it thinks necessary. (Art. 307)

The Supreme Court has repeatedly *held* that *regulatory* or *compensatory* measures are *not* to be regarded as violative of the freedom of trade, commerce and intercourse within the territory of India. Thus, measures such as licensing of vehicles, price-control, charging for maintenance of roads, marketing and health regulations, far from hampering trade, in fact, facilitate free trade and intercourse.

Arts. 301-307 came up for consideration before the Supreme Court in *Atiabari Tea Co. Ltd. v. The State of Assam*, (1961 I.S.C.R. 809). The Court, in that case, *held* that the act of the Assam Government in levying a tax on manufactured tea carried by motor vehicles outside the said State was restrictive of the freedom of trade, and therefore, *void*.

The impact of the *Atiabari case* was so grave that it was reconsidered in a later case, viz., *Automobile Transport Ltd. v. The State of Rajasthan* (AIR. 1962 S.C. 1406), by a larger Bench of seven judges, none of whom had been a party to the *Atiabari judgment*.

The majority of four judges in the *Automobile case* affirmed the correctness of the *Atiabari judgment*, subject to one clarification. They held that regulatory measures, or measures imposing compensatory taxes for the use of trading facilities, do not come within the purview of the restrictions contemplated by Art. 301, and such measures need not comply with the requirements of the *Proviso* to Art. 304 (above).

It is submitted that a careful reading of the *Automobile case judgement* suggests that the Supreme Court has virtually over-ruled its decision in the *Atiabari case* (although it purports to merely make a *clarification*”), **at least** as regards taxes for the maintenance of roads.

Difference between Art. 19(1)(g) and Art. 301

Both Art. 19(1)(g) and Art. 301 aim at freedom of trade, and if either is infringed, the individual can seek redress in an appropriate Court.

However, the two differ in the following respects :

- (i) Art 19(1)(g) looks at freedom of trade from the viewpoint of an individual, whereas Art. 301 looks at the same freedom from the viewpoint of movement of commodities in the country.
- (ii) Art. 19(1)(g) confers a *fundamental* right, whereas the one conferred by Art. 301 is *not* a “fundamental” right (although it is a ‘justifiable right’).
- (iii) Art. 19(1)(g) can be involved only by *citizens*, whereas Art. 301 is available to citizens as well as non-citizens.
- (iv) A contravention of Art. 301 will involve an infringement of Art. 19(1)(g) only in cases when there is a *direct impact* on the fundamental right, as for instance when the law is *regulatory* of the freedom of trade. Art. 301, on the other hand, can be violated even by a *non-regulatory* law.

Saving of existing laws and laws providing for state monopolies (Art. 305)

Art. 305 provides that nothing in Article 301 and 303 shall affect the provisions of any existing laws, except in so far as the President may by order otherwise direct and that nothing in Art. 301 shall affect the operation of any law made before the commencement of the Constitution (Fourth Amendment) Act. 1955 in so far as it relates to, or prevents Parliament or the Legislature of a State from making any law relating to any such matter as is referred to in sub-clause (ii) of **clause** (6) of Art. 19.

This Article was substituted by the Constitution (Fourth Amendment) Act, 1955, as a result of the decision of the Supreme Court in *Saghir Ahmad v. State of U.P.* (A I R 1954 S C. 729). in which the U P State Road Transport Act, 1951 was held *ultra vires* the U P Legislature at the time when enacted, Art. 19(6) having been amended later. The amendment is intended to save enactments of such a nature which create State monopolies.

14

SERVICES UNDER THE UNION & THE STATES

(Arts. 308-323 & 335-336)

The following two topics are discussed in this Chapter :

- (1) Services under the Union and States. (Arts. 308-311, 335 & 336)
- (2) Public Service Commissions (Arts. 315-323 & 378)

(1) Service under the Union And States (Arts. 308-311, 335 & 336)

In this Part, unless the context otherwise requires. the expression “State” does *not* include the State of Jammu and Kashmir. [Art. 308]

The appropriate Legislature of a State may regulate the requirements, and conditions of services of persons appointed to public services and posts in connection with the affairs of the Union or of any State. The *President* (in the case of services and posts in connection with the affairs of the *Union*) and the *Governor* of a State (in the case of services and posts in connection with the affairs of the *State*) may make the necessary rules for such services and posts. [Art. 309]

Every member of the defence service or civil service of the Union or an all-India service and every such member of a State, holds office during the pleasure of the President or the Governor of the State. as the case may be. [Art. 310(1)]

Notwithstanding that a person holding a civil post under the Union or a State holds office *during the pleasure of the President* or, as the case may be, of the Governor of the State, any contract under which a person (*not* being a member of a defence service or of an all-India service or a civil service of the Union or a State) is appointed under the Constitution to hold such a post, may, if the President or the Governor, as the case may be. deems it necessary in order to secure the services of a person having special qualifications, provide for the payment to him of compensation, if before the expiration of an agreed period, that post is abolished, or he is, for reasons *not* connected with any misconduct on his part, required to vacate the post. [Art. 310(2)]

From the above provisions, it is quite clear that members of a **defence** service or of a civil service of the Union or of an all-India service *hold office during the pleasure of the President*, and members of a civil service of a State *hold office during the pleasure of the Governor of a State*. Employment being during the pleasure for the President, or the Governor, no suit will be valid against the Union or the State for wrongful dismissal. (*Mahammed Abdul Waheed v. Province of Bengal, (1941) 4 F.L.J. (N.C.) 400*)

The doctrine of pleasure codified in Art. 310 is a legacy of the British Empire, where a servant of the crown holds office during the pleasure of sovereign. In India, however, to protect civil servants from political interference, certain safeguards have been introduced (in the form of Art. 311, below).

No person holding office under the Union or a State can be *dismissed or removed* by an authority *subordinate* to that by which he was appointed. Nor can such a person be dismissed or removed or reduced in rank, *except* after an enquiry in which he has been informed of the charges against him and given a reasonable opportunity of being heard in respect of those charges. *except* (i) when he is so dismissed or removed or reduced in rank, reduced owing to his conviction on a *criminal* charge; or (ii) where it is *not* reasonably *practicable* to give to that person an opportunity of showing cause. or (iii) where the President or Governor is satisfied that in the interest of the *security of the State*, it is *not expedient* to give that person such an opportunity. [Art. 311(1)]

If any question arises whether it is reasonably practicable to give to any person an opportunity of showing cause, the *decision* thereon of the *authority empowered to dismiss or remove such person* or to reduce him in rank, as the case may be, *is to be final*. [Art 311(3)]

Under Art. 311, as it stood *before the Forty-second Amendment, 1976*, if after the enquiry, it was proposed to impose any penalty on such a person, he had to be given a *further opportunity* of making a representation on the proposed penalty. but only on the basis of the evidence adduced during such enquiry. *This right of further opportunity has been taken away by the Forty-second Amendment, and it is now provided* that after an enquiry, a penalty may be imposed on the person concerned on the basis of evidence adduced during the enquiry. and *no opportunity need be given to him to make a representation on the proposed penalty*.

Though all other Government servants hold office during the pleasure of the President or the Governor (as the case may be), the following *two procedural safeguards* are provided for the security of tenure of 'civil' servants, as distinguished from military personnel -

(a) A civil servant *cannot* be dismissed or removed by any authority *subordinate* to that by which he was appointed. In other words, if he is to be removed from service, he is entitled to the consideration of his appointing authority or any other officer of corresponding (or higher) rank before he is so removed. The *object* of this provision [Art. 311(1)] is to save a public servant from the caprices of officers of inferior rank.

(b) The other security which is guaranteed by the Constitution that no dismissal, or reduction in rank can be ordered against a civil servant unless he has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him. [Art. 311(2)]

Opportunity to be heard

Before the Forty-second Amendment, it was well-settled that the person charged had ordinarily the right to a reasonable opportunity of showing cause *twice*, before the order of dismissal is passed. There were thus *two stages* in a proceeding under Art. 311, the *first* being when the charges were inquired into, and at this stage, the person required to meet the charges was to be given a reasonable opportunity to enter his defence. The *second stage* was when, after the inquiring authority had come to a conclusion on the charges, there arose the question of the proper punishment to be awarded. A notice was *again* to be given to show cause against the proposed punishment.

However, the position is drastically different *after the Forty-second Amendment*, and as stated above, the right to make a further representation against the proposed penalty has now been taken away. Thus, an order of removal, dismissal or reduction would *now* contravene Art. 311, only if, *at the stage of the inquiry*, the person concerned is *not* given a reasonable opportunity to defend himself.

'Reasonable opportunity' requires that the authority must (i) frame specific charges with full particulars; (ii) intimate those charges to the Government servant concerned; (iii) give him an opportunity to answer those charges; *and* (iv) after considering his answers, take its decision. The rules of natural justice should be observed in coming to the findings against the accused.

The Supreme Court has *held* that a delinquent is entitled to a copy of the Inquiry Report before the disciplinary authority takes a decision regarding his guilt or innocence. A refusal to furnish the Report amounts to denial of reasonable opportunity. (*Managing Director, ECIL v. B. Karunkar*, A.I.R. 1994 S.C. 1074)

In which cases opportunity must be given

An opportunity to show cause must be given if *two conditions* are satisfied :

- (i) The employee is a member of a civil service of the Union, or an all-India service, or a civil service of a State, or holds a civil post under the Union or a State.
- (ii) Such employee is sought to be *dismissed, removed or reduced in rank*.

While a person who is "dismissed" is ineligible for re-employment under the Government, but no such disqualification attaches to a person who is 'removed'.

But, two elements are common to 'dismissal' and 'removal' :

- (a) *Both* are penalties awarded on the ground that the conduct of the Government servant is blameworthy or deficient in some respect.
- (b) *Both* entail penal consequences, such as the forfeiture of the right to salary, allowances or pension already acquired for past services.

Exceptions to the requirement of giving opportunity

It is to be noted that even where a person holding a civil post is dismissed, removed or reduced in rank, no such opportunity need be given in the following *three* classes of cases:

- (a) where a person is dismissed or removed or reduced in rank on the ground of conduct which has led to his conviction on a criminal charge;
- (b) where an authority empowered to dismiss or remove a person or to reduce him in rank is satisfied that, for some reason, to be recorded by that authority in writing, it is *not reasonably practicable* to give to that person an opportunity of showing cause; *or*

(c) where the President or Governor, as the case may be, is satisfied that, in the interest of the security of the State, it is *not expedient* to give that person such an opportunity. [Proviso to Art. 311(2)]

Articles 310 and 311 of the Constitution were critically analysed by the Supreme Court in *Union of India v. Tulsiram Patel*, A.I.R. 1985 S.C. 1416 (discussed in greater detail in Appendix IV).

The Court observed that the *doctrine of pleasure* is embodied in the Indian Constitution, *not because it* is a special prerogative of the British Crown, *but because public policy* requires it to be so. The majority of four Judges (Thakkar J. dissenting) also laid down the following important propositions :

- (i) The exercise of the doctrine of pleasure need *not* be by the President or the Governor *personally*.
- (ii) Likewise, satisfaction as to the need to dispense with the inquiry, as contemplated in Art. 311(2), need *not* be the personal satisfaction of the President or the Governor
- (iii) The disciplinary inquiry can be dispensed with (under the said provision) even during the course of such inquiry. *i.e.*, even after the inquiry has been started
- (iv) If Art. 311(2) becomes applicable, the opportunity of being heard totally ruled out, and it *cannot* be reintroduced by recourse to Art. 14 (Right to equality).
- (v) If an order is passed removing or dismissing a Government servant without an inquiry, a mere omission to mention the relevant clause of Art. 311 or of the relevant Service Rules does *not* invalidate the order.
- (vi) The power to dispense with the inquiry should *not* be exercised lightly *or* arbitrarily *or* out of ulterior motives
- (vii) When a disciplinary inquiry is dispensed with, there is no obligation to communicate the reasons therefor, to the Government servant. However, it would be *better* if such reasons *are* communicated.

Along with the above Articles, one must also read Articles 335 and 336. They provide for *the claims to services by Scheduled Castes, Tribes and the Anglo-Indian community* as under

The claims of the members of the *Scheduled Castes and the Scheduled Tribes* are to be taken into consideration, consistently with the maintenance of efficiency of administration, in the making of appointment to services and posts in connection with the affairs of the Union or of a State. (Art. 335)

During the first *two years* after the commencement of the Constitution, appointments of the members of the Anglo-Indian community to posts in the railway, customs, postal and telegraph services of the Union are to be made on the *same* basis as immediately before the fifteenth day of August, 1947.

During every *succeeding period of two years*, the number of posts reserved for the members of the said community in the said services is to be *less by ten per cent* than the numbers so reserved during the immediately preceding period of two years, and at the end of *ten years* from the commencement of this Constitution. *all such reservations are to cease*. (Art. 336)

All-India Services (Art. 312)

If the Council of States has declared by a resolution, supported by *not* less than two-thirds of the members present and voting, that it is necessary or expedient in the national interest so to do, Parliament may by law provide for the creation of one or more all-India services common to the Union and the States, and regulate the recruitment and the conditions of service of persons appointed to any such service.

The services known at the commencement of this Constitution as the Indian Administrative Service and the Indian Police Service are to be deemed to be services created by the Parliament under this Article.

(2) Public Service Commissions (Arts. 315-323 & 378)

Article 315(1) provides that there shall be a Public Service Commission for the *Union* and a Public Service Commission for each *State*.

Joint Commission, when and how appointed [Art. 315(2)]

Two or more States may agree to a *Joint State Public Service Commission* (known as *Joint Commission*) to serve the needs of those States, *if Parliament by law so provides, after a resolution to that effect is passed by the House.*

Members, by whom appointed [Art. 316(1)]

The Chairman and other members of a Public Service Commission are appointed, in the case of the *Union* Commission or a Joint Commission, by the *President*, and in the case of a *State* Commission, by the *Governor* of the State.

His term of office [Art. 316(2)]

A member of a Public Service Commission *holds office for six years* from the date on which he enters upon his office *or until he attains, in the case of the Union Commission, the age of sixty-five years, and in the case of a State Commission or a Joint Commission, the age of sixty-two years, whichever is earlier*

His qualification [Art. 316(1)]

One-half of the members of every Public Service Commission should be persons who have held office for at least *ten years* under **the** Government, before being so appointed.

His mode of resignation [Art. 316(2)(a)]

A member of a Public Service Commission may, by writing under his hand and addressed, in the case of the Union Commission or a Joint Commission, to the President, and in the case of a State Commission, to the Governor of the State, *resign* his office.

When and how removed (Art. 317)

The Chairman or any other member of a Public Service Commission can be removed from his office by an order of the President only on the ground of *misbehaviour*, after the Supreme Court (on reference being made to it by the President) has, on inquiry, reported that he should be removed. The President may, in the meanwhile, *suspend* such member. Misbehaviour includes :

- (i) being concerned, or interested in any contract or agreement made by or on behalf of the Government of India or the Government of a State; or
- (ii) participating in the profit thereof or in any benefit or employment arising therefrom, otherwise than as a member and in common with the other members of an incorporated company. [Art. 317(4)]

It has been *held* that if a Chairman of a State Public Service Commission is slapped on his face by another Member, it would be a case of misbehaviour under Art. 317 and the latter Member is liable to be removed from his office (*In the matter of Reference under Art. 317 of the Constitution of India.* (1992) 2 SCC 236)

The President may, of his own motion, remove such Chairman or member if he — (a) is adjudged an insolvent; or (b) engages during his term of office in any paid employment outside the duties of his office; or (c) is, in the opinion of the President, unfit to continue in office by reason of infirmity of mind or body.

Prohibition as to holding of office by ex-members of the Commission (Art. 319)

On ceasing to hold office —

- (a) The Chairman of the *Union* Public Service Commission is ineligible for further employment, either under the Government of India or under the Government of a State
- (b) The Chairman of a *State* Public Service Commission is eligible for appointment as the Chairman or any other member of **the** Union Public Service Commission or as the Chairman of any other State Public Service Commission, — but *not* for any other employment either under the Government of India or under the Government of a State.
- (c) A member, other than the Chairman, of the *Union* Public Service Commission is eligible for appointment as the Chairman of the Union Public Service Commission, or as the Chairman of a State Public Service Commission,

— but *not* for any other employment under the Government of India or under the Government of a State.

(d) A member, other than the Chairman, of a *State* Public Service Commission is eligible for appointment as the Chairman or any other member of the Union Public Service Commission or as the Chairman of that or any other State Public Service Commission,— but *not* for any other employment either under the Government of India or under the Government of a State.

Functions of Public Service Commission (Art. 320)

The Public Service Commissions have *three* advisory functions, as follows :

1. *Firstly*, Public Service Commissions *conduct examinations* for appointment to the services of the Union and the services of the State respectively.

2. *Secondly*, they *assist* other States in framing and operating schemes of joint recruitment for any services for which candidates possessing special qualifications are required.

3. *Thirdly*, Public Service Commissions *advise* on any of the following matters referred to them, *viz.*, —

(a) all matters relating to methods of recruitment to civil services and for civil posts;

(b) the principles to be followed in making appointments to civil services and posts, and in making promotions and transfers from one service to another and on the suitability of candidates for such appointments, promotions. or transfers;

(c) all disciplinary matters affecting a Government servant, including memorials or petitions relating to such matters;

(d) any claim by or in respect of a Government servant, that any cost incurred by him in defending legal proceedings instituted against him in respect of acts done or purporting to be done in the execution of his duty should be paid out of the Consolidated Fund of India, *or* as the case may be, out of the Consolidated Fund of the State;

(e) any claim for the award of a person in respect of injuries sustained by a Government servant and any questions as to the amount of any such award: *and*

(f) any other matter which the President, or the Governor of the State, may refer to them.

The Legislature may provide for the exercise of *additional* functions by the Union or the State Public Service Commission. (Art. 321)

The expenses of the Union or a State Public Service Commission are to be charged on the Consolidated Fund of India, or as the case may be, the Consolidated Fund of the State. (Art. 322)

Report of Public Service Commission (Art. 323)

The Union (or the State) Commission is required to present to the President (or to the Governor of the State) a report as to the work done by the Commission, and the President (or the Governor) must cause a copy thereof, explaining as regards the cases where the advice of the Commission was *not* accepted, the reasons for such nonacceptance, to be laid before each House of Parliament or before the Legislature of the State, as the case may be.

14-A

TRIBUNALS (Arts. 323A & 323B)

Art. 323A and Art. 323B, were introduced by the Forty-second Amendment, 1976. Provisions are made in these Articles for :

I — Administrative Tribunals (Art. 323A)

II. — Tribunals for other matters (Art. 323B)

I. Administrative Tribunals (Art. 323A)

Art. 323A authorises *Parliament* to make laws to provide for the adjudication or trial, by administrative tribunals, of disputes and complaints with respect to recruitment and conditions of service of persons appointed to public services and posts in connection with the affairs of the Union or of any State or of any local or other authority in India or under the control of the Government of India or of any Government corporation.

It is further provided that such a law may —

- (a) provide for the establishment of administrative tribunals for the Union and for the States,
- (b) specify the jurisdiction, powers and authority which may be exercised by each of the said tribunals,
- (c) provide for the procedure to be followed by the said tribunals;
- (d) exclude the jurisdiction of all courts, except the jurisdiction of the Supreme Court under Art 136, with respect to the disputes or complaints referred to in clause (1) above.
- (e) provide for the transfer, to each such administrative tribunal, of any cases pending before any Court or other authority immediately before the establishment of such tribunal, as would have been within the jurisdiction of such tribunal if the causes of action on which such suits or proceedings are based had arisen after such establishment;
- (f) repeal or amend any order made by the President under clause (3) of Art. 371-D,
- (g) contain such *supplemental, incidental and consequential* provisions as Parliament may deem necessary for the effective functioning of, and for the speedy disposal of cases by, and the enforcement of the orders of, such tribunals.

It is also clarified that Art. 323A is to take effect notwithstanding any other provision in the Constitution or in any other law in force.

Tribunals for other matters (Art. 323B)

Art. 323B authorises the *appropriate Legislature* (*viz.*, the Parliament or a State Legislature competent to make laws with respect to such matter) to make laws to provide for the adjudication or trial by tribunal of disputes, complaints or offences with respect to any of the following *nine matters* with respect to which such Legislature has power to make laws, *viz* :

- (i) levy, assessment, collection and enforcement of any tax;
- (ii) foreign exchange, import and export across customs frontiers;
- (iii) industrial and labour disputes;
- (iv) land reforms, by way of acquisition by the State of any estate as defined in Art. 31A, or of any rights therein, or the extinguishment or modification of any such rights or by way of ceiling on agricultural land or in any other way;
- (v) ceiling on urban property;
- (vi) elections to either House of Parliament or the House or either House of Legislature of a State, but excluding the matters referred to in Art. 329 and Art. 329A
- (vii) production, procurement, supply and distribution of food-stuffs and such other goods as the President by public notification, declare to be essential goods for the purpose of this article and control of prices of such goods;
- (viii) offences against law with respect to any of the matters specified in sub-clause (i) to (vii) above, and fees in respect of any of those matters;
- (ix) any matter incidental to any of the matters specified in sub-clause (i) to (viii) above.

Art. 3238 further provides that such laws made by the State Legislatures may —

- (a) provide for the establishment of a hierarchy of tribunals;
- (b) specify the jurisdiction, powers and authority which may be exercised by each of the said tribunals;
- (c) provide for the procedure to be followed by the said tribunal;
- (d) exclude the jurisdiction of all courts, except the jurisdiction of the

Supreme Court under Art. 136. with respect to all or any of the matters falling within the jurisdiction of the said tribunals;

- (e) provide for the transfer to each such tribunal of any cases pending before any Court or any other authority immediately before the establishment of such tribunal as would have been within the jurisdiction of such tribunal, if the causes of action on which such suits or proceedings are based had arisen after such establishment;
- (f) contain such supplemental, incidental and consequential provisions as the appropriate Legislature may deem necessary for the effective functioning of, and for the speedy disposal of cases by, and the enforcement of the orders of such tribunals.

It is also clarified that Art. 3238 is to take effect notwithstanding any other provision in the Constitution itself or in any other Law in force.

By introducing Article 323A and 3238, *the Forty-second Amendment* 1976, has opened a new Chapter in Indian Constitutional and Administrative Law, by substantially excluding judicial review of administrative decisions.

Difference between Art. 323A and Art. 323B

The following are the *three* main points of difference between Art. 323A and Art. 3238

- (i) Whereas Art. 323A is confined to matters relating to public services, Art. 3238 relates to *all* matters mentioned therein, as for instance, taxation, foreign exchange, labour disputes, *etc.*
- (ii) Under Art. 323A. there *cannot* be a hierarchy of Tribunals. There is only one Tribunal for the Union and one for each State (or two or more States together). However, under Art. 3238, the legislature is empowered to establish a hierarchy of Tribunals.
- (iii) Art 323A confers power exclusively on the President, whereas under Art. 323B the legislative power is divided between the Union and the State Legislatures.

15

ELECTIONS

(Arts. 324-329, 103, 124 & 192)

In this Chapter, the law as to the *constitution, powers, duties, functions etc.*, of the Election Commission will be discussed. These provisions have recently assumed great importance in view of the active role played by this Commission.

Election Commission, how constituted [Art. 324(2)]

The Election Commission consists of the Chief *Election Commissioner* and other Election Commissioners, all of whom are appointed by the *President*. The Chief Election Commissioner acts as the *Chairman* of the Election Commission.

Its functions [Arts. 324(1)]

The *superintendence, direction and control* of the preparation of the electoral rolls for, and the *conduct of* all *elections* to Parliament and to the Legislature of every State and of elections to the offices of President and Vice-President (including the *appointment of election tribunals* for the decision of doubts and disputes arising out of or in connection with elections to Parliament and to the Legislature of States) are vested in the Election Commission. Article 324 thus provides for the creation of an independent body, with exclusive powers to decide certain matters.

When read with Articles 103 and 192, it becomes clear that, in case of doubts and disputes as to *qualification of members* of the Legislatures, the President or the Governor takes a decision in consultation with the Election Commission; but in cases of doubt relating to *elections*, the same is to be decided by the Election Tribunals appointed by the Election Commission.

Though there is no specific provision in the Constitution for appeals from the decisions of Election Tribunal, it is possible to seek *judicial review* of decisions of all Tribunals, including an Election Tribunal, by means of extraordinary remedies of appeal to the Supreme Court by special leave under Article 136 *or* by a petition to the High Court for an appropriate order under Article 226. These powers of the Supreme Court and the High Court *cannot* be fettered in any way by any legislation.

Jurisdiction of the Supreme Court over Election Tribunals

The following are the grounds on which the Supreme Court can interfere with the Election Tribunals —

- (i) where the Tribunal does *not* perform its duty under the law;
- (ii) where the Tribunal misdirects itself upon the question;
- (iii) where the Tribunal sets aside an election upon a wrong view of the law;
- (iv) where it sets aside the entire election;
- (v) where it wrongly holds a candidate to be guilty of corrupt practice; *or*
- (vi) where its decision is without jurisdiction.

Jurisdiction of High Court over Election Tribunals

The High Court may also interfere on the ground—

- (i) that the Tribunal has acted without jurisdiction; *or*
- (ii) that it has *not* performed its duty under the law; *or*
- (iii) that it has acted against the principles of natural justice;
- (iv) there is an error on the face of the record.

Regional Commissioners (Art. 324)

Before each general election to the House of the People and to the Legislative Assembly of each State the President may appoint (after consultation with the Election Commission) Regional Commissioners *to assist the Election Commission in the performance of its functions*. The President has power to determine the conditions of service and tenure of office of the Election Commissioners and the Regional Commissioners.

The conditions of service of the Chief Election Commissioner *cannot* be varied to his disadvantage after his appointment

Election Commissioner, how and when removed (Arts. 124 & 324)

The *Chief* Election Commissioner *cannot be removed* from his office, except in like manner and *on the like grounds* as a Judge of the Supreme Court, *viz.*, - he cannot be *removed* from his office *except by an order* of the President passed after an *address* by *each* House of Parliament *supported by a majority* of the total membership of that House *and by a majority* of not less than *two-thirds* of the members of that House present and voting, has been presented to the President in the same session for such removal on the ground of *proved misbehaviour or incapacity* [Art 124(4)]. For this purpose, Parliament may regulate the procedure for **the** presentation of an address and for the investigation and proof of his misbehaviour or incapacity. (Art 124(5))

Any *other* Election Commissioner or a Regional Commissioner *cannot* be removed from office, *except on the recommendation of the Chief Election Commissioner*. [Art 324(5)]

Advisory functions of Election Commissioner [Arts. 103 & 192(2)]

If any question arises as to whether a member of either House of Parliament has become subject to any of the

disqualifications mentioned in Art. 102, the question is to be referred for the decision of the President, and his decision is declared to be final. However, before giving any such decision, the President has to consult the Election Commission. (Art 103)

Similarly, if any question arises as to whether a member of a House of the Legislature of a State has become subject to any of the disqualifications, the question is to be referred for the decision of the *Governor*, whose decision (after consulting the Election Commission) is to be final. (Art. 192)

Election Commission.— Art. 324 provides for the creation of an independent body named the Election Commission, which has the following exclusive powers :

- (a) superintendence, direction and control of the preparation of the electoral rolls for all elections to Parliament and the Legislature of every State, and of elections to the offices of President and Vice-President;
- (b) conduct all the above elections; *and*
- (c) appointment of election tribunals for the decision of doubts and disputes arising out of or in connection with the election to Parliament and to the Legislature.

It will thus be seen that the entire machinery of election of the Union, as well as of the States, is placed in the hands of a centralised body — the Election Commission, which alone is entitled to issue directives to returning officers and others engaged in the preparation and revision of electoral rolls, so that no injustice may be done to any citizen by any local Government. The Commission, is assisted by Regional Commissioners, but they are *not* under the control of the State Governments, *but* under the control of the Election Commission, and they are *not* liable to be removed except on the recommendation of the Chief Commissioner

It may also be noted that the Election Commission is independent of any executive control, in as much as members of the Election Commission (and Regional Commissioners) *cannot* be removed by the President, except on the recommendation of the Chief Election Commissioner, and the Chief Election Commissioner *cannot* be removed, except in the manner provided in Art. 124(4) relating to the removal of a Judge of the Supreme Court.

General provisions as to elections (Arts. 325-329)

There is one *general electoral roll* for every territorial constituency for election to either House of Parliament or to the House or either House of the Legislature of a State, and no person shall be ineligible for inclusion in any such roll for any constituency on grounds only of religion, race, caste, sex, or any of them. (Art. 325)

The elections to the House of the People and to the Legislative Assembly of every State are on the basis of *adult suffrage*, that is to say, every person who is a citizen of India and who is *not* less than eighteen years of age and is *not* otherwise disqualified on the ground of non-residence, unsoundness of mind, crime or corrupt or illegal practice, is entitled to be registered as a voter at any such election. (Art. 326) It may be noted that the adoption of universal adult suffrage *without any qualification* either of *literacy, property, taxation* or the like, is a *bold experiment* in India, having regard to the vast extent of the country and its population.

Parliament may make provision with respect to all matters relating to, or in connection with, elections to either House of the Legislature of a State, including the preparation of electoral rolls, the delimitation of constituencies and all other matters necessary for securing **the due** constitution of such House or Houses (Art. 327). The validity of any **law** relating to the delimitation of constituencies or the allotment of seats to such constituencies made under Article 327, *cannot* be called in question in any Court : [Art. 329(a)].

Similarly, the Legislature of a State may make provision with respect to all matters relating to, or in connection with, the elections to the House or either House of the Legislature of the State, including the preparation of electoral rolls and all other matters necessary for securing the due constitution of such House or Houses (Art. 328), and the validity of any law relating to the delimitation of constituencies or the allotment of seat to such constituencies made under this Article 328. *cannot* be called in question in any Court. [Art. 329(a)].

Further, no election to either House of Parliament or to the House or either House of the Legislature of a State can be called in question, except by an *election petition* presented to such authority and in such manner as may be

provided for by or under any law made by the appropriate Legislature. [Art. 328(b)]

Special provision as to election of *Prime Minister and Speaker* [Art. 329A (Deleted)]

Art. 329A, which was *introduced by the Thirty-ninth Amendment, 1975*, provided that elections to Parliament in the case of the Prime Minister or the Speaker could *not* be called in question *except* before such authority or body, and in such manner as may be provided for by any law made by Parliament

Art. 329A was, however, *deleted by the Forty-fourth Amendment, 1978*.

SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES

(Arts. 330-342 & 366)

It is worthwhile to note that one of the greatest achievements of the framers of the Indian Constitution is the abolition of communal representation and separate electorates, which ultimately led to the lamentable partition of India. This is one of the greatest merits of the Constitution. It has abolished, at one stroke, the entire pernicious system of communal electorates which the British introduced in the country, as part of their 'divide and rule' policy. Under the Constitution, there is no separate electorate. All the voters vote under one general electorate roll (Art. 325), and there is no reservation of seats on the ground of religion or community. To this rule, there are some exceptions, discussed below

Representation of the Anglo-Indian Community in the House of the People (Art. 331)

Notwithstanding anything in Article 81, the President may, if he is of the opinion that the Anglo-Indian community is not adequately represented in the House of the People, nominate *not* more than two members of the community to the House of the People

Reservation of seats for *Scheduled Castes and Scheduled Tribes* in the Legislative Assemblies of the States (Art. 332)

- (1) Seats are to be reserved for the Scheduled Castes and the Scheduled Tribes, except the Scheduled Tribes in the autonomous districts of Assam, in the Legislative Assembly of every State.
- (2) Seats are to be reserved also for the autonomous districts in the Legislative Assembly of the State of Assam.
- (3) The number of seats reserved for the Scheduled Castes or the Scheduled Tribes in the Legislative Assembly of any State under clause (1) above, must bear, as nearly as may be, the same proportion to the total number of seats in the Assembly as the population of the Scheduled Castes in the State, or of the Scheduled Tribes in the State or the part of the State, as the case may be, in respect of which seats are so reserved, bears to the total population of the State.
- (4) The number of seats reserved for an autonomous district in the Legislative Assembly of the State of Assam must bear to the total number of seats in the Assembly a proportion *not* less than the population of the district bears to the total population of the State.
- (5) The constituencies for the seats reserved for any autonomous district of Assam *cannot* comprise any area outside that district, except in the case of the constituency comprising the cantonment and municipality of Shillong.
- (6) No person who is *not* a member of a Scheduled Tribe of any autonomous district of the State of Assam can be eligible for election to the Legislative Assembly of the State from any constituency of that district.

Representative of the Anglo-Indian Community in the Legislative Assemblies of the States (Art. 333)

Notwithstanding anything in Article 170, the Governor of a state may, if he is of opinion that the Anglo-Indian Community needs representation in the Legislative Assembly of the State and is *not* adequately represented therein, nominate *one member* of that community to the Assembly

Reservation of seats and special representation to cease after 60 years (Art. 334)

Art. 334 provides that, notwithstanding anything in the foregoing provisions, the provisions of the Constitution relating to—

- (a) the reservation of seats for Scheduled Castes and the Scheduled Tribes in the House of the People and in the Legislative Assemblies of the States, *and*

(b) the representation of the Anglo-Indian community in the House of the People and the Legislative Assemblies of the States by nomination,

are to cease to have effect on the expiration of a period of *70 years* from the commencement of the Constitution. This period was increased to *seventy years* by the *Constitution (Ninety-fifth Amendment) Act, 2009*, which came into force on *25 January, 2010*.

However, nothing in Art. 334 is to affect any representation in the House of the People or in the Legislative Assembly of a State until the dissolution of the then existing House or Assembly as the case may be.

Claims of Scheduled Castes and Scheduled Tribes to services and posts

The claims of the members of the Scheduled Castes and the Scheduled Tribes are to be taken into consideration, consistently with the maintenance of efficiency of administration, in the making of appointments of services and posts in connection with the affairs of the Union or of a State. (Art 335)

The *Eighty-second Amendment, 2000*, now allows the making of special provisions in favour of members of the Scheduled Castes and Scheduled Tribes, for relaxation in their qualifying marks or lowering the standards of evaluation, or for reservation in matters of promotion to any class or classes of services or posts in connection with the affairs of the Union or of a State.

During the first *two years* after the commencement of this Constitution, appointments of members of the Anglo-Indian community to posts in the railway, customs, postal and telegraph services of the Union is to be made on the *same* basis as immediately before the fifteenth day of August, 1947. During every *succeeding period of two years*, the number of posts reserved for the members of the said community in the said services is to be *less by ten per cent* than the numbers so reserved during the immediately preceding period of two years, and at the end of *ten years* from the commencement of this Constitution, *all such reservation is to cease*. (Art. 336)

Special Commissions

Art. 338, provides for a *National Commission for Scheduled Castes*, consisting of a chairperson, a Vice-Chairperson and three other members. The main duty of this Commission is to investigate and monitor all matters relating to the constitutional and legal safeguards provided for Scheduled Castes. The Commission also has to inquire into specific complaints with respect to deprivation of the rights and safeguards of persons belonging to the Scheduled Castes.

The *Eighty-ninth Amendment, 2003* introduced a new Article, Art. 338-A, to provide for a similar Commission for the protection of Scheduled Tribes. This Commission is known as the *National Commission for Scheduled Tribes*, and is also to consist of a Chairperson, a Vice Chairperson and three other members. Their powers and duties are similar to those of the National Commission for Scheduled Castes.

Art. 340 of the Constitution also empowers the President to appoint a Commission, consisting of such persons as he thinks fit, to investigate the conditions of socially and educationally backward classes.

Definitions (Arts. 341, 342 & 366)

Art. 366(2) defines an Anglo-Indian as a person whose *father* or any of whose other male *progenitors* in the *male* line is or was of European descent, but who is *domiciled in India*, and is or was *born* within such territory of parents habitually resident therein and *not* established there for *temporary* purposes only. [Art. 366(2)]

Arts. 341 and 342 define what Scheduled Castes and Tribes are. These Articles provide that the President may, after consultation with the Governor of a State, by public notification, specify the castes, races or tribes which shall be deemed to be Scheduled Castes or Scheduled Tribes in relation to that State.

OFFICIAL LANGUAGE (Arts. 343-351 & Schedule 8)

The following *four* topics are briefly examined in this Chapter :

- (1) Language of the Union
- (2) Regional Language
- (3) Language of the Supreme Court, High Courts, *etc.*
- (4) Special directives.

(1) Language Of the Union (Arts. 343-344 & Sch. 8)

In a country with *more than 1600 spoken languages*, constitutional provisions about languages is bound to be a difficult task. The founding fathers of the Constitution. therefore, had to recognise *some* of these languages for official communication, to save the country from utter confusion prompted by a multiplicity of languages.

It is provided that the *official language* of the Union is Hindi in Devnagri script, and the form of numerals to be used for the official purpose of the Union are the international form of Indian numerals, but the English language is to continue to be used for all the official purposes of the Union for *fifteen years* from the commencement of this Constitution. The President *may*, however, during the said period, authorise the use of the Hindi language in addition to the English language and of the Devnagari form of numerals. It is also laid down that, after the said period of *fifteen years*, Parliament may provide for the use of the English language, or the Devnagari form of numerals. (Art. 343) Pursuant to this power, the Official Languages Act, 1963, has been enacted, under which English is still being used, in addition to Hindi, for official purposes of the Union

Parliamentary Commission on official language [Arts. 344(1X3) & Sch. 8]

At the expiration of *five years* from the commencement of the Constitution, and thereafter at the expiration of *ten years* from such commencement, the President must constitute a Commission, consisting of a Chairman and such other members representing the different languages specified in the Eighth Schedule, as the President may appoint. [Art. 344(1)] The languages mentioned in the Eighth Schedule are. 1.Assamese 2.Bangali 3 Bodo 4. Dogri 5. Gujarati 8. Hindi 7. Kannada 8. Kashmiri 9. Konkani 10 Mathilli 11 Malayalam 12. Manipuri 13. Marathi 14, Napali 15.Oriya 16.Punjabi 17.Sanskrit 18 Santhali 19. Sindhi 20. Tamil 21. Telugu 22. Urdu.

The said Commission makes recommendations to the President as to the progressive use of the Hindi language for the official purposes of the Union, the restrictions on the use of the English language, and the form of numerals to be used. In making such recommendations, the Commission must have due regard to the industrial, cultural and scientific advancement of India, and the just claim and the interest of persons belonging to the non-Hindi speaking areas in regard to the public services. [Art. 344(2)(3)]

Parliamentary Committee on official language [Art. 344(4) (5) (6)]

Article 344 provides for the constitution of a Committee consisting of thirty members (of whom twenty are to be members of the House of the People, and ten of the Council of States), whose duty it is to examine the recommendations of the Commission, and to report to the President, their opinion thereon. The President may, after considering the report, issue directions in accordance with the whole or any part of that report.

(2) Regional Language (Arts. 345-347)

The Legislature of a State may adopt any language in use in the State or Hindi as the language to be used for all official purposes of that State or for official communication between States. If, however, a substantial proportion of a State desires the use of any language spoken by them to be recognised by that State, the President may direct that such language shall be recognised.

(3) Language Of The Supreme Court, High Courts, etc. (Arts. 348-349)

All proceedings in the Supreme Court and in every High Court, as well as the authoritative texts of Bills, Acts passed by Parliament or the Legislature of a State and of all Ordinances promulgated by the President or the Governor of a State, and all orders, rules, **and** regulations, are to be in the *English* language, but the Governor, of **a** State may, with the previous consent of the President, authorise the use of *Hindi* or of any other language in its High

Court. (Art. 348)

Special procedure for enacting laws relating to language (Art. 349)

Art. 349 lays down a special procedure when any law relating to a language is to be enacted. It lays down that during the period of *fifteen years* from the commencement of the Constitution, no Bill or amendment making provision for the language to be used can be introduced or moved in either House of Parliament without the previous sanction of the President, and the President *cannot* give his sanction to the introduction of any such Bill, or the moving of any such amendment, except after he has taken into consideration the recommendation **and** the report of the Commission appointed under Art. 344 above.

(4) Special Directives (Arts. 350-351)

The language to be used in representations of grievances to **any** officer of the Union or a State may be the one ordinarily used therein. (Art. 350)

Article 350A provides that it shall be the endeavour of every State, and of every local authority within the State, to provide adequate facilities for instructions in the mother tongue at the primary stage of education, to children belonging to linguistic minority groups, and the President may issue such directions to any State as he considers necessary or proper for securing the provisions of such facilities.

Article 350B provides for a Special Officer for linguistic minorities to be appointed by the President. It is his duty to investigate all matters relating to the safeguards provided for linguistic minorities under this Constitution, and report to the President upon those matters at such intervals as the President may direct. The President must cause all such reports to be laid before each House of Parliament and sent to the Governments of the States concerned.

Directive for development of Hindi language (Art. 351)

Under Article 351, it is the duty of the Union to promote the spread of the Hindi language, to develop it, so that it may serve as a medium of expression for all the elements of the composite culture of India, and to secure its enrichment by assimilating, without interfering **with Its** genius, the forms, style and expression used in Hindustani and **in the** other languages of India specified in the Eighth Schedule, and by **drawing, wherever** necessary or desirable, for its vocabulary, primarily on Sanskrit, and secondarily on other languages

18

EMERGENCY PROVISIONS

(Arts. 352-360 & 365)

This Chapter deals with the powers of the President to act in an *emergency*, whereby the *security* of India (or of any part thereof) is *threatened*. He may then issue a Proclamation by which he assumes certain over-all powers, which are detailed in Article 352 and the succeeding Articles. The definition of "emergency" is left to the President, but it is clear that apart from external aggression and internal commotion, it also includes *economic depression and financial crisis*.

In connection with the emergency provisions contained in the Indian Constitution, one may, with advantage, refer to the speech of Dr. Ambedkar in the Constituent Assembly :

"The framers of our Constitution, profiting from the experience of the working of other constitutions, have inserted suitable provisions in the Constitution to assure the rigour of legalism and rigidity which are inherent in all federal constitutions. All federal systems, including the American, are placed in a tight mould of federalism. No matter what

the circumstances, it *cannot* change its form and shape. It can never be unitary. On the other **hand**, our Constitution can be *both* unitary as well as federal, according to the requirements of time and circumstances. *In normal times, it is framed to work as a federal system. But in times of war, it is so designed as to make it work as though it was a unitary system. Once the President issues a Proclamation, which he is authorised to do under the provisions of Article 352, the whole scene becomes transformed, and the State becomes unitary.* The Union can claim, if it wants, (1) the power to legislate upon any subject, even though it may be in the State List, (2) the power to give directions to the State as to how they should exercise their executive authority in matters which are within their charges, (3) the power to vest authority for any purpose in any officer, and (4) the power to suspend the financial provisions of the Constitution. *Such a power of converting itself into a unitary State, no federation possesses.*”

Kinds of emergency (Arts. 352, 356 & 360)

Arts. 352, 356 and 360 deal with the following *three kinds of emergency* :

(i) If the President is satisfied that a grave emergency exists whereby the security of India or any part thereof is threatened,— whether by *war or external aggression or armed rebellion*,— he may declare a *Proclamation of Emergency* in respect of the *whole* of India or of such *part* of India as may be specified in the Proclamation. (Art. 352)

(ii) The President is empowered to make a declaration of *financial emergency* whenever he is satisfied that the financial stability or credit of India (or any *part* thereof) is threatened. [Art. 360(1)]

(iii) The President is also empowered to make a Proclamation of *failure of constitutional machinery in the State* when he is satisfied **that the** Government of a State *cannot* be carried on in accordance with the provisions of the Constitution, either on the report of the Governor of the State, or otherwise. (Art. 356)

1. Proclamation of emergency — when security of India is threatened Proclamation of emergency — when made (Art. 352)

If the President is satisfied that a *grave emergency* exists, **whereby** the *security of India* (or for any part thereof) is threatened, **whether** by *war or external aggression or armed rebellion*, he may, by a **Proclamation**, make a declaration to that effect in respect of the *whole* of **India** or of such *part* of India, as may be specified in Proclamation.

It may be noted that a Proclamation of Emergency declaring **that** the security of India or any part thereof is threatened by *war or by external aggression or by armed rebellion*, can be made *before* the actual occurrence of *war or aggression or rebellion*, if the President **is** satisfied that there is imminent danger thereof

Moreover, the President can issue different proclamations on **different** grounds, being *war or external aggression or armed rebellion or imminent danger* thereof.

It is interesting to note that the first proclamation of **emergency** under Art. 352 was issued by the President of India in October, **1962**, at the time of the Chinese invasion. Curiously enough, the **emergency** continued for a period of more than *five years*. - one of the **longest** emergency periods in any federal democracy.

Formerly, the satisfaction of the President was to be **final and** conclusive, and could *not* be called in question in any Court **on any** ground whatsoever. This provision was, however, *deleted by the Forty-fourth Amendment, 1978*.

In an important decision of the Supreme Court, Justice Bhagwati, whilst delivering the *minority judgment*, declared that a proclamation of emergency is *not* completely out of the Court's jurisdiction. Of course, the subjective satisfaction of the President regarding the necessity of declaring **the** emergency is *not* open to scrutiny. However, if the satisfaction is *mala fide* or is based on wholly extraneous and irrelevant grounds, the Court *would* have the jurisdiction to go into the matter (*Minerwa Mills Ltd. v. Union of India*, A.I.R. 1980 S.C. 1789)

After the *Forty-fourth Amendment, 1978*, such a Proclamation *cannot* be issued unless the decision of the Union Cabinet (*i.e.*, the Council consisting of the Prime Minister and other Ministers of Cabinet **rank** appointed under Art. 75) that such a Proclamation may be issued has **been** communicated to the President *in writing*.

How revoked

Such a Proclamation may be *revoked* or *varied* by a subsequent Proclamation and is to be laid before each House of Parliament.

When It ceases to operate

There are two cases in which the Proclamation ceases to operate :

1. It ceases to operate after *one month*, *unless* it has been *approved* by resolutions of both Houses of Parliament before the expiry of the said period.

2. If the Proclamation of Emergency is issued at a time when the House of People has been dissolved, *or* the dissolution of the House of the People takes place during the period of one month referred to above, and if a resolution *approving* the Proclamation has been passed by the Council of States, but *no* resolution with respect to such Proclamation has been passed by the House of the People before the expiry of that period,— the Proclamation ceases to operate at the expiration of *thirty days from the date on which the House of People first sits after reconstitution*. But it does *not* cease to operate if, before the expiry of the said period of thirty days, a resolution *approving* the Proclamation has been also passed by the House of the People.

In other words, such a Proclamation will cease to operate at the expiry of one month, *unless* before the expiration of that period, it has been approved by resolutions of both Houses of Parliament. A Proclamation so approved will, unless revoked, cease to operate on the expiry of a period of *six months* from the date of passing of the second of the resolutions approving the Proclamation.

The resolution referred to above should be passed by either House of Parliament should be passed by a majority of the total membership of that House *and* by a majority of at least *two-thirds* of the members of that House present and voting.

It is also provided that the President *must* revoke a Proclamation of Emergency if the *House of the People* passes a resolution disapproving such a Proclamation.

It is also provided that if a notice in writing signed by at least *onethird* of the total number of members of the Lok Sabha has been given, of their intention to move a resolution for disapproving a Proclamation of Emergency (or its continuance) to the *Speaker*, if the House is in session (*or* to the *President*, if the House is *not* in session), a *special sitting* of the Lok Sabha is to be called within a period of *fourteen days* from the date of the receipt of such a notice.

Effects of such a proclamation (Arts. 353-354, 358-359)

The *four important effects* of the Proclamation, mentioned in Articles 353-354, 358 and 359, are as follows :

1. While a Proclamation of Emergency is in operation, *the executive power of the Union extends to the giving of directions to any State*, as to the *manner* in which its executive power is to be exercised, and the power of Parliament to make laws with respect to any matter includes the power to make laws conferring powers and imposing duties upon the Union as respects that matter, notwithstanding that it is one which is *not* enumerated in the Union List. (Art. 353)

This power of the Union and the Proclamation also extends to any **State** other than a State in which the Proclamation of Emergency is in operation if the security of India (or any part thereof) is threatened by activities in **that part** of India in which the Proclamation of Emergency is in operation.

2. The President may, by order, direct that the provisions of *Arts. 268 to 279* (which relate to the distribution of revenues) are to have effect *subject* to such *exceptions* as he thinks fit. Every such order must be laid before each House of Parliament, as soon as may be after it is made. (Art. 354)

3. The *third* effect of a Proclamation of Emergency is that, while it is in operation, the *provisions of Art. 19*

(conferring important rights of freedom on all citizens of India) may be *suspended*. (Art. 358)

It is also clarified that this provision is to apply only when a Proclamation of Emergency declaring that the security of India (or any part **thereof**) is threatened by war or external aggression (and *not* by armed rebellion) is in operation.

It is also provided that the above provisions of Art. 358 are *not* to apply—

- (a) to any law which does *not* contain a recital to the effect that such a law is in relation to the Proclamation of Emergency in operation when it is made; *or*
- (b) to any *executive action* taken otherwise than under a law containing such a recital.

As seen earlier, a Proclamation of Emergency can be **issued only when the President** is satisfied that a grave emergency has arisen whereby **the** security of India is threatened, whether by war or domestic violence. In **such** times of grave crisis, when the very existence of the State is at stake, it **was** thought necessary to curtail Fundamental Rights which are enjoyed in normal times. Art. 358, therefore, provides that when a Proclamation of **Emergency** is in operation, nothing in Art. 19 shall restrict the power of the State (as **defined** in Part III, (a) to make any law, *or* (b) to take any executive action, which the State would, but for the provision contained in that Part, be competent to do. However, any law so made shall, to the extent of the incompetency, cease to have effect as soon as the Proclamation ceases to operate, except as regards things done *before* the law so ceases to take effect.

As seen above, if such a Proclamation of Emergency is in operation only in a *part of India*, any such law (as above) may be made, or any such executive action (as above) may be taken, even in respect of that part of India where the Proclamation is *not* in operation. *if* it is in the interests of the security of India or any part thereof.

The Supreme Court has observed that the continuation of a Proclamation of Emergency and the imposition of restrictions of fundamental rights during such emergency are matters which are best left to the executive, which would be able to assess the extent of the crisis in a given situation. The argument that, during such an emergency, the executive may abuse its powers, and the citizens would be left without a remedy, was repelled by the Court as being a political argument, with only an indirect impact on the constitutional question. (*Makhan Singh v. State of Punjab*, 11.1+1 1964 S C. 381)

4. The *fourth* effect of a Proclamation of Emergency is that, while it is in operation, the President may declare that the *right to move any Court for the enforcement of the Fundamental Rights* mentioned in Part III of the Constitution (*except* Articles 20 and 21), and all *proceedings* for such enforcement, may be *suspended* (Art. 359)

2. Proclamation of Emergency owing to financial stringency (Art. 360)

If the President is satisfied that a situation has arisen whereby the financial stability or credit of India (or any part thereof) is threatened, he may, by a Proclamation, make a declaration to that effect.

It was *formerly* provided that the satisfaction of the President on this point was to be final and conclusive, and could *not* be questioned in any Court on any ground. It was further provided that neither the Supreme Court nor any other Court had the jurisdiction to go into the validity —

- (i) of such a Proclamation of the President; *or*
- (ii) the continued operation of such a Proclamation.

This provision was, however, *deleted by the Forty-fourth Amendment, 1978*.

Such a Proclamation may be *revoked* or *varied* by a subsequent Proclamation. It is also to be laid before each House of Parliament. It ceases to operate at the expiry of *two months*, *unless* before the expiry of that period, it has been approved by resolutions of *both* Houses of Parliament.

However, if any such Proclamation is issued at a time when the House of the People has been dissolved *or* if the dissolution of the House of the People takes place during the period of *two months* referred to above, and if a resolution *approving* the Proclamation has been passed by the Council of States, but no resolution with respect to such proclamation has been passed by the House of the People before the expiry of that period, — the Proclamation

ceases to operate at the expiry of *thirty days* from the date on which the House of the People first sits after its reconstitution, *unless* before the expiry of this period of thirty days, a resolution approving the Proclamation has also been passed by the House of the People.

Art. 360 also mentions the effects of a Proclamation of Emergency *in case of financial stringency*.

While a Proclamation of Emergency *declared owing to financial stringency* is in operation, the executive authority of the Union extends to the giving of *directions to any State, to observe such canons of financial propriety as may be specified in the directions*. Any such *direction* may include (i) a provision requiring the *reduction of salaries* and allowances of persons serving a State, as also of persons serving the Union (including High Court and Supreme Court Judges); (ii) a provision requiring all *Money Bills to be reserved* for the consideration of the President after they are passed by the Legislature of the State.

3. Provisions in case of failure of constitutional machinery in States (Arts. 356-357 & 365)

Articles 356 and 357 make important provisions for failure of constitutional machinery *in the States*.

Proclamation when made (Arts. 356 & 365)

If the President, on receipt of a report from the Governor of **a State**, is satisfied that a situation has arisen in which the Government **of the State cannot** be carried on in accordance with the provisions of **the** Constitution, the President may make a Declaration to that effect. Any such Proclamation may be *revoked* or *varied* by a subsequent Proclamation. (Art. 356)

Under Art. 365, if any State fails *to comply with, or to give effect* to any *directions* given in the exercise of the executive power of **the** Union under any of the provisions of this Constitution, it becomes lawful for the President to *hold* that a situation has arisen in which **the** Government of the State *cannot* be carried on in accordance with **the** provisions of this Constitution.

Its effects (Arts. 356-357)

The effects of such a Proclamation are *three*

1. The President may assume to himself all the *functions and powers of Government* of the State.
2. The President may declare that the powers of the Legislature **of** the State shall be exercisable by the Parliament. in which **case** Parliament may confer on the President the power of the Legislature of the State to make laws as well as to authorise (when the House of **the** People is not in session) expenditure from the Consolidated Fund of the State, pending the sanction of such expenditure by Parliament
3. The President may make such incidental and consequential provisions, as appear to the President to be necessary or desirable for giving effect to the objects of the Proclamation

But the President *cannot* assume to himself the power of a High Court; nor can he suspend any provision relating to a High Court.

Every Proclamation under this Article is to be laid before each House of Parliament.

When it ceases to operate [Art. 356(3X4)]

1. Such a Proclamation ceases to operate *after two months*, but *not* if it has been *approved* by resolutions of both Houses of Parliament
2. If the Proclamation is issued at a time when the House of the People is *dissolved* or the dissolution of the House of the People **takes** place during the period of two months referred to above, and if **a** resolution approving the Proclamation has been passed by the Council of States, but no resolution with respect to such Proclamation has been

passed by the House of the People before the expiration of that period. the Proclamation ceases to operate at the expiration of *thirty days* from the date on which the House of the People first sits after its reconstitution; but *not* so, if before the expiration of the said period of thirty days, a resolution approving the Proclamation has been **also** passed by the House of the People [Art. 356(3)]

Unless revoked, a Proclamation so approved *ceases* to operate on the expiry of *six months* from the date of issue of the proclamation.

It is also provided that a resolution to continue a Proclamation in force for any period *beyond a year* from the date of issue of such a Proclamation *cannot* be passed by either House of Parliament, *unless— (a)* a Proclamation, Emergency is in operation in the whole of India

(*or* in the whole or any part of the State, as the case may be) at the time of the passing of such a resolution; *and* (b) the Election Commission certifies that the continuance of the Proclamation is necessary on account of difficulties in holding general elections to the Legislative Assembly of the State concerned.

(It is also provided that the provision contained in the above paragraph is *not* to apply to the Proclamation of Emergency issued on 11th May, 1987, with respect to the *State of Punjab*.)

Whether the power of the President is open to Judicial review

The Supreme Court has **held** that the exercise of power by the President under Art. 356 to issue a Proclamation is subject to judicial review to the limited extent of examining whether the conditions precedent to the issuance of the Proclamation have been satisfied or *not*. Thus, the court could scrutinise whether there existed material for the satisfaction of the President that a situation had arisen in which the Government of the State could *not be* carried on in accordance with the provisions of the Constitution which would induce a reasonable man to come to the conclusion in question. (*S. R. Bommai v. Union of India*, AIR 1994 SC 1918)

Application of emergency provisions to the State of Punjab (Art. 369-A)

(Art. 359-A has been repealed by the *Sixty-third Amendment*, 1989)

Difference between 'proclamation of emergency' and 'proclamation of failure of constitutional machinery in a State'.—

The two types of proclamation differ, *not only* as to the *grounds* leading **to the** Proclamation, *but also* as to the *effects*.

1. The right to move the Courts for the enforcement of Fundamental Rights would *not* be affected in case of Proclamation of failure of constitutional machinery, but is liable to be suspended in case of a Proclamation of Emergency. (Art. 359)

2. On the other hand, while the object of a Proclamation of Emergency is to confer greater powers of *control* upon the Union authorities, the State authorities would *not* cease to function. In the case of a Proclamation of failure of constitutional machinery, on the other hand, the Government of **the State** concerned, or some part of it, would be *suspended* by the Union. [Art. 358(1)]

19

MISCELLANEOUS PROVISIONS

(Arts. 361-367)

The following topics are discussed in this Chapter :

- A. Protection of President and Governors
- B. Protection of publication of proceedings of Parliament and **State** Legislatures

- C. Court *not* to interfere in disputes arising out of certain treaties, agreements, *etc.*
- D. Special provisions as to major ports and aerodromes
- E. Effect of failure to comply with, or give effect to, directions given by the Union.
- F. Interpretation

A. Protection of President and Governors (Arts. 381)

(1) The President, or the Governor of a State, is *not answerable to any Court* for the exercise and performance of the powers and duties of his **office**, or for any act done or purporting to be done by him in the exercise and performance of those powers and duties

However, the conduct of the President may be brought under review by any Court, Tribunal or body appointed or designed by either House of Parliament for the investigation of a charge under Article 61.

Moreover, the above provision does *not also* restrict the right of any person to bring appropriate proceedings against the Government of India or the Government of a State

(2) No criminal proceedings whatsoever can be instituted or continued against the President or the Governor of a State, in any Court during his term of office.

(3) No process for the arrest or imprisonment of the President or **the** Governor of a State can issue from any Court during his term of office.

(4) No civil proceedings in which relief is claimed against the President or the Governor of a State can be instituted during his term of office in any Court, in respect of any act done, or purporting to be done, by him in his personal capacity. whether before or after he entered upon his office. as President or as Governor of such State, until the expiration of *two months* next after *notice* in writing has been delivered to the President or the Governor, as the case may be, or left at his office, stating the nature of the proceedings, the cause of action therefor, the name, description and place of residence of the party by whom such proceedings are to be instituted and the relief which he claims.

S. Protection of publication of proceedings of Parliament and State Legislature (Art. 361A)

Art. 361A provides that no person shall become liable in any proceedings (civil or criminal) in any Court in respect of the publication in **a** newspaper of a *substantially true report* of any proceedings of either House of Parliament or either House of a State Legislature, *unless* the publication is proved to have been made with *malice*.

However, the above protection is *not* available in the case of a publication of any report of the proceedings of *a secret sitting* of Parliament or a State Legislature.

The above provisions also apply to reports or matters which are broadcast by means of wireless telegraphy as part of any programme or service provided by means of a broadcasting station.

C. Courts *not* to interfere in disputes arising out of certain treaties, agreements etc. (Art. 363)

Art. 363 lays down that, notwithstanding the other provisions of the Constitution, but subject to the provisions of Article 143, neither the Supreme Court nor any other Court has jurisdiction in any dispute arising out of any provision of a treaty, agreement, covenant, engagement, *sanad* or other similar instruments which was entered into or executed *before* the commencement of this Constitution by any Ruler of an Indian State and to which the Government of the Dominion of India or any of its predecessor Governments was a party, and which has or has been continued in operation *after* such commencement, or in any dispute in respect of any right accruing under or any liability or obligation arising out of any of the provisions of this Constitution relating to any such treaty, agreement, covenant, engagement, *sanad* or other similar instrument.

D. Special provisions as to major ports and aerodromes (Art. 384)

(1) Notwithstanding anything in this Constitution, the President may, by public notification, direct that as from such

date as may be specified in the notification, -

(a) any law made by Parliament or by the Legislature of a State shall *not* apply to any major port or aerodrome *or* shall apply thereto subject to such exceptions or modifications as may be specified in the notification: *or*

(b) any existing law shall cease to have effect in any major port or aerodrome, except as respect things done or omitted to be done before the said date, *or* shall in its application to such port or aerodrome have effect subject to such exceptions or modifications as may be specified in the notification.

E. Effect of failure to comply with, or to give effect to, directions given by the Union (Art. 365)

As stated in the previous Chapter, where any State has failed to comply with, or to give effect to, any directions given in the exercise of **the** executive power of the Union under any of the provisions of this Constitution, it is lawful for President to hold that a situation has arisen in which **the** Government of the State *cannot* be carried on in accordance with **the** provisions of this Constitution.

F. Interpretation (Art. 387)

(1) Unless the context otherwise requires, the General Clauses **Act**, 1897, is, subject to any adaptations and modifications that may be **made** therein under Article 372, to apply for the interpretation of the Constitution, as it applies for the interpretation of an Act of the Legislature of **the** Dominion of India.

(2) Any reference in the Constitution to Acts or laws of, or made by, Parliament, or to Acts or laws of, or made by, the Legislature **of a State**, is to be construed as including a reference to an Ordinance made by **the** President or to an ordinance made by a Governor, as the case **may be**.

(3) For the purposes of the Constitution of India, "**foreign State**" **means** any State other than India.

However, subject to the provisions of any law made by Parliament, **the** President may by order declare any State *not* to be a foreign State **for** such purposes as may be specified in the order.

AMENDMENT OF THE CONSTITUTION

(Art. 368)

Legalism and rigidity, it is said, are the inevitable consequences of federalism, and the success of a federal constitution depends considerably upon the extent to which these two evils are minimised. Essentially, a new Constitution reflects the problems of the day and the solutions ultimately accepted. However, like any other statute, the Constitution needs to keep pace with changing times. If no provisions are made for the *amendment* of the Constitution, there would be no *legal* way of meeting the changing needs of society, and a *forcible extra-legal subversion* would perhaps be the only way out. It was precisely this that prompted *Burke* to observe that "a Constitution without some means of change is without the means of its conversation".

The provisions for the amendment of the Indian Constitution are contained in Article 368. However, it is *not possible* to lay down categorically as to whether this process of amendments is "*easy*" or "*difficult*". Further, it must also be remembered that when a Constitution is to be amended, *not only* the amendment provisions, *but also* the *temperament of the people*, is to be kept in mind. Thus, although the Swiss Constitution is "rigid", the Swiss people are *not*, and their flexibility has paved the way for several amendments. Similarly, the amendment process of the American Constitution is difficult, but when the U.S. Congress proposes an amendment, it usually succeeds. As far as the Indian Constitution is concerned, the fact that it has been amended more than *ninety* times so far, is an effective reflection on the rigidity (or otherwise) of the Constitution.

The provisions regarding amendment have assumed great importance ever since the historic judgment of the Supreme Court in *Golak Nath's case* and the Twenty-fourth Amendment, which empowered Parliament to amend *any* provision of the Constitution, *including* the Chapter on Fundamental Rights. The validity of the Twenty-fourth Amendment was in question before the Supreme Court in *Swami Kesavananda Bharati's case*, and it was *held* that the said Amendment was *valid* (Both these cases have been discussed in Appendix IV to this book.)

So far as the *procedure for amendment* of the Constitution is concerned, it may be said that such procedure is *partly flexible* and *partly rigid*. The general provision laid down for amendment is that an amendment to the Constitution can be initiated only by the introduction of a Bill in either House of Parliament. If such a Bill is passed by each House by a majority of the total membership of each House and by a majority of two-thirds of its members present and voting, and is thereafter **assented** to by the President, the Constitution stands amended in terms of **the BILL**. However, a *special procedure*, is prescribed for an amendment relating **to eleven** specified matters (which will be dealt with later at greater length.)

Put in a nutshell, it can be said that the Constitution **provides for three classes of amendments** of its provisions :

(1) Those that can be effected by a *bare majority*, which is required for

the passing of any ordinary law. The amendments which fall in this category are :

- (a) Art. 4 (providing for amendments to certain Schedules **of the** Constitution consequential to the passing of laws under **Arts. 2** or 3 of the Constitution);
- (b) Art. 169 (empowering the President to create or abolish **Legislative** Councils in State); *and*
- (c) Art. 240 (empowering the President to make regulations **for the** peace, progress and good government of certain Union Territories).

(2) Those that can be effected by a *special majority* as laid **down In**

Article 368. All constitutional amendments, other than those referred to in (1) come within this category

(3) Those that require, in addition to the *special majority* mentioned In Article 368, *ratification* by resolutions passed by the legislatures of *not less than* half of the States This class covers *eleven categories* of amendment, which seek to make any change in the provisions regarding the *federal structure of the Constitution*

Power & Procedure For Amendment Of the Constitution

(Art. 368)

Article 368 prescribes a *special procedure* in **case the Constitution** has to be *amended*. There are *four steps* in this **procedure as under** :

An amendment of this Constitution may initiated only

1. By the *introduction of a bill* for the purpose in either **House of Parliament**.

It must be remembered that the process of amending **the Constitution** is a *legislative process* and an amendment Bill **is ordinarily to be** passed as a *legislative measure*.

2. *When the Bill is passed* in each House by a majority **of the total membership of** that House *and* by a majority **of not less than two-thirds** of the members of that House present and voting—it is *presented to the President for his assent*.

3. Upon such assent being given to the Bill, the Constitution **stands** amended in *accordance with the terms of the Bill*.

4. However, if such amendment seeks to make any **change in any of the** following *eleven matters*.—

(i) Article 54 : (Election of President)

(ii) Article 55 : (Manner of election of President)

(iii) Article 73 : (Extent of executive power of the Union)

(iv) Article 162 : (Extent of executive power of State)

(v) Article 241 : (High Courts for Union Territories)

(vi) Chapter IV of Part V : (The Union Judiciary)

(vii) Chapter V of Part VI : (The High Courts in the States)

(viii) Chapter I of Part XI : (Legislative Relations)

(ix) Any of the Lists in the Seventh Schedule

(x) The representation of States in Parliament

(xi) The provisions of Art. 368, itself,—

the amendment must also be ratified *by the Legislatures of not less than one-half* of the States, *by resolutions* to that effect passed *by those Legislatures, before the Bill* making provisions for such amendment is *presented to the President* for his assent

The *Forty-second Amendment*, 1976, had provided that no amendment of the Constitution, including the provisions relating to Fundamental Rights, made or purporting to be made under S. 368, could be called into question *in any Court on any ground*. The amended Art. 368 also declared that there would be no limitation whatsoever in the power of Parliament to amend, by way of addition, variation or repeal, *any of the provisions* of the Constitution under Art. 368.

The above two Provisions (introduced by the Forty-second Amendment) were challenged before the Supreme Court in *Minerva Mills Ltd. v. The Union of India* (AIR. 1980 S.C. 1789). The five member Bench of the Supreme Court, which tried this case, was unanimous in its opinion that *both the provisions were void*, as they were beyond the amending powers of the Parliament. The *first clause*, which sought to deprive the Courts of the power to declare any amendment of the Constitution invalid, was struck down as *unconstitutional*. The Court observed that the Indian Constitution is founded on a judicious balance of power among the three wings of the State, namely, the Executive, the Legislature and the Judiciary. Thus, it is *not only the function, but also the duty*, of the judges to pronounce on the validity of the laws passed by the Parliament. If the Courts are to be totally deprived of this power, Fundamental Rights would become a mere adornment, and Art. 13 of the Constitution would be turned into a dead letter.

The Court further *held* that the *second clause*, which would give a vast and undefined power to Parliament to amend the Constitution, was also *unconstitutional*. This clause would give Parliament unfettered power to amend the Constitution, even to the extent of distorting it out of recognition. Indeed, *a limited amending power* is one of the basic features of the Indian Constitution, and therefore, the limitations on that power *cannot* be destroyed. (A more detailed discussion of the *Minerva Mills' case* will be found in Appendix III to his book.)

It is clear from the above, that the amending process prescribed by the Indian Constitution has certain distinctive features compared with the corresponding provisions in the leading Constitutions of the world. The procedure for amendment must be considered as '*rigid*' insofar as it **requires a special** majority and, in some cases, a special procedure for amendment, **as compared** with the procedure prescribed for ordinary legislation. But the **procedure** **is not** as complicated or difficult as in the U.S.A. or in any other **rigid Constitution**.

In connection with the amendment of the Constitution, the **following six points** may be noted :

(a) Subject to the special procedure laid down in Article 368, the Constitution of India vests constituent power upon the ordinary legislature of the Union, *i.e.*, the Parliament, and there is no separate **body for** amending the Constitution, as exists in some other Constitutions (**e.g.**, a Constitutional Convention).

(b) The State Legislatures *cannot* initiate any Bill **or proposal for** amendment of the Constitution. The only mode of initiating a **proposal for** amendment is to introduce a Bill in either House of the Union Parliament.

(c) Subject to the provisions of Article 368, Constitution **Amendment** Bills are to be passed by Parliament in the same way as ordinary **Bills**. They may *be* initiated in either House and may be amended like **other Bills**, subject to the majority required by Article 368. But for the special **majority** prescribed, they must be passed by both the Houses and receive the President's assent, as any other Bill. There is no requirement **of a** referendum or plebiscite or a reference to a constitutional convention.

(d) The previous sanction of the President is *not required* for introducing in Parliament any Bill for amendment of the Constitution.

(e) The requirement relating to ratification by the State **Legislatures** **is** more liberal than the corresponding provisions in the American Constitution. While the latter requires ratification by *not less than three-fourths* of **the** States, under the Indian Constitution ratification by *not less than half* of them would be enough.

(f) No provision of the Constitution is immune from Constitutional amendment and, provided the procedure as laid down in Article 368 **is** complied with Parliament may, by a Constitution Amendment Act, **amend** even Article 368 itself.

Can Parliament amend the Chapter on Fundamental Rights?

This question has assumed immense importance in recent **times**, following the judgment of the Supreme Court in *Golak Nath's case*, **the** subsequent amendment of the Constitution (the Twenty-fourth Amendment), and the challenge to that Amendment in *Kesavanda Bharati's case*.

The power of Parliament to amend the Chapter on Fundamental **Rights** first came up for consideration before the Supreme Court, *as early as* 1952, in *S.P. Singh v. The Union of India* (1952 S.C.R. 89). In this case the Supreme Court *upheld* the First Amendment to the Constitution, which introduced certain changes in Part III relating to Fundamental **Rights**. **Many** more amendments followed, and the Seventeenth Amendment **was again** challenged before the Supreme Court in *Sajjan Singh v. The State of Rajasthan* (1965 1 S.C.R. 93). Here again, the *majority* opined that *S. P. Singh's case* was rightly decided, although the *minority* expressed a doubt on the correctness of that case.

In view of this doubt expressed by the minority (in *Sajjan Singh's case*), when a similar challenge was made in *I. C. Golak Nath v. The State of Punjab*. (AIR. 1967 S.C. 1643). the matter was referred to a *Bench of eleven judges*. The majority of *six judges* held that a law amending the Constitution is a 'law' under Art. 13(2), and if it abridges or restricts any fundamental right guaranteed in Part III of the Constitution, it is, to that extent, *void*. *The majority thus opined that Parliament has no power to amend Part III, so as to impose any restriction on fundamental rights guaranteed therein.*

It was realised by the majority that the consequences of their judgment would produce chaos in the country, as all similar previous amendments would have to be treated as *void ab initio*. To avoid such a drastic consequence. the

majority judgment took cover under the *American doctrine of prospective invalidity*, and said that the *previous Amendments* would continue to be *valid, even though* they curtail fundamental rights. However, *henceforth*, Parliament would have no power to restrict, deprive or curtail a fundamental right by amending the Constitution. (The criticism of the majority decision has been considered in Appendix IV to this book.)

To counteract the widely-criticised decision of the Supreme Court, Parliament passed the *Twenty-fourth Amendment* to the Constitution, providing therein that Parliament *had* the power to amend *any part* of the Constitution, including the Chapter dealing with fundamental rights. This Amendment was challenged in *Swami Kesavananda Bharati's case* (AIR. 1973 S.C. 1461) before a *special Bench of thirteen judges* of the Supreme Court. In this case, reference was made to the debates of the Constituent Assembly, to the Drafting Committee of the Assembly and to the speeches of Mr. Nehru and Dr. Ambedkar, and a strong case was sought to be established that constitutional amendments are *not* excluded from the bar under Art. 13(2) and that, therefore, all amendments violative of fundamental rights are clearly unconstitutional and void. Grave consequences would follow, it was argued, if the Constitution was treated as an ordinary law which could be changed at the will of the party in power and that measureless harm would be done to the economic and moral life of the country.

The Court *upheld* the Twenty-fourth Amendment in *Kesavananda Bharati's case*, and this case, in effect, overruled the earlier decision of the Supreme Court in *Golak Nath's case*. However, the Court cautioned that Parliament had no power to abrogate or take away fundamental rights or to completely change the *fundamental features* or the *basic structure* of the Constitution. Justice Shelat and Justice Grover laid down, in that case, that *the following can be said to be the basic features (or basic structure) of the Indian Constitution* :

1. The supremacy of the constitution.
2. Republican and democratic forms of government and **sovereignty of the country**.
3. Secular and federal structure of the constitution.
4. Demarcation of powers between the executive, legislature and judiciary.
5. The dignity of the individual³¹ secured by the various freedoms and basic rights in Part III and the mandate to build a welfare State contained in Part IV
6. The unity and integrity of the nation.

References to the theory of the basic structure of the Constitution **are** also to be found in the following cases decided by the Supreme Court (**all** of which are discussed in detail in *Appendix IV*)

-*Smt. Indira Gandhi v Raj Name*;
— *Add. District Magistrate, Jabalpur v. S. Shukla*
— *Minerva Mills Ltd. v The Union of India*.

21

TEMPORARY AND TRANSITIONAL PROVISIONS

(Arts. 369-392)

To effect the switch-over from the previous regime to the regime under this Constitution, provisions had to be made to meet the *temporary* and *transitional* situations, and these are to be found in Arts. 369 to 392 of the Constitution.

”As this Constitution replaces the Constitution of 1935, till all the provisions of this Constitution effectively come into operation, there is a need for temporary and transitional provisions to enable the machine to start on its work. Such provisions are inevitable when a new Constitution is adopted. They are temporary and transitional, and after the transitional period is over, they have neither importance nor significance in the working of the Constitution. The effect of these provisions is that the functionaries and the officers and the bodies which were functioning under the Constitution of 1935 continue to function under new names.” — *Joshi*

Temporary power of Parliament to make laws with respect to certain matters in the State List as if they were matters in the Concurrent List (Art. 369)

Notwithstanding anything in this Constitution, Parliament is empowered, during a period of *five years* from the commencement of **the** Constitution, to make laws with respect to the following matters, *as if* they were enumerated in the Concurrent List. namely.

(a) trade and commerce within a State in, and the production, supply and distribution of, cotton and woollen textiles, raw cotton (including ginned cotton and unginned cotton or *kapas*), cotton seed, paper (including newsprint), food-stuffs (including edible oilseeds and oil), cattle fodder (including oil cakes and other concentrates), coal (including coke and derivatives of coal), iron, steel and mica.

(b) offences against laws with respect to any of the matters mentioned in clause (a), jurisdiction and powers of all Courts, *except* the Supreme Court, with respect to any of those matters, and fees in respect to any of those matters, but *not* including fees taken in any Court.

But any law made by Parliament, which Parliament would *not*, but for the provisions of this Article, have been competent to make, would, to the extent of the incompetency, cease to have effect on the expiration of the said period, *except* as respects things done or omitted to be done before the expiration thereof.

Temporary provisions with respect to the State of Jammu and Kashmir (Art. 370)

Notwithstanding anything in the Constitution,—

(a) the provisions of Article 238 do *not* apply in relation to the State of Jammu and Kashmir.

(b) the power of Parliament to make laws for the said State is limited to—

(i) those matters in the Union List and the Concurrent List which, in consultation with the Government of the State, are declared by the President to correspond to matters specified **in the** Instrument of Accession governing the accession **of the State to** the Dominion of India as the matters with respect to **which the** Dominion Legislature, may make laws for that State; *and*

ii) such other matters in the said Lists as, with the concurrence **of** the Government of the State, the President may by order specify;

© the provisions of Article 1 and of this Article apply in relation to that State;

(d) such of the other provisions of this Constitution apply **in** relation to that State, subject to such exceptions and modifications as the President may by order specify.

Provided that no such order which relates to the matters specified in the Instrument of Accession of the State referred to in paragraph (i) of sub-clause (b) can be issued *except* in consultation with the Government of the State.

Provided further that no such order which relates to matters other than those referred to in the last preceding *proviso* can be **issued** *except* with the concurrence of the Government.

Special provisions with respect to the State of Maharashtra and Gujarat (Art. 371)

Art. 371 provides that notwithstanding anything in this Constitution, the President may, by order, made with respect to the State of Maharashtra or Gujarat, provide for any special responsibility of the Governor for—

(a) the establishment of separate development boards of Vidarbha, Marathawada, the rest of Maharashtra, Saurashtra, Kutch and the rest of Gujarat, with the provision that a report on the working of each of these boards will be placed each year before the State Legislative Assembly.

(b) the equitable allocation of funds for development expenditure over the said areas subject to the requirement of the State as a whole, **and**

© an equitable arrangement providing adequate facilities for technical education and vocational training, and adequate opportunities for employment in services under the control of the State Government, in respect of all the said areas, subject to the requirements of the State as a whole.

Special provisions with respect of other specified States (Art. 371A to 371F)

Special provisions have also been made with respect to other specified States as follows :

- (a) Special provision with respect to the State of Nagaland Art **371A.** (b) Special provision with respect to the State of Assam Art 371B (c) Special provision with respect to the State of Manipur : Art **371C.** (d) Special provision with respect to the State of Andhra Pradesh Art **371D.**
- (e) Establishment of a Central University in Andhra Pradesh **Art. 371E.**
- (f) Special provisions with respect to the State of Sikkim : Art. **371F** (g) Special provision with respect to the State of Mizoram : (Art 371-G).
- (h) Special provision with respect to the State of Arunachal Pradesh (Art. 371-H).
- (i) Special provision with respect to the State of Goa. (Art. 371-1)

Continuance in force of existing laws and their adaptation (Art. 372)

- (1) Notwithstanding the repeal by this Constitution of the enactments referred to in Article 395, but subject to the other provisions of this Constitution, all the laws in force in the territory of India immediately before the commencement of this Constitution are to continue in force therein until altered to, repealed or amended by a competent Legislature or other competent authority.
- (2) For the purpose of bringing the provisions of any law in force in the territory of India into accord with the provisions of this Constitution, the President may by order make such adaptations and modifications of such law, whether by way of repeal or amendment, as may be necessary or expedient. and provide that the law shall, as from such date as may be specified in the order, have effect subject to the adaptations and modifications so made, and any such adaptations or modifications shall *not be* questioned in any Court of law.
- (3) Nothing in clause (2) is to be deemed —
 - (a) to empower the President to make any adaptation or modification of any law after expiry of *three years* from the commencement of this Constitution: *or*
 - (b) to prevent any competent Legislative or other competent authority from repealing or amending any law adapted or modified **by** the President under the said clause.

Provisions as to Judges of the Federal Court and proceedings pending in the Federal Court (Art. 374)

- (1) The Judges of the Federal Court holding office immediately before the commencement of this Constitution, *unless* they have elected otherwise, became on such commencement, the Judges of the Supreme Court, and would be entitled to such salaries and allowances and to such rights in respect of leave of absence and pension as are provided for under Article 125 in respect of the Judges of the Supreme Court.
- (2) All suits, appeals and proceedings, civil or criminal, pending in the Federal Court at the commencement of this Constitution stood removed to the Supreme Court, and the Supreme Court has jurisdiction to hear and determine the same, and the judgment and orders of the Federal Court delivered or made before the commencement of this Constitution have the same force and effect *as if* they had been delivered or made by the Supreme Court.

Courts, authorities and officers to continue to function subject to the provisions of the Constitution (Art. 375)

All Courts of civil, criminal and revenue jurisdiction, all authorities and all officers, judicial, executive and ministerial, throughout the territory of India, continue to exercise their respective functions, subject to **the** provisions of this Constitution.

Provisions as to Judges of High Courts (Art. 376)

Notwithstanding anything in clause (2) of Article 217, the Judges of a High Court in any Province holding office immediately before the commencement of this Constitution, *unless* they have elected otherwise, became on such commencement, the Judges of the High Court in the corresponding State, and thereupon are entitled to such salaries and **allowance and to** such rights in respect of leave of absence and pension as **are provided for** under Article 221 in respect of the Judges of such High Court

Any such Judge is, notwithstanding that he is *not* citizen of **India**, eligible for appointment as Chief Justice of such High Court or as **Chief** Justice or other Judge of any other High Court.

Provisions as to Comptroller and Auditor-General of India (Art. 377)

The Auditor-General of India holding office immediately before **the** commencement of this Constitution, *unless* he has elected otherwise, became on such commencement, the Comptroller and Auditor-General of India, and is entitled to such salaries and to such rights in respect of leave of absence and pension as are provided for under clause (3) of Article 148 in respect of the Comptroller and Auditor-General of India, and is entitled to continue to hold office until the expiration of his term of office **as** determined under the provisions which were applicable to him immediately before such commencement.

Provisions as to Public Service Commissions (Art. 378)

(1) The members of the Public Service Commission for the Dominion of India holding office immediately before the commencement of this Constitution, *unless* they have elected otherwise, became on such commencement, the members of the Public Service Commission for the Union and notwithstanding anything in clauses (1) and (2) of Article 216, but subject to the proviso to clause (2) of the Article, continue to hold office until the expiration of their term of office as determined under the rules which **were** applicable immediately before such commencement to such members.

(2) The members of a Public Service Commission of a Province **or of** a Public Service Commission, serving the needs of a group of Provinces holding office immediately before the commencement of this Constitution, *unless* they elected otherwise, became on such commencement, **the** members of the Public Service Commission for the corresponding **Slate or** the members of the Joint State Public Service Commission serving **the** needs of the corresponding States, as the case may be, and notwithstanding anything in clause (1) and (2) of Article 16, but subject to the proviso to clause (2) of that Article, continue to hold office until the expiration of their term of office as determined under the rules which **were** applicable immediately before such commencement to such members

Power of the President to remove difficulties (Art. 392)

(1) The President may, for the purpose of removing any difficulties, particularly, in relation to the transition from the provisions of the Government of India Act, 1935. to the provisions of this Constitution, by order direct that this Constitution shall, during such period as may be specified in the **order**, have effect subject to such adaptations. whether by way of modification, addition or omission, as he may deem to be necessary or expedient.

Provided that no such order could be made after the first meeting **of** Parliament duly constituted under Chapter II of Part V

(2) Every order made under clause (1) is to be laid before **Parliament**. (3) The powers conferred on the President by this Article, **by Article** 324, by clause (3) of Article 367 and by Article 391 shall, **before the** commencement of this Constitution, be exercisable by the **GovernorGeneral** of the Dominion of India.

APPENDIX I

THE GOVERNMENT OF INDIA ACT 1935

[NOTE. — The Government of India Act, 1935, has been Included for study by some Universities only. Students are, therefore, advised to check if this Act forms part of the Syllabus prescribed by their respective Universities.]

Brief historical background

After the two historic Round Table Conferences held in 1930 and 1931, a third Round Table Conference was convened — rather reluctantly — by the British Government, and it lasted from 17th November 1932 to 24th December 1932. Only 46 delegates were invited, and these were chosen only from pro-Conservatives. The Labour Party did *not* co-operate and the Congress was unrepresented. The delegates to the Third Round Table Conference merely discussed the Reports of the various sub-committees appointed during the Second Round Table Conference.

In March 1933, the British Government issued a document known as "*the White Paper*", containing the proposals of the British Government and indicating the lines on which the new Constitution of India was to take shape. It laid down the working basis of a new Constitution for India, with dyarchy at the centre and responsible government in the provinces. In April 1933, a joint Parliament Select Committee, consisting of 16 members, was appointed to discuss the proposals of the Government contained in the White Paper. The Committee published its Report on 11th November 1934, and a Bill was drafted on the basis of this Report. This Bill was passed in the form of the *Government of India Act, 1935*, which received royal assent on 2nd August, 1935.

Salient Features of the Government of India Act, 1935

The Government of India Act, 1935 is a *lengthy and complicated document*, the main features whereof are as follows :

(i) Affirmation of British supremacy

The Government of India Act, 1935, did *not* contain a Preamble. When the Liberals desired that dominion status should be made the ultimate goal of the British policy in India in the form of a Preamble to this Act, the British Government representatives flatly refused to do so. Under the 1935 Act, all rights of amending, altering or repealing the Indian Constitution remained vested in the British Parliament. Thus, it became clear that the English legislators would continue to chalk out the future political destiny of India.

(ii) Provincial Autonomy

A stronger dose of *provincial autonomy* was introduced by **the 1935 Act**. The whole of the provincial executive was made responsible to **the** Legislative Assembly of that province and even removable by **K. AU** provincial subjects were placed in charge of popular Ministers.

Provincial autonomy, under the 1935 Act, had a dual connotation. *Firstly*, it meant independence from the Central Government, and *secondly*, it stood for responsible government within the province itself.

Under the scheme of provincial autonomy, the Governor was appointed by the Crown on the advise of the Secretary of State for India. He had a Council of Ministers to act and advice him in the exercise of his powers. **The members** of the two Houses (which represented the people) were to be elected **directly** on the basis of a restricted franchise, which varied, *not* only from province **to** province, *but* in some cases, even from community to community.

Although the Provinces were planned to be "autonomous", **nevertheless**, there were several restrictions on the legislative powers of the Provincial Legislature. For instance, the previous sanction of the Governor-General was necessary before introducing certain Bills, and a Finance Bill could be introduced only on the recommendation of the Governor. Moreover, certain expenses were charged on the revenue of the Province, and these could *not* be voted by the Provincial Legislature. So also, the Governor had the power to summon and prorogue the Houses at his discretion, and even dissolve the Lower House at his pleasure. Furthermore, the Governor could issue Ordinances, *not only* when the Legislature was *not* in session, **but also** when it was.

Thus, provincial autonomy, introduced by the 1935 Act, suffered from several limitations. Many subjects were taken out of the power of **the** provincial legislatures and the Governor was armed with an imposing **set** of powers, which would be inconsistent with the spirit of provincial autonomy. In other words, provincial autonomy was expected to work alongside with the autonomy of the Governors. which was an impossible proposition in practice.

(iii) Federal Scheme

The Government of India Act proposed to substitute a *federal*, for **what** was in substance a *unitary*, form of government. The constituent units of this 'federation' were to be Provinces of British India (also known as Governor's Provinces) and the Indian States. The accession of the **States** onto the federation was optional, and the terms on which a State would join the federation were contained in an *Instrument of Accession*, **to be** executed by the Ruler of the State in favour of the Crown. The **Federal** Legislature could make laws *only* in respect of matters specified in **the** Instrument of Accession.

As stated above, it was *optional* for the Indian States to join **the** federation, and since *none* of the Rulers of the Indian States **gave their** consent, *the federation envisaged by the 1935 Act never came into existence*.

The *federal executive*, which was to be constituted on the *principle of dyarchy*, was to be composed of the Governor-General and a Council of Ministers. The Ministers were to be chosen and appointed by the Governor-General. Certain items, like defence and external affairs, were *not* within the scope of ministerial control. In other matters, however, the Governor-General was normally to act on ministerial advice, although he could act independently with relation to matters especially entrusted to him.

The Governor-General was also authorised to issue temporary Ordinances on the advice of his ministers. In case of a breakdown of the constitutional machinery, he could assume *all or any* of the powers vested in the federal authorities.

The *federal legislature* was to consist of the King, represented by the Governor-General, and two Houses. The Legislative Assembly (Lower House) was to consist of 375 members, of which 125 would represent the Indian States. The Council of States (Upper House) was to consist of 260 members, of which 104 would be representatives of the Indian States.

The two Houses were ordinarily to have equal power, but demands for supply of votes and money bills could be originated only in the Lower Houses. Detailed provisions were also made in the Act to resolve deadlocks by means of *joint sessions* between the two Houses.

Those subjects which were of common interest for the whole of India, and therefore required a uniform treatment, were included in the *Federal List*, which contained 59 items, like currency and coinage, external affairs, weights and measures, and so on.

Subjects which were mostly of provincial interest, and about which uniformity throughout India was *not* absolutely necessary, were placed in the *Provincial List*, running into 54 items, like prisons, police, education, and the like.

A third List, called the *Concurrent List*, was also drawn up. The items included in this list were primarily of provincial interest, and yet required a uniform treatment or policy throughout the country. This List contained 36 subjects, as for instance, criminal law and criminal procedure, civil procedure, bankruptcy, prevention of cruelty to animals, and so on.

The Federal Legislature was authorised to pass laws on subjects covered by the *Federal List*. The items of the *Provincial List* were within the exclusive legislative competence of the Provincial Legislature. As regards the items in the *Concurrent List*, both the *Federal* and the *Provincial* Legislatures were empowered to pass laws on subjects contained in that List. However, if a law was passed by the Federal Legislature on a subject which was in the Concurrent List, the Provincial Legislature could *not afterwards* make a law on the same subject.

It is interesting to note that the above scheme is almost **the same as** the one envisaged in the Indian Constitution.

Residuary powers (i.e., topics not covered by any of the three Lists) were, however, dealt with by the 1935 Act in a novel fashion. In **most** federations, such residuary items are *either* given to the *Centre* or to the federal units. However, the 1935 Act laid down that the Governor-General, acting in his discretion, had the power to allocate to

the Centre or to **the** province, as he might think fit, the right to legislate on any item *not* enumerated in any of the three Lists.

The Government of India Act, 1935, also set up a *Federal Court*, consisting of a Chief Justice and *not more than six* other Judges. Any increase in the number of Judges would require the approval of the Federal Legislature. The Judges were to be appointed by a Royal Warrant, and a Judge could be removed on the ground of misbehaviour or infirmity of body or mind, if the Privy Council so recommended, on a reference made to it by His Majesty.

The Federal Court had *exclusive original jurisdiction* in any dispute between the Federation and the Units, or between the Units *inter se*, if such dispute involved any question on which the existence or the extent of a legal right would depend *Appeals* lay to the Federal Court from any High Court in British India, *if* the High Court certified that the case involved a substantial question of law as regards the interpretation of the Government of India Act, 1935, or of an Order-in-Council made under the said Act. The Federal Court was also vested with *advisory jurisdiction*, and the Governor-General could refer to the Court for consideration, a *question of law* and obtain its opinion thereon.

The 1935 Act also provided that the law declared by the *Federal Court* and by any judgment of the *Privy Council* would be binding on all Courts in British India.

As regards *appeals from the judgments of the Federal Court*. It **was** provided that an appeal lay to the *Privy Council* from the original jurisdiction of the Federal Court in *constitutional matters*, and by its leave, or the leave of the Privy Council, in *all other cases*.

Defects in the Government of India Act, 1935

Heaps of criticism were cast on the 1935 Act, and most Indian **leaders** severely criticised the defects inherent in the Act According to **Mr.** Jawaharlal Nehru, the new Indian Constitution (contemplated by the **Act**) was a "machine with strong brakes and no engine" According to **another** critic, the 1935 Act "tests the full Indian capacity for administration **and** government, exactly as a man's capacity for swimming is tested **to the full** by throwing him into a river with his hands and feet tied".

The following were the *main drawbacks* of the 1935 Act, against which a strong public opinion was generated in Indian circles :

- (1) Indians were *not* given any control over the government of their own country. They could *not* vary or amend the Constitution, as this power was vested in the British Parliament.
- (2) The dyarchy at the Centre was thought to be a fatal mistake. The evils of dyarchy, at work in the Provinces under the 1919 Act, would now find way towards the Centre also.
- (3) The inauguration of the all-India Federation was conditional on a specified number of States joining the Federation. However, the 1935 Act gave a *choice* to the States to join or not to join the Federation. This was considered to be a serious drawback.
- (4) Indirect elections to the Federal Assembly was against the spirit of true democracy.
- (5) The Indians also protested against the control vested in the Secretary-of-State over the Indian Civil Service, the Indian Police Service and other all-India services.
- (6) The seats in the Legislature were to be filled on the basis of the Communal Award. This injected a *communal tone* into the Constitution, which was against the spirit of Indian nationalism and solidarity.
- (7) The Rulers of Indian States criticised the 1935 Act on the ground that it did *not* give them any power or authority to leave the Federation after having joined it.
- (8) The vast discretionary powers enjoyed by the Governor-General reduced Provincial Autonomy to a total farce.

APPENDIX II

THE INDIAN INDEPENDENCE ACT, 1947

[NOTE :— The Indian Independence Act, 1947, has been prescribed for study by *some Universities only*. Students are, therefore, advised to check if this Act forms part of the Syllabus prescribed by their respective Universities.]

Brief historical background

The Government of India Act, 1935, came into force in regard to the Provinces in April 1937. The Government of British India was, however, continued to be carried on in accordance with the Government of India Act, 1919, except that its powers were restricted to the matters assigned to it under the 1935 Act. At the elections to the new Provincial Legislatures, the Congress secured a comfortable victory in six provinces.

In September 1939, the Second World War broke out, and without even obtaining the opinion of the Provincial Legislatures. His Majesty's Government declared India as a belligerent country at war with Germany. The Congress resented this action, and called upon the British Government to forthwith make a declaration of the aims of the British Government. On 18th October 1939. His Majesty's Government came out with a declaration, which was found to be so unsatisfactory, that the Congress Working Committee called upon the Congress ministries to resign immediately. When this was done, the Governors of the Provinces took over the entire administration in their hands, as provided by the 1935 Act. In the meanwhile, opposition to the federation had been gaining strength, and in October 1940, the Viceroy finally announced that the coming into operation of the federal part of the Constitution would be postponed indefinitely.

In March 1942, the British Government issued a draft declaration containing its proposals as regards India's future. Sir Stafford Cripps, a member of the War Cabinet, was sent to India to discuss the Declaration with the Indian leaders. However, the *Cripps Mission* broke down, as the Congress insisted on having full cabinet government, and the Muslim League also rejected the offer and reiterated its demand for Pakistan.

Then came the *Cabinet Mission*, when three Cabinet Ministers came to India in 1946, to explore the possibility of an immediate solution of the Indian problem. The Ministers interviewed several leaders of all parties, and held a conference in Simla with the representatives of the Congress and the Muslim League. In May 1946, the Cabinet mission put forth certain basic principles to govern the Constitution of India. These proposals were acceptable to all parties, and elections to the Constituent Assembly took place in July 1946.

On 20th February 1947, His Majesty's Government announced its *intention of transferring power over British India to the Indian people*. Lord Mountbatten became the Viceroy in March 1947, and in June 1947, he issued a statement declaring an intention to partition India and the Provinces of Bengal, Assam and Punjab. Most of the proposals set out in the *Mountbatten Plan* were acceptable to the Congress, the Muslim League as also the Sikhs, and effect was given to the Mountbatten Plan in the shape of the Indian Independence Act, 1947.

Main Provisions of the 1947 Act

To give effect to the *Mountbatten Plan* (referred to above), the Indian Independence Bill was introduced in the British Parliament on 4th July 1947. The Bill received Royal assent on 18th July 1947, and British rule in India came to an end on 15th August 1947, the date of coming into force of the Indian Independence Act, 1947.

The main provisions of the Act may be summarised as follows

- (1) The Act provided for the *partition of India* and the establishment of the two dominions of *India* and *Pakistan*, with effect from 15th August 1947.
- (2) After 15th August 1947, His Majesty's Government in the United Kingdom was to have no responsibility of, or control over, the Government of India and Pakistan.

- (3) The paramountcy of the British crown over the Indian States would come to an end on 15th August, 1947.
- (4) The Act also provided for the legislative supremacy of two dominions, viz. India and Pakistan. The Legislature of each of the two new dominions was to have full legislative sovereignty, and no Act of the British Parliament passed after 15th August 1947 was to extend to any dominion. *unless* it was extended by the legislature of that dominion.
- (5) The Legislature of the two dominions would have full powers to make laws having extra-territorial jurisdiction.
- (6) Until a new Constitution was framed for India and for Pakistan, the existing Constituent Assemblies would be the Dominion Legislatures for the time being.
- (7) Until the new Constitutions were framed, the Government of India Act, 1935, would continue to remain the constitutional law of India, as modified or altered by each of the two dominions.
- (8) All treaties, agreements and functions exercisable by His Majesty with regard to the States and their rules were to lapse with effect from 15th August 1947.
- (9) Agreements with the tribes of the North Western Frontier of India were to be negotiated with the Dominion.
- (10) The office of Secretary of State for India was to be abolished, and his work was to be taken over by the Secretary of State for Commonwealth Affairs.
- (11) The title of "Emperor of India" was to be dropped from the royal style and title of the King of England.
- (12) For each of the new Dominions, there would be a **GovernorGeneral**, who would be appointed by His Majesty, and would represent **His** Majesty for the purposes of the Government of the Dominion. **The** Governor-General was empowered to make such provisions as **appeared to** him to be necessary or expedient to bring the provisions of the 1947 **Act** into effective operation.
- (13) The Governor-General was given the power to *modify* or *adapt* **the** Government of India Act, 1935, as he considered necessary. However, he could exercise this power only until 31st March 1948, after which it was open to the Constituent Assembly to modify or adapt the 1935 Act.
- (14) The existing Instruments of Instructions to the Governors and the Governor-General would lapse.
- (15) Each of the two Dominions were given full power to discontinue their membership of the British Commonwealth of Nations, if they so desired.
- (16) As the paramountcy over the Princely States was *not* transferred to either of the Dominion, it lapsed. with the result that the *native States became independent*.

Critical appraisal of the 1947 Act

The salient features of the Indian Independence Act, 1947 (**above**), show how historic a piece of constructive legislation it was. It reflects on both the *political sagacity of the British nation* and the *moderation and wisdom of Indian statesmanship* To quote *Earnest Bevin*. "It fills one with a feeling of gladness to live in this generation, and see the fate of 400 million people handled by discussion, by reason, by agreement. and *not* by gun."

After the 1947 Act, the Constituent Assembly could proceed with its work without any interference from the Muslim League A Drafting Committee was set up under the chairmanship of Dr BR Ambedkar, and the **draft** Constitution prepared by the Committee was widely discussed The Constitution was finally adopted on 26th November, 1947. and came into force **on** 26th January, 1950.

APPENDIX III

THE PROTECTION OF CIVIL RIGHTS ACT, 1955

[NOTE :—This Act has been prescribed for study by some Universities. Hence it is included in this book.]

Introduction

"*Untouchability*" is an evil which has been prevalent in Indian society since centuries. Its origin can be traced to the *Hindu caste system*, with *Brahmins* occupying the highest rung of the structural hierarchy, and the *Shudras*, the so-called "untouchables". At the other end, History has recorded (– and unfortunately still records –) a host of inhuman atrocities being committed on those who are unfortunate to be born on the lowest rung of the caste ladder. Apart from being forced to do unclean jobs, they were also socially ostracised and denied access to public places, like wells, bathing *ghats*, restaurants, etc. In some parts of India, even the shadow of an "untouchable" fell on a caste Hindu, it called for elaborate cleansing rituals. It was the great Indian leader, *Mahatma Gandhi*, who came to the rescue of these unfortunate masses, and sought to remove the word "untouchability" from the Indian social fabric.

Finally, the dream of the Father of the Nation was translated into reality, in the form of Art. 17 of the *Constitution of India*, which laid down that "untouchability" is abolished, and its practice in any form is forbidden. Later, Parliament also passed the *Untouchability (Offences) Act, 1955*, under which the practice of untouchability became a cognizable offence. In 1976, several important amendments were passed by Parliament, and the name of the Act was also changed to "*The Protection of Civil Rights Act*," This Act has an overriding effect; its provisions are to take effect notwithstanding anything inconsistent in any other law, custom or usages.

As it is not possible to define "untouchability", the Act makes express provisions with respect to the more common forms of practised in the country

As observed by the Supreme Court, the thrust of Art. 17 as well as of the present Article is to liberate the society from blind and ritualistic adhesion to traditional beliefs which have no legal or moral base. It seeks to establish a new ideal for society, equality to the "untouchables" at par with other persons in India. (*State of Karnataka v. Appa Balu Ingale*, 1993, Cr. L. J. 1029 SC)

The object of the Act is to liberate the so-called "untouchables" from the shackles of slavery into which the caste system had put them since years and to assimilate them into the mainstream of India's social life. The Act seeks to establish an ideal Indian society where none would suffer from the age-old stigma of "untouchability". It seeks to liberate the mass of downtrodden and neglected part of India's population and endow them with dignity and self-respect, without which the contents of the Preamble to the Indian Constitution would never become a reality.

As stated by the Supreme Court in *State of Karnataka v. Appa Balu Ingale* (referred to above), when interpreting the Act, the **Judge should be** cognizant of, and always keep at the back of his mind, the **constitutional** goals and the purpose of the Act and interpret the provisions **of the Act** in the light thus shed, to annihilate untouchability.

DEFINITIONS "Civil rights"

S. 2(a) of the Act defines the term "civil rights" as meaning any **right** accruing to a person by reason of the abolition of "untouchability" by **Art. 17** of the Constitution.

"Scheduled castes"

For the purposes of the Act, the term "*scheduled castes*" has the **same** meaning as under clause 24 of Art. 366 of the Constitution of India. Under this Article, and under Art. 341, the President is empowered, by public notification, to specify the castes, races or tribes which are deemed to be "Scheduled Castes" for the whole of India or for a particular **territory**. Parliament also has the power to include or exclude any caste, race or tribe from this list.

In this context, the Bombay High Court has *held* that only those who belong to the castes, races or tribes notified by the President, as slated above, can be deemed to be members of a scheduled caste. It follows that *a Buddhist cannot be said to belong to a 'Scheduled caste'* within the meaning of the term as used in the Protection of Civil Rights

Act. (*Mangela Kelkar v. State of Maharashtra*. A.I R. 1979, Bom 282)

”Untouchability”

It is interesting to note that the word *-untouchability*” is *not defined*, either in Art. 17 of the Constitution or in this Act. The term is perhaps *not* capable of a precise, legal definition, and is intended to cover all acts and the atrocities committed against a *-untouchable*” in any form whatsoever. The word always appears within *inverted commas*, perhaps to indicate that it is *not* to be understood in its dictionary meaning, but in a broader, historical sense.

The Supreme Court has lamented that although *”untouchability”* is totally abolished on paper. it is nevertheless being practised with impunity all over the country. This could be due to general apathy, both at the State level and at the individual level. More vigilance is called for, so that the goals **set** out by our Constitution may be achieved [*State of Karnataka v Appa Balu* (AIR 1993 S.O 1126)]

VARIOUS OFFENCES UNDER THE ACT

The Act envisages the following *five* categories **of offences** :

A. Enforcing religious disabilities (S. 3)

B. Enforcing social disabilities (S. 4)

C. Refusing to admit persons to hospitals, *etc.* (S. 5)

D. Refusing to sell goods or render services (S. 6)

E. Other offences arising out of *”untouchability”* (S. 7)

All the above offences are briefly dealt with below.

A. ENFORCING RELIGIOUS DISABILITIES (S. 3)

S. 3 of the Act makes it an offence to prevent any person, on the ground of *”untouchability”*, —

- (a) from entering any place of public worship open to other persons professing the same religion; *or*
- (b) from worshipping or offering prayers or performing any religious service in any place of public worship, or bathing in, or using the water of, any sacred tank, well, spring, water-course, river or lake or bathing at any ghat of such tank, water-course, river or lake, in the same manner and to the same extent as is permissible to other persons professing the same religion.

B. ENFORCING SOCIAL DISABILITIES (S. 4)

S. 4 of the Act makes it an offence, to enforce against any person, on the ground of *-untouchability”*, any disability with regard to :

- (i) access to any shop, public restaurant, hotel, or place of public entertainment; *or*
- (ii) the use of any utensils in a public restaurant, hotel, *dharamshala*, *sarai*, *musafirkhana*, kept for the use of the general public. *or*
- (iii) the practice of any profession, occupation, trade or business, or employment in any job; *or*
- (iv) the use of, or access to, any river, stream, spring, well, tank, cistern, water tap or other watering place, or any bathing ghat, burial or cremation ground, any sanitary convenience, any road, passage or any other place of public resort which other members of the public have a right to use or have access to; *or*
- (v) the use of any place used for a charitable or public purpose, maintained out of State funds *or* dedicated to the use of the general public: *or*
- (vi) the enjoyment of any benefit under a charitable trust created for the benefit of the general public; *or*
- (vii) the use of any public conveyance; *or*
- (viii) the construction, acquisition or occupation of any residential premises in any locality; *or*
- (ix) the use of any *dharamsala*, *sarai* or *musafirkhana* which is open to the general public; *or*
- (x) the observance of any social or religious custom, usage or ceremony, or taking part in any religious, social or cultural procession; *or*

(xi) the use of jewellery and finery.

The Supreme Court has *held* that restraining *harijans* from taking **water** from a well at gun-point, on the ground that they are untouchables, is **an** offence under S. 4 of the Act. (*State of Karnataka v. Appa Balu Ingele*, referred to above.)

C. REFUSING TO ADMIT PERSONS TO HOSPITALS ETC. (S. 5)

S. 5 of the Act makes it an offence, if a person, on the ground of "untouchability", —

- (a) refuses to admit any person to any hospital, dispensary, educational institution or hotel which is established or maintained for the benefit of the general public; *or*
- (b) does any act which discriminates against any such person after admission to any of the above institutions.

D. REFUSING TO SELL GOODS OR RENDER SERVICES (S. 6)

S. 6 of the Act makes it an offence to refuse, on the ground of "untouchability", to sell any goods or render any service, to any person, at the same time and place and on the same terms and conditions on which goods are sold or services are rendered to other persons in the ordinary course of business

E. OTHER OFFENCES ARISING OF "UNTOUCHABILITY" (S. 7)

S. 7 of the Act contains a list of *six* other offences related to "untouchability", viz.. —

- (i) preventing any person from exercising any right accruing to him by reason of the abolition of "untouchability" under Art. 17 of the Constitution. *or*
- (ii) molesting, injuring, annoying or obstructing any person in the

exercise of such right, or molesting, injuring, annoying or boycotting any person by reason of his having exercised any such right; **or**

- iii) inciting or encouraging any person or the public generally, by words (spoken or written), or signs, or by visible representation, to practise "untouchability". *or*
- (iv) insulting, or attempting to insult, a member of a scheduled **caste**, on the ground of "untouchability";
- (v) denying to any person belonging to his community, any right or privilege which such person would be entitled as a member of such community, *or*
- (vi) taking part in the ex-communication of such person, on the ground that such person has refused to practise "untouchability"

It is clarified that a person is deemed to incite or encourage the *preen** of untouchability for the purposes of clause (iii) above, —

- a)** if he directly or indirectly preaches "untouchability" or **as practice** any form, *or*
- (b)** If he justifies the practice of "untouchability" in any form on historical philosophical or religious grounds or on the ground of any tradition in the caste system or any other ground.

The word "*insult*" has not been legally defined. It would cover treating a person with offensive disrespect *or* offering indignity to any person. Whether an act amounts to "*insult*" or *not* would also depend on the facts and circumstances of a particular case, the occasion, and the manner in which the words were used. Any act which is meant to hurt the feelings or self-respect of another person would amount to an insult. (*Baste v. Robert*, 1987 Cr. L.J. 272)

As observed in one case, the test to determine whether the insult *was or was not* "on the ground of untouchability" (under S. 7, above) is to ask the question as to whether the insult would have taken place irrespective of the fact whether the victim *was or was not* a member of the Schedule Caste. *If yes*, the insult would be an "insult" simpliciter and would fall outside the ambit of S. 9. On the other hand, if the insult took place *only because* the victim belonged to the Schedule Caste, and it would *not* have taken place if he had belonged to a higher caste, then the insult can be

said to be an insult "on the ground of untouchability". (*Phul Singh v. State of M.P.*, 1991 Cr. L.J. 2954)

In *Patel Lilabhai Hirabhai v. State of Gujarat* (1979 20 Guj. L.R 154). when the complainant was reading a newspaper in a public library, the accused approached him and uttered the following words : "*Sala dheda. keep away. you have polluted us.*" It was held that the accused, by using the said language, had committed an offence under S. 7 of the Act.

F. UNLAWFUL COMPULSORY LABOUR (S. 7A)

S. 7A lays down that if a person compels any person to do any scavenging or sweeping or to remove any carcass or to flay any animal or to remove the umbilical cord or to do any other job of a similar nature, he shall be presumed to have enforced a disability arising out of "untouchability".

PENALTIES Punishment and enhanced punishment

All the above offences under Ss. 3 to 7 of the Act are punishable —

- (i) with imprisonment for *not less* than one month and *not more* than six months;
- (ii) *and also with* fine of *not less* than Rs. 100, and *not more* than Rs. 500.

Before the 1976 Amendment, a person violating the above provisions of the Act was punishable with imprisonment upto six months or with fine upto Rs. 500 or with both. After the said Amendment, it is clear that the court has no discretion to sentence a person only to imprisonment or only to impose a fine. Today, the court is obliged to pass the statutory minimum sentence of imprisonment in addition to the statutory minimum fine. (*State of Kamataka v. Annapa*, 1992, Cr. L. J. 158)

However, if a person is already convicted of an offence under the Act, and he commits a *second offence*, under the Act, he becomes punishable—

- (i) with imprisonment for *not less* than six months and *not more* than one year;
- (ii) *and also with* fine of *not less* than Rs. 200, and *not more* than Rs. 500.

Likewise, for the *third and subsequent offences*, the **enhanced punishment** is —

- (i) imprisonment **for** *not less* than one year, and *not more* **than two** years:
- (ii) *and also* fine of *not less* than Rs. 500 and *not more* than Rs. **1,000**.

The punishment for violation of S. 7A of the Act is —

- (a) imprisonment for *not less than* three months and *not more than* six months;
- (b) *and also* fine of *not less than* Rs. 100 and *not more than* Rs. 500.

Abettment (S. 10)

S. 10 provides that any person who abets an offence under the Act is to be punished with the *same penalty* as is prescribed for the offence itself. 11 is further clarified that if a *public servant* willfully neglects the investigation of an offence under the Act, he is deemed to abet an offence punishable under the Act.

Cancellation or suspension of licenses (S 8)

When a person is convicted of an offence under S. 6 of the Act (—seen above—), and he holds any licence in respect of any profession, trade, calling or employment in relation to which the offence is committed, the court may, in addition to the other penalties imposed on him, direct that his licence shall stand *cancelled* or *suspended* for such period as the court deems fit.

For the purpose of S 9, the term "licence" includes a permit or a permission.

Suspension of Government grants (S. 9)

If the manager or a trustee of a place of public worship or **any** educational institution or hostel which is in receipt of a grant from the Government, is convicted of an offence under the Act, the Government may suspend the whole or any part of such grant

Offences by companies (S. 14)

If an offence under the Act is committed by a company, every person who, at the time of the offence, was in charge of, and responsible for the conduct of the company's business, would be deemed to be guilty of the offence, *unless* he proves (i) that the offence was committed without his knowledge, or (ii) that he had exercised all due diligence to prevent the offence.

Collective fines (S. 10-A)

S. 10-A of the Act contains a *novel provision* under which the State Government can impose a *collective fine* on the inhabitants of any **area**. It provides that if the State Government is satisfied that the inhabitants of **an** area are concerned in, or have abetted, the commission of an offence under the Act, *or* are harbouring persons concerned in the commission of such an offence, *or* are suppressing material evidence of such an offence, the State Government may, by notification in the Official Gazette, impose a *collective fine* on such inhabitants who are collectively liable to pay it.

If any person is aggrieved by the imposition of such collective fine, he may file a petition before the State Government within the prescribed period, and the State Government may pass such order as **it thinks fit after** hearing the petitioner.

The State Government is also authorised to *exempt* the **victims of the** offence from the collective fine imposed by it.

Offences to be cognizable and triable summarily (S. 15)

All offences under the Act are made *cognizable offences*. In other words, a person can be arrested for such an offence without a warrant and without waiting for a complaint by the aggrieved persons. Except where the minimum imprisonment exceeds 3 months, all offences under the Act can **be** tried *summarily* by a Metropolitan Magistrate *or* a First Class Judicial Magistrate. A *public servant cannot* be prosecuted for an offence under the Act without the previous sanction of the Central Government or the State Government, as the case may be.

Presumption by Courts (S. 12)

S. 12 of the Act lays down that when any act constituting an offence under the Act is committed in relation to a member of a scheduled caste, *unless the contrary is proved, the Court shall presume* that such act was committed on the ground of "untouchability". Thus, S. 12 creates a *rebuttable presumption* against the offender, and relieves the prosecution from the burden of proving that the act was committed on the ground of "untouchability".

Thus, for instance, if a person refuses admission to a member of a scheduled caste to a public restaurant or a temple, the court will have to presume that this was done on the ground of "untouchability". The burden of proof would be on the accused to show that the refusal was *not* on that ground but on some other (legitimate) ground.

It is pertinent to note that the presumption is *not* that the act was committed, but that it was committed on the ground of "untouchability". In other words, the prosecution will still have to prove that the particular act was committed by the offender in relation to a member of a scheduled caste. Thus, in the above example, it would first have to be proved that entry to the restaurant or the temple was refused to such a person, there being no presumption on this point.

Limitation of jurisdiction of civil courts (S. 13)

Under S. 13 of the Act, no civil court can entertain or continue any suit **or** proceeding or pass or execute any decree

or order, if the claim involved **In any** such suit or proceeding, or if the passing or execution of such a decree or order, would in any way be contrary to the provisions of the Act.

Likewise, when adjudicating any matter or executing any decree or order, no court can recognise any custom or usage which imposes any disability on any person on the ground of "untouchability".

Overriding effect of the Act (S. 16)

Save as otherwise expressly provided by the Act itself, the provisions of the Act have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force or any custom or usage or any instrument having effect by virtue of any such law or any decree or order of any court or other authority.

Probation of Offenders Act, 1958, *not* to apply to certain persons (S. 16A)

It is provided that the provisions of the Probation of Offenders Act, 1958, shall *not* apply to any person above the age of fourteen years who is found guilty of having committed any offence punishable under the Act.

Changes effected by the 1976 Amendment

As stated earlier, when this Act was originally passed in 1955, it **was** called The Untouchability (Offences) Act Its title was changed in 1976 **to** the present name, and several other amendments were also introduced into the Act. Briefly stated, *the principal amendments of 1976 are the following :*

- (i) As stated above, the *name of the Act* was changed from "The Untouchability (Offences) Act" to "The Protection of Civil Rights Act".
- (ii) The term "*civil rights*" is defined to mean any right accruing to a person by reason of the abolition of "untouchability" under Art. 17 of the Constitution
- (iii) *Stricter and more severe punishments* have now been prescribed.

Earlier the court had a discretion to impose- a sentence of fine *or* of imprisonment or both *Now*, the court must do both Minimum sentences have been laid down now, so that *the court has no (Mereshon* to impose any sentence below the statutory minimum sentences.

- (iv) Any direct — or even indirect — practice of "untouchability" in any form is now punishable.
- (v) Compulsion to do "dirty jobs" like sweeping, scavenging, *etc.* **on** the ground of "untouchability" is also now punishable
- (vi) State Governments are empowered to impose *collective fines* on the inhabitants of a particular locality, if they take part in committing or abetting any offence relating to "untouchability".
- (vii) The Court is now empowered to *cancel the licences* of the offenders, if in the course of their trade or business, they are found to refuse to sell goods or provide services on the ground of "untouchability".
- (viii) A *public servant* who willfully neglects to investigate an offence relating to "untouchability" is now to be deemed to have abetted the offence, and is punishable accordingly.

APPENDIX IV

SOME IMPORTANT CASES ON THE CONSTITUTION OF INDIA

Case No. 1 *IN RE: INDO-PAKIS TAN AGREEMENT*

(A.I.R. 1960 S.C. 845) [Arts. 3, 143 and 368]

An agreement to exchange certain territories between India and Pakistan was entered into between the Prime Ministers of India and Pakistan. Under this agreement, Berubari, which was a part of India, was to go to Pakistan. A doubt arose as to whether the implementation of the agreement could be given effect to by an Act of the Parliament or whether a suitable amendment of the Constitution would have to be carried out. The President of India referred this matter to the Supreme Court for its advisory opinion. under Art. 143. The Supreme Court gave its opinion, holding that a part of the territory of India could *not* be ceded by an ordinary Act of the Parliament, but it could only be done by an *amendment* of the Constitution under Art. 368.

As a result of this judgment, the Constitution (Ninth Amendment) Act was passed, so that the Agreement could be implemented. However, many eminent writers on constitutional law have opined that this judgment was clearly wrong, and that an amendment of the Constitution was absolutely unnecessary, because a law under Art. 3 would have been adequate to implement the Agreement.

Case No. 2 STATE OF BOMBAY AND ANOTHER Vs. F. N. BALSARA

(A.I.R. 1951 S.C. 318) [Arts. 14 and 19]

F. N. Balsara, who was accused and convicted of having violated certain provisions of the Bombay Prohibition Act, 1949, prayed for a Writ of Mandamus against the State of Bombay and the Prohibition Commissioner, ordering them to forbear from enforcing against him the provisions of the Act. He challenged several provisions of the Act on the ground that they violated his fundamental rights under Arts. 14 and 19.

The following are the important principles laid down by the Supreme Court in the case :

- (1) A provision of law which provides for permitting certain persons to drink and prohibits certain others from drinking is *not* violate Art. 14, *provided* such classification is *reasonable*.
- (2) Permitting the use or consumption of foreign liquor among **members** of the Military and Naval Officers does *not* offend Art. 14, as the **members** of such Force could be regarded as a class by themselves **and** *such classification was reasonable*.
- (3) Restrictions which are imposed for securing the objects which **are** enjoined by the *directive principles of State Policy* in the Constitution, **may** be regarded as reasonable restrictions within the meaning of Clauses (2) and (6) of Art. 19.
- (4) When restrictions imposed by a law on the exercise of fundamental rights are *reasonable* in respect of certain items and *unreasonable* in respect of certain other items — the law *as whole* will *not* be void. When the offending provisions are *severable*, the provisions of the law imposing *unreasonable restrictions* alone would be *void* and those provisions which impose *reasonable restrictions* will be *valid*.
- (5) Prohibition of possession, consumption, buying or selling of wines by a law is a *reasonable restriction* upon the right to "acquire, hold and dispose of property" conferred by Art. 19(1)(f), having regard to the directive principles in Art. 46.

Case No. 3 BEHRAM KHURSHED Vs STATE OF BOMBAY

(A.I.R. 1955 S.C. 123) [Art. 13]

Behram Khurshed, the appellant in this case, was convicted of an offence under the Bombay Prohibition Act, 1949, on the ground that he **had** consumed prohibited liquor. The defence of the accused was that he **had** consumed medical preparations containing alcohol and *not* prohibited liquor. In the High Court, this defence was overruled on the ground that the **onus** showing this was on the appellant, and that the appellant had failed to establish it. The Supreme Court had earlier *held*, in *Balsara's case* (above), that such onus lay upon the prosecution. The prosecution had to prove that the accused had consumed liquor which was prohibited. The Supreme Court applied the same principle in this case, and further laid down **the** following principles

- (1) When a law is declared unconstitutional by a Court under Art 13, it becomes null and void for all post-constitutional purposes, and becomes altogether unenforceable as regards post-constitutional rights and liabilities, even though it may remain on the Statute Book. When a statute is declared void in part, the same effect takes place *pro tanto*.
- (2) When a law is declared void by the Supreme Court, the onus of showing its unconstitutionality in a subsequent case no longer lies on **the** person who challenges **it as** unconstitutional.

Case No. 4 KESHAVAN MADHAVAN MENON Vs. STATE OF BENGAL

(A.I.R. 1951 S.C. 128) [Art. 13]

The appellant was accused of having violated certain provisions of the Indian Press (Emergency Powers) Act, 1931. The proceedings had commenced before the commencement of the Constitution, and the matter was pending before the Court.

The petitioner contended the following : (1) Certain provisions of the Indian Press (Emergency Powers) Act, 1931, were inconsistent with Art. 19(1)(a), read with Clause (2) of the Article.

(2) Therefore, the law was *void* under Art. 13.

(3) In the circumstance, proceedings against him could *not* be continued after the commencement of the Constitution.

In appeal, the Supreme Court laid down the following principles

(1) The entire Part III of the Constitution relating to fundamental rights **was prospective**.

(2) Accordingly, existing laws which were inconsistent with another provision of Part III were rendered *void* with effect from the *commencement* of the Constitution, and *not ab initio*.

(3) The inconsistency referred to in Art. 13(1) did *not* affect transactions which had taken place *before* the commencement of the Constitution, or the enforcement of rights and liabilities that had accrued under the inconsistent law *before* the commencement of the Constitution.

(4) The Constitution is to be interpreted according to its *language*, **and** not according to any supposed *spirit* of the Constitution.

Case No. 5 STATE OF WEST BENGAL Vs. ANWAR ALI SARKAR

(A.I.R. 1952 S.C. 75) [Art. 14]

The Government of West Bengal passed an Act whereby the State Government was empowered to constitute, by notification, a Special Court of criminal jurisdiction, for such reasons, and to sit at such places, as may be notified. The Act further provided that the Special Court would try such offences as the State Government may by general or special order in writing direct. The Act also provided the procedure to be adopted by such a Special Court, such procedure being different from the one provided for in the Criminal Procedure Code. The procedure empowered the Court to convict a person of an offence with which he was *not* charged, if it was found on evidence that he had committed that offence. The right of revision to the High Court was taken away entirely, though appeals were allowed. The petitioner was one of the 50 persons tried and convicted by such Special Tribunal, and he filed a Petition before the Calcutta High Court (under Article 226 of the Constitution) questioning the legality of the trial and conviction.

The Calcutta High Court quashed the conviction and sentence imposed by the Special Tribunal, and laid down the following principles :

(1) Art. 14 guarantees equal protection against substantive and procedural laws and also against the administration of law.

(2) When a law is challenged as discriminatory, the relative consideration is the *fact* of the law, and *not* the *intention* of the legislature. But when a law is non-discriminatory, but its administration is challenged as discriminatory, the question of intention of the administrative authority becomes material. In such a case, the administrative action *cannot* be said to have offended Art. 14, *unless* it was *male fide* or actuated by hostile intention.

(3) Art. 14, however, permits the legislature to make a *reasonable classification*. In order that such a classification may be permissible, it must fulfil *two conditions* :

(a) The classification must be founded on a legitimate *differentia*. which distinguish those that are grouped together from others; *and*

(b) That *differentia* must have a *rational relation* to the object sought to be achieved by the Act.

(4) Though there is a presumption in favour of the constitutionality of an enactment, it is of no avail when a law is discriminatory. On the face of it, it is patent that the legislature made no attempt to make any classification.

(5) A law which authorises the executive to select cases of special treatment, without providing any code or standard for such differentiation is, on the face of it, discriminatory.

(NOTE. — When this case went to the Supreme Court, the majority of the Judges affirmed the judgment of the High Court and *held* that the West Bengal Act was *wholly void*, Patanjali Sastri, C J . however, gave a *dissenting judgment*.)

Case No. 8

CHIRANJIT LAL CHOWDHURY Vs. UNION OF INDIA & OTHERS

(A.I.R. 1951 S.C. 41) [Arts. 14, 19A and 31]

The Governor-General of India promulgated an Ordinance, which purported to make special provisions for the proper management and administration of the Sholapur Spinning and Weaving Co Ltd . as it was mismanaged and neglected For this purpose. the State appointed Directors to manage the affairs of the Company. but the shareholders were prohibited from nominating or appointing any Director, as long as the management continued in the hands of the statutory Directors The Ordinance was repealed, but an Act was passed by the Parliament incorporating all the provisions of the Ordinance.

One Chiranjit Lal Chowdhury, a shareholder of the Company, petitioned praying for a Writ of Mandamus and certain other reliefs under Art. 32 of the Constitution. The main grounds on which the petitioner based his prayers were the following :

(1) The *pith and substance* of the enactment was to take possession of and control over, the mills of the Company which are its valuable assets, and such taking of possession of property amounted to the deprivation of the right to property of the shareholders as well as the Company, and therefore, such legislation violated the fundamental right guaranteed under Art. 31 of the Constitution.

(It may be noted that, when this Judgment was delivered, the Right to property was a *fundamental right* under Art. 31. Today, it is *not*.)

(2) The said enactment also constituted an unjustifiable interference with the right to hold property, and therefore, violated the fundamental right guaranteed under Art. 19(1)(f) of the Constitution.

(3) As the enactment was solely directed against the Company, it denied equality before the law and equal protection of laws, guaranteed under Art. 14 of the Constitution.

The Supreme Court, in this case, laid down the following principles :

(1) To make out a case under Art. 32, the petitioner must establish, *not merely* that the law complained of is beyond the competence of the particular legislature, *but* that it affects or invades his fundamental right.

(2) The right that could be enforced under Art. 32 must ordinarily be the right of the petitioner himself who complains of infraction of such right and approaches the Court for relief.

- (3) Apart from the right of the Company, it was necessary to establish that the rights of the petitioner shareholder were violated by the legislation in question.
- (4) Every sovereign has an inherent right to take private property for public use.
- (5) Art. 31 of the Constitution (as it stood then), prescribed a two-fold limit within which such superior right of the State should be exercised
- (a) One such limit is that acquisition or taking possession of private property must be for a *public purpose*.
- (b) The other limit is that no property could be taken, unless the law which authorises such appropriation contains a provision for *payment of compensation*.
- (6) The principle of equality does *not* mean that every law shall have universal application for all persons who, by nature, attainment or circumstances, shall be in the same position, and the varying needs of different classes of persons often require separate treatment.
- (7) The principle does *not* take away from the State, the power of classifying persons for legitimate purposes.
- (8) Every classification is, in some degree likely to produce some inequality, and mere production of inequality is *not enough* to invalidate the law.
- (9) If a law deals equally with members of a well-defined class, it is ***not obnoxious***, and it is *not* open to a charge of denial of equal protection.
- (10) While reasonable classification is permissible, such classification must be based upon some real and some substantial distinction, bearing a reasonable and just relation to the object sought to be attained, and the classification *cannot* be made arbitrarily and without any substantial basis.

Case No. 7

STATE OF MADRAS Vs. CHAMPAKAM

AND STATE OF MADRAS Vs. SRINIVASAN [Arts. 15 and 29]

The facts of these cases were similar. The State of Madras had fixed certain proportions of seats available for admission of students of certain distinct communities to technical colleges like Medical Colleges and Engineering Colleges. This Order was known as the Communal G.O. **The** petitioner challenged the validity of this G.O. which reserved seats in those educational institutions for different communities in certain proportions, on the basis of *religion* and *caste*.

The petitioners based their prayer on the following grounds : (1) The Communal G.O. violated the right to equality guaranteed under Art. 15(1).

(2) It also violated the right of the admission to educational institutions guaranteed under Art. 29(2)

It was contended, on behalf of the State of Madras, that Art. 46 of the Constitution laid down a directive principle that the State shall promote with special care the educational and economic interests of the weaker section of the people. Therefore, the Communal G.O., being in accordance with the directive principle, could *not* be declared *ultra vires*.

The Supreme Court, in this case, laid down the following principles : (1) Any Government order, which denied admission to any person into any State-owned educational institution, on the sole ground of his religion, race, caste,

language or any of them, infringes the fundamental right under Art. 29(2).

(2) Art. 29(2) is *not* controlled by Art 46 The directive principles of State policy as laid down in Part IV of the Constitution *cannot* in any way override or abridge the fundamental rights guaranteed by Part III

(3) Such order also violated the right to equality guaranteed under Art. 15 of the Constitution.

[NOTE. — Attention may be drawn to the fact that this decision of **the** Supreme Court caused much dissatisfaction, and consequently Art. 15 **was** amended by the Constitution (First Amendment) Act, 1951. which **added** Clause (4) to Art. 15 of the Constitution]

Case No. 8

ROMESH THAPPAR Vs. STATE OF MADRAS

(A.I.R. 1950 S.C. 121) [Art. 181

The Government of Madras imposed a ban upon the entry **and** circulation of an English weekly called "Cross Road" in that State This order was made in exercise of the power under the Madras Maintenance of Public Order Act, 1949. The petitioner was the Printer, Publisher and Editor of that weekly. Making his application for a Writ of *Prohibition and Certiorari* to the Supreme Court, he contended that the order contravened his fundamental right of freedom of speech and expression guaranteed under Art. 19(1)(a) of the Constitution.

Under Art. 19(2), *as it stood before the First Amendment*, restrictions could be imposed by law which were passed in the interest of security of the State. It was the contention of the petitioner that *public order* and *security of the State* were different things. The Madras Act, which was directed towards the maintenance of the public order, was *not* an Act passed in the interest of the security of the State. Therefore, the Madras Act, when it sought to impose restrictions on his freedom of speech and expression, was inconsistent with Art. 19(1)(a) and Art. 19(2).

The contention of the petitioner was *upheld* by the Supreme Court, and the order of the Madras Government was quashed. This was one of the decisions which led to the passing of the Constitution (First Amendment) Act, 1951, which amended Art. 19(2) and some other Articles of Constitution.

Case No. 9

DR. N. B. KHARE Vs. STATE OF DELHI

(A.I.R. 1950 S.C. 211) [Art. 19]

Dr. Khare was served with an order of externment, and he was directed by that order to remove himself from the Delhi District and *not* to return to the District. The order was to remain in force for 3 months. The order was challenged on the ground that the East Punjab Safety Act, under which **the** order was issued, was an infringement of his fundamental right under Art 19(1)(d). He also contended that the order was *male fide*.

The *Court held*, after analysing the sections of the East Punjab Public Safety Act, that the provisions of the Act were *not unreasonable restrictions* within the meaning of Art. 19(5). Hence, the order of externment was *held* to be *legal*.

During the course of the judgment, the Court observed that it is the reasonableness of the *restriction* that is to be determined by the Court. **The** Court has no authority to determine reasonableness of the *law* itself. The reasonableness of the restriction, however is to be considered *both* from the *substantive as well as procedural* aspects.

Mukherjea J. delivered a *dissenting judgment*, and Mahajan J. **agreed with** him.

Case No. 10

M. S. M. SHARMA Vs. SHRI KRISHNA SINHA AND OTHERS

(Searchlight Case) (A.I.R. 1959 S.C. 395) [Arts 19 and 194]

Sharma was the editor of a daily in Patna, known as "*Searchlight*". Sharma published, on May 31, 1958, in his paper, a report of the proceedings of Bihar State Legislative Assembly. The report included a portion of the proceedings which the Speaker had ordered to be expunged from the proceedings. Hence, a Privilege Committee was appointed by the House to consider the question of the breach of privilege by Sharma. The Committee called upon Sharma to attend the meetings of the Committee, and to show cause why appropriate action should *not* be taken against him. Thereupon, Sharma moved the High Court at Patna under Art. 228 for the issue of an appropriate writ. He subsequently withdrew the petition and submitted a petition to the Supreme Court under Art. 32.

It was urged, on behalf of Sharma, that he had the fundamental right to speech and expression, which included the freedom of press under Art. 19(1)(a), and as such, he was entitled to publish the proceedings of the Bihar State Legislative Assembly. On behalf of Shri Krishna Sinha, the respondent and others, it was urged that the expunged portion did *not* form part of the proceedings at all. Moreover, there was no right even to the press to publish the proceedings of the House. Publication of proceedings without the authority of the House was a breach of its privileges, and as such, the House had a right to take appropriate action against the defaulters. Article 194(3) was relied upon in support of this contention. Thus, the Court was called upon to decide whether the right to the freedom of press, a fundamental right, was superior to the privileges of the legislature, or whether the privileges of the legislature would prevail over the fundamental rights.

On a proper construction of Art. 194(1), (2) and (3), the Supreme Court came to the conclusion that the provisions of Art. 19(1)(a) which are general, must yield to Art. 194(1), and the latter part of its Clause (3) which are special. Hence, the Houses of Legislature in India have the privilege under Art. 194(3) to prohibit publication of their proceedings.

Case No. 11

A. K. GOPALAN Vs. STATE OF MADRAS

(A.I.R. 1950 S.C. 27) (Arts. 19, 21 and 22)

The petitioner in this case was sentenced to a term of Imprisonment under the ordinary criminal law, but the conviction was set aside in appeal. Thereafter, he was detained under the provisions of a local Act of Madras. During such detention, he was served with an order made under **Sec. 3(1)** of the Preventive Detention Act, 1950. The petitioner challenged the **validity** of the order on various grounds. The most important grounds were that **the Act** offended the provisions of Arts 19 and 21. He prayed for Writ **of Habeas Corpus**.

The arguments in favour of the petitioner were mainly the following : (1) That the petitioner, a citizen of India, had the right to move freely throughout the territory of India [Art 19(d)] This right of the petitioner could only be restricted under Clause 5 of the Article. The Preventive Detention Act was *not* the law visualised under Clause 5 of Art 19. Therefore, his detention under the Act violated his freedom of movement **guaranteed under Art. 19**.

(2) Under Art. 21, no person could be deprived of his life or personal liberty "except according to procedure established by law." The word "law" used here, the petitioner contended, was *not* used in the sense of State-made or enacted law, but it was equivalent to the principles of natural justice. The Preventive Detention Act, which permitted detention without trial, was contrary to the principles of natural justice, and therefore, it offended Art. 21 of the Constitution.

(3) Art. 22 of the Constitution permitting preventive detention was controlled by Art. 21.

The Supreme Court laid down the following principles (1) Art. 19 has no application to a legislation dealing with

preventive or punitive detentions as its direct object. Therefore, a law with reference to Art. 21 *cannot* be challenged on the ground that it violates Art 19.

(2) It is *not* correct to read Art. 19(1)(d) as dealing with the same subject as Art. 21. The concept of the right to move freely throughout the territory of India in Art. 19(1)(d) is entirely different from the right to personal liberty referred to in Art. 21. Hence, Art. 21 is *not* controlled by Art. 19.

(3) In Art. 21, the word *law* has been used in the sense of State-made or enacted law, and *not* as an equivalent to **law** in the abstract or general sense, embodying the principles of natural justice. The right guaranteed under Art. 21 is *not a substantive* right, but it is a *procedural* right. Therefore, the phrase "except according to the procedure established by law" *cannot* be interpreted to mean the same thing as "*the due process of law*" clause of the *American Constitution*.

(4) Arts. 21 and 22 are to be read together, and Art. 21 does *not* form a code in itself.

[NOTE. — The decision in this case is an important landmark in the interpretation of the fundamental rights in this country. The decision, for the first time, made it clear that the right to personal freedom was subject to legislative control and also to judicial review.

The decision in *Gopalan's case* has been widely criticised — even by foreign experts on constitutional law. These critics agree with Fazal Ali J., who wrote *the dissenting judgment*. that the term *law* should be interpreted as meaning *natural law*.

The final blow to *Gopalan's case* came from the Supreme Court itself when it decided *Maneka Gandhi's case*, (discussed below), where the Court expressly overruled the majority decision in *Gopalan's case* and *held* that Art. 21 is controlled by Art. 19.]

Case No. 12

RATILAL Vs. STATE OF BOMBAY

(A.I.R. 1954 S.C. 388) [Art. 26]

The Bombay Public Trust Act, 1950, was enacted for the purpose of regulating and making better provisions for the administration of public and religious trusts. The Manager of a Jain Temple filed a petition before the High Court of Bombay praying for the issue of a Writ of *Mandamus*. His contention was that certain provisions of the above **Act violated the** fundamental right of the petitioner regarding his right to **practise religion**. The Act, among other things, required registration of religious **and public** trusts and payment of a contribution levied in respect of the **same**. **It had** also certain provisions regarding the appointment of trustees.

The High Court dismissed the petition. On appeal, the Supreme **Court laid** down the following principles :

(1) The provisions of the above Act relating to the appointment of **the** Charity Commissioner as a Trustee of any Public Trust by the **Court**, without any reservation in regard to religious institutions like temples **and Maths**, was *unconstitutional*.

(2) A religious sect has the undoubted right to manage its own **affairs** in matters of religion, and this includes the right to spend the trust money for religion or religious purposes and objects indicated by the founder of the trust or established by usage.

(3) Religious practices or performance of acts in pursuance of religious beliefs are as much a part of religion as faith or belief in particular doctrines.

(4) To divest the trust property or funds for purposes which the Charity Commissioner or the Court considers expedient or proper. although the original objects of the founder can still be carried out, is an unwarranted encroachment on the freedom of religious institutions in regard to the management of their religious affairs

–

Case No. 13 STATE OF BOMBAY Vs. BOMBAY EDUCATION SOCIETY

[(1955) 1 S.C.R. 568] [Art. 29]

An order of the Government of Bombay sought to regulate admission **to a** school run by the Bombay Education Society, whereby the order instructed the Headmaster that the medium of instruction of the school (which was English) should be confined to Anglo-Indians whose mother-tongue was English. With respect to others, the school could *not* impart education through the English medium of instruction. The school authorities moved the High Court of Bombay for a *Writ of Mandamus* under Article 226, seeking to restrain the Government and its officers from enforcing the said order. Similar applications were made by others who were refused admission under the order of the Government. The Bombay High Court granted the petition. The State of Bombay (as it was then called) went in appeal to the Supreme Court.

The Supreme Court *held* that Art. 29(1) gives protection to *any* section of the citizens having a distinct language, script or culture, by protecting their right to conserve the same. Art. 30 secures to minorities the right to establish and administer educational institutions of their choice, but Art. 29(2) **provides** that no citizen shall be denied admission into any educational institution maintained by the State, or receiving aid out of the State fund, on **grounds** only of religion, race, caste, language or any of them. Art. 29(2) gives **these** rights to *all* citizens, irrespective of their constituting a majority or minority. The order passed by the Bombay Government, it was *held*, was in the **nature** of a denial of the right conferred by Art. 29(2). In brief, it was *held* that the Government could *not* compel the school authorities to confine the English medium of instruction to Anglo-Indian students only.

Case No. 14 KERALA EDUCATIONAL BILL (1957)

(A.I.R. 1958 S.C. 958) [Arts. 30 and 143]

After the Kerala Legislative Assembly passed the Kerala Education Bill, it was presented to the Governor for his assent. The Governor, however, reserved the Bill (under Art. 200) for the consideration of the President. The President referred the Bill under Art. 143 to the Supreme Court of India for consideration and report.

The Court, in the course of its opinion, laid down certain important principles regarding the interpretation of the Constitution, as follows :

(1) In determining the scope and ambit of the fundamental rights relied on by or on behalf of any person or body, the Court may *not* entirely ignore the Directive Principles of State Policy, but should adopt the *principle of harmonious construction*, and should attempt to give effect to *both* as much as possible.

(2) The protection of Art. 30(1) extends to the educational institutions of minorities, religious or linguistic, whether established before or after the commencement of the Constitution. It also extends to aided schools, where there are scholars from outside the minority community. Art. 29(2) precludes aided schools from denying admission on the grounds only of religion, language, caste, race or any of them.

(3) The ambit of the right conferred by Art. 30(1) is to be determined from the point of view of the educational institution itself. The Constitution does *not* lay down any restriction as regards subjects to be taught therein.

(4) The true intention of Art. 30(1) is to equip minorities with a *shield* whereby they could defend themselves against attacks by majorities, religious or linguistic, and *not* to arm them with a *sword* whereby they could compel the majorities to grant concessions.

Case No. 15 P. D. SHAMDASANI Vs. THE CENTRAL BANK OF INDIA LTD. [Art. 32]

In this case, the petitioner prayed for the enforcement of his fundamental rights under Art. 19(1)(f) and Art. 31(1), alleged to have been violated by the Central Bank of India Ltd., a company incorporated under the Indian

Companies Act.

The Supreme Court laid down that a remedy under Art. 32 was *not* available where a person was deprived of his property by the wrongful **act** of an *individual*. The fundamental rights can be enforced under Art. 32, only if such rights are violated by *the State*.

Case No. 16 DARYAO Vs. STATE OF U.P.

(A.I.R. 1961 S.C. 564) [Res judicata and Art. 32]

The Board of Revenue in UP., in a second appeal under Section 267 of the U.P. Tenancy Act, 1939, decided that Daryao had no title to certain property with respect to which there had been a long litigation. Daryao moved the High Court at Allahabad under Art. 226 for the issue of a Writ of *Certiorari* to quash the judgment of the Board of Revenue. His petition was dismissed by the High Court, Daryao submitted another petition to the Supreme Court under Art. 32 and prayed for the same relief as before the High Court.

The Supreme Court applied the rule of *res judicata* to such proceeding, and observed :

”We hold that if a writ petition filed by a party under Art. 226 is considered on the merits as a contested matter, and is dismissed, the decision thus pronounced would continue to bind the parties, *unless it* is otherwise modified or reversed by appeal or other appropriate proceedings permissible under the Constitution

But if the petition was dismissed in the High Court, *not* on merits, *but because of the laches* of the party applying for the writ, then the dismissal of writ petition would *not* constitute a bar to a subsequent petition under Art. 32, except in cases where that facts thus found by the High Court may themselves be relevant even under Art 32”

Case No. 17

IN RE ART. 143: CONSTITUTION OF INDIA

(AIR. 1965 S.C. 475)

[Art. 143]

K printed and published a pamphlet The Speaker of the Legislative Assembly administered a reprimand to K. who was *not* a member of the Assembly, for having committed contempt of the Assembly, and also for having committed a breach of the privileges of a member of the Assembly by publication of the pamphlet Later, on the same day, the Speaker directed that K be committed to prison for committing another contempt of the Assembly by his conduct therein A warrant was issued over the signature of the Speaker, directing that K be detained in the jail for a period of seven days, and in execution of the warrant, K was detained in the jail.

Thereafter a petition under S. 491. Criminal Procedure Code and Art 226 of the Constitution was presented to the High Court by an Advocate on behalf of K, alleging that his detention in jail was illegal This petition was taken before a Division Bench of High Court, which passed an order that K should be released on bail on furnishing two sureties On receiving the information of the release of K on bail, the Assembly by a resolution took the view that the two Judges of the High Court, K and his Advocate had committed contempt of the Assembly, and ordered that K should immediately be taken into custody and the two Judges and the Advocate be brought in custody before the Assembly.

On hearing about this order, the two Judges and the Advocate made separate petitions to the High Court under Art. 226. contending that the resolution passed by the Assembly amounted to contempt of Court, that it was wholly without jurisdiction, that it should be set aside and that by an interim order its implementation should be stayed. On these petitions, the Full Bench of the High Court passed an order restraining the Speaker of the Assembly from issuing the warrant in pursuance of the direction of the Assembly and from securing execution of the warrant if already issued. When the incident reached this stage, the President of India decided to exercise his power to make a

reference to the Supreme Court under Art 143(1).

The following questions were formulated and referred to the Supreme Court for its opinion

- (1) Was it competent for the High Court to entertain and deal with the petition of Mr. K challenging the legality of the sentence imposed by the Assembly ?
- (2) By acting on such petition and releasing the petitioner, was the High Court guilty of contempt of the legislature ?
- (3) Could the Assembly direct production of the Judges of the High Court before it in custody or to call for their explanation for its contempt?
- (4) Was the Full Bench of the High Court competent to entertain and deal with the petitions of the two Judges and to pass an interim order restraining the Speaker ?
- (5) Whether the Judge of the High Court entertaining such petition commits contempt of the legislature and whether the legislature was competent to take proceedings against him.

The majority opinion of the Supreme Court answered the above questions as follows :

- (1) It was competent for the High Court to entertain and deal with the petition of K. challenging the legality of the sentence of imprisonment imposed upon him by the Legislative Assembly for its contempt and for infringement of privileges, and to pass orders releasing K on bail pending disposal of his said petition.
- (2) K, by causing the petition to be presented on his behalf to the High Court, the Advocate by presenting the said petition, and the two Judges of the Division Bench by entertaining and dealing with the said petition and ordering the release of K on bail pending disposal of the petition, did *not* commit contempt of the Legislative Assembly.
- (3) It was *not* competent for the Legislative Assembly to direct the production of the said two Judges and the Advocate before it in custody or to call for their explanation for its contempt.
- (4) It was competent for the Full Bench of the High Court to entertain and deal with the petition of the said two Judges and the Advocate, and to pass interim orders, restraining the Speaker of the Legislative Assembly and others from implementing the aforesaid resolution of the said **Legislature** Assembly.
- (5) In a case arising out of a contempt alleged to have been committed by a citizen who is *not* a member of the House of Legislature outside the four walls of the legislative chamber, a Judge of a High Court who entertains or deals with a petition challenging any order or decision of a Legislature imposing any penalty on the petitioner or issuing any process against the petitioner for its contempt, or for infringement of its privileges and immunities, or who passes any order on such petition, does *not* commit contempt of the Legislature. Such a Legislature is *not* competent to take proceedings against such a Judge in the exercise and enforcement of its powers, privileges and immunities.

Case No. 18 K. M. NANAVATI Vs. STATE OF BOMBAY

(A.I.R. 1961 S.C. 112) [Arts. 161 and 141]

Nanavati was convicted for murder, and accordingly sentenced by the High Court of Bombay. During the period of trial, Nanavati, who held the rank of a Commander in the Navy, was in the Naval custody. On the date of the judgment of the High Court, the Governor of Bombay passed an order whereby the sentence passed by the High Court of Bombay on Nanavati was suspended until the appeal intended to be filed by him in the Supreme Court against his conviction and sentence was disposed of. It **was** also provided that, in the meanwhile, Nanavati was to be detained in **the** Naval custody. This order was passed by the Governor under powers conferred on him by Art. 161 of the Constitution. An application for leave to appeal to the Supreme Court was made. The High Court did **not give** Nanavati such leave.

A petition for special leave was then filed in the Supreme Court. The petitioner also made an application to the Supreme Court seeking exemption from compliance with Order 21, Rule 5, which lays down that the petition for the

special leave will be considered only when the accused **has** surrendered to the sentence. The accused could *not* surrender to the sentence because of the order of the Governor. The matter was referred to the Constitution Bench of the Supreme Court.

The main issue was to examine the powers of the Governor under Art. 161 and the powers of the Supreme Court under Arts 142 and 145. Under Art. 142, the Supreme Court has power to pass any decree or **make any** order in any case or matter pending before it, and such decree or **order** is enforceable throughout India. Under this Article, the Supreme **Court has** also the power to suspend the sentence. Art. 145 empowers the **Court to** make rules regulating the procedure and practice of the Court. **The** question was whether this power of the Supreme Court was in conflict **with** the power of the Governor to suspend the sentence under Art. 161.

The Supreme Court arrived at a *harmonious construction* of the two Articles, by pointing out that Art. 161 does *not* deal with suspension of sentence during the time Art. 141 is under operation and the matter is *sub judice* in the Court. It was also observed by the Court that the Governor could *grant full pardon* during the pendency of the case, but *not suspension* of the sentence.

Case No. 19 M. P. SHARMA Vs. P. C. GHOSE

(1968, 72 C.W.N. 328) [Arts. 163 and 164]

The Governor of West Bengal was informed that the ministry of Shri Ajay Kumar Mukherji had lost the confidence of the Legislative Assembly. In spite of repeated suggestions made by the Governor to the Chief Minister to convene a meeting of the legislature to assess whether he enjoyed his confidence or *not*, the Chief Minister failed to call such a meeting. The Governor dismissed the ministry, prorogued the Assembly, and declined to dissolve it. Later, he appointed a new ministry with Shri P. C. Ghose as the Chief Minister. The Governor convened the session of the Assembly, but before it could hold a meeting, the Speaker gave an interim ruling that as the House had been illegally prorogued, he would adjourn the House *sine die*.

The matter was brought before the Calcutta High Court, and it was contended that, under Article 163(1), the Governor was under an obligation to act on the advice of his ministers, and as the ministry has been dismissed without such advice, the fresh ministry could *not* be lawfully appointed. It was also contended that the Governor could *not* dismiss the ministry till it had been defeated in the House.

In rejecting these contentions, the Calcutta High Court *held* as under : (i) Art. 164(1) did *not* impose any restriction or condition upon the power of the Governor to appoint a Chief Minister, though the appointment of other ministers had to be made on the advice of the Chief Minister. Therefore, the appointment of Shri P. C. Ghose as Chief Minister was *not* open to the objection on the ground that the outgoing Chief Minister had *not* advised such appointment. After new elections or on a dissolution of the legislature, there may be no Chief Minister, in which case it could *not* be contended that a Chief Minister could *not* be appointed.

(ii) The ministry held office at the Governor's pleasure, and Art. 164(1) placed no fetters on the Governor exercising his pleasure. The provision relating to ministers was a special provision within the meaning of Art. 310(1) and it did *not* fetter the pleasure of the Governor, as Art. 311 did.

(iii) Under Art. 163(2), the Governor was constituted the sole **judge** whether any power was required by the Constitution to be exercised in **his** discretion, and the Courts were precluded from deciding that question.

Case No. 20 STATE OF PUNJAB Vs. SAT PAL SINGH

(C.A. 1427 and 1428 of 1971) [Arts. 174 and 209]

In this case, a Constitution bench of the Supreme Court decided questions of great importance relating to the powers of State Governors. The relevant facts were briefly as under

In the general elections held in February 1967, the Congress party won 43 out of the 104 seats in the Punjab Legislative Assembly. The other parties, none of which had a majority in the House, formed a United Front Ministry

under Sardar Gurnam Singh. On November 22, 1967, 18 members of the United Front Party, including Sardar Lachman Singh Gill "defected", and formed the Punjab Janata Party, and with the support of the Congress Party formed a new ministry under Gill. The Legislative Assembly was summoned on February 22, 1968, and as the budget was to be considered, the financial statement was discussed on March 4, 5 and 6. On March 6, a motion of no confidence in the Speaker was moved, and the next day the Speaker ruled it out of order. As there were rowdy scenes in the House, the Speaker adjourned the Assembly for two months.

The action of the Speaker caused a political crisis, for as the budget was *not* passed, no expenditure in the State could be made from April 1, 1968. On March 11, 1968, the Governor prorogued the Assembly under Art. 174(2)(a). The order of prorogation was gazetted the same day, and copies of the gazette were despatched to the Speaker and the other members the next day. On March 13, 1968, the Governor promulgated the Punjab Legislature (Regulation of Procedure in Relation to Financial Business) Ordinance, 1968. On March 14, 1968, the Governor summoned the Assembly to a sitting on March 18, 1968, and directed the Assembly to consider two Appropriation Bills, Supplementary Estimates, and Demands for Grants. When the Assembly met, it transacted some business when Sardar Gurman Singh raised a point of order, but was asked to wait till the House considered other matters.

Section 3 of the impugned Ordinance provided that the sitting of either House of the Legislature was *not* to be adjourned without the consent of that House until the financial business was completed. When Sardar Gurman Singh rose to move his point of order, he was reminded that a resolution to the same effect was to be brought before the Assembly. However, he raised his point of order which was that the Ordinance **was** void as it was promulgated when the Assembly was in session, and that the House was summoned before the Assembly was prorogued. The Speaker who had some doubts about his power to adjourn the House in face of Section 3 of the Ordinance, ruled that the House was prorogued on March 18, that the Governor's order summoning the House was *void and illegal*, and consequently according to his previous ruling, the House stood adjourned for two months. The Speaker left the House, but members continued to sit. The Deputy Speaker took the Chair. He declared that the adjournment ordered by the Speaker was *null and void*, and he called upon the Chief Minister to move the consideration of the Expenditure, the two Appropriation Bills and other demands, were also passed. The Bills were transmitted **to** the Legislative Council, after the Deputy Speaker had certified them to be Money Bills. An objection that the Bills had *not* been certified by the Speaker was over-ruled by the Chairman, and the Bills were passed and received the Governor's assent.

Two writ petitions were filed in the *High Court*. A Full Bench *held* by a majority that the certification by the Deputy Speaker was invalid and that S. 3 of the Ordinance was unconstitutional. The Full Bench unanimously *held* the Appropriation Acts unconstitutional.

It was contended before the *Supreme Court* that the Assembly was prorogued on March 18 or 16 with the result that the Ordinance issued by Governor was *void* as it was passed when the Assembly was in session. Again, as the House was prorogued on March 18 or March 16, the Assembly was invalidly summoned. S. 3. of the Ordinance was challenged as invalid, and it was contended that the ruling of the Speaker on March 18 was *not* open to challenge in Courts, and all proceedings subsequent to the ruling were illegal. In any event, only the Speaker could certify the two Appropriation Bills as Money Bills, and as they were certified by the Deputy Speaker, they were invalid.

Hidayatullah, C. J. *held* that — (i) Art. 174(2) which enabled the Governor to prorogue the Assembly placed no restriction on his power.

(ii) The exercise of the Governor's power could *not* be described **as** *mala fide*, in the sense of being exercised in excess of his power or in colourable exercise of his power. The Speaker's ruling on March 7, adjourning the Assembly for 2 months before the Budget was passed, made it impossible for the Government to draw any money from the Consolidated Fund from April 1, having regard to Art. 266(3). The Governor **had** to act quickly to "put back the legislative machinery of the State into life." He followed the only practicable course, namely, to get the adjournment out of the way by prorogation and to summon the Assembly to meet.

(iii) The legislative powers of the Governor under Article 213(2) were co-extensive with those of legislature and were *not* limited to the matters contained in the legislative lists. The legislature could make a law under Art. 209, and consequently, the Governor's Ordinance was validly enacted under Arts. 209 and 213.

(iv) Art. 209 was meant to speed up financial business and to prevent filibuster, adjournments or other methods to delay such business. If ever there was an occasion for passing a law under Art. 209, this was the occasion.

(v) The resumption of the legislature was also correct. It restored the democratic machinery in the State "which had been rudely disturbed by the action of the Speaker. The matters were left in the hands of the Legislature with the only restriction that the Legislature would *not* adjourn except when a House by a majority desired. The measure was eminently healthy and as it was also legal, the Assembly was bound by the law thus enacted."

(vi) S. 3 of the Ordinance did *not* conflict with Art. 182(2), **which permitted an adjournment of the House for lack of a quorum. S. 3 must be** read down, for it was a well-settled principle of construction that wide general words must be "understood as not attempting something **beyond** the competence of the legislative body". S. 3, was, therefore, *infra vires*.

(vii) The contention that the adjournment of the Assembly by **the** Speaker on the 18th was valid, and that in any event, his ruling was final and could *not* be questioned, was also *held* to be incorrect.

Case No. 21

IN RE DELHI LAWS ACT, 1921 — DELEGATED LEGISLATION

(AIR. 1951 S.C. 332)

[Art. 143]

Certain statutes like the Delhi Laws Act, 1921, the Part C States (Laws) Act, 1950, had provided that, by notification in the Official Gazette, the Provincial Government might extend to certain territories, an enactment which was in force in any part of India. The main question to be decided in this case was whether the powers conferred on the executive to extend to certain territories, laws which were in force in other parts of India would *not* amount to delegated legislation, which was beyond the powers of the legislatures. A reference was made to the Supreme Court under Art. 143 of the Constitution.

It was contended, on behalf of the President, that a legislative authority, whether sovereign or subordinate, could delegate its function, *provided* such delegation stood the following *three tests*. viz. -

a) It must be delegation in respect of a subject which is within the scope of the legislative power of the delegated body

(b) Such power of delegation should *not* be excluded by the instrument by which the legislative body is created

c) It should *not* create another legislative body having the same powers

and discharging the same function which it itself has.

It was *held* in this case that the Indian Parliament could leave to another person or body, the introduction or application of laws which are, *or* may be, in existence at that time in a part of India which is subject to the legislative control of Parliament. However, the Supreme Court *held* that the delegation of this kind *cannot* extend to the repealing or altering of any essential particulars of laws which are already in force in the area in question. That is a matter which *Parliament alone* can handle

Case No. 22 STATE OF RAJASTHAN Vs. VIDYAVATI

(A.I.R. 1962 S.C. 933) [AM 300]

The husband of the petitioner was knocked down by a car, **which** resulted in multiple injuries, and thereafter in his death. The driver of the car was an employee of the State of Rajasthan, and the driver **had** negligently caused this injury, and it was caused while driving in the course of his Government service. The petitioner sued the driver and

the **State of** Rajasthan for compensation. It was contended, on behalf of the State of Rajasthan, that the State was *not* liable for the torts committed by its employee.

The trial Court upheld the contention of the Government, but the High Court of Rajasthan did *not* accept the contention, and decreed the suit against the State of Rajasthan. The State of Rajasthan appealed to the Supreme Court, The Supreme Court *held* that the State was as much liable for tort in respect of an act committed by its servant (within the scope of employment and functioning) as any other employer.

Case No. 23

KASTURILAL Vs. STATE OF U.P.

(A.I.R. 1965 S.C. 1039) [Art. 300]

In this case, Supreme Court distinguished the decision in *the State of Rajasthan v. Vidyavati* (above) on the ground that the driver in Vidyavati's case, while driving the car of the Collector from the workshop to his residence, was *not* discharging any sovereign function. The Supreme Court observed as follows :

If a tortious act is committed by a public servant, and it gives rise to a claim for damages, the question to ask is Was the tortious act committed by the public servant in discharge of statutory functions, which are referable to, and ultimately based on, the delegation of the sovereign powers of the State to such public servant?"

Case No. 24

I. C. GOLAKNATH Vs. STATE OF PUNJAB

(A.I.R. 1967 S.C. 1843) [Art. 368]

In this case, the Seventeenth Amendment to the Constitution, which limited or restricted certain fundamental rights, was challenged on the *ground* that the Parliament had no power to amend the Constitution in such a way as to curtail, restrict, limit or deprive any of the fundamental rights. The matter was earlier decided by a unanimous decision of the Supreme Court in *Shankari Prasad v. Union of India*, (1952) S.C. P. 89, where it was *held* that there were no restrictions on the power of the Parliament to amend the Constitution, and therefore, it could also amend Part III, dealing with Fundamental Rights.

The matter was again reopened in *Sajjan Singh v. State of Rajasthan* (1965) I.S.C.R. 933. However, in this case, the judgment of the Supreme Court was *not unanimous*. Therefore, in Golaknath's case, a Full Bench of the Supreme Court of *eleven judges* was constituted.

The *majority of six judges held* that the Parliament had *no power* to amend Part III of the Constitution so as to restrict or limit the rights guaranteed therein. Subba Rao, C. J. speaking for himself and four others, came to the conclusion that the Seventeenth Amendment (which **was in** question) was *void*, **as** it abridged fundamental rights, but at the **same time**, he further held, applying the *doctrine of prospective overruling*, that **the** decision should *not* affect the validity of the amendments made upto the date of the judgment, though thereafter, the Parliament would have no power to restrict, abridge, or limit fundamental rights. Hidayatullah J. also came to the conclusion that Parliament had no such powers, but *held* the impugned Act to be *valid*, as he was of the opinion that Article 31(A) of the Constitution, though invalid, had stood as a part of the Constitution as the validity of the Article was acquiesced for a long time.

[NOTE. - The majority judgment in *Golaknath's case* has been profusely criticised both in India and abroad. It is pointed out that it was *wrongly held* that Art. 368 prescribed merely the *procedure* for amendment and does *not* confer any *power* on the Parliament. Interestingly, the Twenty-fourth Amendment, 1971, has, in the head-note as

well as in the body of Art. 368 clarified the position, referring to the power of Parliament to amend the Constitution”

Again, the majority judgment traces the Parliament’s power to amend the Constitution in the *residuary power of legislation*, a view which, it is submitted, is very difficult to hold.

Further, Art. 368 does *not* expressly bar the Parliament’s power to amend *any* part of the Constitution. On the contrary, it speaks of the amendments of “this Constitution”,

Again, the majority judgment, while *not* discussing whether Part III of the Constitution (which deals with Fundamental rights) could be amended, suggested that the residuary power to legislate may be availed of to convene a fresh Constituent Assembly, which in turn could abridge the fundamental rights. This reasoning again, is *not* sound, because if Parliament *cannot*, in law, amend Part III, surely it *cannot* authorise another body to do that very thing.

Lastly, the American *doctrine of prospective invalidity*, which was invoked by the majority judgment, is **clearly not** applicable to our Constitution. It has generated enough difficulties in the U S , and even there, its value and validity is highly doubted

The decision in *Golaknath’s case* was, for all practical purposes, overruled by the Supreme Court in *Swami Kesavananda Bharati case*, discussed later.

Case No. 25 R. C. COOPER & OTHERS Vs. UNION OF INDIA

(THE BANKS’ NATIONALIZATION CASE)

(A.I.R. 1970 S.C. 564) [Arts. 14, 19 & 31]

Under the Banking Companies (Acquisition and Transfer of Undertakings) Ordinance of 1969, promulgated on July 19, 1969, the Government of India nationalized 14 major Indian Banks. This Ordinance was replaced by an Act duly passed by the Parliament, the Banking Companies (Acquisition and Transfer of Undertaking) Act (22 of 1969), with slight modifications.

This Act was challenged in the Supreme Court, on the ground that it violated fundamental rights guaranteed under Articles 14, 19 and 31 of the Constitution, and that therefore the Act was invalid and unconstitutional.

On February 10, 1970, the Supreme Court gave its judgment and *held* that—

(i) S. 15(2) of the said Act was unconstitutional on the ground that there was hostile discrimination against the 14 banks, in as much as they were prohibited from carrying on *not only* banking business, *but* virtually any non-banking business also.

(ii) The majority (Ray J. dissenting) *held* that Articles 19(1)(f) and 31(2) of the Constitution are *not* mutually exclusive. Thus, any acquisition must satisfy both these Articles. *viz.*, there must be a public purpose *and* the restriction must be reasonable.

(iii) The compensation under Article 31 should be just compensation. The Court will interfere if no method of valuation of the undertaking is laid down *or* if such method is *not* reasonable. As the Act in question adopted irrelevant principles of valuation (by omitting important items), the Act was liable to be struck down as contravening Art. 31(2) of the Constitution.

Case No. 26 HIS HOLINESS KESAVANANDA BHARTI SRIPADA GALVARU AND

OTHERS Vs. STATE OF KERALA AND ANOTHER

(A.I.R. 1973 S.C. 1461) [Art. 368]

The 24th, 25th and 29th Amendments to the Constitution of India came up for the scrutiny of the Supreme Court in *Swami Kesavananda Bharati's* *Write a note on Case*. As the matter dealt with a very important issue, which would be a *Kesavananda* landmark in the Indian Constitutional History, the matter was referred to the *Bharti v State of* Full Bench of the Supreme Court, consisting of *all* its Judges. The hearing Kerala lasted for 69 days, being the longest hearing in the history of the Supreme Court. Finally, the judgments were delivered on 23rd April. 1973 In all, there were 11 judgments, representing the views of the 13 member Bench

Nine of the thirteen Judges signed a document giving the views of the majority on this important aspect of the Indian Constitution. The over-all gist of this Summary is that the case of *I.C. Golaknath v. The State of Punjab* (above), which had *held* that Parliament has no power to abridge the Fundamental Rights, *was over-ruled*. However, the Supreme Court emphatically ruled that Article 368 does *not* empower Parliament to alter the *basic structure or framework of the Constitution*. This ruling has opened the way to future controversies as to what is "the basic structure or framework of the Constitution". By a majority of 7 to 6, the Supreme Court *also held* that Fundamental Rights, including Property Rights, can be amended.

In the opinion of Mr. Justice Shelat and Mr. Justice Grover, *the following can be regarded as the basic elements of the Constitution* :

1. The supremacy of the Constitution.
2. Republican **and** Democratic forms of **Government and sovereignty of the country**.
3. Secular and federal structure of the Constitution.
4. Demarcation of powers between the Executive, **Legislature and** Judiciary.
5. The dignity of the individual, secured by the various freedoms **and** basic rights in Part III and the mandate to build a welfare State contained in Part IV.
6. The unity and the integrity of the nation.

In this historic judgment, the Court upheld the validity of the 24th Amendment, under which Parliament, acting in its constituent power, was authorised to amend, by way of addition, variation or repeal. *any* provision of the Constitution.

The 25th Amendment, which qualifies the right to property, was also upheld in substance by the Supreme Court. However, it is *not* now open to the Court to decide whether an amount paid for the property taken over is *adequate or not*. Nevertheless, the Court may still examine whether **the** amount offered bears a reasonable relationship to the property acquired by the Government. This would empower the Court to interfere in a just case, Mere the amount has been arbitrarily determined *or* where such payment is an illusory one.

In this case, the 29th Amendment to the Constitution was also challenged. This Amendment sought to ensure that the Land Reform Legislation passed by the Legislature of Kerala. *viz.*, the Kerala Land Reforms (Amendment) Act. 1969, and the Kerala Land Reforms (Amendment) Act, 1971, were *not* struck down on the ground that they infringed the right to property. This Amendment was upheld. but the Kerala legislation itself was to be reviewed by the Constitution Bench of the Supreme Court to decide whether it abrogates the Fundamental Rights or only abridges them in a reasonable manner

A point was also raised in this case as to whether there are **any implied and inherent limitations** on Parliament's power of amending the Constitution. On this point, most of the Judges agreed that there are *no such implied or inherent limitations*, apart from those which are Implicit in the word "amendment". Considering this question. Mr Justice Shelat and Mr. Justice Grover observed that the power of judicial review was of paramount importance in a Federal Constitution Considering this question, Mr. Justice M hew observed • I do *not* think that there were or are any implied or inhurent limitations upon the power of amendment" He further observed that *the only limitation* is that the Constitution *cannot* be repealed or abrogated in the exercise of such power of amendment

The stand taken by the Full Bench of the Supreme Court in the **case** was neatly summed up by the youngest member of the Bench, **Mr.** Justice Chandrachud, as follows .

"Let us give to Parliament the freedom within the framework of the Constitution to ensure that the blessings of liberty will be **shared by all**."

Case No. 27 SMT. INDIRA GANDHI Vs. RAJ NARAIN (A.I.R. 1975 S.C. 2299)

On 12th June 1975, the Allahabad High Court decided in favour of Mr. Raj Narain who had preferred an Election Petition against Mrs. Indira Gandhi, who had defeated him in the mid-term polls from the constituency of Rae Bareilly by a margin of about, 1,12,300 votes. Mr. Justice Jag Mohan Lal Sinha of the Allahabad High Court had set aside Mrs. Gandhi's election, on the ground that she was guilty of *corrupt practices on two counts*, namely (i) the use of the service of Mr. Yashpal Kapur, while the latter was still a Government servant, for furthering her election prospects; and (ii) obtaining the assistance of the Government officials of Uttar Pradesh for constructing rostrums and making other arrangements at her election meeting in Rae Bareilly. The Allahabad High Court had further disqualified her from holding an elective office for six years. In view of the above findings, the Allahabad High Court had allowed the Election Petition of Mr. Raj Narain with costs.

Against this decision of the Allahabad High Court, Mrs. Gandhi preferred an appeal to the Supreme Court, and the matter came up before a Bench of *five judges*, namely, Chief Justice Mr A.N Ray, Mr. Justice, H.R. Khanna, Mr. Justice K.K. Mathew, Mr. Justice M.H. Beg and Mr. Justice Y.V. Chandrachud. It is interesting to note that all these five Judges were also associated with the famous *Kesavanda Bharati's case* (which has been discussed above). Further, while Mr. Justice Khanna had concurred with the majority view in that case, the other Judges deciding the appeal of Mrs. Gandhi had given a dissenting opinion in *Kesavananda Bharati's case*.

During the pendency of Mrs. Gandhi's appeal, *the Representation of the People Act, 1951, was amended with retrospective effect*, so as to apply to any election held even before the Amending Act was passed. The Amending Act brought about certain important electoral changes (which need *not* be gone into in great detail here). It, *inter alia*, (i) reduced the period for which a candidate is required to keep an account of election expenditure, (ii) excluded the concept of *holding out* as a prospective candidate from the definition of a "candidate", as laid down in Act. (iii) inserted a new clause by which if any person in Government service makes any arrangements or provides any facilities for any candidate without the candidate's consent, such arrangements or facilities would *not* be deemed to be assistance of furtherance of the prospects of that candidate's election, and (iv) laid down that the publication in the Official Gazette of the appointment, resignation *etc.*, of a Government servant and of the effective date thereof, shall be conclusive proof of such appointment, resignation *etc.*

During the pendency of Mrs. Gandhi's appeal, *the Constitution (Thirtiyninth Amendment) Act, 1975, was also enacted*. The amendment of the Constitution, *inter alia*, introduced a new article, namely Article 329A, containing *six clauses*. *The first of these clauses* laid down, *inter alia*, that no election of a person who holds the office of a Prime Minister can be called in question, except before such authority or body, and in such manner as may be provided for by or under any law made by Parliament. (It may be noted that this clause of article 329A was *held to be valid* by the Supreme Court in Mrs. Gandhi's case.)

Under the second clause of Art. 329A, the validity of **any such law as** is preferred to in the first clause (above) and decision of any **authority** or body under such law could *not* be called in question in any Court. (*This clause also was upheld* by the Supreme Court in the above case.)

The third clause provided, *inter alia*, that where any person **is appointed** as the Prime Minister while an election petition is pending, **such election** petition shall abate upon such person being appointed as the Prime Minister. (This clause too was *upheld* by the Supreme Court.)

The fourth clause of Article 329A provided that no law made by Parliament before the commencement of the **1975 Amendment**, in so far **as** it relates to the election petition and matters connected therewith, shall apply, or shall be deemed to have applied, to the election, *inter alia* of the Prime Minister. The clause further provided that such election shall *not* be deemed to be void, or ever to have become void, on any ground on which such election could be declared to be void under any such law, **and** notwithstanding any order made by any Court before the commencement of the 1975 Amendment declaring such election to be void, such election would continue to be valid in all respects, and such order of the Court would be deemed to have been void and of no effect. (*This clause of Article 329A was struck down* by the Supreme Court in the above case.)

The fifth clause laid down that any appeal or cross-appeal against any order of any court as is referred to in the

fourth clause above, pending before the Supreme Court immediately before the 1975 Amendment shall be disposed of in accordance with the provisions of the fourth clause above.

The *sixth clause* stated that the provisions of Article 329A would have effect notwithstanding anything contained in the Constitution.

The 1975 Amendment also conferred constitutional immunity **to** the Representation of the People (Amendment) Act, 1975, by including in the Ninth Schedule of the Constitution

Besides challenge to the validity of the Representation of the People (Amendment) Act, 1975, the constitutional validity of the clause **(4)** of the Article 329A was assailed on *two grounds* *First of all*, it was contended that it destroyed or damaged the basic features or the *basic structure* of the Constitution. Reliance was placed for this proposition on the decision of the Supreme Court in *Kesavananda Bharati's case*.

The second ground of challenge was that the House of Parliament which passed the Thirty-ninth Amendment were *not* properly constituted, in as much as several members of both the Houses were denied *the* opportunity of attending that session of the Parliament, as they were in detention under an executive order

On 7th November, 1975, the five-member Constitution Bench handed down the Court's verdict in *live separate but concurring judgments, running, in all, into 548 pages*. It has also brought to an end the *tour-year legal battle* which began when Mr Rai Narain filed the election petition in the Allahabad High Court. *The Supreme Court, after hearing the arguments on both sides for 34 working days. unanimously upheld Mrs. Gandhi's election to Lok Sabha in 1971, nullifying the judgment passed against her by the Allahabad High Court. The Court's* verdict allowing her appeal also automatically removed the six-year bar imposed on her contesting elections by the Allahabad High Court. *The Bench also unanimously rejected the crossappeal of Raj Narian. The Court held* that Mrs. Gandhi became a candidate on 1st February, 1971, the date of filing her nomination, and she was, therefore, *not* guilty of using the services of Mr. Yashpal Kapur. The Court further *held* that similarly. the construction of rostrums and arrangements made for supply of power and loud-speakers by the Government Officials of Uttar Pradesh could *not* be considered as having been done in furtherance of her election prospects.

Case No. 28 ADD. DISTRICT MAGISTRATE, JABALPUR Vs. SHRIKANT SHUKLA

(THE HABEAS CORPUS CASE)

(1976 2 S.C.C. 521) [Arts. 21 & 226]

On 28th April, 1976. a *five-judge Constitution Bench* of the Supreme Court delivered a very important decision on the *subject of the enforcement of fundamental rights during an emergency*. By a four to one majority, the Court *held* that no person detained under the Maintenance of Internal Security Act (MISA) can move a Court and seek his release, as long as the enforcement of fundamental rights remains suspended during such emergency. The majority verdict also ruled that the Order of the President, dated 27th June, 1975. under Art. 359(1) of the Constitution, took away the *locus standi* of detenus to move any writ petition under Art. 226 before a High Court for *Habeas Corpus* or any other writ or order or direction to challenge the legality of the order of detention, on the ground that the order was *not* in compliance with the Act, or was illegal. or was vitiated by *male fides*, factual or legal, or was based on extraneous considerations.

The majority verdict was handed down (in four separate but concurring judgments) by the Chief Justice Mr. A.N. Ray and three other judges of the Bench, namely, Mr. Justice M.H. Beg, **Mr.** Justice Y.V. Chandrachud **and Mr.** Justice P.N. Bhagwati. The dissenting judgment was delivered by **Mr.** Justice H.R. Khanna.

The Chief Justice Mr. Ray observed, in his 70-page judgment, that Art. 21 of the Constitution is the sole repository of the rights to life and personal liberty. Any claim to a Writ of *Habeas Corpus* was the enforcement of Art. 21 and was, therefore, barred by the Presidential Order of 27th June, 1975.

Describing the Constitution as "the mandate and the rule of law above which no one can rise". Mr. Justice Ray *held* that it would be incorrect to say that the jurisdiction and powers of the Supreme Court and the High Court were

virtually abolished by the Presidential order.

Concurring with the majority judgment, Mr. Justice Beg *held* that a Court could *not* inquire into the *vires* of the detention of a petitioner under the MISA, once the Court was shown a *prima facie* valid detention order passed by an authorised officer recording his purported satisfaction. Referring to the strongly emphasised point of the *basic structure of the Constitution*, he observed : "I do *not* look upon the theory of the basic structure of the Constitution as anything more than a part of a well-recognised mode of construing a document. The Constitution, **like any other** document, has to be read and construed as a whole."

Referring to the arguments on the rule of law, he said that **the term** *rule of law* was *not a magic wand which could be waived to dispel every difficulty, It is not an Alladin's lamp* which can be scratched to **invoke a** power which brings to any person in need whatever he or she may **desire** to have", he added.

In his *dissenting judgment*, Mr. Justice Khanna *held* that the Constitution of India does *not* confer any power or any authority to suspend **the** power of the High Courts to issue writs of *Habeas Corpus* during the period of emergency. His Lordship *held* that Art. 226 of the Constitution, under which the High Courts can issue writs, is an integral part of the Constitution, and the same *cannot* be suspended by putting a particular interpretation on the Presidential order issued under Art. 359(1).

Case No. 29 STATE OF RAJASTHAN AND OTHERS Vs.

(A.I.R. 1977 S.C. 1361)

[Art. 356]

UNION OF INDIA

In this case, the State of Rajasthan approached the Supreme Court of India for a declaration that a so-called "*directive*" contained in a letter issued by Shri Charan Singh, the Union Home Minister to the Chief Minister of the State was unconstitutional, illegal and *ultra vires* the Constitution, and for a declaration that the State of Rajasthan would *not* be constitutionally or legally obliged to comply with, or give effect to, such *directive*.

This case called for an interpretation of several Articles of the Constitution, and in particular, the satisfaction of the President under Article 356 of the Constitution and the power of the Court to question such satisfaction.

The Supreme Court *held* that Article 356 calls for an assessment **of a** "situation". In so far as this Article embraces matters of political **and** executive policy and expediency, the Court will *not* interfere, *unless and until* it is shown what constitutional provisions the President has contravened, or is going to contravene. While Article 74(2) disables the Court from inquiring into the very existence or nature of ministerial advice to the President, Article 356(5) makes it impossible for Courts to question the President's satisfaction "on any ground"

According to the Supreme Court, the satisfaction of the President is a *subjective* one, and *cannot* be tested by reference to any objective tests. It is deliberately and advisedly subjective, because the matter in respect of which he is to be satisfied is of such a nature that its decision must necessarily be left to an executive branch of the Government. It *cannot*, by its very nature, be a fit subject-matter for judicial determination and, hence, it is left to the subjective satisfaction of the Central Government, which is in the best position to decide it. The Court *cannot* go into the question of correctness or adequacy on the facts and circumstances on which the satisfaction of the Central Government is based. That would be a dangerous exercise for the Courts for *two reasons firstly*, **the** Court is *not* a fit institution for determining questions of this kind; and *secondly*, by doing so, the Court would be entering in "the political thicket", which it must avoid if it is to retain its legitimacy with the people.

Case No. 30 MISRILAL JAIN Vs. STATE OF ORISSA AND ANOTHER

(AIR. 1977 S.R. 1686) [Art. 144A]

The 42nd Amendment of the Constitution had introduced a *new Article*, namely, *Article 144A*, which provided that

if any question as to the constitutional validity of any State or Central law came up before the Supreme Court, the minimum number of Judges of the Supreme Court who would have to sit to determine such a question, would be *seven*. It was also provided that such a law could *not* be declared to be constitutionally invalid by the Supreme Court unless a majority of not less than *twothirds* of such Judges held it to be constitutionally invalid

This Article was considered by the Supreme Court in the above case, and whilst criticising the introduction of such a provision, the Court also highlighted the inconvenience resulting from the enactment of Article 144A. As the Supreme Court pointed out, under Article 13 of the Constitution, the word "*law*" also includes orders, bye-laws, rules, notifications, *etc.* having the force of law. The *result* would be that seven Judges of the Supreme Court would have to sit for determining any and every question as to the constitutional validity of even such orders, bye-laws and notifications issued by the Government.

In this case, the points which were raised undoubtedly involved the determination of questions as to the constitutional validity of a State Law, but the Supreme Court felt that they were utterly devoid of any substance. As observed in the Judgment, "Were it *not* for the valiant, though vain, attempt of Mr. Govind Das to pursue his points, the appeal would have taken lesser time to dispose of, than for a Court of seven to assemble."

Whilst delivering its Judgments, the Supreme Court hoped that Article 144A would be amended by the Parliament, so as to leave it to the Court itself, the duty to decide how large a Bench should decide any particular case.

[NOTE — It is interesting to note that *the 43rd Amendment, 1977 repealed Article 144A of the Constitution.*]

Case No. 31 MRS. MANEKA GANDHI Vs. THE UNION OF INDIA

[(1978) 1 Supreme Court Cases 2481 [Arts. 19 & 21]

In this case, the passport of Mrs. Maneka Gandhi, a journalist, was impounded "in public interest", and the Government declined to furnish to her reasons for its decision. She, therefore, filed a Writ Petition in the Supreme Court under Art. 32 of the Constitution, challenging the order on the ground that **it** violated Articles 14, 19 and 21 of the Constitution. The Union of India contended that her passport was impounded because her presence was likely to be required in connection with the proceedings before a Commission of Inquiry which was then functioning.

Maneka Gandhi's case was heard by a seven-member Bench of the Supreme Court. Justice Bhagwati delivered a judgment on his own behalf as well as on behalf of Justice Untwalia and Justice Fazal Ali. Four separate judgments were delivered by Chief Justice Beg, Justice Chandrachud, Justice Krishna Iyer and Justice Kailasam.

The first question before the Court was whether the right to go abroad is covered by clause (a) or clause (g) of Art. 19(1). The Court observed that it may happen that a right is *not* expressly mentioned in any of the clauses of Art. 19(1), and yet it is covered by one of such clauses. Thus, the freedom of the press is *not* specifically guaranteed, and yet, it is covered by Art. 19(1)(a). The Court, however, came to conclusion that the right to go abroad *cannot* be said to be covered by either the freedom of speech and expression [Art. 19(1)(g)] or by the right to 'carry on a trade, business or profession under Art. 19(1)(g). The Court, therefore, *held* that since the right to go abroad is *not a guaranteed right* under any of the clauses of Art. 19(1), Section 10(3)(c) of the Passports Act, 1967, which empowers the passport authority to impound a passport in the interests of general public *cannot* be said to be void as violative of Art. 19(1)(a) or Art. 19(1)(g).

The Court, however, *held* that the right to travel abroad is part of *personal liberty* guaranteed by Art. 21 of the Constitution. Hence, any "law" (as the term used in Art. 21) affecting personal liberty would have to satisfy the tests of Art. 14 and Art. 19. Moreover, this right to go abroad could *not* be curtailed without giving a reasonable opportunity to the person concerned to show cause why his or her passport should *not* be impounded

The Supreme Court also specifically over-ruled the majority view expressed in *Gopalan's case* (considered earlier) and *held that Art. 21 is controlled by Art. 19*. So, if a law prescribes a procedure for depriving a person of his personal liberty, even if it does *not* infringe Art. 21, it can still be challenged on ground that it is violative of Art. 19

The Attorney-General, however, made a statement to the Court that the Government would consider any

representation that may be made by Mrs Maneka Gandhi in respect of impounding of her passport, and deal with her representation expeditiously in accordance with law. In view of this statement, the majority of the Judges felt that it was *not necessary* to formally interfere with the impugned order of the Government, and therefore, the writ petition was disposed of without passing any order thereon.

However, the Court struck a note of warning against the passport authority in the following terms:

”The passport authority would do well to remember that it is the basic human right recognised by Article 13 of the Universal Declaration of Human Rights with which the passport authority is interfering **when it** refuses, or impounds, or cancels a passport. It is a highly **valuable** right, it is a part of a personal liberty and *an* aspect of the spiritual dimension of man *not* lightly interfered with. Cases are *not* unknown where people are *not* allowed to go abroad because of the view held, opinion expressed, or political beliefs or economic ideologies entertained by them. It is hoped that such cases will *not* recur under a Government constitutionally committed to uphold freedom and liberty, but it is well to remember at all times that *eternal vigilance is the price of liberty*, for history shows that it is always subtle and insidious encroachments made ostensibly for a good cause that imperceptibly but surely corrode the foundations of liberty”.

Case No. 32 BACHAN SINGH Vs. STATE OF PUNJAB

[(1980) Supreme Court Cases 684] [Arts. 14, 19 and 21]

Bachan Singh was tried and convicted for murder, and sentenced to death under Section 302 of the Indian Penal Code by the Sessions Judge. He appealed to the High Court, which dismissed his appeal and confirmed the death sentence. Bachan Singh then applied to the Supreme Court for special leave to appeal, and since important questions were involved, the matter was referred to a five-member Bench comprising of Chief Justice Y.V. Chandrachud, Justice P.N. Bhagwati, Justice R.S. Sarkaria, Justice A.C. Gupta and Justice N.L. Untwalia. Ten other Petitioners also intervened, and all the eleven Petitions were disposed of by a 216-paragraph judgment of the Court, with Justice Bhagwati giving a dissenting judgment.

Under the Indian Penal Code, a death sentence is *mandatory* in case of murder by a person already under a sentence of life-imprisonment, and there are seven offences where the death penalty is prescribed as an *alternative* punishment, as for instance, for waging war against the Government of India, for murder, for dacoity accompanied with murder, and so on. The Criminal Procedure Code, 1973, makes a life-sentence the *rule* and the death penalty an *exception*. It provides that where death penalty is awarded in cases where it is an *alternative* punishment, the *special reasons* for such sentence are to be stated in the sentence. (S 354(3) of the Code of Criminal Procedure, 1973).

The *two principal questions* before the Supreme Court in this case were as follows :

(a) Whether the death penalty provided for the offence of murder in Section 302 of the Indian Penal Code is unconstitutional.

(b) If the answer to question (a) above is in the negative, whether S. 354(3) of the Criminal Procedure Code (referred to above) is unconstitutional, on the ground that it gives the Court unguided and untrammelled discretion, and allows the death penalty to be arbitrarily or freakishly imposed on a person found guilty of murder or any other offence where the death sentence is prescribed as an alternate sentence.

Both the questions were answered in the *negative* by **the majority** judgment of the Court, which was delivered by Justice Sarkaria.

The Court was of the view that the death penalty or its execution *cannot* be regarded as an unreasonable, cruel or unusual punishment. Nor can it be said to defile the "dignity of the individual" (which is the term used in the Preamble to the Constitution). The Court was, therefore, of the opinion that the *death penalty does not violate the basic structure of the Constitution*.

The Court further opined that the fact that India has become a party to the International Covenant on Civil and Political Rights does *not* affect the constitutional validity of the death sentence.

In the opinion of the Court, as Art. 19 does *not* deal with the right to life and personal liberty, the said Article is *not* applicable for judging the constitutional validity of S. 302 of the Indian Penal Code. In the words of the Supreme Court, "To commit crime is *not* an activity guaranteed by Article 19(1)".

The Court observed that it *cannot* be said, reasonably and rationally, that any of the rights mentioned in Art. 19(1) confers the freedom to commit murder, or for that matter, the freedom to commit any offence whatsoever. Therefore, S. 302 of the Indian Penal Code does *not* have to stand the test of Article 19(1) of the Constitution Nor does this provision violate Art. 14 or Art. 21 of the Constitution.

As regards the provisions contained in S. 354(3) of the Criminal Procedure Code, the Court felt that Parliament has advisedly *not* restricted the sentencing discretion, as it is neither possible nor desirable to do so. In this connection, the Court observed :

"Cognizant of the past experience of the administration of the death penalty of India, Parliament, in its wisdom, thought it best and safe to leave the imposition of this gravest punishment in gravest cases of murder, to the judicial discretion of the Courts which are manned by persons of reason, experience and standing in the profession" With reference to the question of laying down standards and norms restricting the area of imposition of the death penalty, the Court *held* that if, by laying down standards, it is meant that murder should be categorised beforehand, according to the degrees of its culpability, and that all the aggravating and mitigating circumstances should be exhaustively and rigidly enumerated, so as to exclude all free play of discretion, the argument deserves to be rejected. In the opinion of the Court, such standardisation is well-nigh impossible. *Firstly*, degree of culpability *cannot* be measured in each case. *Secondly*, criminal cases *cannot* be categorised, there being infinite, unpredictable and unforeseen variations. *Thirdly*, on such categorisation, the sentencing process will cease to be judicial. And *lastly*, such standardisation of sentencing discretion is a policy matter belonging to the legislature, and is beyond the Court's function.

The Court, however, cautioned that for making the choice of punishment or for ascertaining the existence or non-existence of special reason (under S. 354(3) of the Cr. P.C.), the Court *must* pay due regard *both* to the *crime* and to the *criminal*. The relative weight to be given to the aggravating and mitigating factors would, of course, depend on the facts and circumstances of the particular case.

In his *dissenting judgment*, Justice Bhagwati observed that S. 302 of the Indian Penal Code, in so far as it provides for imposition of the death penalty as an alternative to life imprisonment is *ultra vires* and *void*, as being violative of Article 14 and Article 21 of the Constitution. This would be so because the section does *not* provide any legislative guidelines as to when life should be permitted to be extinguished by imposing the death sentence.

Case No. 33 STATE Vs. V. C. SHUKLA AND ANOTHER AND SANJAY GANDHI

AND V. C. SHUKLA Vs. STATE (AIR. 1980 S.C. 1382) [Arts. 14 & 21]

The above appeals arose from convictions by the Sessions Judge, Delhi of certain persons under various sections of the Indian Penal Code, in respect of alleged offences committed in connection with the negative and the positive prints and other material of the controversial film "*Kissa Kursi Ka*".

In this case, the validity of the *Special Courts Act, 1979*, was challenged on several grounds, and in particular, as being violative of Articles 14 and 21 of the Constitution.

The Supreme Court *held* that the heading itself of the Special Courts Act shows that its main object is to provide for

the speedy trial of a certain class of offences. The various clauses of the Preamble to the Act shows that a particular type of persons, namely those holding high public or political offices, are put in a separate class. The Court observed that the fact that the Act applies to offences committed by a particular set of persons possessing special characteristics does *not* render it unconstitutional, for when it puts into one class, a particular set of persons having special characteristics, which distinguish them from others who are left out of that class (and who are to be tried under ordinary law), the *classification is eminently reasonable*. Further, such classification has a *reasonable nexus* with the *object sought to be achieved*, namely, quick despatch and speedy trials. Thus, the Act *cannot* be said to contravene the provisions of Art. 14 of the Constitution.

Moreover, the Court observed that the Special Courts Act contains almost the same provisions as were contained in the Special Courts Bill which was sent to the Supreme Court for its opinion by the President. It was observed that in so far as the arguments advanced before the Supreme Court in the Reference Case (1979 St R. 476) were concerned, they were concluded by the decision given thereon, and in the present appeals, the Supreme Court did *not* propose to go beyond the opinion given by the Court in the Reference or the reasons thereof with which the Court was in respectful agreement.

The Supreme Court further *held* that the Special Courts Act *cannot* be held to be void on the ground that the Act creates an invincible distinction, in as much as persons holding high political or public offices would have the benefit of trial by such an experienced officer as a sitting Judge of a High Court, while the accused had been deprived of that right, and were tried by a Special Judge who was only a Sessions Judge. In the opinion of the Court, the existence of such fortuitous circumstances *cannot* attract Article 14 of the Constitution.

It was also argued that the Special Court Act is void on the ground that it provides for a harsher procedure. The Court, however, repelled this argument and observed that the procedure prescribed by the Act was *not* harsh or onerous, but rather, it is more liberal and advantageous to the accused, who is assured of an expeditious and fair trial thereunder. The Court went a step further to observe that once the classification is held to be reasonable, Article 14 would *not* be attracted, *even* if the procedure prescribed by the Act is held to be harsher than the one available under the ordinary law.

Lastly, the Special Courts Act was also challenged on the ground of being violative of Article 21 of the Constitution. Rejecting the argument, the Supreme Court pointed out that the appointment of a Special Judge is made free of control by the Government, as it now rests with the Chief Justice of the High Court concerned, subject only to the condition that he must obtain the concurrence of the Chief Justice of India for the purpose. Moreover, there was also a provision for the transfer of cases from one Special Court to another Special Court. Thus, the Act could *not* be challenged as being violative of Art. 21 of the Constitution.

Case No. 34 MINERVA MILLS LTD. Vs. THE UNION OF INDIA

(A.I.R. 1980 S.C. 1789) [Arts. 31C & 368]

Certain portions of the 42nd Amendment to the Constitution were challenged in this case, which was heard by a *five-member Bench* of the Supreme Court, composed of Chief Justice Chandrachud, Justice Bhagwati, Justice Gupta, Justice Untwalia and Justice Kailasam. Justice Bhagwati gave a dissenting judgment on certain points.

The decision of the court on Art 31C and Art 368 may be set out as under. **Article 368**

In the earlier decision of the Supreme Court in *Kesavananda Bharan case* (above), the Supreme Court had laid down an important limitation on the power of the Parliament to amend the Constitution, namely, that Parliament could *not* amend the Constitution so as to alter or damage the *basic structure* or *framework* thereof.

Subsequent to the said decision, Article 368 was amended by the 42nd Amendment, which introduced *two new provisions* into Article 368 as follows :

(i) The first clause provided that no amendment of the Constitution (including an amendment of the Chapter on Fundamental Rights) made or purporting to have been made under Article 368 (whether *before or after* the passing of the 42nd Amendment) could be called in question in any Court on any ground whatsoever.

(ii) The second clause sought to declare that there would be *no limitation whatsoever* on the power of Parliament to amend any provisions of the Constitution, whether by way of addition, variation or repeal, under Article 368.

As regards both the above amendments to Article 368, the Supreme Court was *unanimous in its* opinion that such an amendment was *void*, as being beyond the amending power of the Parliament. As observed by the Court, the *second clause* would give a vast and undefined power to Parliament to amend the Constitution, even to the extent of distorting it out of recognition. Since the Constitution itself had conferred a limited amending power on Parliament, the same Parliament could *not*, in exercise of that limited power, enlarge that very power into an absolute power. Indeed, a limited amending power is *one of the basic features* of our Constitution, and therefore, the limitations on the power *cannot* be destroyed.

So also, the *first clause* which deprives the Courts of the power to declare any amendment of the Constitution invalid, would suffer the same fate as the other clause. The Indian Constitution is founded on a judicious *balance of power amongst the three wings of the 'State*, namely, the Executive, the Legislative and the Judiciary. Thus, it is *not only the function, but also the duty* of the Judges, to pronounce upon the validity of laws passed by Parliament. It was observed that if Courts are totally deprived of this power, Fundamental Rights would become a mere adornment, because rights without remedies are so good as written in water. It was observed that if a constitutional amendment *cannot* be pronounced to be invalid, even if it destroys the basic structure of the Constitution, a law passed in pursuance of such an amendment would be beyond the scope of judicial review, because it will receive the protection of the constitutional amendment which the Courts would be powerless to strike down. In that case, Article 13 of the Constitution would also become a dead letter, because even ordinary laws would be able to escape the scrutiny of the Courts on the ground that they are passed on the strength of a constitutional amendment which is *not* open to challenge.

Justice Bhagwati, who gave a separate but concurring judgment, pointed out that this amendment would undoubtedly damage the basic structure of the Constitution, because there are *two essential features of the structure* which would be violated, namely the limited amending power of the Parliament, and the power of judicial review.

It was, therefore, *held* that Section 55 of the 42nd Amendment (which sought to amend Article 368, by adding two new clauses as stated above) was declared *void* and *unconstitutional* by the five-member Bench of the Supreme Court.

Art. 31C

The Supreme Court was, however, divided on the second issue, namely the amendment introduced by the 42nd Amendment in Article 31C, and Justice Bhagwati handed down a *dissenting judgment*.

Before the 42nd Amendment, Article 31C had laid down that if any law was passed to give effect to the Directive Principles contained in clause (b) or clause (c) of Article 39, such a law was *not* open to challenge under Article 14 or Article 19 of the Constitution. However, under the 42nd Amendment, *any law* giving effect to *any Directive principle of State Policy* was sheltered from attack under Article 14 and Article 19 of the Constitution.

The majority judgment (Justice Bhagwati dissenting) observed that Fundamental Rights occupy a unique place in the lives of civilised societies, and they constitute the *ark of the Constitution*. Therefore, to destroy the guarantees given by the Chapter on Fundamental Rights, in order, purportedly, to achieve the goals of the Directive Principles, is plainly to subvert the Constitution by destroying its basic structure. The harmonious balance between Fundamental Rights and Directive Principles is an essential feature of the basic structure of the Constitution, and to give absolute primacy to one over the other would be to destroy the harmony of the Constitution. Anything which would destroy the balance between these two parts of the Constitution would *ipso facto* destroy an essential element of the basic structure of the Constitution. It was, therefore, *held* that this portion of the 42nd Amendment was beyond the amending power of Parliament, and *void and unconstitutional*, on the ground that it damaged the basic or essential feature of the Indian Constitution.

Bhagwati J., in his *dissenting judgment*, came to the conclusion that this amendment of Article 31C introduced by the 42nd Amendment does *not* damage or destroy the basic structure of the Constitution and is within the amending power of Parliament, and therefore, valid. The *reasoning* underlying the dissenting judgment is that merely because

the Directive Principles are non-judicial, it does *not* follow that they are, in any way, inferior to the Fundamental Rights. The Directive Principles impose an obligation on the State to take positive action for creating socio-economic conditions for an egalitarian social order. It would, therefore, *not* be correct to say that, under our constitutional scheme, the Fundamental Rights are superior to Directive Principles, *or* that the Directive Principles must yield to the Fundamental Rights. Therefore, if a law is enacted for giving effect to a Directive Principle, and such a law imposes a restriction on a Fundamental Right, such a law could *not* be condemned as unreasonable or *not* in public interest. No doubt the Court would first have to determine whether there is a real and substantial connection between the law and the Directive Principle, and if the Court found that such a law was merely a colourable exercise of legislative power in disguise, such a law would *not* enjoy the protection of Article 31C. and would be struck down

In the opinion of Bhagwati J., therefore, the amendment of Article 31C by the 42nd Amendment, far from damaging the basic structure of the Constitution, strengthens and enforces it.

Case No. 35 UNION OF INDIA & ANOTHER Vs. TULSIRAM PATEL

(A.I.R. 1985 SUPREME COURT, 1418) [Arts. 309, 310 & 311]

This landmark decision of the Supreme Court arose out of a bunch of Special Leave Petitions and High Court Appeals, where railway servants participating in the all-India strike and members of the Central Industrial Security Forces were dismissed without holding any disciplinary inquiry, **and** such dismissals were challenged as being violative of Articles 310 and 311 of the Constitution. The majority judgment was delivered by Madan J., for himself and on behalf of Chandrachud, C. J., Tulzapurkar J., and Pathak J. A dissenting judgment was handed down by Justice Thakkar. (What follows is the view of the majority of 4 out of 5 Judges.)

The Court observed that the doctrine of pleasure embodied in Article 309, 310 and 311 of the Indian Constitution is neither a relic of the feudal age, nor is it based on any special prerogative of the British Crown. Rather, it is based on public policy.

The doctrine of pleasure need *not* be exercised by the President or by the Governor *personally*. Art. 311 clearly lays down that a government servant *cannot* be dismissed or removed by an authority subordinate to that by which he was appointed. This clearly shows that the dismissal or removal can be by authorities other than the President or the Governor.

Likewise, when the authority is satisfied that it is *not* reasonably practical to hold an inquiry, the disciplinary inquiry can be dispensed with. So this satisfaction also need *not* be the personal satisfaction of the President or the Governor.

The dispensing of the disciplinary inquiry can be done even after the inquiry has begun. So, even where a part of the inquiry has begun, a situation which makes the holding of the inquiry *not* reasonably practicable may come into existence, and *the rest of the inquiry can be dispensed with* under the constitutional provisions.

The Court also *held* that when there is an order removing or dismissing a Government servant without an inquiry, a mere omission to mention the relevant clause of Art. 311 or of the relevant Service Rules does *not* invalidate the order.

The Court further observed that when a disciplinary inquiry is dispensed with, the reasons therefor should be recorded in writing. Such reasons need *not* contain detailed particulars, but must *not* be vague, or a mere repetition of the language of Article 311. There is no constitutional obligation that such reasons should be communicated to the Government servant. It is however, *better* that such reasons are so communicated

Moreover, when an inquiry is dispensed with, the reasons therefor *cannot* be required to be recorded in the final order; nor can they be made public.

The Court also cautioned that a disciplinary authority is *not* expected to dispense with a disciplinary inquiry lightly or arbitrarily or out of ulterior motives, *or* merely in order to avoid the holding of an inquiry, *or* because the

Department's case is weak and would fail.

The above principles were applied by the Supreme Court in disposing of the Special Leave Petitions as well as the appeals from various High Courts, all of which were heard together.

Thus, reversing the decision of the High Court of Madhya Pradesh, the Supreme Court *held* that if a Government servant who is convicted under Section 332 of the Indian Penal Code is ordered to be compulsorily retired, and the order states that in view of his conviction and the nature of the offence committed, his retention in service is undesirable, the Order is *not* defective for *not* indicating the circumstances considered by the disciplinary authority before coming to such a conclusion.

Similarly, the Supreme Court reversed the decisions of the Patna and Madhya Pradesh High Courts, where members of the Central Industrial Security Force were dismissed without holding a disciplinary inquiry. The Court concluded that such dispensation of inquiry was proper in the circumstances.

The Court likewise dealt with the cases of the railway employees who were dismissed or removed and who were concerned in various incidents which took place in the all-India Strike of railway employees. The Court observed that where a very large number of such employees had struck work, and where the economy of the country and public interest were prejudicially affected, prompt and immediate action was called for, and departmental inquiries in such circumstances were *not* reasonably practical,

Case No. 36 SUPREME COURT ADVOCATES-ON-RECORD ASSOCIATION

AND ANOTHER Vs. UNION OF INDIA (A.I.R. 1994 Supreme Court, 268)

A landmark decision involving the appointment and transfer of Judges was given by a *nine-member Bench* of the Supreme Court in the above case. The Hon'ble Judges differed in their views, the *majority view* being that of Justice Pandian, Justice Kuldeep Singh, Justice Verma, Justice Yogeshwar Dayal, Justice Ray, Justice (Dr) Anand and Justice Bharucha. The *minority view* was taken by Justice Ahmadi and Justice Punchhi.

Although the judgment of the Supreme Court runs into 537 paragraphs, the following may be taken as a *summary of the conclusions arrived at by seven out of the nine Judges* on this matter of the greatest constitutional significance :

1. The *process of appointment* of Judges to the Supreme Court and **the** High Courts is an integrated participatory consultative process. to select the best and most suitable persons available for the appointment All constitutional functionaries must perform this duty collectively, so as to **best** subserve the constitutional purpose
2. As far as *appointment* of a Judge is concerned, in the case of the Supreme Court, the proposal should be initiated by the Chief Justice **of** India, and in the case of a High Court, by the Chief Justice of that **Court**.
3. As regards *transfer* of a Judge or the Chief Justice of a High Court, the proposal has to be initiated by the Chief Justice of India
4. In matters relating to the Supreme Court, **the** Chief Justice of **India** is to arrive at his opinion after taking into account the views of the **two** senior-most Judges of the Supreme Court
5. Likewise, in matters relating to the High Courts, the Chief Justice **of** India is expected to take into account, the views of his colleagues in the Supreme Court, who are likely to be conversant with the affairs of that **High Court**. He may also ascertain the views of one or more senior Judges of *that* High Court. The opinion of the Chief **Justice of** that High Court would also be entitled to the greatest weight.
6. The opinion of the Chief Justice of a High Court must be formed after ascertaining the views of at least two senior-most Judges of that High Court.
7. In the case of conflicting opinions by the constitutional functionaries, the opinion of the Chief Justice of India would have primacy.

8. No appointment of any Judge to the Supreme Court or any High Court can be made unless it is in conformity with the opinion of the Chief Justice of India, formed as stated above.

9. Appointment to the office of the Chief Justice of India should be of the senior-most Judge of the Supreme Court considered fit to hold the office.

10. In matters of *transfer* of High Court Judges, the opinion of the Chief Justice of India is determinative and conclusive.

11. The *consent* of the transferred Judge is *not* required, whether for the first or any subsequent transfer from one High Court to another.

12. Any *transfer* of a High Court Judge made on the recommendation of the Chief Justice of India, is *not* to be deemed to be punitive. Such transfer is also *not justiciable* on any ground.

13. In making all appointments and transfers, the above norms must be followed. However, the same do *not* confer any justiciable right on any person.

14. Fixation of the strength of Judges (*Le.* the number of Judges) in a High Court is *justiciable*, but only to the extent indicated in the Judgment.

15. The majority opinion in an earlier case decided by the Supreme Court, *S.P. Gupta v. Union of India* (AIR. 1982 S.C. 149), in so far as it takes a contrary view relating to the role of the Chief Justice of India in matters of appointment and transfer and the justiciability of such matters, is *not the correct view*.

Case No. 37 IN RE. AYODHYA REFERENCE [Art. 143]

On October 24, 1994, the Supreme Court delivered its historic judgment in the Presidential reference made to it under Art. 143(1) of the Constitution on the *Ram Janmabhoomi-Babri Masjid controversy*.

The landmark judgment was delivered by a *five-member Constitution Bench*, which unanimously declined to answer the Presidential reference on whether there was any temple (or other Hindu religious structure) at the site where the *masjid* was demolished at Ayodhya.

The *majority judgment* of Chief Justice Venkatachaliah, Justice Verma and Justice Ray (running to 98 pages) *held* that the reference was "superfluous and unnecessary". The *minority judgment* (of Justice Ahmadi and Justice Bharucha), also declining to answer the Presidential reference, observed as under :

The Act and Reference favour one religious community and disfavour another, the purpose of the reference is therefore opposed to secularism and is unconstitutional. Ayodhya is a storm that will pass. The dignity and honour of the Supreme Court *cannot* be compromised because of it." In a *bold and hard-hitting judgment*, Justice Ahmadi and Justice Bharucha pointed out that when the matter was referred to the Supreme Court, the Reference stated that the Central Government proposed to settle this dispute after obtaining the Supreme Courts opinion and in terms of such opinion. However, it seemed clear that the Central Government did *not*, in fact, propose to do so. "Rather, it proposes to use the Court's opinion as a springboard for negotiations", they added. The Judges remarked that even if the Supreme Court were to come to the conclusion that no Hindu temple or other Hindu religious structure earlier existed on the disputed site, "there is no certainty that the mosque will be rebuilt".

On the question of the constitutional validity of the Ayodhya Land Acquisition Act, 1993, the Court was sharply divided. The *majority judgment* upheld the validity of the Act, and consequently, the validity of the acquisition of the land in and around the disputed site. The majority judgment also made it clear that the Central Government would manage and administer the acquired land only as a "statutory receiver", and ultimately hand over the disputed land to the party found entitled to **the** same as per the final judicial decision arrived at in the pending suits

The majority judgment, however, struck down S. 4(3) of the Ayodhya Act, as being "unconstitutional and invalid",

with the effect that all suits and legal proceedings pertaining to 67.7 acres of the acquired property, pending prior to the promulgation of the Ayodhya Ordinance (*i.e* January 7. 1993) would stand revived.

The Court, however, added that the revival of the suits would *not* debar the Union Government from negotiating to bring about an amicable solution to the dispute.

Referring to the arguments advanced before the Court that a mosque enjoyed a particular position under Mahomedan Law, the majority observed as under

”Under the Mahomedan Law applicable in India, title to a mosque can be lost by adverse possession. If that is the position in law, there can be no reason to hold that a mosque has a unique or special status, higher than that of the places of worship of other religions in secular India, to make it immune from acquisition by exercise of the sovereign or prerogative power of the State.” In their *dissenting judgment*, the two Judges struck down the *whole* of the Ayodhya Act as ”unconstitutional”. The entire Act was invalidated with a terse remark that it did *not* serve any constitutional purpose. In a fitting tribute to the secular nature of the country, the Judges, in their concluding observations, remarked as under

”Hinduism is a tolerant faith. It is that tolerance that has enabled Islam, Christianity, Zoroastrianism, Judaism, Buddhism, Jainism and Sikhism to find shelter and support upon this land.”

